APPENDIX AND RESOURCES

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APPENDIX AND RESOURCES

Appx.1 Methodologies for the Tables

Appx.1.1 Constitution Annotated Tables Generally

The following essays provide background on and explanations of the methodologies used to compile the tables in the Resources section of the *Constitution Annotated* website. These tables include the "Table of Supreme Court Decisions Overruled by Subsequent Decisions;"[1] the "Table of Laws Held Unconstitutional in Whole or in Part by the Supreme Court;"[2] the "Table of Supreme Court Justices;"[3] "Beyond the Constitutional Annotated: Table of Additional Resources;"[4] and the "Table of Cases."[5] The "Table of Supreme Court Decisions Overruled by Subsequent Decisions;" the "Table of Laws Held Unconstitutional in Whole or in Part by the Supreme Court;" the "Table of Supreme Court Justices;" and the "Table of Cases" are included in the 2022 edition of the Constitution Annotated. "Beyond the Constitution Annotated: Table of Additional Resources" is available online.

Appx.1.2 Methodology for the Table of Supreme Court Decisions Overruled by Subsequent Decisions

The Table of Supreme Court Decisions Overruled by Subsequent Decisions[1] lists Supreme Court decisions regarding an interpretation of constitutional law, which the Supreme Court subsequently overruled. In accordance with the underlying purposes of the Constitution Annotated, this list is intended to provide a consistent, objective assessment of changes in Court precedent. While Justices[2] and commentators[3] frequently assert in legal debates that a given decision has overruled a prior decision, such assertions may be speculative or reflect subjective interpretations, resulting in diverse opinions on whether a given case has, in fact,

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[1] This table is available online at https://constitution.congress.gov/resources/decisions-overruled/.

[2] This table is available online at https://constitution.congress.gov/resources/unconstitutional-laws/.

[3] This table is available online at https://constitution.congress.gov/resources/supreme-court-justices/.

[4] This table is available online at https://constitution.congress.gov/resources/additional-resources/.

[5] This table is available online at https://constitution.congress.gov/resources/cases-cited/.

[1] This table is available online at https://constitution.congress.gov/resources/decisions-overruled/.

[2] *See, e.g.*, Abdul-Kabir v. Quarterman, 127 S. Ct. 1654, 1685 (2007) (Scalia, J., dissenting) (arguing that the Court had implicitly overruled Johnson v. Texas, 509 U.S. 350 (1993)); Cent. Va. Cmty. Coll. v. Katz, 546 U.S. 356, 382 (2006) (Thomas, J., dissenting) (claiming that the Court overruled Hoffman v. Connecticut Department of Income Maintenance, 492 U.S. 96 (1989), in silence or "sub silentio"); Mitchell v. W.T. Grant Co., 416 U.S. 600, 634–35 (1974) (Stewart, J., dissenting) ("Yet the Court today has unmistakably overruled a considered decision of this Court that is barely two years old, without pointing to any change in either societal perceptions or basic constitutional understandings that might justify this total disregard of *stare decisis*."); Berger v. New York, 388 U.S. 41, 64 (1967) (Douglas, J., concurring) ("I join the opinion of the Court because at long last it overrules *sub silentio Olmstead v. United States* . . . and its offspring and brings wiretapping and other electronic eavesdropping fully within the purview of the Fourth Amendment.").

[3] *See* Barry Friedman, *The Wages of Stealth Overruling (with Particular Attention to Miranda v. Arizona)*, 99 GEO. L.J. 1, 2–3 (2010) ("[M]any critics of [the Roberts Court's] decisions claimed that the overrulings had in fact occurred, but by 'stealth.' Underscoring that something well out of the ordinary was happening, challenges to the Justices' claims of fidelity to precedent came from both sides of the ideological divide."); Charles J. Cooper, *Stare Decisis: Precedent and Principle in Constitutional Adjudication*, 73 CORNELL L. REV. 401, 402 (1988) ("The truth, of course, is that *stare decisis* has always been a doctrine of convenience, to both conservatives and liberals. Its friends, for the most part, are determined by the needs of the moment.").

been overruled.[4] Oftentimes, knowledge of the Court's subsequent actions is necessary to determine whether and the extent to which a particular case can be said to have overturned precedent.[5]

In order to ensure that cases are identified as overruled in a consistent and objective manner, the *Constitution Annotated* adopted fixed criteria. Specifically, for a decision to be listed as overruled, a majority of the Court must have explicitly stated, in a subsequent decision, that the case has been overruled[6] or used language that is functionally equivalent.[7] While this approach may result in a list that is narrower than similar lists in other sources, it provides consistent and objective treatment, adhering to the Court's repeated statements that only the High Court has "the prerogative of overruling its own decisions."[8]

The table also includes decisions that the Court has only partially overruled or otherwise qualified. For example, in *United States v. Hatter*, the Court overruled *Evans v. Gore* "insofar as [*Evans*] holds that the Compensation Clause forbids Congress to apply a generally applicable, nondiscriminatory tax to the salaries of federal judges, whether or not they were appointed before enactment of the tax."[9] Similarly, in *Fulton Corp. v. Faulkner*, the Court distinguished an earlier decision's treatment of the Equal Protection and Commerce Clauses, stating: "To the extent that *Darnell* evaluated a discriminatory state tax under the Equal Protection Clause, time simply has passed it by . . . . [W]hile cases like *Kidd* and *Darnell* may still be authorities under the Equal Protection Clause, they are no longer good law under the Commerce Clause."[10]

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[4] *See* Matthew Berns, *Trigger Laws*, 97 GEO. L.J. 1639, 1672 (2009) ("Whether the Supreme Court has overruled itself is a difficult question that often lacks a clear 'yes' or 'no' answer, and an opinion might be consistent or inconsistent with an earlier decision on a number of different levels.").

[5] *Compare* Webster v. Reprod. Health Servs., 492 U.S. 490, 537 (1989) (Blackmun, J., dissenting) (arguing that a majority of the Court had functionally overruled *Roe v. Wade,* 410 U.S. 113 (1973)) *with* Planned Parenthood v. Casey, 505 U.S. 833, 923 (1992) (Blackmun, J., dissenting) (noting that a majority of the Court had concluded that the "essential holding of *Roe v. Wade* should be retained and once again reaffirmed.").

[6] *See, e.g.*, United States v. Rabinowitz, 339 U.S. 56, 66 (1950) ("To the extent that *Trupiano v. United States* . . . requires a search warrant solely upon the basis of the practicability of procuring it rather than upon the reasonableness of the search after a lawful arrest, that case is overruled."); Brenham v. German Am. Bank, 144 U.S. 173, 187 (1892) ("We, therefore, must regard the cases of *Rogers v. Burlington* and *Mitchell v. Burlington*, as overruled in the particular referred to, by later cases in this court.").

[7] *See, e.g.*, Joseph Burstyn, Inc. v. Wilson, 343 U.S. 495, 502 (1952) ("For the foregoing reasons, we conclude that expression by means of motion pictures is included within the free speech and free press guaranty of the First and Fourteenth Amendments. To the extent that language in the opinion in *Mutual Film Corp. v. Industrial Comm'n* . . . is out of harmony with the views here set forth, we no longer adhere to it."); Alpha Portland Cement Co. v. Massachusetts, 268 U.S. 203, 218 (1925) ("So far as the language of *Baltic Mining Co. v. Massachusetts* . . . tends to support a different view it conflicts with conclusions reached in later opinions and is now definitely disapproved."). While the "functional equivalent" standard invites judgment calls about whether a case should be included, at a minimum, the majority opinion must discuss the case being overturned and have some clear language indicating the court is rejecting some principle announced in the earlier case to be included in the table.

[8] Agostini v. Felton, 521 U.S. 203, 237 (1997) . *See also* Rodriguez de Quijas v. Shearson/Am. Express, Inc., 490 U.S. 477, 484 (1989) ("If a precedent of this Court has direct application in a case, yet appears to rest on reasons rejected in some other line of decisions, the Court of Appeals should follow the case which directly controls, leaving to this Court the prerogative of overruling its own decisions.").

[9] 532 U.S. 557, 567 (2001). *See also* Lapides v. Bd. of Regents of Univ. System of Ga., 535 U.S. 613, 623 (2002) ("[F]or these same reasons, we conclude that *Clark*, *Gunter*, and *Gardner* represent the sounder line of authority. Finding Ford inconsistent with the basic rationale of that line of cases, we consequently overrule *Ford* insofar as it would otherwise apply.").

[10] 516 U.S. 325, 345 (1996). *See also* 44 Liquormart, Inc. v. Rhode Island, 517 U.S. 484, 516 (1996) ("Without questioning the holding in *LaRue*, we now disavow its reasoning insofar as it relied on the Twenty-First Amendment.").

This approach necessarily excludes certain cases that other sources may list as overruled. For example, the table does not include cases that the Court distinguished or limited[11] or cases identified by concurring or dissenting Justices or commentators as overruled,[12] unless such cases have also been expressly overruled by a majority of the Court. Similarly, cases that the Court treats as discredited, but has not expressly overruled, are not included in the table.[13] In addition, in order to avoid imputing findings to the Court with respect to particular cases, the table does not include cases that, arguably, rely on overruled precedent, unless the Court has also expressly identified such cases as overruled.

The table does not include cases where the Court issued a ruling on the merits after having split evenly on the issue previously,[14] or where the Court reversed an earlier procedural ruling (e.g., lifting a previously issued stay).[15] While some sources list such cases,[16] the *Constitution Annotated* does not. The table also does not address subsequent developments, such as the enactment of statutory or constitutional amendments, which may functionally "reverse" the Court's decisions.[17] In other words, the table focuses on the Supreme Court's actions and, in particular, the frequency and manner in which the Court has reversed itself. As such, the table does not necessarily reflect the current state of the law on a given issue.

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[11] *See, e.g.*, United States v. Class, 313 U.S. 299, 317 (1941) ("In *Newberry v. United States*, . . . four Justices of this Court were of opinion that the term 'elections' in §4 of Article I did not embrace a primary election, since that procedure was unknown to the framers. A fifth Justice, who with them pronounced the judgment of the Court, was of opinion that a primary, held under a law enacted before the adoption of the Seventeenth Amendment, for the nomination of candidates for Senator, was not an election within the meaning of §4 of Article I of the Constitution, presumably because the choice of the primary imposed no legal restrictions on the election of Senators by the state legislatures to which their election had been committed by Article I, § 3. The remaining four Justices were of the opinion that a primary election for the choice of candidates for Senator or Representative were elections subject to regulation by Congress within the meaning of §4 of Article I. The question then has not been prejudged by any decision of this Court."); *In re* Ayers, 123 U.S. 443 (1887) (distinguishing Osborn v. Bank of the United States, 22 U.S. (9 Wheat.) 738 (1824)).

[12] *See, e.g.*, Mitchell v. W.T. Grant Co., 416 U.S. 600, 634–35 (1974) (Stewart, J., dissenting) ("Yet the Court today has unmistakably overruled a considered decision of this Court that is barely two years old, without pointing to any change in either societal perceptions or basic constitutional understandings that might justify this total disregard of *stare decisis*."); Berger v. New York, 388 U.S. 41, 64 (1967) (Douglas, J., concurring) ("I join the opinion of the Court because at long last it overrules *sub silentio Olmstead v. United States* . . . and its offspring and brings wiretapping and other electronic eavesdropping fully within the purview of the Fourth Amendment.").

[13] In a few instances, this approach may have counterintuitive results, such as the list's treatment of Plessy v. Ferguson. 163 U.S. 537 (1896). This 1896 decision, which held that the provision of "separate but equal" accommodations for African Americans does not run afoul of the constitutional guarantee of equal protection, is sometimes said to have been overruled by the Court's 1954 decision in *Brown v. Board of Education.* 347 U.S. 483 (1954). However, *Brown*'s language is more limited, stating only that "We conclude that, in the field of public education, the doctrine of 'separate but equal' has no place," (*Id.* at 495.) and distinguishing potentially conflicting case law as simply not addressing the ultimate holding in *Brown*, 347 U.S. at 491 (noting that "in Cumming v. County Board of Education, 175 U.S. 528 (1899), and Gong Lum v. Rice, 275 U.S. 78 (1927), the validity of the doctrine [of 'separate but equal' in public education] itself was not challenged."). Instead, the list provides that *Plessy* was firmly repudiated by the Court in a much later case, *Bob Jones University v. United States*, 461 U.S. 574 (1983).

[14] *Compare* Chesapeake & Ohio Ry. v. Leitch, 276 U.S. 429 (1928) (rehearing), *with* Chesapeake & Ohio Ry. v. Leitch, 275 U.S. 507 (1927) (per curiam) (affirming the decision of the lower court by a vote of four votes to four votes).

[15] *See, e.g.*, Paramount Publix Corp. v. Am. Tri-Ergon Corp., 293 U.S. 528 (1934) (reversing a prior order denying certiorari).

[16] Albert P. Blaustein & Andrew H. Field, *"Overruling" Opinions in the Supreme Court*, 57 Mich. L. Rev. 151, 184–89 (1958/1959).

[17] For example, the table lists the Court's 1944 decision in *United States v. South-Eastern Underwriters Association,* 322 U.S. 533 (1944) as reversing its 1869 decision in *Paul v. Virginia,* 75 U.S. (8 Wall.) 168 (1869), without noting that Congress subsequently enacted the McCarran-Ferguson Act to exempt the business of insurance from most federal regulation, a law that negates *Paul*. *See, e.g.*, Willy E. Rice, *Federal Courts and the Regulation of the Insurance Industry: An Empirical and Historical Analysis of Courts' Ineffectual Attempts to Harmonize Federal Antitrust, Arbitration, and Insolvency Statutes with the McCarran-Ferguson Act, 1941–1993*, 43 Cath. U. L. Rev. 399, 401 (1994) ("*South-Eastern Underwriters* effectively overruled *Paul* and created major turbulence within the insurance industry. Congress responded to the crisis by enacting the McCarran-Ferguson Act (the Act).").

Appx.1.2
Methodology for the Table of Supreme Court Decisions Overruled by Subsequent Decisions

For purposes of this table, decisions are identified as *overruling* when the High Court characterizes them as such. While it is not uncommon for the Court to note that an earlier decision has been "eroded by . . . subsequent decisions,"[18] or "cannot be reconciled with later decisions of th[e] Court,"[19] cases that the Court may consider to have effectuated such "erosion" or legal change are not included in the table unless the Court expressly found such cases to overrule precedent.

Similarly, with *overruled* decisions, the table includes only decisions the Court has expressly identified as overruled. While the Court often refers to a decision by name when overruling it—stating, for example, "*Haddock v. Haddock* is overruled . . . ,"[20] or "We now expressly overrule *Spaziano* and *Hildwin* . . ."[21]—in some cases, the Court may identify several decisions related to a particular legal doctrine and then state that the doctrine is overruled.[22] In such circumstances, cases that the Court expressly identifies in the overruling decision are listed, insofar as the overruling decision evidences that the Court contemplated such cases when deeming the doctrine overruled. Decisions that may rely on an overruled doctrine, but are not identified by the Court as such, are not listed in order to avoid imputing findings to the Court that it did not intend.

The table was compiled by searching the LEXIS database for all Supreme Court decisions that use the word "overrule" in the headnotes, syllabus, or text of the Court's opinion.[23] The results were then reviewed to ascertain the Court's exact meaning with respect to its earlier decisions. Decisions supported by a majority of the Court that expressly overruled an earlier decision or used functionally equivalent language were listed in the table. These findings were also cross-checked with other sources to ensure that the search had captured any relevant results.[24]

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[18] Katz v. United States, 389 U.S. 347, 353 (1967) ("We conclude that the underpinnings of *Olmstead* and *Goldman* have been so eroded by our subsequent decisions that the "trespass" doctrine there enunciated can no longer be regarded as controlling.").

[19] California v. Thompson, 313 U.S. 109, 116 (1941) ("The decision in the *Di Santo* case was a departure from this principle which has been recognized since *Cooley v. Board of Port Wardens* . . . It cannot be reconciled with later decisions of this Court which have likewise recognized and applied the principle, and it can no longer be regarded as controlling authority.").

[20] Williams v. North Carolina, 317 U.S. 287, 304 (1942).

[21] Hurst v. Florida, 577 U.S. ___, No. 14-7505, slip op., at 9 (2016) .

[22] *See, e.g.*, Pennhurst State Sch. & Hosp. v. Halderman, 465 U.S. 89, 114–15 (1984) ("The dissent in *Larson* made many of the arguments advanced by Justice Stevens['] dissent today, and asserted that many of the same cases were being overruled or ignored. Those arguments were rejected, and the cases supporting them are moribund. Since *Larson* was decided in 1949, no opinion by any Member of this Court has cited the cases on which the dissent primarily relies for a proposition as broad as the language the dissent quotes. Many if not most of these cases have not been relied upon in an Eleventh Amendment context at all."); Elkins v. United States, 364 U.S. 206, 208 (1960) ("In a word, we re-examine here the validity of what has come to be called the silver platter doctrine. For the reasons that follow we conclude that this doctrine can no longer be accepted.").

[23] This search strategy was selected because preliminary searches using other terms—including, but not limited to, "stare decisis"—suggest that the strategy previously noted would be effective in capturing decisions where the Court explicitly uses the word "overrule," as well as decisions where the Court uses other express language that can be seen to be tantamount to overruling. *See supra* note 3.

[24] *See, e.g.*, Michael J. Gerhardt, *The Role of Precedent in Constitutional Decisionmaking and Theory*, 60 Geo. Wash. L. Rev. 68 (1991/1992); Michael J. Gerhardt, The Power of Precedent (1990); Jon D. Noland, *Stare Decisis and the Overruling of Constitutional Decisions in the Warren Years*, 4 Val. U.L. Rev. 101 (1969/1970); S. Sidney Ulmer, *An Empirical Analysis of Selected Aspects of Lawmaking of the United States Supreme Court*, 8 J. Pub. L. 414 (1959); Blaustein & Field, *supra* note 16; Charlotte C. Bernhardt, *Supreme Court Reversals on Constitutional Issues*, 34 Cornell L.Q. 55 (1948/1949); William O. Douglas, We the Judges (1965); William O. Douglas, *Stare Decisis*, 49 Colum. L. Rev. 735 (1949); Burnet v. Coronado Oil & Gas Co., 285 U.S. 393, 406–09 nn.1–4 (1932) (Brandeis, J., dissenting); Payne v. Tennessee, 301 U.S. 808, 830 (1991).

The table is arranged in chronological order by the date of the overruling decision. For each overruling decision listed, the table gives (1) the name of the overruling decision; (2) the date of the overruling decision; (3) the name of the overruled decision; and (4) the date of the overruled decision.

Appx.1.3 Methodology for the Table of Laws Held Unconstitutional in Whole or in Part by the Supreme Court

The Table of Laws Held Unconstitutional in Whole or in Part by the Supreme Court[1] is undergoing significant revisions and will be updated more fully as broader review of the *Constitution Annotated* continues. This table provides preliminary revisions to prior versions of the table, listing Supreme Court decisions that invalidated a law on constitutional grounds. It includes cases invalidating federal laws, state constitutional or statutory provisions, and local laws. The table does not include cases in which the Supreme Court held that a state or local law was preempted, as those cases tend to hinge on an interpretation of positive federal law as opposed to a substantive interpretation of a particular constitutional provision. Moreover, the table generally includes only cases in which the Court held that a statute was facially unconstitutional and does not include as-applied challenges. In addition to giving the case citations, the Table indicates the term in which the opinion was released, the opinion's author, and the general subject matter of the case. The table also briefly summarizes the law that was held unconstitutional and identifies what portion of the U.S. Constitution the law violated.

Appx.1.4 Methodology for the Table of Supreme Court Justices

The Table of Supreme Court Justices[1] lists all Supreme Court Justices along with brief biographical information (Supreme Court Term Start and End, Appointing President, and Noteworthy Opinions). The "Supreme Court Term Start" is the date on which the Justice was sworn in, including recess appointments.[2] The "Supreme Court Term End" is the date on which the Justice stopped serving on the Court.[3] "Notable Opinion(s)" lists landmark cases authored by the Justice addressing constitutional law issues.[4]

Appx.1.5 Methodology for Beyond the Constitution Annotated: Table of Additional Resources

Beyond the Constitution Annotated: Table of Additional Resources[1] lists and provides links to publicly available Congressional Research Service (CRS) written products, including reports and Legal Sidebars, pertaining to the Constitution. This table also archives the CRS products

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[1] This table is available online at https://constitution.congress.gov/resources/unconstitutional-laws/.

[1] This table is available online at https://constitution.congress.gov/resources/supreme-court-justices/.

[2] *History of the Federal Judiciary: Biographical Directory of Federal Judges, 1789–Present*, Fed. Judicial Ctr., http://www.fjc.gov/history/home.nsf/page/judges.html (last visited Apr. 15, 2022) (providing information about the Justices' position on the Court, their term of service, and the name of the appointing presidents); *Justices 1789 to Present*, SupremeCourt.gov, https://www.supremecourt.gov/about/members_text.aspx (last visited Apr. 15, 2022) (same).

[3] *Id.*

[4] *See* 3 William J. Rich, Modern Constitutional Law Appendix A (3d ed. 2011) (providing information about the Justices' noteworthy opinions); Clare Cushman, The Supreme Court Justices: Illustrated Biographies, 1789–2012 (3d ed. 2013) (same); Timothy L. Hall, Supreme Court Justices: A Biographical Dictionary (2011) (same); Melvin I. Urofsky, Biographical Encyclopedia of the Supreme Court: The Lives and Legal Philosophies of the Justices 135 (CQPress 2006) (same).

[1] This table is available online at https://constitution.congress.gov/resources/additional-resources/.

that have been featured on the *Constitution Annotated* homepage under "Featured Issues." The table identifies constitutional provisions and subjects addressed. Because of the volume of materials on this table, the table is not reproduced in the 2022 edition of the *Constitution Annotated* but is available online.

Appx.1.6 Methodology for the Table of Cases

The Table of Cases[1] is a comprehensive list of cases cited in the *Constitution Annotated* alongside the *Constitution Annotated* essays in which the citations are located. It is not a Table of Authorities, so it does not include citations to other types of authorities such as books, law journals, periodicals, reports, and others.

[1] This table is available online at https://constitution.congress.gov/resources/cases-cited/.

TABLE OF SUPREME COURT DECISIONS OVERRULED BY SUBSEQUENT DECISION

Overruling Decision	Year of Overruling Decision	Overruled Decision(s)	Year(s) of Overruled Decision(s)
Dobbs v. Jackson Women's Health Organization, No. 19-1391 (U.S. June 24, 2022)	2022	Planned Parenthood of Southeastern Pennsylvania v. Casey, 505 U.S. 833 (1992);	1992
		Roe v. Wade, 410 U.S. 113 (1973)	1973
Edwards v. Vannoy, No. 19-5807 (U.S. May 17, 2021)	2021	Teague v. Lane, 489 U.S. 288 (1989) (in part)	1989
Ramos v. Louisiana, No. 18-5924 (U.S. Apr. 20, 2020)	2020	Apodaca v. Oregon, 406 U.S. 404 (1972) (plurality opinion);	1972
		Johnson v. Louisiana, 406 U.S. 366 (1972) (Powell, J., concurring)	
Franchise Tax Board of California v. Hyatt, No. 17-1299 (U.S. May 13, 2019)	2019	Nevada v. Hall, 440 U.S. 410 (1979)	1979
Herrera v. Wyoming, No. 17-532 (U.S. May 20, 2019)	2019	Ward v. Race Horse, 163 U.S. 504 (1896)	1896
Knick v. Township of Scott, No. 17-647 (U.S. June 21, 2019)	2019	Williamson County Regional Planning Commission v. Hamilton Bank of Johnson City, 473 U.S. 172 (1985) (in part)	1985
Rucho v. Common Cause, No. 18-422 (U.S. June 27, 2019)	2019	Davis v. Bandemer, 478 U.S. 109 (1986)	1986
Janus v. American Federation of State, County, & Municipal Employees, Council 31, No. 16-1466 (U.S. June 27, 2018)	2018	Abood v. Detroit Board of Education, 431 U.S. 209 (1977)	1977
South Dakota v. Wayfair, No. 17-494 (U.S. June 21, 2018)	2018	Quill Corp. v. North Dakota, 504 U.S. 298 (1992);	1992
		National Bellas Hess v. Department of Revenue of Illinois, 386 U.S. 753 (1967)	1967
Trump v. Hawaii, No. 17-965 (U.S. June 26, 2018)	2018	Korematsu v. United States, 323 U.S. 214 (1944)	1944
Hurst v. Florida, No. 14-7505 (U.S. Jan. 12, 2016)	2016	Hildwin v. Florida, 490 U.S. 638 (1989) (per curiam);	1989
		Spaziano v. Florida, 468 U.S. 447 (1984)	1984
Johnson v. United States, No. 13-7120 (U.S. June 26, 2015)	2015	Sykes v. United States, 564 U.S. 1 (2011);	2011
		James v. United States, 550 U.S. 192 (2007)	2007

continues

TABLE OF OVERRULED DECISIONS

Overruling Decision	Year of Overruling Decision	Overruled Decision(s)	Year(s) of Overruled Decision(s)
Obergefell v. Hodges, No. 14-556 (U.S. June 26, 2015)	2015	Baker v. Nelson, 409 U.S. 810 (1972)	1972
Alleyne v. United States, 570 U.S. 99 (2013)	2013	Harris v. United States, 536 U.S. 545 (2002)	2002
Citizens United v. Federal Election Commission, 558 U.S. 310 (2010)	2010	McConnell v. Federal Election Commission, 540 U.S. 93 (2003)	2003
Montejo v. Louisiana, 556 U.S. 778 (2009)	2009	Michigan v. Jackson, 475 U.S. 625 (1986)	1986
Pearson v. Callahan, 555 U.S. 223 (2009)	2009	Saucier v. Katz, 533 U.S. 194 (2001)	2001
Bowles v. Russell, 551 U.S. 205 (2007)	2007	Thompson v. Immigration & Naturalization Service, 375 U.S. 384 (1964);	1964
		Harris Truck Lines, Inc. v. Cherry Meat Packers, Inc., 371 U.S. 215 (1962)	1962
Leegin Creative Leather Products Inc. v. PSKS, Inc., 551 U.S. 877 (2007)	2007	Dr. Miles Medical Co. v. John D. Park & Sons Co., 220 U.S. 373 (1911)	1911
Central Virginia Community College v. Katz, 546 U.S. 356 (2006)	2006	Hoffman v. Connecticut Department of Income Maintenance, 492 U.S. 96 (1989)	1989
Roper v. Simmons, 543 U.S. 551 (2005)	2005	Stanford v. Kentucky, 492 U.S. 361 (1989)	1989
Crawford v. Washington, 541 U.S. 36 (2004)	2004	Ohio v. Roberts, 448 U.S. 56 (1980)	1980
Lawrence v. Texas, 539 U.S. 558 (2003)	2003	Bowers v. Hardwick, 478 U.S. 186 (1986)	1986
Atkins v. Virginia, 536 U.S. 304 (2002)	2002	Penry v. Lynaugh, 492 U.S. 302 (1989)	1989
Lapides v. Board of Regents of University System of Georgia, 535 U.S. 613 (2002)	2002	Ford Motor Co. v. Department of Treasury of State of Indiana, 323 U.S. 459 (1945)	1945
Ring v. Arizona, 536 U.S. 584 (2002)	2002	Walton v. Arizona, 497 U.S. 639 (1990)	1990
United States v. Cotton, 535 U.S. 625 (2002)	2002	*Ex parte* Bain, 121 U.S. 1 (1887)	1887
United States v. Hatter, 532 U.S. 557 (2001)	2001	Evans v. Gore, 253 U.S. 245 (1920)	1920
Mitchell v. Helms, 530 U.S. 793 (2000)	2000	Wolman v. Walter, 433 U.S. 229 (1977);	1977
		Meek v. Pittenger, 421 U.S. 349 (1975)	1975
College Savings Bank v. Florida Prepaid Postsecondary Education Expense Board, 527 U.S. 666 (1999)	1999	Parden v. Terminal Railway of Alabama State Docks Department, 377 U.S. 184 (1964) (in part)	1964
Minnesota v. Mille Lacs Band of Chippewa Indians, 526 U.S. 172 (1999) (in part)	1999	Ward v. Race Horse, 163 U.S. 504 (1896) (in part)	1896

Overruling Decision	Year of Overruling Decision	Overruled Decision(s)	Year(s) of Overruled Decision(s)
Hohn v. United States, 524 U.S. 236 (1998)	1998	House v. Mayo, 324 U.S. 42 (1945)	1945
Agostini v. Felton, 521 U.S. 203 (1997)	1997	Aguilar v. Felton, 473 U.S. 402 (1985);	1985
		School District of Grand Rapids v. Ball, 473 U.S. 373 (1985) (in part)	
Hudson v. United States, 522 U.S. 93 (1997)	1997	United States v. Halper, 490 U.S. 435 (1989)	1989
State Oil Co. v. Khan, 522 U.S. 3 (1997)	1997	Albrecht v. Herald Co., 390 U.S. 145 (1968)	1968
44 Liquormart, Inc. v. Rhode Island, 517 U.S. 484 (1996)	1996	California v. LaRue, 409 U.S. 109 (1972)	1972
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		Kidd v. Alabama, 188 U.S. 730 (1903)	1903
Seminole Tribe of Florida v. Florida, 517 U.S. 44 (1996)	1996	Pennsylvania v. Union Gas Co., 491 U.S. 1 (1989)	1989
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Hubbard v. United States, 514 U.S. 695 (1995)	1995	United States v. Bramblett, 348 U.S. 503 (1955)	1955
United States v. Gaudin, 515 U.S. 506 (1995)	1995	Sinclair v. United States, 279 U.S. 263 (1929)	1929
Nichols v. United States, 511 U.S. 738 (1994)	1994	Baldasar v. Illinois, 446 U.S. 222 (1980)	1980
United States v. Dixon, 509 U.S. 688 (1993)	1993	Grady v. Corbin, 495 U.S. 508 (1990)	1990
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Planned Parenthood of Southeastern Pennsylvania v. Casey, 505 U.S. 833 (1992)	1992	Thornburgh v. American College of Obstetricians & Gynecologists, 476 U.S. 747 (1986) (in part);	1986
		City of Akron v. Akron Center for Reproductive Health, Inc., 462 U.S. 416 (1983) (in part)	1983
Quill Corp. v. North Dakota, 504 U.S. 298 (1992)	1992	National Bellas Hess, Inc. v. Department of Revenue of Illinois, 386 U.S. 753 (1967) (in part)	1967
California v. Acevedo, 500 U.S. 565 (1991)	1991	Arkansas v. Sanders, 442 U.S. 753 (1979)	1979
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Exxon Corp. v. Central Gulf Lines, Inc., 500 U.S. 603 (1991)	1991	Minturn v. Maynard, 58 U.S. (17 How.) 477 (1855)	1855

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		Kring v. Missouri, 107 U.S. 221 (1883)	1883
W.S. Kirkpatrick & Co. v. Environmental Tectonics Corp., 493 U.S. 400 (1990)	1990	American Banana Co. v. United Fruit Co., 213 U.S. 347 (1909)	1909
Alabama v. Smith, 490 U.S. 794 (1989)	1989	North Carolina v. Pearce, 395 U.S. 711 (1969)	1969
Healy v. The Beer Institute, 491 U.S. 324 (1989)	1989	Joseph E. Seagram & Sons, Inc. v. Hostetter, 384 U.S. 35 (1966)	1966
Rodriguez de Quijas v. Shearson/American Express, Inc., 490 U.S. 477 (1989)	1989	Wilko v. Swan, 346 U.S. 427 (1953)	1953
Thornburgh v. Abbott, 490 U.S. 401 (1989)	1989	Procunier v. Martinez, 416 U.S. 396 (1974) (in part)	1974
Gulfstream Aerospace Corp. v. Mayacamas Corp., 485 U.S. 271 (1988)	1988	Ettelson v. Metropolitan Life Insurance Co., 317 U.S. 188 (1942);	1942
		Enelow v. New York Life Insurance Co., 293 U.S. 379 (1935)	1935
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Solorio v. United States, 483 U.S. 435 (1987)	1987	O'Callahan v. Parker, 395 U.S. 258 (1969)	1969
Tyler Pipe Industries, Inc. v. Washington State Department of Revenue, 483 U.S. 232 (1987)	1987	General Motors Corp. v. Washington, 377 U.S. 436 (1964)	1964
Welch v. Texas Department of Highways & Public Transportation, 483 U.S. 468 (1987)	1987	Parden v. Terminal Railway of Alabama State Docks Department, 377 U.S. 184 (1964) (in part)	1964
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Daniels v. Williams, 474 U.S. 327 (1986)	1986	Parratt v. Taylor, 451 U.S. 527 (1981) (in part)	1981
Garcia v. San Antonio Metropolitan Transit Authority, 469 U.S. 528 (1985)	1985	National League of Cities v. Usery, 426 U.S. 833 (1976)	1976
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Limbach v. Hooven & Allison Co., 466 U.S. 353 (1984)	1984	Hooven & Allison Co. v. Evatt, 324 U.S. 652 (1945)	1945
Pennhurst State School & Hospital v. Halderman, 465 U.S. 89 (1984)	1984	Rolston v. Missouri Fund Commissioners, 120 U.S. 390 (1887) (in part)	1887
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Bob Jones University v. United States, 461 U.S. 574 (1983)	1983	Plessy v. Ferguson, 163 U.S. 537 (1896)	1896
Illinois v. Gates, 462 U.S. 213 (1983)	1983	Spinelli v. United States, 393 U.S. 410 (1969);	1969
		Aguilar v. Texas, 378 U.S. 108 (1964)	1964
Sporhase v. Nebraska ex rel. Douglas, 458 U.S. 941 (1982)	1982	Hudson County Water Co. v. McCarter, 209 U.S. 349 (1908)	1908
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Hughes v. Oklahoma, 441 U.S. 322 (1979)	1979	Geer v. Connecticut, 161 U.S. 519 (1896)	1896
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		Yates v. United States, 354 U.S. 298 (1957) (in part);	1957
		Bryan v. United States, 338 U.S. 552 (1950) (in part)	1950
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		Puget Sound Stevedoring Co. v. State Tax Commission, 302 U.S. 90 (1937)	1937
Monell v. Department of Social Services, 436 U.S. 658 (1978)	1978	Monroe v. Pape, 365 U.S. 167 (1961) (in part)	1961
United States v. Scott, 437 U.S. 82 (1978)	1978	United States v. Jenkins, 420 U.S. 358 (1975)	1975
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Shaffer v. Heitner, 433 U.S. 186 (1977)	1977	Pennoyer v. Neff, 95 U.S. 714 (1877)	1877
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Craig v. Boren, 429 U.S. 190 (1976)	1976	Goesaert v. Cleary, 335 U.S. 464 (1948)	1948
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Hudgens v. National Labor Relations Board, 424 U.S. 507 (1976)	1976	Amalgamated Food Employees Union Local 590 v. Logan Valley Plaza, Inc., 391 U.S. 308 (1968)	1968
Lodge 76, International Association of Machinists & Aerospace Workers v. Wisconsin Employment Relations Commission, 427 U.S. 132 (1976)	1976	International Union, U.A.W.A. v. Wisconsin Employment Relations Board, 336 U.S. 245 (1949) (Briggs-Stratton)	1949
Michelin Tire Corp. v. Wages, 423 U.S. 276 (1976)	1976	Low v. Austin, 80 U.S. (13 Wall.) 29 (1872)	1872
National League of Cities v. Usery, 426 U.S. 833 (1976)	1976	Maryland v. Wirtz, 392 U.S. 183 (1968)	1968
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Taylor v. Louisiana, 419 U.S. 522 (1975)	1975	Hoyt v. Florida, 368 U.S. 57 (1961) (in part)	1961
United States v. Reliable Transfer Co., 421 U.S. 397 (1975)	1975	The Schooner Catherine v. Dickinson, 58 U.S. (17 How.) 170 (1854)	1854
Edelman v. Jordan, 415 U.S. 651 (1974)	1974	Sterrett v. Mothers' & Children's Rights Organization, 409 U.S. 809 (1973); State Department of Health & Rehabilitative Services v. Zarate, 407 U.S. 918 (1972); Wyman v. Bowens, 397 U.S. 49 (1970); Shapiro v. Thompson, 394 U.S. 618 (1969)	1973 1972 1970 1969
Braden v. 30th Judicial Circuit Court, 410 U.S. 484 (1973)	1973	Ahrens v. Clark, 335 U.S. 188 (1948)	1948

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North Dakota State Board of Pharmacy v. Snyder's Drug Stores, Inc., 414 U.S. 156 (1973)	1973	Louis K. Liggett Co. v. Baldridge, 278 U.S. 105 (1928)	1928
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Blonder-Tongue Laboratories, Inc. v. University of Illinois Foundation, 402 U.S. 313 (1971)	1971	Triplett v. Lowell, 297 U.S. 638 (1936)	1936
Griffin v. Breckenridge, 403 U.S. 88 (1971)	1971	Collins v. Hardyman, 341 U.S. 651 (1951) (in part)	1951
Perez v. Campbell, 402 U.S. 637 (1971)	1971	Kesler v. Department of Public Safety, 369 U.S. 153 (1962);	1962
		Reitz v. Mealey, 314 U.S. 33 (1941)	1941
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Boys Markets, Inc. v. Retail Clerk's Union, 398 U.S. 235 (1970)	1970	Sinclair Refining Co. v. Atkinson, 370 U.S. 195 (1962)	1962
Moragne v. States Marine Lines, 398 U.S. 375 (1970)	1970	The Harrisburg, 119 U.S. 199 (1886)	1886
Price v. Georgia, 398 U.S. 323 (1970)	1970	Brantley v. Georgia, 217 U.S. 284 (1910)	1910
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Benton v. Maryland, 395 U.S. 784 (1969)	1969	Palko v. Connecticut, 302 U.S. 319 (1937)	1937
Brandenburg v. Ohio, 395 U.S. 444 (1969)	1969	Whitney v. California, 274 U.S. 357 (1927)	1927
Chimel v. California, 395 U.S. 752 (1969)	1969	United States v. Rabinowitz, 339 U.S. 56 (1950);	1950
		Harris v. United States, 331 U.S. 145 (1947)	1947
Jones v. Alfred H. Mayer Co., 392 U.S. 409 (1969)	1969	Hodges v. United States, 203 U.S. 1 (1906)	1906
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Camara v. Municipal Court of San Francisco, 387 U.S. 523 (1967)	1967	Frank v. Maryland, 359 U.S. 360 (1959)	1959
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		Olmstead v. United States, 277 U.S. 438 (1928)	1928
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Spevack v. Klein, 385 U.S. 511 (1967)	1967	Cohen v. Hurley, 366 U.S. 117 (1961)	1961
Warden, Maryland Penitentiary v. Hayden, 387 U.S. 294 (1967)	1967	Gouled v. United States, 255 U.S. 298 1921 (1921)	1921
Harper v. Virgina Board of Elections, 383 U.S. 663 (1966)	1966	Breedlove v. Suttles, 302 U.S. 277 (1937)	1937
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		Crooker v. California, 357 U.S. 433 (1958)	

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		Twining v. New Jersey, 211 U.S. 78 (1908)	1908
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		United States v. Murdock, 284 U.S. 141 (1931)	1931
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		Daniels v. Allen, 344 U.S. 443 (1953) (in part)	1953
Ferguson v. Skrupa, 372 U.S. 726 (1963)	1963	Adams v. Tanner, 244 U.S. 590 (1917)	1917
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		Adair v. United States, 208 U.S. 161 (1908)	1908
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		Large Oil Co. v. Howard, 248 U.S. 549 (1919);	1919
		Howard v. Gipsy Oil Co., 247 U.S. 503 (1918);	1918
		Indian Territory Illuminating Oil Co. v. Oklahoma, 240 U.S. 522 (1916);	1916
		Choctaw, Oklahoma & Gulf Railroad v. Harrison, 235 U.S. 292 (1914)	1914
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		Collector v. Day, 78 U.S. (11 Wall.) 113 (1871)	1871
O'Malley v. Woodrough, 307 U.S. 277 (1939)	1939	Miles v. Graham, 268 U.S. 501 (1925);	1925
		Evans v. Gore, 253 U.S. 245 (1920)	1920
Rochester Telephone Corp. v. United States, 307 U.S. 125 (1939)	1939	Procter & Gamble Co. v. United States, 225 U.S. 282 (1912)	1912
Erie Railroad v. Tompkins, 304 U.S. 64 (1938)	1938	Swift v. Tyson, 41 U.S. (16 Pet.) 1 (1842)	1842
Helvering v. Mountain Producers Corp., 303 U.S. 376 (1938)	1938	Burnet v. Coronado Oil & Gas Co., 285 U.S. 393 (1932);	1932
		Gillespie v. Oklahoma, 257 U.S. 501 (1922)	1922
West Coast Hotel Co. v. Parrish, 300 U.S. 379 (1937)	1937	Adkins v. Children's Hosp. of D.C., 261 U.S. 525 (1923)	1923
Funk v. United States, 290 U.S. 371 (1933)	1933	Jin Fuey Moy v. United States, 254 U.S. 189 (1920);	1920
		Hendrix v. United States, 219 U.S. 79 (1911)	1911
Chicago & Eastern Illinois Railroad v. Industrial Commission, 284 U.S. 296 (1932)	1932	Erie Railroad v. Szary, 253 U.S. 86 (1920);	1920
		Erie Railroad v. Collins, 253 U.S. 77 (1920)	
Fox Film Corp. v. Doyal, 286 U.S. 123 (1932)	1932	Long v. Rockwood, 277 U.S. 142 (1928)	1928
East Ohio Gas Co. v. Tax Commission of Ohio, 283 U.S. 465 (1931)	1931	Pennsylvania Gas Co. v. Public Service Commission, 252 U.S. 23 (1920)	1920
Farmers Loan & Trust Co. v. Minnesota, 280 U.S. 204 (1930)	1930	Blackstone v. Miller, 188 U.S. 189 (1903)	1903
Gleason v. Seaboard Air Line Railway, 278 U.S. 349 (1929)	1929	Friedlander v. Texas & Pacific Railway, 130 U.S. 416 (1889) (in part)	1889
Alpha Portland Cement Co. v. Massachusetts, 268 U.S. 203 (1925)	1925	Baltic Mining Co. v. Massachusetts, 231 U.S. 68 (1913)	1913
Lee v. Chesapeake & Ohio Railway, 260 U.S. 653 (1923)	1923	*In re* Moore, 209 U.S. 490 (1908);	1908
		Ex parte Wisner, 203 U.S. 449 (1906)	1906

Overruling Decision	Year of Overruling Decision	Overruled Decision(s)	Year(s) of Overruled Decision(s)
Terral v. Burke Construction Co., 257 U.S. 529 (1922)	1922	Security Mutual Life Insurance Co. v. Prewitt, 202 U.S. 246 (1906);	1906
		Doyle v. Cont'l Ins. Co., 94 U.S. 535 (1877)	1877
Boston Store of Chicago v. American Graphophone Co., 246 U.S. 8 (1918)	1918	Henry v. A.B. Dick Co., 224 U.S. 1 (1912)	1912
Rosen v. United States, 245 U.S. 467 (1918)	1918	United States v. Reid, 53 U.S. (12 How.) 361 (1851)	1851
Motion Picture Patents Co. v. Universal Film Manufacturing Co., 243 U.S. 502 (1917)	1917	Henry v. A.B. Dick Co., 224 U.S. 1 (1912)	1912
Pennsylvania Railroad v. Towers, 245 U.S. 6 (1917)	1917	Lake Shore & Michigan Southern Railway v. Smith, 173 U.S. 684 (1899) (in part)	1899
United States v. Nice, 241 U.S. 591 (1916)	1916	*In re* Heff, 197 U.S. 488 (1905)	1905
Garland v. Washington, 232 U.S. 642 (1914)	1914	Crain v. United States, 162 U.S. 625 (1896)	1896
Minnesota Rate Cases, 230 U.S. 352 (1913)	1913	Peik v. Chicago & Northwestern Railway, 94 U.S. 164 (1877)	1877
Roberts v. Lewis, 153 U.S. 367 (1894)	1894	Giles v. Little, 104 U.S. 291 (1881)	1881
Brenham v. German American Bank, 144 U.S. 173 (1892)	1892	Mitchell v. Burlington, 71 U.S. (4 Wall.) 270 (1867);	1867
		Rogers v. Burlington, 70 U.S. (3 Wall.) 654 (1866)	1866
Leisy v. Hardin, 135 U.S. 100 (1890)	1890	Peirce v. New Hampshire, 46 U.S. (5 How.) 504 (1847)	1847
Leloup v. Port of Mobile, 127 U.S. 640 (1888)	1888	Osborne v. Mobile, 83 U.S. (16 Wall.) 479 (1873)	1873
In re Ayers, 123 U.S. 443 (1887)	1887	Osborn v. Bank of the United States, 22 U.S. (9 Wheat.) 738 (1824)	1824
Philadelphia & Southern Mail Steamship Co. v. Pennsylvania, 122 U.S. 326 (1887)	1887	State Tax on Railway Gross Receipts, 82 U.S. (15 Wall.) 284 (1873)	1873
Morgan v. United States, 113 U.S. 476 (1885)	1885	Texas v. White, 74 U.S. (7 Wall.) 700 (1869)	1869
Kountze v. Omaha Hotel Co., 107 U.S. 378 (1883)	1883	Stafford v. Union Bank of Louisiana, 57 U.S. (16 How.) 135 (1853)	1853
United States v. Phelps, 107 U.S. 320 (1883)	1883	Shelton v. Collector, 72 U.S. (5 Wall.) 113 (1867)	1867
Kilbourn v. Thompson, 103 U.S. 168 (1881)	1881	Anderson v. Dunn, 19 U.S. (6 Wheat.) 204 (1821)	1821
Tilghman v. Proctor, 102 U.S. 707 (1880)	1880	Mitchell v. Tilghman, 86 U.S. (19 Wall.) 287 (1873)	1873

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Overruling Decision	Year of Overruling Decision	Overruled Decision(s)	Year(s) of Overruled Decision(s)
Fairfield v. County of Gallatin, 100 U.S. 47 (1879)	1879	Town of Concord v. Portsmouth Savings Bank, 92 U.S. 625 (1875)	1875
County of Cass v. Johnston, 95 U.S. 360 (1877)	1877	Harshman v. Bates County, 92 U.S. 569 (1875)	1875
Hornbuckle v. Toombs, 85 U.S. (18 Wall.) 648 (1874)	1874	Dunphy v. Kleinsmith & Duer, 78 U.S. (11 Wall.) 610 (1870);	1870
		Orchard v. Hughes, 68 U.S. (1 Wall.) 73, 77 (1864);	1864
		Noonan v. Lee, 67 U.S. (2 Black) 499 (1863)	1863
Union Pacific Railway v. McShane, 89 U.S. (22 Wall.) 444 (1874)	1874	Railway v. Prescott, 83 U.S. (16 Wall.) 603 (1873) (in part)	1873
Knox v. Lee, 79 U.S. (12 Wall.) 457 (1871) (Legal Tender Cases)	1871	Hepburn v. Griswold, 75 U.S. (8 Wall.) 603 (1870)	1870
Trebilcock v. Wilson, 79 U.S. (12 Wall.) 687 (1871)	1871	Roosevelt v. Meyer, 68 U.S. (1 Wall.) 512 (1863)	1863
The Belfast, 74 U.S. (7 Wall.) 624 (1869)	1869	Allen v. Newberry, 62 U.S. (21 How.) 244 (1858) (in part)	1858
Mason v. Eldred, 73 U.S. (6 Wall.) 231 (1868)	1868	Sheehy v. Mandeville & Jamesson, 10 U.S. (6 Cr.) 253 (1810)	1810
Suydam v. Williamson, 65 U.S. (24 How.) 427 (1861)	1861	Williamson v. Ball, 49 U.S. (8 How.) 566 (1850);	1850
		Williamson v. Irish Presbyterian Congregation, 49 U.S. (8 How.) 565 (1850);	
		Williamson v. Berry, 49 U.S. (8 How.) 495 (1850)	
Gazzam v. Lessee of Phillips, 61 U.S. (20 How.) 372 (1857)	1857	Brown's Lessee v. Clements, 44 U.S. (3 How.) 650 (1845)	1845
The Propeller Genesee Chief, 53 U.S. (12 How.) 443 (1851)	1851	The Steamboat Thomas Jefferson, 23 U.S. (10 Wheat.) 428 (1825)	1825
Louisville, Cincinnati & Charleston Railway v. Letson, 43 U.S. (2 How.) 497 (1844)	1844	Commercial & Railroad Bank of Vicksburg v. Slocomb, 39 U.S. (14 Pet.) 60 (1840);	1840
		Bank of the United States v. Deveaux, 9 U.S. (5 Cr.) 61 (1809);	1809
		Strawbridge v. Curtiss, 7 U.S. (3 Cr.) 267 (1806)	1806
Green v. Lessee of Neal, 31 U.S. (6 Pet.) 291 (1832)	1832	Powell's Lessee v. Harman, 27 U.S. (2 Pet.) 241 (1829);	1829
		Patton's Lessee v. Easton, 14 U.S. (1 Wheat.) 476 (1816)	1816
Gordon v. Ogden, 28 U.S. (3 Pet.) 33 (1830)	1830	Wilson v. Daniel, 3 U.S. (3 Dall.) 401 (1798)	1798
Hudson v. Guestier, 10 U.S. (6 Cr.) 281 (1810)	1810	Rose v. Himely, 8 U.S. (4 Cr.) 241 (1808)	1808

TABLE OF LAWS HELD UNCONSTITUTIONAL IN WHOLE OR IN PART BY THE SUPREME COURT

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2021	Carson v. Makin, No. 20-1088 (U.S. June 21, 2022)	Roberts, John G.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause

Description of Unconstitutional Provision(s): Me. Stat. tit. 20-A, § 2951: Maine provision requiring schools participating in a tuition assistance program to be "nonsectarian."

2021	New York State Rifle & Pistol Ass'n v. Bruen, No. 20-843 (U.S. June 23, 2022)	Thomas, Clarence	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Second Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): N.Y. Penal Law § 400.00(2)(f): a portion of New York's firearms licensing regime that restricts the carrying of certain licensed firearms outside the home to those who can establish "proper cause"

2021	Federal Election Commission v. Ted Cruz for Senate, No. 21-12 (U.S. May 16, 2022)	Roberts, John G.	Elections	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 52 U.S.C. § 30116(j): Portion of section 304(a) of Bipartisan Campaign Reform Act of 2002, Pub. L. No. 107-155 establishing a $250,000 limit on amount of post-election campaign contributions that can be used to repay a candidate for personal campaign loans made pre-election.

2021	United States v. Washington, No. 21-404 (U.S. June 21, 2022)	Breyer, Stephen G.	Workers' Compensation & Social Security	State & Local

Constitutional Provision(s) Invoked: Article VI

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): A provision in Washington's workers' compensation law that made it easier for federal contractors to establish their entitlement to workers' compensation, relative to the requirements for other workers.

2021	Siegel v. Fitzgerald, No. 21-441 (U.S. June 6, 2022)	Sotomayor, Sonia	Bankruptcy	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 4

Constitutional Clause(s) Invoked: Bankruptcy Clause

Description of Unconstitutional Provision(s): 28 U.S.C. § 1930(a)(6)(B): a statute that imposed temporary but significant increases in bankruptcy fees applicable to large Chapter 11 cases in districts that had adopted the U.S. Trustee program but not in districts that maintained the judicial appointment of bankruptcy administrators.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2020	United States v. Arthrex, Inc., No. 19-1434 (U.S. June 21, 2021)	Roberts, John G.	Intellectual Property	Federal

Constitutional Provision(s) Invoked: Article II, Section 2, Clause 2

Constitutional Clause(s) Invoked: Appointments Clause

Description of Unconstitutional Provision(s): 35 U.S.C. § 6(c): A provision of the America Invents Act that insulated the inferior officers of the Patent Trial and Appeal Board from supervision by preventing the Patent and Trademark Office Director from reviewing certain final decisions of the Board's administrative patent judges.

2020	Americans for Prosperity Foundation v. Bonta, No. 19-251 (U.S. July 1, 2021)	Roberts, John G.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Freedom of Association

Description of Unconstitutional Provision(s): Cal. Code Regs. tit. 8, § 301: A California regulation requiring charities operating or soliciting funds in the state to file Schedule B to IRS Form 990, disclosing information about donors, with the state attorney general.

2020	Collins v. Yellen, No. 19-422 (U.S. June 23, 2021)	Roberts, John G.	Business & Corporate Law	Federal

Constitutional Provision(s) Invoked: Article II, Section 1, Clause 1

Constitutional Clause(s) Invoked: Separation of Powers Doctrine

Description of Unconstitutional Provision(s): 12 U.S.C. § 4512(b)(2): A provision of the Housing and Economic Recovery Act of 2008 stating that the President could only remove the Director of the Federal Housing Finance Agency "for cause."

2020	Cedar Point Nursery v. Hassid, No. 20-107 (U.S. June 23, 2021)	Alito, Samuel A.	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Takings Clause

Description of Unconstitutional Provision(s): Cal. Code Regs. tit. 8, § 20900(e)(1)(C): A California regulation granting labor organizers a right to take access to agricultural facilities.

2019	June Medical Services LLC v. Russo, No. 18-1323 (U.S. June 29, 2020)	Breyer, Stephen G.	Healthcare	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): La. Rev. Stat. Ann. § 40:1061.10(A)(2)(a): A Louisiana law requiring abortion providers to have admitting privileges at hospitals within 30 miles of where an abortion is performed or induced.

2019	Ramos v. Louisiana, No. 18-5924 (U.S. Apr. 20, 2020)	Gorsuch, Neil M.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): La. Const. art. I, § 17(A): A provision of the Louisiana constitution allowing criminal conviction by a nonunanimous jury.

2019	Allen v. Cooper, No. 18-877 (U.S. Mar. 23, 2020)	Kagan, Elena	Intellectual Property	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 8; Fourteenth Amendment, Section 5

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 17 U.S.C. § 511(a): A provision of the Copyright Remedy Clarification Act that abrogated state sovereign immunity in copyright infringement cases.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2019	Barr v. American Ass'n of Political Consultants, Inc., No. 19-631 (U.S. July 6, 2020)	KAVANAUGH, BRETT M.	Business & Corporate Law	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 47 U.S.C. § 227(b)(1)(A)(iii): The government debt collection exemption to the robocall restriction in the Telephone Consumer Protection Act.

2019	Seila Law LLC v. Consumer Financial Protection Bureau, No. 19-7 (U.S. June 29, 2020)	ROBERTS, JOHN G.	Banking	Federal

Constitutional Provision(s) Invoked: Article II, Section 1, Clause 1

Constitutional Clause(s) Invoked: Separation of Powers Doctrine

Description of Unconstitutional Provision(s): 12 U.S.C. § 5491(c)(3): A provision of the Dodd-Frank Wall Street Reform and Consumer Protection Act stating that the President may only remove the Director of the Consumer Financial Protection Bureau "for inefficiency, neglect of duty, or malfeasance in office."

2018	Dawson v. Steager, No. 17-419 (U.S. Feb. 20, 2019)	GORSUCH, NEIL M.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): W. Va. Code §11-21-12(c)(6): A West Virginia statute providing a tax exemption for the retirement benefits of certain state law enforcement employees but not for federal retirees who had comparable job duties.

2018	Iancu v. Brunetti, No. 18-302 (U.S. June 24, 2019)	KAGAN, ELENA	Intellectual Property	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 15 U.S.C. § 1052(a): A provision of the Lanham Act prohibiting the registration of trademarks that "consist[] of or comprise[] immoral . . . or scandalous matter."

2018	United States v. Davis, No. 18-431 (U.S. June 24, 2019)	GORSUCH, NEIL M.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 924(c)(1)(A): A residual clause in the Firearms Owners' Protection Act that defines the term "crime of violence."

2018	Tennessee Wine & Spirits Retailers Ass'n v. Thomas, No. 18-96 (U.S. June 26, 2019)	ALITO, SAMUEL A.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Tenn. Code Ann. § 57-3-204(b)(2)(A): Tennessee law creating 2-year residency requirement for alcohol retailers to obtain a license.

2017	Sessions v. Dimaya, No. 15-1498 (U.S. Apr. 17, 2018)	KAGAN, ELENA	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 16: The residual clause of the provision of the federal criminal code that defines the term "crime of violence."

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2017	National Institute of Family & Life Advocates v. Becerra, No. 16-1140 (U.S. June 26, 2018)	Thomas, Clarence	Healthcare	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Cal. Health & Safety Code § 123472: California law requiring certain (1) medically licensed pro-life centers that offer pregnancy-related services to notify clients that the state provides free or low-cost services, including abortion; and (2) unlicensed pro-life centers that offer-pregnancy-related services to disclose that the state has not licensed the clinics.

2017	Minnesota Voters Alliance v. Mansky, No. 16-1435 (U.S. June 14, 2018)	Roberts, John G.	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Minn. Stat. § 211B.11 (2017): Minnesota statute stating that political insignia may not be worn at polling places.

2017	Janus v. American Federation of State, County, & Municipal Employees, Council 31, No. 16-1466 (U.S. June 27, 2018)	Alito, Samuel A.	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 5 Ill. Comp. Stat. 315/6(e): Illinois statute that allows exclusive representatives of public employees to enter into collective bargaining agreements that require nonconsenting employees to pay certain fees to the representative.

2017	Murphy v. National Collegiate Athletic Ass'n, No. 16-476 (U.S. May 14, 2018)	Alito, Samuel A.	Government Operations	Federal

Constitutional Provision(s) Invoked: Tenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Professional and Amateur Sports Protection Act, 28 U.S.C. §§ 3701 *et seq.*: Prohibiting states from authorizing sports gambling schemes.

2016	Sessions v. Morales-Santana, No. 15-1191 (U.S. June 12, 2017)	Ginsburg, Ruth Bader	Immigration	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 8 U.S.C. § 1401(a)(7): Immigration provision imposing a gender-based differential concerning acquisition of U.S. citizenship by a child born abroad, when one parent is a U.S. citizen and the other a citizen of another nation.

2016	Packingham v. North Carolina, No. 15-1194 (U.S. June 19, 2017)	Kennedy, Anthony M.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): N.C. Gen. Stat. Ann. §§ 14-202.5(a), (e): North Carolina statute making it a felony for a registered sex offender "to access a commercial social networking Web site where the sex offender knows that the site permits minor children to become members or to create or maintain personal Web pages."

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2016	Nelson v. Colorado, No. 15-1256 (U.S. Apr. 19, 2017)	Ginsburg, Ruth Bader	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Colo. Rev. Stat. §§ 13-65-101, 13-65-102, 13-65-103 (2016): Colorado statute requiring exonerated persons to prevail in separate civil proceeding to obtain refund of costs, fees, and restitution paid in connection with exonerated conviction.

2016	Cooper v. Harris, No. 15-1262 (U.S. May 22, 2017)	Kagan, Elena	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): North Carolina plan redrawing two congressional districts.

2016	Matal v. Tam, No. 15-1293 (U.S. June 19, 2017)	Alito, Samuel A.	Trade	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 15 U.S.C. § 1052(a): Disparagement Clause of the Lanham Act banning federal registration of trademarks that may be disparaging to persons or groups.

2016	Trinity Lutheran Church of Columbia, Inc. v. Comer, No. 15-577 (U.S. June 26, 2017)	Roberts, John G.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause

Description of Unconstitutional Provision(s): Missouri Department of Natural Resources policy excluding churches and other religious organizations from grant program for resurfacing playgrounds.

2016	Pavan v. Smith, No. 16-92 (U.S. June 16, 2017)	Per Curiam	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ark. Code § 20-18-401 (2014): Arkansas statute requiring name of mother's "husband" to be entered on birth certificate as father of child, if mother is married.

2015	Hurst v. Florida, 577 U.S. 92 (2016)	Sotomayor, Sonia	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): Fla. Stat. § 775.082(1) (2010): Florida statute requiring judge to hold separate hearing to determine whether aggravating circumstances justified death penalty, and allowing judge to impose sentence based on judicial fact-finding.

2015	Birchfield v. North Dakota, No. 14-1468 (U.S. June 23, 2016)	Alito, Samuel A.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment

Constitutional Clause(s) Invoked: Search & Seizure Clause

Description of Unconstitutional Provision(s): N.D. Cent. Code Ann. §§ 39-20-01(3)(a); 39-08-01(2): North Dakota statute imposing criminal penalties on a driver's refusal to consent to a blood test to determine driver's BAC.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2015	Whole Woman's Health v. Hellerstedt, No. 15-274 (U.S. June 27, 2016)	Breyer, Stephen G.	Civil Rights; Healthcare	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Tex. Health & Safety Code Ann. §171.0031(a) (West Cum. Supp. 2015): Texas statute providing that physicians performing abortions must have admitting privileges at local hospital. Tex. Health & Safety Code Ann. §245.010(a): Texas statute providing that abortion facilities must meet minimum standards for surgical centers.

2014	Comptroller of the Treasury v. Wynne, 575 U.S. 542 (2015)	Alito, Samuel A.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Md. Tax-Gen. Code Ann. § §10-703 (2010): Maryland statute allowing residents to claim credit for income taxes paid to other states against payment of Maryland state taxes, but not against county taxes.

2014	Zivotofsky v. Kerry, 576 U.S. 1 (2015)	Kennedy, Anthony M.	Government Operations	Federal

Constitutional Provision(s) Invoked: Article II, Section 3; Article II, Section 2, Clause 2

Constitutional Clause(s) Invoked: Reception Clause

Description of Unconstitutional Provision(s): Pub. L. No. 107-228, § 214(d), 116 Stat. 1350, 1366 (2002): Section 214(d) of the Foreign Relations Authorization Act requiring that, "[f]or purposes of the registration of birth, certification of nationality, or issuance of a passport of a United States citizen born in the city of Jerusalem, the Secretary [of State] shall, upon the request of the citizen or the citizen's legal guardian, record the place of birth as Israel."

2014	Reed v. Town of Gilbert, 576 U.S. 155 (2015)	Thomas, Clarence	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Gilbert, Ariz., Land Dev. Code, ch. 1, § 4.402 (2005): Arizona town's sign code prohibiting display of outdoor signs without a permit, but exempting certain categories of signs, including ideological, political and some temporary wayfinding signs.

2014	Horne v. Department of Agriculture, 576 U.S. 351 (2015)	Roberts, John G.	Food & Drug	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Takings Clause

Description of Unconstitutional Provision(s): 7 C.F.R. § 989.66: U.S. Department of Agriculture's California Raisin Marketing Order requiring a percentage of a grower's crop be physically set aside in certain years for the account of the Government, free of charge.

2014	City of Los Angeles v. Patel, 576 U.S. 409 (2015)	Sotomayor, Sonia	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment

Constitutional Clause(s) Invoked: Search & Seizure Clause

Description of Unconstitutional Provision(s): Los Angeles Municipal Code § 41.49 (2015): Los Angeles ordinance requiring every hotel operator "to keep a record" containing specified information about guests and to make this record "available to any officer of the Los Angeles Police Department for inspection" on demand.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2014	Johnson v. United States, 576 U.S. 591 (2015)	Scalia, Antonin	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 924(e)(2)(B): Statute imposing an increased sentence under the residual clause of the Armed Career Criminal Act.

2014	Obergefell v. Hodges, 576 U.S. 644 (2015)	Kennedy, Anthony M.	Civil Rights; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Mich. Const. art. I, § 25; Ky. Const. § 233A; Ohio Rev. Code Ann. § 3101.01 (Lexis 2008); Tenn. Const. art. XI, §18: Statutory and constitutional provisions of Michigan, Kentucky, Ohio, and Tennessee defining marriage as a union between one man and one woman.

2013	McCutcheon v. Federal Election Commission, 572 U.S. 185 (2014)	Roberts, John G.	Elections	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 2 U.S.C. § 441a(a)(3): "Aggregate limits" provision of the Federal Election Campaign Act of 1971, as amended by the Bipartisan Campaign Reform Act of 2002, restricting how much money a donor may contribute in total to all candidates or committees

2013	Hall v. Florida, 572 U.S. 701 (2014)	Kennedy, Anthony M.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Fla. Stat. § 921.137(1) (2013): Florida statute requiring threshold showing that defendant has an IQ test score of 70 or less before allowing him to present evidence of intellectual disability, for purposes of imposing death penalty.

2013	McCullen v. Coakley, 573 U.S. 464 (2014)	Roberts, John G.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws, ch. 266, § 120E1/2(a), (b) (West 2000): Massachusetts Reproductive Health Care Facilities Act making it a crime to knowingly stand on a "public way or sidewalk" within 35 feet of an entrance or driveway to any place, other than a hospital, where abortions are performed.

2013	Harris v. Quinn, 573 U.S. 616 (2014)	Alito, Samuel A.	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ill. Comp. Stat., ch. 5, § 315/6(e): Illinois Public Labor Relations Act allowing collective bargaining agreements to require "employees covered by the agreement who are not members of the organization to pay their proportionate share of the costs of the collective-bargaining process, contract administration and pursuing matters affecting wages, hours and conditions of employment."

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2012	Agency for International Development v. Alliance for Open Society International, Inc., 570 U.S. 205 (2013)	Roberts, John G.	Healthcare	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 22 U.S.C. § 7631(f): Funding condition of the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003 stating that no funds may be used by an organization "that does not have a policy explicitly opposing prostitution and sex trafficking."

2012	Shelby County v. Holder, 570 U.S. 529 (2013)	Roberts, John G.	Elections	Federal

Constitutional Provision(s) Invoked: Fifteenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 42 U.S.C. § 1973b(b): Voting Rights Act of 1965 § 4(b) providing the formula for determining the states or electoral districts that are required to submit electoral changes to the U.S. Department of Justice or a federal court for preclearance.

2012	United States v. Windsor, 570 U.S. 744 (2013)	Kennedy, Anthony M.	Civil Rights	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1 U.S.C. § 7: Defense of Marriage Act § 3 amending the Dictionary Act to provide a federal definition of "marriage" as between one man and one woman.

2011	Coleman v. Court of Appeals, 566 U.S. 30 (2012)	Kennedy, Anthony M.	Labor & Employment	Federal

Constitutional Provision(s) Invoked: Eleventh Amendment; Fourteenth Amendment, Section 5

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 29 U.S.C. §2612(a)(1)(D): Provision requiring employers, including state employers, to grant unpaid leave for self care for a serious medical condition, provided other statutory requisites are met, and allowing for suits against the state to enforce this provision.

2011	Miller v. Alabama, 567 U.S. 460 (2012)	Kagan, Elena	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Ala. Code §§ 13A-5-40(9), 13A-6-2(c) (1982) and Ark. Code Ann. § 5-4-104(b) (1997): Alabama and Arkansas laws requiring juveniles in some circumstances to be sentenced to life-without-parole terms.

2011	American Tradition Partnership v. Bullock, 567 U.S. 516 (2012)	Per Curiam	Civil Rights; Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Mont. Code Ann. §13-35-227(1) (2011): Montana statute prohibiting corporations from making "an expenditure in connection with a candidate or a political committee that supports or opposes a candidate or a political party."

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2011	National Federation of Independent Business v. Sebelius, 567 U.S. 519 (2012)	Roberts, John G.	Healthcare	Federal

Constitutional Provision(s) Invoked: Tenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 42 U.S.C. § 1396c: Patient Protection and Affordable Care Act provision mandating Medicaid coverage.

2011	United States v. Alvarez, 567 U.S. 709 (2012)	Kennedy, Anthony M.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 704: Stolen Valor Act of 2005 penalizing any false claim of having been awarded a military decoration or medal.

2010	Pepper v. United States, 562 U.S. 476 (2011)	Sotomayor, Sonia	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): 18 U.S.C. § 3742(g)(2): Statutory limitation on the use of post-conviction behavior during resentencing to depart from the Sentencing Guidelines is no longer valid after United States v. Booker.

2010	Sorrell v. IMS Health Inc., 564 U.S. 552 (2011)	Kennedy, Anthony M.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Vt. Stat. Ann., Tit. 18, § 4631 (Supp. 2010): "Vermont law restrict[ing] the sale, disclosure, and use of pharmacy records that reveal the prescribing practices of individual doctors." *Sorrell*, 564 U.S. at 557.

2010	Arizona Free Enterprise Club's Freedom Club PAC v. Bennett, 564 U.S. 721 (2011)	Roberts, John G.	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ariz. Rev. Stat. Ann. § 16-952(A), (B), and (C)(4)–(5) (West 2006 and Supp. 2010): Arizona Citizens Clean Elections Act creating public financing system for elections that included matching funds provision.

2010	Brown v. Entertainment Merchants Ass'n, 564 U.S. 786 (2011)	Scalia, Antonin	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Cal. Civ. Code Ann. §§ 1746–1746.5 (West 2009): California statute prohibiting sale or rental of "violent video games" to minors.

2009	Citizens United v. Federal Election Commission, 558 U.S. 310 (2010)	Kennedy, Anthony M.	Elections	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 2 U.S.C. § 441b: Federal law prohibiting corporations and unions from using their general treasury funds to make independent expenditures for "electioneering communication" or for speech expressly advocating the election or defeat of a candidate.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2009	United States v. Stevens, 559 U.S. 460 (2010)	Roberts, John G.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 48: Statute criminalizing the commercial creation, sale, or possession of certain depictions of animal cruelty.

2009	Free Enterprise Fund v. Public Co. Accounting Oversight Board, 561 U.S. 477 (2010)	Roberts, John G.	Business & Corporate Law	Federal

Constitutional Provision(s) Invoked: Article II, Section 1, Clause 1

Constitutional Clause(s) Invoked: Separation of Powers Doctrine

Description of Unconstitutional Provision(s): 15 U.S.C. §§ 7211(e)(6), 7217(d)(3): Provisions of the Sarbanes-Oxley Act of 2002 under which members of the Public Company Accounting Oversight Board cannot be removed by the Securities & Exchange Commission at will, but only "for good cause shown," "in accordance with" certain procedures.

2009	McDonald v. City of Chicago, 561 U.S. 742 (2010)	Alito, Samuel A.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Second Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Chicago, Ill., Municipal Code § 8-20-040(a) (2009); Oak Park, Ill., Village Code §§ 27-2-1 (2007), 27-1-1 (2009): Chicago and Village of Oak Park prohibiting possession of most handguns.

2008	Haywood v. Drown, 556 U.S. 729 (2009)	Stevens, John Paul	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): New York statute divesting state trial courts of jurisdiction over § 1983 suits seeking damages from correction officers, and requiring such claims to be brought in the court of claims as claims against the state.

2008	Polar Tankers, Inc. v. City of Valdez, 557 U.S. 1 (2009)	Breyer, Stephen G.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 3

Constitutional Clause(s) Invoked: Tonnage Clause

Description of Unconstitutional Provision(s): Valdez Ordinance No. 99-17 (1999): City of Valdez, Alaska, ordinance imposing a personal property tax upon the value of large ships that travelled to and from that city.

2007	Boumediene v. Bush, 553 U.S. 723 (2008)	Kennedy, Anthony M.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 2

Constitutional Clause(s) Invoked: Suspension Clause

Description of Unconstitutional Provision(s): 28 U.S.C. § 2241(e): Provision of the Detainee Treatment Act amending the Military Commissions Act of 2006 to eliminate federal habeas jurisdiction over alien detainees held at Guantanamo Bay, Cuba.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2007	Kennedy v. Louisiana, 554 U.S. 407 (2008)	KENNEDY, ANTHONY M.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): La. Stat. Ann. § 14:42 (West 1997 and Supp. 1998): Louisiana statute authorizing capital punishment for the rape of a child under twelve years of age.

2007	District of Columbia v. Heller, 554 U.S. 570 (2008)	SCALIA, ANTONIN	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Second Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): D.C. Code §§ 7-2501.01(12), 7-2502.01(a), 7-2502.02(a)(4) (2001): D.C. ordinance prohibiting possession of handguns D.C. Code §§ 22-4504(a), 22-4506 (2001): D.C. ordinance prohibiting carrying unlicensed handguns except with 1-year license issued by chief of police, D.C. Code § 7-2507.02 (2001): D.C. ordinance requiring that lawfully owned firearms be kept unloaded.

2007	Davis v. Federal Election Commission, 554 U.S. 724 (2008)	ALITO, SAMUEL A.	Elections	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 2 U.S.C. § 441a-1(a), (b): Sections 319(a) and (b) of the Bipartisan Campaign Reform Act of 2002 providing that if a "self-financing" candidate for the House of Representatives spends more than a specified amount, his opponent may accept more contributions than otherwise permitted, as well as a disclosure requirements designed to implement the asymmetrical contribution.

2006	Cunningham v. California, 549 U.S. 270 (2007)	GINSBURG, RUTH BADER	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): Cal. Penal Code § 1170(b): California's Determinate Sentencing Law allowing judges to sentence defendants to higher terms based on judicial findings of aggravating facts.

2006	Parents Involved in Community Schools v. Seattle School District No. 1, 551 U.S. 701 (2007)	ROBERTS, JOHN G.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Policy of Seattle public schools using students' race as one of a series of "tiebreakers" to determine which high school students would attend. Policy of Jefferson County public schools, in Kentucky, assigning some students to different schools if student's race would contribute to racial imbalance.

2005	Randall v. Sorrell, 548 U.S. 230 (2006)	BREYER, STEPHEN G.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Vt. Stat. Ann., Tit. 17, §§ 2801, 2805, 2809: Vermont statute limiting amounts that individuals, corporations, and political committees, as well as candidates themselves, could contribute to campaigns for candidates for state office.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2004	United States v. Booker, 543 U.S. 220 (2005)	Breyer, Stephen G.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): 18 U.S.C. §§ 3553(b)(1), 3742(e): Two provisions of the Sentencing Reform Act of 1984, one making the Federal Sentencing Guidelines mandatory, and the other setting standards to govern appeals of departures from the mandatory Guidelines.

2004	Roper v. Simmons, 543 U.S. 551 (2005)	Kennedy, Anthony M.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Mo. Rev. Stat. §§ 211.021 (2000) and 211.031 (Supp. 2003): Missouri statute providing that seventeen-year-olds were adults outside the jurisdiction of the juvenile court. Mo. Rev. Stat. § 565.020.2 (2000): Missouri statute allowing for the imposition of the death penalty.

2004	Granholm v. Heald, 544 U.S. 460 (2005)	Kennedy, Anthony M.	Business & Corporate Law; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Mich. Comp. Laws § 436.1113(9) (2001); §§ 436.1537(2)-(3); Mich. Admin. Code r.436.1011(7)(b) (2003): Michigan statute allowing in-state wineries, but not out-of-state wineries, to apply for licenses to directly ship wine to Michigan consumers. N.Y. Alco. Bev. Cont. Law § 3(37) (McKinney 2005): New York statute requiring out-of-state wineries to become licensed New York wineries before they could directly ship wine to New York consumers.

2004	Halbert v. Michigan, 545 U.S. 605 (2005)	Ginsburg, Ruth Bader	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Mich. Comp. Laws Ann. § 770.3a (West 2000): Michigan statute providing that most indigent defendants who pled guilty, guilty but mentally ill, or nolo contendere would not have appellate counsel appointed.

2003	McConnell v. Federal Election Commission, 540 U.S. 93 (2003)	Stevens, John Paul; O'Connor, Sandra Day	Elections	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 2 U.S.C. § 441b(b)(2): Section 203 of the Bipartisan Campaign Reform Act of 2002 amending the Federal Election Campaign Act of 1971 to require political parties to choose between coordinated and independent expenditures during the post-nomination, pre-election period and to prohibit persons "17 years old or younger" from contributing to candidates or political parties.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2003	Blakely v. Washington, 542 U.S. 296 (2004)	Scalia, Antonin	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): Wash. Rev. Code. Ann. § 9.94A.120(2) (2000): Washington statute allowing judges to impose higher sentences if they found substantial and compelling reasons justified upward departure.

2002	Virginia v. Black, 538 U.S. 343 (2003)	O'Connor, Sandra Day	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Va. Code Ann. § 18.2-423 (1996): Virginia statute banning cross burning with "an intent to intimidate a person or group of persons."

2002	Gratz v. Bollinger, 539 U.S. 244 (2003)	Rehnquist, William H.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): University of Michigan's undergraduate admissions policy awarding points based on applicant's race.

2002	American Insurance Ass'n v. Garamendi, 539 U.S. 396 (2003)	Souter, David H.	Insurance	State & Local

Constitutional Provision(s) Invoked: Article II

Constitutional Clause(s) Invoked: Vesting Clause

Description of Unconstitutional Provision(s): Cal. Ins. Code Ann. §§ 13800-13807 (West Cum. Supp. 2003): California's Holocaust Victim Insurance Relief Act of 1999 requiring insurers doing business in the state to disclose insurance policies issued "to persons in Europe, which were in effect between 1920 and 1945."

2002	Lawrence v. Texas, 539 U.S. 558 (2003)	Kennedy, Anthony M.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Tex. Penal Code Ann. § 21.06(a) (2003): Texas statute criminalizing "deviate sexual intercourse with another individual of the same sex."

2002	Stogner v. California, 539 U.S. 607 (2003)	Breyer, Stephen G.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Ex Post Facto Clause

Description of Unconstitutional Provision(s): Cal. Penal Code Ann. § 803(g)(3)(A) (West Supp. 2003): California statute allowing prosecution of certain crimes after the previously applicable period of limitations for those crimes had expired.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2001	Ashcroft, v. Free Speech Coalition, 535 U.S. 234 (2002)	KENNEDY, ANTHONY M.	Advertising, Publishing, & Communications	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 2256(8)(B), (D): Two provisions of the Child Pornography Prevention Act of 1996 extending the federal prohibition against child pornography to sexually explicit images that appear to depict minors but are "virtual" pornography that do not involve a child in the production process.

2001	Thompson v. Western States Medical Center, 535 U.S. 357 (2002)	O'CONNOR, SANDRA DAY	Advertising, Publishing, & Communications; Food & Drug	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 21 U.S.C. § 353a: Section 503A of the Food and Drug Administration Modernization Act of 1997 exempting "compounded drugs" from the Food and Drug Administration's standard drug approval requirements if they refrain from advertising or promoting particular compounded drugs.

2001	Watchtower Bible & Tract Society of New York, Inc. v. Village of Stratton, 536 U.S. 150 (2001)	STEVENS, JOHN PAUL	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Stratton, Ohio, Ordinance No. 1998-5: Village ordinance prohibiting people from entering private residential property to promote a cause without a permit.

2001	Atkins v. Virginia, 536 U.S. 304 (2002)	STEVENS, JOHN PAUL	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Virginia law failing to exempt mentally retarded defendants from imposition of death penalty.

2001	Ring v. Arizona, 536 U.S. 584 (2002)	GINSBURG, RUTH BADER	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): Ariz. Rev. Stat. Ann. § 13-703, 13-1105(C): Arizona statute requiring judge to make certain factual findings before sentencing criminal defendant to death.

2001	Republican Party of Minnesota v. White, 536 U.S. 765 (2002)	SCALIA, ANTONIN	Civil Rights; Legal Ethics	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Minn. Code of Judicial Conduct, Canon 5(A)(3)(d)(i) (2000): Minnesota's Code of Judicial Conduct prohibiting judicial candidates from announcing their "views on disputed legal or political issues."

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2000	City of Indianapolis v. Edmond, 531 U.S. 32 (2000)	O'Connor, Sandra Day	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment

Constitutional Clause(s) Invoked: Search & Seizure Clause

Description of Unconstitutional Provision(s): Indiana Police Department written directives implementing a highway checkpoint program that stopped vehicles to search for illegal narcotics.

2000	Board of Trustees of the University of Alabama v. Garrett, 531 U.S. 356 (2001)	Rehnquist, William H.	Labor & Employment	Federal

Constitutional Provision(s) Invoked: Eleventh Amendment; Fourteenth Amendment, Section 5

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 42 U.S.C. §§ 12112–17: Provision of the Americans with Disabilities Act of 1990 subjecting states to suits in federal courts brought by state employees to collect money damages for the state's failure to make reasonable accommodations for qualified individuals with disabilities.

2000	Cook v. Gralike, 531 U.S. 510 (2001)	Stevens, John Paul	Elections	State & Local

Constitutional Provision(s) Invoked: Article I, Section 4, Clause 1

Constitutional Clause(s) Invoked: Elections Clause

Description of Unconstitutional Provision(s): Mo. Const., Art. VIII, § 17(1): Provision of Missouri Constitution instructing Members of Missouri's congressional delegation to use their powers to pass Congressional Term Limits Amendment, and requiring election ballots to indicate whether candidates supported that proposed amendment.

2000	Legal Services Corp. v. Velazquez, 531 U.S. 533 (2001)	Kennedy, Anthony M.	Government Operations; Pensions & Benefits	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Omnibus Consolidated Rescissions and Appropriations Act of 1996 § 504, 110 Stat. 1321–53: Provisions of the Omnibus Consolidated Rescissions and Appropriations Act of 1996 prohibiting funding of any organization "that initiates legal representation or participates in any other way, in litigation, lobbying, or rulemaking, involving an effort to reform a Federal or State welfare system."

2000	United States v. Hatter, 532 U.S. 557 (2001)	Breyer, Stephen G.	Government Operations; Taxes	Federal

Constitutional Provision(s) Invoked: Article III, Section 1

Constitutional Clause(s) Invoked: Compensation Clause

Description of Unconstitutional Provision(s): 42 U.S.C. § 410(a)(5)(E): Retroactively extending the Social Security law to require then-sitting judges to join the Social Security System and pay Social Security taxes.

2000	Ferguson v. City of Charleston, 532 U.S. 67 (2001)	Stevens, John Paul	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment

Constitutional Clause(s) Invoked: Search & Seizure Clause

Description of Unconstitutional Provision(s): State hospital's policy of testing all pregnant patients' urine for drugs and referring women who tested positive for cocaine to local law enforcement.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
2000	United States v. United Foods, Inc., 533 U.S. 405 (2001)	KENNEDY, ANTHONY M.	Food & Drug	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 7 U.S.C. §§ 6101 *et seq.*: Provisions of the Mushroom Promotion, Research, and Consumer Information Act imposing mandatory assessments on mushroom handlers for the purpose of funding generic advertising to promote mushroom sales.

2000	Lorillard Tobacco Co. v. Reilly, 533 U.S. 525 (2001)	O'CONNOR, SANDRA DAY	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 940 Code of Mass. Regs. §§ 21.04(5)(a)-(b), 22.06(5)(a)-(b) (2000): Massachusetts regulations banning outdoor adverting and restricting retail advertising of smokeless tobacco and cigars within a 1,000-foot radius of a school or playground.

2000	Good News Club, v. Milford Central School, 533 U.S. 98 (2001)	THOMAS, CLARENCE	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): School policy opening school to public use, but prohibiting use of school for religious purposes.

1999	Hunt-Wesson, Inc. v. Franchise Tax Board of California, 528 U.S. 458 (2000)	BREYER, STEPHEN G.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I; Fourteenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): Cal. Rev. & Tax Code Ann. § 24344 (West 1979): California interest-deduction-offset provision of California corporate income tax scheme, which allowed multistate corporations to deduct interest expenses when calculating California share of taxable income only to the extent that the interest expenses exceeded certain out-of-state income from unrelated business activity.

1999	Rice v. Cayetano, 528 U.S. 495 (2000)	KENNEDY, ANTHONY M.	Elections	State & Local

Constitutional Provision(s) Invoked: Fifteenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Haw. Const., Art. XII, § 5: Provision of Hawaii Constitution that limited the right to vote in statewide elections for Office of Hawaiian Affairs trustees to persons whose ancestry qualified them as "Hawaiian" or "native Hawaiian."

1999	Kimel v. Florida Board of Regents, 528 U.S. 62 (2000)	O'CONNOR, SANDRA DAY	Labor & Employment	Federal

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 5

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 29 U.S.C. §§ 216(b), 630(b): Fair Labor Standards Act Amendments of 1974 amending the Age Discrimination in Employment Act to subject states to damages actions in federal courts.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1999	Carmell v. Texas, 529 U.S. 513 (2000)	Stevens, John Paul	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10

Constitutional Clause(s) Invoked: Ex Post Facto Clause

Description of Unconstitutional Provision(s): Tex. Code Crim. Proc. Ann., Art. 38.07 (Vernon 1983): Texas statute that reduced minimum evidence required for conviction of certain sexual offenses from the victim's testimony plus other corroborating evidence to the victim's testimony alone.

1999	United States v. Morrison, 529 U.S. 598 (2000)	Rehnquist, William H.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 5

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Provision of the Violence Against Women Act creating a federal civil remedy for victims of gender-motivated violence.

1999	United States v. Playboy Entertainment Group, 529 U.S. 803 (2000)	Kennedy, Anthony M.	Advertising, Publishing, & Communications	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Section 505 of the Telecommunications Act of 1996, 47 U.S.C. § 561: A federal statute requiring cable television operators that provide channels "primarily dedicated to sexually-oriented programming" either to "fully scramble or otherwise fully block" those channels or to limit their transmission to hours between 10 p.m. and 6 a.m.

1999	Santa Fe Independent School District v. Doe, 530 U.S. 290 (2000)	Stevens, John Paul	Education; Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): School district policy that allowed students to initiate and lead prayer before home football games.

1999	Dickerson v. United States, 530 U.S. 428 (2000)	Rehnquist, William H.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Self-Incrimination Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 3501: Provision of the Omnibus Crime Control and Safe Streets Act of 1968 purporting to reinstate the voluntariness principle that had governed the constitutionality of custodial interrogations prior to the Court's decision in Miranda v. Arizona, 384 U.S. 436 (1966).

1999	Apprendi v. New Jersey, 530 U.S. 466 (2000)	Stevens, John Paul	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): N.J. Stat. Ann. § 2C:44-3(e) (West Supp. 2000): New Jersey hate crime statute that provided for an enhanced sentence if a trial judge found by a preponderance of the evidence that the defendant acted with the purpose to intimidate a person or group because of their race, gender, handicap, religion, sexual orientation, or ethnicity.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1999	California Democratic Party v. Jones, 530 U.S. 567 (2000)	Scalia, Antonin	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Cal. Elec. Code § 2001 (Supp. 2000): California law that imposed a blanket format on political parties' primary elections, allowing voters to vote for any candidate regardless of party affiliation.

1999	Troxel v. Granville, 530 U.S. 57 (2000)	O'Connor, Sandra Day	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Wash. Rev. Code § 26.10.160(3): Washington statute that authorized courts to grant visitation rights to any person who petitioned for them whenever the visitation would serve a child's best interests, notwithstanding parental objection and without requiring a showing that the visitation would prevent harm or potential harm to the child.

1999	Stenberg v. Carhart, 530 U.S. 914 (2000)	Breyer, Stephen G.	Healthcare; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Neb. Rev. Stat. Ann. § 28-328(1) (Supp. 1999): A Nebraska statute that banned "partial birth abortion" unless necessary to save the life of the mother.

1998	Buckley v. American Constitutional Law Foundation, Inc., 525 U.S. 182 (1999)	Ginsburg, Ruth Bader	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Colo. Rev. Stat. §§ 1-40-112(1), (2); 1-40-121: Colorado statute that limited participation in the state's initiative and referendum petition process by requiring (i) that petition circulators be registered voters; (ii) that petition circulators wear identification badges stating their names; and (iii) that initiative proponents report, upon filing a petition and on a monthly basis, the names and addresses of all paid circulators and the amount paid to each circulator.

1998	South Central Bell Telephone Co. v. Alabama, 526 U.S. 160 (1999)	Breyer, Stephen G.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Ala. Const., art. XII, § 229; Ala. Code § 40-14-40 (1993); Ala. Const., art. XII, § 232; Ala. Code § 40-14-41(a) (Supp. 1998); Ala. Code §§ 40-14-41(b)(1)–(5), (c): Alabama franchise tax statutory scheme that treated out-of-state firms unfavorably by requiring them to pay tax based on the amount of capital each firm employed in the state, whereas in-state firms paid tax based on the par value of their stock.

1998	City of Chicago v. Morales, 527 U.S. 41 (1999)	Stevens, John Paul	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Chicago Municipal Code § 8-4-015 (added June 17, 1992): Chicago Gang Congregation Ordinance that prohibited "criminal street gang members" from "loitering" with one another or with other persons in any public place.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1998	Florida Prepaid Postsecondary Education Expense Board v. College Savings Bank, 527 U.S. 627 (1999)	Rehnquist, William H.	Intellectual Property	Federal

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 5

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 35 U.S.C. §§ 271h, 296(a): Patent Remedy Act providing that the entities subject to a patent infringement suit under 35 U.S.C. § 271(a) include states, state instrumentalities, and state officers and employees.

1998	College Savings Bank v. Florida Prepaid Postsecondary Education Expense Board, 527 U.S. 666 (1999)	Scalia, Antonin	Intellectual Property	Federal

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 5

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 15 U.S.C. § 1125(a): Trademark Remedy Clarification Act subjecting States to suits brought under § 43(a) of the Lanham Act for false and misleading advertising.

1998	Alden v. Maine, 527 U.S. 706 (1999)	Kennedy, Anthony M.	Labor & Employment	Federal

Constitutional Provision(s) Invoked: Eleventh Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 29 U.S.C. §§ 216(b), 203(x): Fair Labor Standards Amendments of 1974 subjecting non-consenting states to suits for damages brought by employees in state courts.

1997	Lunding v. New York Tax Appeals Tribunal, 522 U.S. 287 (1998)	O'Connor, Sandra Day	Family Law; Taxes	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): N.Y. Tax Law § 631(b)(6): New York statute that denied nonresidents, but not residents, an income tax deduction for alimony payments.

1997	Clinton v. City of New York, 524 U.S. 417 (1998)	Stevens, John Paul	Government Operations	Federal

Constitutional Provision(s) Invoked: Article I, Section 7, Clause 2

Constitutional Clause(s) Invoked: Presentment Clause

Description of Unconstitutional Provision(s): 2 U.S.C. §§ 691 *et seq.*: Line Item Veto Act giving the President the authority to "cancel in whole" three types of provisions that have been signed into law.

1996	M. L. B. v. S. L. J., 519 U.S. 102 (1996)	Ginsburg, Ruth Bader	Family Law; Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Miss. Code Ann. § 11-51-29: Mississippi statute that conditioned the right to appeal a trial court decree terminating parental rights on the litigant's ability to prepay costs

1996	Babbitt v. Youpee, 519 U.S. 234 (1997)	Ginsburg, Ruth Bader	Federal Indian Law	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Takings Clause

Description of Unconstitutional Provision(s): 25 U.S.C. § 2206: Section 207 of the Indian Land Consolidation Act providing that certain small interests in Indian land escheat to the tribe upon death of the owner.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1996	Lynce v. Mathis, 519 U.S. 433 (1997)	Stevens, John Paul	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10

Constitutional Clause(s) Invoked: Ex Post Facto Clause

Description of Unconstitutional Provision(s): Fla. Stat. § 944.277: Florida statute that retroactively cancelled early release credits awarded to prisoners to alleviate prison overcrowding.

1996	Chandler v. Miller, 520 U.S. 305 (1997)	Ginsburg, Ruth Bader	Elections	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment

Constitutional Clause(s) Invoked: Search & Seizure Clause

Description of Unconstitutional Provision(s): Ga. Code Ann. § 21-2—140 (1993): Georgia statute that required candidates for state office to certify that they had taken and passed a drug test.

1996	Camps Newfound/Owatonna, Inc. v. Town of Harrison, 520 U.S. 564 (1997)	Stevens, John Paul	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Me. Rev. Stat. tit. 36, § 652(1)(A): Maine property tax exemption statute for charitable institutions, which gave more favorable treatment to institutions operated principally for the benefit of state residents.

1996	City of Boerne v. Flores, 521 U.S. 507 (1997)	Kennedy, Anthony M.	Civil Rights	Federal

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 5

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 42 U.S.C. §§ 2000bb *et seq.*: Provision of Religious Freedom Restoration Act directing the use of the compelling interest test to determine the validity of laws of general applicability that substantially burden the free exercise of religion.

1996	Reno v. American Civil Liberties Union, 521 U.S. 844 (1997)	Stevens, John Paul	Advertising, Publishing, & Communications	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 47 U.S.C. § 223(a), (d): Provisions of the Communications Decency Act of 1996 prohibiting knowing transmission on the Internet of obscene or indecent messages to any recipient under 18 years of age and the knowing sending or displaying of patently offensive messages in a manner that is available to anyone under 18 years of age.

1996	Printz v. United States, 521 U.S. 898 (1997)	Scalia, Antonin	Civil Rights	Federal

Constitutional Provision(s) Invoked: Tenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 18 U.S.C. § 922(s): Provisions of the Brady Handgun Violence Prevention Act requiring state and local law enforcement officers to conduct background checks on prospective handgun purchasers.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1995	Fulton Corp. v. Faulkner, 516 U.S. 325 (1996)	Souter, David H.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.C. Gen. Stat. §§ 105-203, 105-130.4(i): North Carolina statute that levied an "intangibles tax" on the fair market value of corporate stock owned by state residents to an extent inversely proportional to the corporation's exposure to North Carolina income tax.

1995	Cooper v. Oklahoma, 517 U.S. 348 (1996)	Stevens, John Paul	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Okla. Stat. tit. 22, § 1175.4(B) (1991): Oklahoma statute that established a presumption of a criminal defendant's competence to stand trial unless the defendant proved his or her incompetence by clear and convincing evidence.

1995	Seminole Tribe of Florida v. Florida, 517 U.S. 44 (1996)	Rehnquist, William H.	Federal Indian Law	Federal

Constitutional Provision(s) Invoked: Eleventh Amendment

Constitutional Clause(s) Invoked: Indian Commerce Clause

Description of Unconstitutional Provision(s): 25 U.S.C. § 2710(d)(7): Indian Gaming Regulatory Act authorizing an Indian tribe to sue a State in federal court to compel performance of a duty to negotiate in good faith toward the formation of a compact.

1995	44 Liquormart, Inc. v. Rhode Island, 517 U.S. 484 (1996)	Stevens, John Paul	Trade; Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): R.I. Gen. Laws §§ 3-8-7, 3-8-8.1 (1987), Regulation 32 of the Rhode Island Liquor Control Administration: Rhode Island statutes and regulation that banned advertisement of retail liquor prices except at the place of sale.

1995	Romer v. Evans, 517 U.S. 620 (1996)	Kennedy, Anthony M.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Amendment 2, Colo. Const., Art. II, § 30b: Amendment to the Colorado Constitution that prohibited all legislative, executive, or judicial action, at any level of state or local government, designed to protect homosexual persons from discrimination.

1995	Shaw v. Hunt, 517 U.S. 899 (1996)	Rehnquist, William H.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): North Carolina congressional redistricting plan that assigned voters to districts on the basis of race.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1995	Bush v. Vera, 517 U.S. 952 (1996)	O'Connor, Sandra Day	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Texas congressional redistricting plan, promulgated after the 1990 census showed a population increase that entitled the state to three additional seats in Congress, that used race as the predominant factor in drawing new district lines.

1995	United States v. Virginia, 518 U.S. 515 (1996)	Ginsburg, Ruth Bader	Education; Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Male-only admissions policy of the Virginia Military Institute, a state institution.

1995	Denver Area Educational Telecommunications Consortium, Inc. v. Federal Communications Commission, 518 U.S. 727 (1996)	Breyer, Stephen G.	Advertising, Publishing, & Communications	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 47 U.S.C. §§ 532(j), (k): Provisions of the Cable Television Consumer Protection and Competition Act of 1992 requiring cable operators to segregate and block indecent programming on leased access channels and permitting a cable operator to prevent transmission of "sexually explicit" programming on public access channels.

1994	Ed Plaut v. Spendthrift Farm, Inc., 514 U.S. 211 (1995)	Scalia, Antonin	Securities	Federal

Constitutional Provision(s) Invoked: Article III, Section 1; Fifth Amendment

Constitutional Clause(s) Invoked: Separation of Powers Doctrine; Due Process

Description of Unconstitutional Provision(s): 15 U.S.C. § 78aa-1 (b): Section 27A(b) of the Securities Exchange Act of 1934 providing reinstatement of any action previously dismissed as time barred under certain circumstances.

1994	Mcintyre v. Ohio Elections Commission, 514 U.S. 334 (1995)	Stevens, John Paul	Elections; Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ohio Rev. Code Ann. § 3599.09(A): Ohio statute prohibiting the distribution of anonymous campaign literature.

1994	Rubin v. Coors Brewing Company, 514 U.S. 476 (1995)	Thomas, Clarence	Food & Drug	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 27 U.S.C. § 205(e)(2): Section 5(e)(2) of the Federal Alcohol Administration Act prohibiting the display of alcohol content on beer labels.

1994	United States v. Lopez, 514 U.S. 549 (1995)	Rehnquist, William H.	Civil Rights	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 922(q)(1)(A): Gun-Free School Zones Act of 1990 making it a criminal offense to knowingly possess a firearm within a school zone.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1994	United States Term Limits, Inc. v. Thornton, 514 U.S. 779 (1995)	Stevens, John Paul	Elections	State & Local

Constitutional Provision(s) Invoked: Article I, Section 2, Clause 2; Article I, Section 3, Clause 3

Constitutional Clause(s) Invoked: Qualifications for Membership in Congress Clauses

Description of Unconstitutional Provision(s): Ark. Const. Amendment 73, § 3: Amendment to the Arkansas Constitution that prohibited placement of the name of a candidate for U.S. Congress on the general election ballot if the candidate had already served three terms in the U.S. House of Representatives or two terms in the U.S. Senate.

1994	Rosenberger v. Rector & Visitors of the University of Virginia, 515 U.S. 819 (1995)	Kennedy, Anthony M.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): University of Virginia guideline that prohibited use of student activity funds to pay printing costs of student publications that primarily promoted a religious viewpoint.

1994	Miller v. Johnson, 515 U.S. 900 (1995)	Kennedy, Anthony M.	Civil Rights; Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Georgia congressional redistricting plan that assigned voters on the basis of race to create three majority-black districts.

1993	C & A Carbone, Inc. v. Town of Clarkstown, 511 U.S. 383 (1994)	Kennedy, Anthony M.	Environmental	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Clarkstown, N.Y., Local Laws No. 9 (1990): Town flow control ordinance that required all nonhazardous solid waste within the town to be processed at the town transfer station.

1993	Department of Revenue v. Kurth Ranch, 511 U.S. 767 (1994)	Stevens, John Paul	Criminal Law & Procedure; Taxes	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Double Jeopardy Clause

Description of Unconstitutional Provision(s): Mont. Code Ann. § 15-25-111 (1987): Montana statute that imposed a tax, to be assessed after the imposition of criminal penalties, on the possession and storage of illegal drugs.

1993	Oregon Waste Systems, Inc. v. Department of Environmental Quality of Oregon, 511 U.S. 93 (1994)	Thomas, Clarence	Environmental	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Ore. Rev. Stat. § 459.297(1): Oregon statute imposing a surcharge on the in-state disposal of waste generated out of state.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1993	West Lynn Creamery, Inc. v. Healy, 512 U.S. 186 (1994)	Stevens, John Paul	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Massachusetts milk pricing order that imposed an assessment on all milk sold to Massachusetts dealers and provided for the proceeds to be distributed amongst in-state milk producers.

1993	Honda Motor Co. v. Oberg, 512 U.S. 415 (1994)	Stevens, John Paul	Civil Procedure; Torts	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Or. Const. art. VII, § 3: Amendment of Oregon Constitution that prohibited judicial review of the size of a jury's punitive damages award unless there was no evidence to support the verdict.

1993	City of Ladue v. Gilleo, 512 U.S. 43 (1994)	Stevens, John Paul	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ladue, Mo., Ordinance 35: City ordinance that banned all residential signs unless they fell within one of ten enumerated exemptions, which included exemptions for "for sale" signs and "municipal signs."

1993	Board of Education of Kiryas Joel Village School District v. Grumet, 512 U.S. 687 (1994)	Souter, David H.	Education; Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): 1989 N.Y. Laws, ch. 748: New York statute creating a separate school district along the village lines of a religious enclave.

1992	City of Cincinnati v. Discovery Network, Inc., 507 U.S. 410 (1993)	Stevens, John Paul	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Cincinnati, Ohio, Municipal Code § 714-23: City ordinance that banned distribution of commercial handbills on public property.

1992	Edenfield v. Fane, 507 U.S. 761 (1993)	Kennedy, Anthony M.	Trade	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Fla. Admin. Code § 21A-24.002(2)(c) (1992): Florida regulation that prohibited certified public accountants from conducting direct, in-person, uninvited solicitation to obtain new clients.

1992	El Vocero De Puerto Rico (Caribbean International News Corp.) v. Puerto Rico, 508 U.S. 147 (1993)	Per Curiam	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): P.R. Laws Ann., Tit. 34, App. II, Rule 23(c): Puerto Rico rule of criminal procedure that entitled defendants to a private preliminary hearing.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1992	Lamb's Chapel v. Center Moriches Union Free School District, 508 U.S. 384 (1993)	White, Byron R.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): New York Educ. Law § 414 (McKinney 1988 and Supp. 1993); Board of Center Moriches Union Free School District Rule 7: New York statute and school board regulation that prohibit the use of school grounds for religious purposes.

1992	Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520 (1993)	Kennedy, Anthony M.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause

Description of Unconstitutional Provision(s): Hialeh, Fla. Ordinances 87-40, 87-52, 87-71, 87-72: City ordinances and resolutions that prohibited ritualistic animal sacrifices and also prohibited animal slaughter outside of zoned slaughterhouses, but provided an exemption for the slaughter of small numbers of hogs or cattle.

1991	Simon & Schuster, Inc. v. Members of the New York State Crime Victims Board, 502 U.S. 105 (1991)	O'Connor, Sandra Day	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): N.Y. Exec. Law § 632-a: New York law requiring that an accused or convicted criminal's income from works describing his crime be made available, via deposit in an escrow account, to victims and creditors.

1991	Norman v. Reed, 502 U.S. 279 (1992)	Souter, David H.	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stat., ch. 46, §§ 10-2, 10-5 (1989): Illinois election laws that prohibited new political parties in a particular district from using the name of a party already established in another district, notwithstanding any authorization from the established party, and that disqualified all candidates of a new political party in all districts if the party failed to obtain 25,000 signatures in each district in which it offered candidates.

1991	Wyoming v. Oklahoma, 502 U.S. 437 (1992)	White, Byron R.	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Okla. Stat., Tit. 45, §§ 939, 939.1 (Supp. 1988): Oklahoma statute requiring that at least ten percent of the coal burned by Oklahoma coal-powered electricity plants generating power for sale in that state to be Oklahoma-mined coal.

1991	Quill Corp. v. Heitkamp, 504 U.S. 298 (1992)	Stevens, John Paul	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.D. Cent. Code § 57-40.2-01(6) (Supp. 1991); N.D. Admin. Code § 81-04.1-01-03.1 (1988): North Dakota statute and regulation that impose sales tax collection requirement on out-of-state mail-order companies by extending the collection requirement to reach any retailer who placed three or more advertisements in the state within a 12-month period.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1991	Chemical Waste Management, Inc. v. Hunt, 504 U.S. 334 (1992)	White, Byron R.	Environmental	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Ala. Code § 22-30B-2(b) (1990 and Supp. 1991): Alabama statute that imposed additional hazardous waste-disposal fee on all hazardous waste generated outside of Alabama.

1991	Fort Gratiot Sanitary Landfill, Inc. v. Michigan Department of Natural Resources, 504 U.S. 353 (1992)	Stevens, John Paul	Environmental	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Mich. Comp. Laws §§ 299.413a, 299.430(2) (1991): Michigan waste import restrictions that prohibited landfill operators from accepting solid waste generated in another county, state, or country unless the solid waste management plan of the county in which the landfill was located explicitly authorized the acceptance of such waste.

1991	Foucha v. Louisiana, 504 U.S. 71 (1992)	White, Byron R.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): La. Code Crim. Proc. Ann., Art. 657 (West 1991): Louisiana statute that permitted indefinite detention of criminal defendants found not guilty by reason of insanity who, although not mentally ill, failed to prove that they posed no danger to themselves or others.

1991	Forsyth County v. Nationalist Movement, 505 U.S. 123 (1992)	Blackmun, Harry A.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Forsyth County (Atlanta, GA) Ordinance 34 (1987): County assembly and parade ordinance that establish a permit requirement and allow county administrator to adjust permit fee according to the estimated cost of maintaining public order.

1991	New York v. United States, 505 U.S. 144 (1992)	O'Connor, Sandra Day	Energy & Utilities	Federal

Constitutional Provision(s) Invoked: Tenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): 42 U.S.C. §§ 2021b *et seq.*: Take-title provision of the Low-Level Radioactive Waste Policy Act of 1985 providing various incentives to encourage the States to comply with their statutory obligation to provide for the disposal of radioactive waste generated within their borders.

1991	R.A.V. v. City of St. Paul, 505 U.S. 377 (1992)	Scalia, Antonin	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): St. Paul, Minn., Legis. Code § 292.02 (1990): St. Paul Bias–Motivated Crime Ordinance that prohibited the placement on public or private property of a symbol that one knew or had reason to know would arouse anger, alarm, or resentment on the basis of race, color, creed, religion, or gender.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1991	Kraft General Foods, Inc. v. Iowa Department of Revenue & Finance, 505 U.S. 71 (1992)	Stevens, John Paul	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8

Constitutional Clause(s) Invoked: Foreign Commerce Clause

Description of Unconstitutional Provision(s): Iowa Code § 422.35 (1981): Iowa business tax statute that taxed a corporation's dividends from foreign but not domestic subsidiaries.

1991	Lee v. International Society for Krishna Consciousness, Inc., 505 U.S. 830 (1992)	Per Curiam	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Port Authority of New York and New Jersey restriction that banned the distribution of literature in airport terminals.

1991	Planned Parenthood of Southeastern Pennsylvania v. Casey, 505 U.S. 833 (1992)	O'Connor, Sandra Day; Kennedy, Anthony M.; Souter, David H.	Healthcare	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 18 Pa. Cons. Stat. §§ 3209 (1990): Spousal notification provision of the Pennsylvania Abortion Control Act, prohibiting abortion for a married woman in most circumstances unless she signed a statement indicating that she had notified her husband of her intent to abort.

1990	Connecticut v. Doehr, 501 U.S. 1 (1991)	White, Byron R.	Real Property; Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Conn. Gen. Stat. §52-278e(a)(1)(1991): Connecticut prejudgment remedy provision that authorized prejudgment attachment of real estate without notice or a hearing and without requiring a showing of exigent circumstances.

1990	Metropolitan Washington Airports Authority v. Citizens for the Abatement of Aircraft Noise, Inc., 501 U.S. 252 (1991)	Stevens, John Paul	Transportation	Federal

Constitutional Provision(s) Invoked: Article I, Section 7; Article II

Constitutional Clause(s) Invoked: Bicameralism & Presentment Requirements; Vesting Clause

Description of Unconstitutional Provision(s): 49 U.S.C. §§ 2451–61: Metropolitan Washington Airports Act of 1986 authorizing the transfer of two major airports from the federal government to an airport authority, but conditioning the transfer on the creation of a board composed of nine members of Congress vested with veto power over the airport authority's decisions.

1989	Butterworth v. Smith, 494 U.S. 624 (1990)	Rehnquist, William H.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Fla. Stat. § 905.27: Florida statute that prohibited grand jury witnesses from ever disclosing testimony given to the grand jury, even after the end of the term of the grand jury.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1989	United States v. Eichman, 496 U.S. 310 (1990)	Brennan, William J.	Civil Rights	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 700: Flag Protection Act of 1989 criminalizing the burning and other acts of desecration of the flag of the United States.

1989	Peel v. Attorney Registration & Disciplinary Commission of Illinois, 496 U.S. 91 (1990)	Stevens, John Paul; Marshall, Thurgood	Civil Rights; Legal Ethics	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Rule 2-105(a)(3) of the Illinois Code of Professional Responsibility: Provision of the Illinois Code of Professional Responsibility that prohibited lawyers from holding themselves out as being "certified" or being a "specialist" in a particular area of law.

1989	Hodgson v. Minnesota, 497 U.S. 417 (1990)	Stevens, John Paul	Healthcare; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Minn. Stat. § 144.343(2): Minnesota parental notice statute, which in most circumstances prohibited abortions for women under 18 years of age unless both of her parents had been notified.

1988	City of Richmond v. J. A. Croson Co., 488 U.S. 469 (1989)	O'Connor, Sandra Day	Civil Rights; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Richmond, Va., City Code, § 12-156(a) (1985): Minority Business Utilization Plan of Richmond City, Virginia, requiring prime contractors awarded construction contracts by the city to subcontract at least 30% of the contract value to minority businesses.

1988	Texas Monthly, Inc. v. Bullock, 489 U.S. 1 (1989)	Brennan, William J.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Tex. Tax Code Ann. § 151.312 (1982): Texas statute that exempted from sales and use taxes periodicals published or distributed by, and advancing the tenets of, a religious faith.

1988	Eu v. San Francisco County Democratic Central Committee, 489 U.S. 214 (1989)	Marshall, Thurgood	Education; Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): California Elections Code Annotated §§ 11702, 29430 (West 1977): Sections of California Elections Code that banned official governing bodies of political parties from endorsing candidates in primaries and imposed restrictions on the bodies' internal governance procedures, organization, and composition.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1988	Barnard v. Thorstenn, 489 U.S. 546 (1989)	KENNEDY, ANTHONY M.	Trade	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2, Clause 1

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): Local Rule 56(b)(4)-(5) of the District Court of the Virgin Islands: Provisions of Virgin Islands bar admission rules requiring at least one year of residence in the Virgin Islands and intention to continue to reside and practice in the Virgin Islands after admission.

1988	Board of Estimate of New York v. Morris, 489 U.S. 688 (1989)	WHITE, BYRON R.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Section 61 of the New York City Charter (1986): Provision of New York City Charter establishing that the Board of Estimate would consist of three members elected citywide, along with the elected presidents of each of the five New York City boroughs.

1988	Davis v. Michigan Department of Treasury, 489 U.S. 803 (1989)	KENNEDY, ANTHONY M.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): Mich. Comp. Laws Ann. § 206.30(1)(f) (Supp. 1988): Michigan statute that levied income tax on retirement benefits paid by the Federal Government but not by the government of the state of Michigan or its political subdivisions.

1988	Healy v. Beer Institute, 491 U.S. 324 (1989)	BLACKMUN, HARRY A.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Conn. Gen. Stat. Ann. §§ 30-63 (1975 & Supp. 1982): Connecticut's beer-price-affirmation statute, requiring out-of-state beer shippers to affirm that prices, at the moment posted, of products sold to Connecticut wholesalers did not exceed prices for products sold in bordering states.

1988	Quinn v. Millsap, 491 U.S. 95 (1989)	BLACKMUN, HARRY A.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Mo. Const., art. VI, § 30: Provision of the Missouri Constitution establishing a land-ownership requirement for membership on board charged with drafting plans to reorganize the governments of the city and county of St. Louis.

1988	Sable Communications of California, Inc. v. Federal Communications Commission, 492 U.S. 115 (1989)	WHITE, BYRON R.	Advertising, Publishing, & Communications; Business & Corporate Law	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 47 U.S.C. § 223(b): Section 223(b) of the Communications Act of 1934 banning indecent and obscene interstate commercial telephone messages, commonly known as "dial-a-porn" services.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1987	Boos v. Barry, 485 U.S. 312 (1988)	O'Connor, Sandra Day	Real Property	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): District of Columbia Code § 22-1115: A District of Columbia ordinance making it unlawful, within 500 feet of a foreign embassy, either to display any sign that tends to bring the foreign government into "public odium" or "public disrepute."

1987	Tulsa Professional Collection Services, Inc. v. Pope, 485 U.S. 478 (1988)	O'Connor, Sandra Day	Estates, Gifts, & Trusts; Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Okla. Stat., Tit. 58, § 333 (1981): A provision of Oklahoma's probate laws that require claims "arising upon a contract" generally to be presented to the executor or executrix of an estate within 2 months of the publication of a notice advising creditors of the commencement of probate proceedings.

1987	Hicks v. Feiock, 485 U.S. 624 (1988)	White, Byron R.	Criminal Law & Procedure; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Cal. Civ. Proc. Code Ann. § 1209.5 (West 1982): A California law governing the payment of child support presumes that a parent is financially capable of paying support, shifting to the defendant the burden of proving inability to comply with a payment order in a criminal contempt proceeding.

1987	New Energy Company of Indiana v. Limbach, 486 U.S. 269 (1988)	Scalia, Antonin	Taxes; Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Ohio Rev. Code Ann. § 5735.145(B) (1986): An Ohio law that provides a tax credit against the Ohio motor vehicle fuel sales tax for each gallon of ethanol sold by fuel dealers, but only if the ethanol is produced in Ohio or, if produced in another State, to the extent that State grants similar tax advantages to ethanol produced in Ohio.

1987	Maynard v. Cartwright, 486 U.S. 356 (1988)	White, Byron R.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Okla. Stat., Tit. 21, §§ 701.12(2) & (4) (1981): Oklahoma's death penalty statute that allows for the imposition of the death penalty if the circumstances surrounding a murder were "especially heinous, atrocious, or cruel."

1987	Meyer v. Grant, 486 U.S. 414 (1988)	Stevens, John Paul	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Colo. Rev. Stat. § 1-40-110 (1980): A Colorado law that allows a proposed state constitutional amendment to be placed on a general election ballot if its proponents can obtain the signatures of at least five percent of the total number of qualified voters on an "initiative petition" within a 6-month period, but makes it a felony to pay petition circulators.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1987	Clark v. Jeter, 486 U.S. 456 (1988)	O'Connor, Sandra Day	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 42 Pa. Cons. Stat. § 6704(b) (1982) (repealed 1985): A Pennsylvania law requiring an illegitimate child prove paternity within six years of birth before seeking support from his or her father.

1987	Shapero v. Kentucky Bar Ass'n, 486 U.S. 466 (1988)	Brennan, William J.	Legal Ethics	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ky. Supreme Court R. 3.135(5)(b)(i), *replaced by* ABA Model Rule of Professional Conduct 7.3 (1984): A Kentucky Supreme Court Rule that prohibits the targeted, direct-mail solicitation by lawyers for pecuniary gain, without a particularized finding that the solicitation is false or misleading.

1987	City of Lakewood v. Plain Dealer Publishing Co., 486 U.S. 750 (1988)	Brennan, William J.	Real Property	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): § 901.181, Codified Ordinances, City of Lakewood, Ohio (1984): An ordinance of the city of Lakewood, Ohio that mayor unfettered discretion to deny permit for placing newspaper dispensing devices on public property.

1987	Bendix Autolite Corp. v. Midwesco Enterprises, Inc., 486 U.S. 888 (1988)	Kennedy, Anthony M.	Civil Procedure; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Ohio Rev. Code Ann. § 2305.15 (Supp. 1987): An Ohio law that imposes a 4-year statute of limitations in actions for breach of contract or fraud, but tolls the statute for any period that a person or corporation is not "present" in the state.

1987	Coy v. Iowa, 487 U.S. 1012 (1988)	Scalia, Antonin	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Confrontation Clause

Description of Unconstitutional Provision(s): Act of May 23, 1985, § 6, 1985 Iowa Acts 338, now codified at Iowa Code § 910A.14 (1987): An Iowa law that allows a complaining witness to testify either via closed-circuit television or behind a screen.

1987	Supreme Court of Virginia v. Friedman, 487 U.S. 59 (1988)	Kennedy, Anthony M.	Legal Ethics	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): Virginia Supreme Court Rule 1A:1: A Virginia rule that conditions admission to the Virginia bar on a showing that the applicant is a permanent resident of Virginia.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1987	Riley v. National Federation of the Blind of North Carolina, Inc., 487 U.S. 781 (1988)	Brennan, William J.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): N.C. Gen. Stat. § 131C-17.2 (1986); N.C. Gen. Stat. § 131C-16.1(3) (1986); N.C. Gen. Stat. § 131C-6 (1986): North Carolina law that places various limitations on the solicitation of charitable contributions by professional fundraisers.

1986	Tashjian v. Republican Party of Connecticut, 479 U.S. 208 (1986)	Marshall, Thurgood	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Freedom of Association

Description of Unconstitutional Provision(s): Portions of Conn. Gen. Stat. § 9-431 (1985): A Connecticut law that requires voters in any political party primary to be registered members of that party.

1986	324 Liquor Corp. v. Duffy, 479 U.S. 335 (1987)	Powell, Lewis F.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Twenty-First Amendment, Section 2

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): N.Y. Alco. Bev. Cont. Law, section 101-bb, (McKinney 1970 and Supp. 1986): A New York law requiring liquor retailers to charge at least 112 percent of the wholesaler's "posted" bottle price in effect at the time the retailer sells or offers to sell the item.

1986	Arkansas Writers' Project, Inc. v. Ragland, 481 U.S. 221 (1987)	Marshall, Thurgood	Taxes	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Free Press Clause

Description of Unconstitutional Provision(s): Ark. Stat. Ann. §§ 84-1904(f),(j): An Arkansas law imposing a tax on receipts from sales of tangible personal property, but exempting newspapers and certain magazines.

1986	Hodel v. Irving, 481 U.S. 704 (1987)	O'Connor, Sandra Day	Federal Indian Law; Real Property	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Takings Clause

Description of Unconstitutional Provision(s): Pub. L. No. 97-459, 96 Stat. 2519: Section 207 of the Indian Land Consolidation Act of 1983 providing for escheat to tribes of fractionated interests in land representing less than 2% of a tract's total acreage.

1986	City of Houston v. Hill, 482 U.S. 451 (1987)	Brennan, William J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Houston Code of Ordinances § 34-11(a): An ordinance of the city of Houston, Texas making it unlawful to "oppose, molest, abuse, or interrupt" police officer in performance of duty.

1986	Booth v. Maryland, 482 U.S. 496 (1987)	Powell, Lewis F.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Md. Ann. Code Art. 41, § 4-609(d) (1986): A Maryland statute that requires a presentence report in all felony cases (including capital murder) to include a victim impact statement (VIS), describing the effect of the crime on the victim and his family.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1986	Board of Airport Commissioners of Los Angeles v. Jews For Jesus, Inc., 482 U.S. 569 (1987)	O'Connor, Sandra Day	Transportation	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Board of Airport Commissioners Resolution No. 13787 (1983): A resolution of the Los Angeles, California Board of Airport Commissioners banning all "First Amendment activities" within the "Central Terminal Area" at Los Angeles International Airport.

1986	Edwards v. Aguillard, 482 U.S. 578 (1987)	Brennan, William J.	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): La. Rev. Stat. Ann. §§ 17:286.1–17:286.7 (West 1982): A Louisiana law forbidding the teaching of the theory of evolution in public elementary and secondary schools unless accompanied by instruction in the theory of "creation science."

1986	Turner v. Safley, 482 U.S. 78 (1987)	O'Connor, Sandra Day	Criminal Law & Procedure; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A regulation of the Missouri Department of Corrections that permits an inmate to marry only with the prison superintendent's permission, which can be given only when there are "compelling reasons" to do so.

1986	Tyler Pipe Industries, Inc. v. Washington State Department of Revenue, 483 U.S. 232 (1987)	Stevens, John Paul	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Washington's Business and Occupation Wash. Rev. Code § 82.04.440 (1985): A Washington State law imposing a business and occupation (B & O) tax on the privilege of engaging in business activities in the state, including manufacturing in the state and making wholesale sales in the state, but exempting products manufactured and sold in-state.

1986	American Trucking Ass'ns v. Scheiner, 483 U.S. 266 (1987)	Stevens, John Paul	Transportation; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Pa. Cons. Stat. § 2102; 75 Pa. Cons. Stat. § 9902 (1984): A Pennsylvania law that imposes lump sum annual taxes on the operation of trucks on the state's roads.

1986	Sumner v. Shuman, 483 U.S. 66 (1987)	Blackmun, Harry A.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Nev. Rev. Stat. § 200.030 (1973); 1973 Nev. Stats., ch. 798, § 5: A Nevada law that mandates the death penalty for a prison inmate who is convicted of murder while serving a life sentence without possibility of parole.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1985	Brown-Forman Distillers Corp. v. New York State Liquor Authority, 476 U.S. 573 (1986)	MARSHALL, THURGOOD	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): New York Alcoholic Beverage Control Law Section 101-b(3)(d) (McKinney 1970 and Supp. 1986): A New York law that requires every liquor distiller or producer that sells liquor to wholesalers within the state to sell at a price that is no higher than the lowest price the distiller charges wholesalers anywhere else in the United States.

1985	Thornburgh v. American College of Obstetricians & Gynecologists, 476 U.S. 747 (1986)	BLACKMUN, HARRY A.	Healthcare	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Pennsylvania's Abortion Control Act, 1982 Pa. Laws, Act No. 138, *codified as* 18 Pa. Cons. Stat. §§ 3201 *et seq.* (1982): A Pennsylvania statute prescribing a variety of requirements for the performance of an abortion, including providing oral and written information prior to the procedure, public reporting about the procedures that have been performed, and standard-of-care and second-physician requirements.

1985	Attorney General of New York v. Soto-Lopez, 476 U.S. 898 (1986)	BRENNAN, WILLIAM J.	Labor & Employment; Military & Veterans	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.Y. Const., art. V, § 6; N.Y. Civ. Serv. Law § 85 (McKinney 1983 & Supp. 1986): The State of New York's Constitution and civil service law that grants a civil service employment preference, in the form of points added to examination scores, to New York residents who are honorably discharged veterans of the Armed Forces, served during time of war, and were New York residents when they entered military service.

1985	Ford v. Wainwright, 477 U.S. 399 (1986)	MARSHALL, THURGOOD	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause; Due Process Clause

Description of Unconstitutional Provision(s): Fla. Stat. § 922.07 (1985 & Supp. 1986): A Florida statute that provides the exclusive means for determining the sanity of a death row inmate that is wholly within the executive branch and does not allow for challenges by the defendant to the executive branches' findings.

1985	Press-Enterprise Co. v. Superior Court of California, 478 U.S. 1 (1986)	BURGER, WARREN E.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Press Clause

Description of Unconstitutional Provision(s): Cal. Penal Code Ann. § 868 (West 1985): A California statute that requires that preliminary hearings in a criminal case be open to the public unless exclusion of the public is necessary in order to protect the defendant's right to a fair and impartial trial, which California courts interpreted to require the defendant to establish a "reasonable likelihood of substantial prejudice" to seal the proceeding.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1985	Bowsher v. Synar, 478 U.S. 714 (1986)	Burger, Warren E.	Government Operations	Federal

Constitutional Provision(s) Invoked: Article I, Section 1

Constitutional Clause(s) Invoked: Separation of Powers Doctrine

Description of Unconstitutional Provision(s): 2 U.S.C. §§ 901 *et seq.*: Section 251 of the Balanced Budget and Emergency Deficit Control Act of 1985 making the Comptroller General responsible for preparing and submitting to the President a report specifying deficit reductions for a fiscal year, and requiring the President to order the reductions specified by the Comptroller General.

1984	Supreme Court of New Hampshire v. Piper, 470 U.S. 274 (1985)	Powell, Lewis F.	Legal Ethics	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): N.H. Sup. Ct. Rule 42(3): A New Hampshire bar rule limits bar admission to state residents.

1984	Federal Election Commission v. National Conservative Political Action Committee, 470 U.S. 480 (1985)	Rehnquist, William H.	Elections	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 26 U.S.C. § 9012(f): Section 9012(f) of the Presidential Election Campaign Fund Act making it a criminal offense for independent "political committees" to expend more than $1,000 to further a candidate's election if the candidate accepts public financing.

1984	Metropolitan Life Insurance Co. v. Ward, 470 U.S. 869 (1985)	Powell, Lewis F.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ala. Code §§ 27-4-4 and 27-4-5 (1975): Alabama's domestic preference tax statute, imposing a substantially lower gross premiums tax rate on domestic insurance companies than on out-of-state insurance companies.

1984	Tennessee v. Garner, 471 U.S. 1 (1985)	White, Byron R.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Tenn. Code Ann. § 40-7-108 (1982): A Tennessee law authorizing a police officer, after providing notice of his intention to arrest a criminal defendant and that defendant flees or forcibly resists arrest, to "use all the necessary means to effect the arrest."

1984	Hunter v. Underwood, 471 U.S. 222 (1985)	Rehnquist, William H.	Elections; Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Art. VIII, § 182, of the Alabama Constitution of 1901: A section of the Alabama Constitution provides for the disenfranchisement of persons convicted of certain enumerated felonies and misdemeanors, including "any . . . crime involving moral turpitude."

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1984	Zauderer v. Office of Disciplinary Counsel, 471 U.S. 626 (1985)	White, Byron R.	Legal Ethics	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ohio Disciplinary Rules DR 2-103(A), 2-104(A), and 2-101(B): A provision within the Ohio Code of Professional Responsibility prohibiting (1) an attorney from soliciting or accepting legal employment through advertisements containing information or advice regarding a specific legal problem; (2) the use of illustrations in attorney advertisements.

1984	Williams v. Vermont, 472 U.S. 14 (1985)	White, Byron R.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Vt. Stat. Ann., Tit. 32, § 8911(9) (1981): A Vermont law that distinguishes between residents and nonresidents in providing a credit for automobile sales taxes paid to another state.

1984	Wallace v. Jaffree, 472 U.S. 38 (1985)	Stevens, John Paul	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Ala. Code 1975, § 16-1-20.1: An Alabama statute authorizing a one-minute period of silence in public schools "for meditation or voluntary prayer."

1984	Hooper v. Bernalillo County Assessor, 472 U.S. 612 (1985)	Burger, Warren E.	Taxes; Military & Veterans	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.M. Stat. Ann. § 7-37-5 (1983): A New Mexico law that grants a property tax exemption for Vietnam veterans that resided in the state before May 8, 1976.

1984	Estate of Thornton v. Caldor, Inc., 472 U.S. 703 (1985)	Burger, Warren E.	Labor & Employment; Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Conn. Gen. Stat. § 53-303e(b): A Connecticut law that provides employees with the right not to work on the day that the employee chooses to observe as "his Sabbath."

1983	Westinghouse Electric Corp. v. Tully, 466 U.S. 388 (1984)	Blackmun, Harry A.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.Y. Tax Law § 210.13(a)(2): A New York law that allows corporations a tax credit for receipts from products shipped from an in-state place of business.

1983	Bernal v. Fainter, 467 U.S. 216 (1984)	Marshall, Thurgood	Business & Corporate Law; Immigration	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Tex. Rev. Civ. Stat. art. 5942(2): A Texas law that required a notary public to be a United States citizen.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1983	Armco, Inc. v. Hardesty, 467 U.S. 638 (1984)	Powell, Lewis F.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): W. Va. Code Section 11-13-2: A West Virginia law imposes a gross receipts tax on businesses selling tangible property at wholesale, but exempts local manufacturers from the tax.

1983	Secretary of State of Maryland v. Joseph H. Munson Co., 467 U.S. 947 (1984)	Blackmun, Harry A.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Md. Code Ann. Section 103D: A Maryland statute that generally prohibits a charitable organization, in connection with any fundraising activity, from paying expenses of more than 25% of the amount raised.

1983	Bacchus Imports, Ltd. v. Dias, 468 U.S. 263 (1984)	White, Byron R.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Haw. Rev. Stat. Sections 244-4(6), 244-4(7): A Hawaii law imposing a 20% excise tax on sales of liquor at wholesale, but exempting the sales of specified local products.

1983	Federal Communications Commission v. League of Women Voters of California, 468 U.S. 364 (1984)	Brennan, William J.	Advertising, Publishing, & Communications	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 47 U.S.C. § 399: Provision of Public Broadcasting Act of 1967 banning noncommercial educational stations receiving grants from the Corporation for Public Broadcasting from engaging in editorializing.

1983	Regan v. Time, Inc., 468 U.S. 641 (1984)	White, Byron R.	Advertising, Publishing, & Communications	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 18 U.S.C. § 504(1): Exception to statutory ban on the use of photographic reproductions of U.S. currency permitting the "printing, publishing, or importation . . . of illustrations of . . . any . . . obligation or other security of the United States . . . for philatelic, numismatic, educational, historical, or newsworthy purposes in articles, books, journals, newspapers, or albums."

1982	Larkin v. Grendel's Den, Inc., 459 U.S. 116 (1982)	Burger, Warren E.	Real Property; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws ch. 138, Sec. 16C: A Massachusetts law that provides that the governing bodies of schools and churches can prevent the issuance of liquor licenses to premises within 500 feet of a church or school by objecting to the license application.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1982	Memphis Bank & Trust Co. v. Garner, 459 U.S. 392 (1983)	Marshall, Thurgood	Banking; Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): Tenn. Code. Ann. Section 67-751: A Tennessee law imposes a tax on the net earnings of banks doing business within the state, defining net earnings to include income from obligations of the United States and its instrumentalities.

1982	Minneapolis Star & Tribune Co. v. Minnesota Commissioner of Revenue, 460 U.S. 575 (1983)	O'Connor, Sandra Day	Taxes	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Free Press Clause

Description of Unconstitutional Provision(s): Minn. Stat. Sec. 297A.14: A Minnesota law that imposes a use tax on the cost of paper and ink products consumed in the production of a periodic publication.

1982	Anderson v. Celebrezze, 460 U.S. 780 (1983)	Stevens, John Paul	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ohio Revised Code Section 3513.25.7: An Ohio statute that requires independent candidates for President and Vice-President to file nominating petitions by March 20 in order to qualify for the November ballot.

1982	Kolender v. Lawson, 461 U.S. 352 (1983)	O'Connor, Sandra Day	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Cal. Penal Code Section 647(e): A California law requires that persons who loiter or wander on the streets identify themselves and to account for their presence when requested by a peace officer.

1982	Pickett v. Brown, 462 U.S. 1 (1983)	Brennan, William J.	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Tenn. Code. Ann. Section 36-224(2): A Tennessee law generally requires a two-year period from date of birth to bring an action to establish paternity of illegitimate child for purposes of obtaining support of Tennessee's two-year statute of limitations for paternity and child support actions.

1982	City of Akron v. Akron Center for Reproductive Health, Inc., 462 U.S. 416 (1983)	Powell, Lewis F.	Healthcare	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ordinance No. 160-1978-Sections 1870.03, 1870.05(B), 1870.06(B), 1870.06(C), 1870.07, 1870.16: An ordinance of the city of Akron, Ohio regulating the practice of abortions, including requirements respecting (1) the location where abortions must be performed; (2) parental notification for certain minors seeking an abortion; (3) the information a physician must provide about the pregnancy and the abortion procedure to a patient; (4) a 24 hour waiting period for an abortion; (5) the disposal of fetal remains.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1982	Planned Parenthood Ass'n of Kansas City, Missouri, Inc. v. Ashcroft, 462 U.S. 476 (1983)	Powell, Lewis F.	Healthcare	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Mo. Rev. Stat. Sec. 188.025: A Missouri law that requires all abortions after 12 weeks of pregnancy to be performed in a hospital.

1982	Karcher v. Daggett, 462 U.S. 725 (1983)	Brennan, William J.	Elections	State & Local

Constitutional Provision(s) Invoked: Article I, Section 2

Constitutional Clause(s) Invoked: House of Representatives Clause

Description of Unconstitutional Provision(s): Pub. L. 1982, ch. 1: A New Jersey law reapportioning the state's congressional districts, resulting in population deviations of less than one percent amongst the various districts.

1982	Immigration & Naturalization Service v. Chadha, 462 U.S. 919 (1983)	Burger, Warren E.	Immigration	Federal

Constitutional Provision(s) Invoked: Article I, Section 7, Clause 2; Article I, Section 7, Clause 3

Constitutional Clause(s) Invoked: Presentment Clause; Bicameral Clause

Description of Unconstitutional Provision(s): 8 U.S.C. § 244(c)(2): Immigration and Nationality Act § 244(c)(2) permitting either house of Congress to veto the decision of the Attorney General to suspend the deportation of certain aliens.

1982	Bolger v. Youngs Drug Products Corp., 463 U.S. 60 (1983)	Marshall, Thurgood	Advertising, Publishing & Communications	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Act of March 3, 1873 (ch. 258, § 2, 17 Stat. 599, recodified in 39 U.S.C. § 3001(e)(2)): Comstock Act provision barring from the mails any unsolicited advertisement for contraceptives, as applied to circulars and flyers promoting prophylactics or containing information discussing the desirability and availability of prophylactics, violates the free speech clause of the First Amendment.

1981	Citizens Against Rent Control/Coalition for Fair Housing v. City of Berkeley, 454 U.S. 290 (1981)	Burger, Warren E.	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Freedom of Association

Description of Unconstitutional Provision(s): Berkeley, Cal., Ordinance No. 4700-N.S., Section 602: A Berkeley, California ordinance that imposes a $250 limitation on contributions to committees formed to support or oppose ballot measures submitted to a popular vote.

1981	Railway Labor Executives' Ass'n v. Gibbons, 455 U.S. 457 (1982)	Rehnquist, William H.	Bankruptcy	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 4

Constitutional Clause(s) Invoked: Bankruptcy Clause

Description of Unconstitutional Provision(s): 45 U.S.C. § 701: Statutes governing bankruptcy of a single named debtor.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1981	Santosky v. Kramer, 455 U.S. 745 (1982)	Blackmun, Harry A.	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): N.Y. Family Court Act Section 622: A New York law that allows the state to terminate, over parental objection, the rights of parents upon a finding by a "fair preponderance of the evidence" that the child is "permanently neglected."

1981	Larson v. Valente, 456 U.S. 228 (1982)	Brennan, William J.	Taxes	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Minn. Stat. Section 309.515 Subdiv. 1(b): Minnesota law that exempts religious organizations that receive more than half of their total contributions from members or affiliated organizations from the registration and reporting requirements of the state's charitable solicitations statute.

1981	Mills v. Habluetzel, 456 U.S. 91 (1982)	Rehnquist, William H.	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Tex. Fam. Code Section 13.01: A Texas law that imposes a one-year period from date of birth to bring an action to establish paternity of illegitimate child for purposes of obtaining support.

1981	Plyler v. Doe, 457 U.S. 202 (1982)	Brennan, William J.	Education; Immigration	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Tex. Educ. Code Ann. Section 21.031: A Texas statute that withholds state funds from local school districts for the education of any non-U.S. citizen children who were not legally admitted into United States and authorizes school boards to deny enrollment to such children.

1981	Zobel v. Williams, 457 U.S. 55 (1982)	Burger, Warren E.	Energy & Utilities; Workers' Compensation & Social Security	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Alaska Stat. Ann. Section 43.23.010: An Alaska law that apportions the state's mineral income fund to the state's adult residents based a citizen's length of residency.

1981	Globe Newspaper Co. v. Superior Court, 457 U.S. 596 (1982)	Brennan, William J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws ch. 278, Section 16A: A Massachusetts statute requiring that, under all circumstances, the press and public must be excluded from trials regarding certain sexual offenses that involved a victim under the age of 18.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1981	Edgar v. MITE Corp., 457 U.S. 624 (1982)	White, Byron R.	Business & Corporate Law; Securities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stat., ch. 121 1/2, para. 137.54.A (Illinois Business Take-Over Act): An Illinois law that requires a offeror who wishes to takeover a company to notify the Secretary of State and the target company of its intent to make a offer and the terms of the offer 20 days before the offer becomes effective.

1981	Loretto v. Teleprompter Manhattan CATV Corp., 458 U.S. 419 (1982)	Marshall, Thurgood	Real Property	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Takings Clause

Description of Unconstitutional Provision(s): N.Y. Exec. Law Section 828: A New York statute that requires landlords to allow for the installation of cable television wiring on their property and prohibits landlords from demanding payment from a tenant in excess of what a state commission determines to be reasonable.

1981	Washington v. Seattle School District No. 1, 458 U.S. 457 (1982)	Blackmun, Harry A.	Education; Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Initiative 350; Wash. Rev. Code Section 28A.26.010: A Washington statute, enacted by an initiative responding to the use of mandatory busing for purposes of racial integration, that generally prohibits school boards from requiring any student to attend a school other than the one geographically nearest or next to nearest to his home.

1981	Northern Pipeline Construction Co. v. Marathon Pipe Line Co., 458 U.S. 50 (1982)	Brennan, William J.	Civil Procedure; Bankruptcy	Federal

Constitutional Provision(s) Invoked: Article I, Section 1; Article III

Constitutional Clause(s) Invoked: Vesting Clause

Description of Unconstitutional Provision(s): 28 U.S.C. § 1471(b): Statute granting bankruptcy courts jurisdiction over all "civil proceedings arising under title 11 [regarding bankruptcy] or arising in or related to cases under title 11."

1981	Mississippi University for Women v. Hogan, 458 U.S. 718 (1982)	O'Connor, Sandra Day	Education; Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 1884 Miss. Gen. Laws, Ch. 30, Section 6: A policy by the Mississippi University for Women, a state-supported university, that limited its enrollment to women.

1981	Sporhase v. Nebraska ex rel. Douglas, 458 U.S. 941 (1982)	Stevens, John Paul	Environmental	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Neb. Rev. Stat. § 46-613.01 (1978): A Nebraska law that requires that any person that intends to withdraw ground water from any well located in the state and transport it for use in another state first obtain a permit from the Nebraska Department of Water Resources.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1980	Webb's Fabulous Pharmacies, Inc. v. Beckwith, 449 U.S. 155 (1980)	Blackmun, Harry A.	Civil Rights; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Takings Clause

Description of Unconstitutional Provision(s): Fla. Stat. § 28.33 (1977): Florida statute authorizing county to retain as its own the interest accruing on an interpleader fund that is deposited in the county court registry, when a fee is charged for the clerk's services in placing the fund into the registry.

1980	Stone v. Graham, 449 U.S. 39 (1980)	Per Curiam	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Ky. Rev. Stat. § 158.178: Kentucky statute requiring a copy of the Ten Commandments, purchased with private contributions, to be posted on the wall of each public classroom in the state.

1980	Kirchberg v. Feenstra, 450 U.S. 455 (1981)	Marshall, Thurgood	Real Property	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): La Civ. Code Ann. Art. 2404: Louisiana law permitting husbands, but not wives, to unilaterally dispose of jointly owned property without spousal consent.

1980	Kassel v. Consolidated Freightways Corp. of Delaware, 450 U.S. 662 (1981)	Powell, Lewis F.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Iowa Code § 321.457: Iowa statute barring (in conflict with neighboring states) 65-foot double-trailer trucks on state's highways.

1980	Maryland v. Louisiana, 451 U.S. 725 (1981)	White, Byron R.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I; Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Commerce Clause; Supremacy Clause

Description of Unconstitutional Provision(s): La. Rev. Stat. Ann. §§ 47:1301-47:1307 (1981): Louisiana statute imposing a tax on the first use of any natural gas brought in-state that has not been previously taxed.

1980	Schad v. Borough of Mount Ephraim, 452 U.S. 61 (1981)	White, Byron R.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Mount Ephraim Code 99-15B: Borough of Mount Ephraim, New Jersey ordinance prohibiting "live entertainment" within the Borough.

1980	Metromedia, Inc. v. City of San Diego, 453 U.S. 490 (1981)	White, Byron R.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): San Diego Ordinance No. 10795 (Mar. 14, 1972): San Diego, California ordinance prohibiting outdoor advertising displays except for certain onsite signs and 12 specific exceptions.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1979	Village of Schaumburg v. Citizens for a Better Environment, 444 U.S. 620 (1980)	White, Byron R.	Civil Rights; Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Schaumburg Village Code, ch. 22, art. III, § 22-20(g) (1975): Schaumburg, Illinois ordinance banning in-person solicitation of contributions by charitable organizations that do not use at least 75 percent of their receipts for "charitable purposes."

1979	Vance v. Universal Amusement Co., 445 U.S. 308 (1980)	Per Curiam	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Tex. Rev. Civ. Stat. Ann. art. 4666 (1952); Tex. Rev. Civ. Stat. Ann. art. 4667(a) (1978): Texas public nuisance statute authorizing state judges, based on a showing that a theater previously exhibited obscene films, to enjoin the future exhibition of films not yet found to be obscene.

1979	Payton v. New York, 445 U.S. 573 (1980)	Stevens, John Paul	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Search & Seizure Clause; Due Process Clause

Description of Unconstitutional Provision(s): N.Y. Crim. Proc. Law § 140.15(4) (McKinney 1971): New York statutes authorizing police officers to enter a private residence without a warrant to effectuate a felony arrest.

1979	Wengler v. Druggists Mutual Insurance Co., 446 U.S. 142 (1980)	White, Byron R.	Civil Rights; Workers' Compensation & Social Security	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Mo. Rev. Stat. § 287.240 (1979): Missouri workers' compensation law denying widowers death benefits unless they are either mentally or physically incapacitated or prove dependence on wife's earnings, but granting widows death benefits regardless of dependency.

1979	Lewis v. Bt Investment Managers, Inc., 447 U.S. 27 (1980)	Blackmun, Harry A.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Fla. Stat. § 659.141(1): Florida statute barring out-of-state trust companies, banks, and bank holding companies from controlling or owning a business within the state that sells investment advisory services.

1979	Carey v. Brown, 447 U.S. 455 (1980)	Brennan, William J.	Civil Rights; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stat. ch. 38, §§ 21.1-2 (1977): Illinois statute prohibiting the picketing of residences or dwellings, but exempting the peaceful picketing of places of employment in which there is a labor dispute.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1979	Central Hudson Gas & Electric Corp. v. Public Service Commission of New York, 447 U.S. 557 (1980)	Powell, Lewis F.	Civil Rights; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): New York Public Service Commission regulation banning an electric utility from advertising to promote electricity use.

1979	Beck v. Alabama, 447 U.S. 625 (1980)	Stevens, John Paul	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ala. Code § 13-11-2(a) (1975): Alabama death penalty statute forbidding trial judges from giving a jury the option of convicting a defendant of a lesser included offense.

1978	Duren v. Missouri, 439 U.S. 357 (1979)	White, Byron R.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Fair Cross Section Requirement; Due Process Clause

Description of Unconstitutional Provision(s): Missouri Const., Art. 1, § 22(b); Mo. Rev. Stat. § 494.031(2) (Supp. 1978): Missouri statute, implementing a state constitutional provision, providing for the excusal of any women requesting exemption from jury service.

1978	Colautti v. Franklin, 439 U.S. 379 (1979)	Blackmun, Harry A.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Pennsylvania Abortion Control Act, § 5(a), Pa. Stat. Ann., Tit. 35, § 6605(a) (Purdon 1977): Pennsylvania abortion law requiring physicians to make a determination that a fetus is not viable, and if the fetus is viable or if there is sufficient reason to believe the fetus may be viable, to exercise the same care to preserve the fetus' life and health that would be required in the case of a fetus intended to be born alive.

1978	Orr v. Orr, 440 U.S. 268 (1979)	Brennan, William J.	Civil Rights; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ala. Code §§ 30-2-51, 30-2-52, 30-2-53 (1975): Alabama statute imposing alimony obligations on husbands but not on wives.

1978	Burch v. Louisiana, 441 U.S. 130 (1979)	Rehnquist, William H.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury; Due Process Clause

Description of Unconstitutional Provision(s): La. Const. art. I, § 17; La. Code Crim. Proc. Ann. art. 779(A) (1979): Louisiana statute, implementing a state constitutional provision, permitting criminal conviction for a non-petty offense by five out of six jurors.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1978	Hughes v. Oklahoma, 441 U.S. 322 (1979)	Brennan, William J.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Okla. Stat. tit. 29, § 4-115(B) (1978): Oklahoma statute prohibiting the transport or shipment for sale outside the state of natural minnows seined or procured from waters within the state.

1978	Caban v. Mohammed, 441 U.S. 380 (1979)	Powell, Lewis F.	Civil Rights; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.Y. Dom. Rel. Law § 111(c) (McKinney 1977): New York law permitting an unwed mother but not an unwed father to block the adoption of their child by withholding consent.

1978	Torres v. Puerto Rico, 442 U.S. 465 (1979)	Burger, Warren E.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment

Constitutional Clause(s) Invoked: Unreasonable Searches & Seizure Clause

Description of Unconstitutional Provision(s): P.R. Laws Ann. Tit. 25, § 1051 (1977): Puerto Rico law authorizing the search of any person's luggage arriving from the United States.

1978	Bellotti v. Baird, 443 U.S. 622 (1979)	Powell, Lewis F.	Civil Rights; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws Ann. ch. 112, § 12S (1979): Massachusetts law requiring parental consent for an abortion for an unmarried woman under age 18, and providing for a court order permitting abortion for good cause if parental consent is refused, which can nonetheless be withheld even if the court finds the minor to be mature and fully competent.

1978	Califano v. Westcott, 443 U.S. 76 (1979)	Blackmun, Harry A.	Pensions & Benefits; Civil Rights	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 42 U.S.C. § 607: Provision of Social Security Act providing benefits to families if unemployment of father deprives dependent children of parental support, but not providing benefits based on unemployment of mother.

1978	Smith v. Daily Mail Publishing Co., 443 U.S. 97 (1979)	Burger, Warren E.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): W. Va. Code § 49-7-3 (1976): West Virginia statute making it a crime for a newspaper to publish, without written approval of the juvenile court, the name of any youth charged as a juvenile offender.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1977	New York v. Cathedral Academy, 434 U.S. 125 (1977)	STEWART, POTTER	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause; Due Process Clause

Description of Unconstitutional Provision(s): 1972 N.Y. Laws ch. 996: New York law authorizing reimbursement to sectarian schools for state-mandated testing and record-keeping services.

1977	Zablocki v. Redhail, 434 U.S. 374 (1978)	MARSHALL, THURGOOD	Civil Rights; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Wis. Stat. §§ 245.10(1), (4), (5) (1973): Wisconsin statute requiring court permission to marry for any resident that has minor children not in his custody for which he is under a court order to support, unless a court determines that the support obligation has been met and that the children are not and are not likely to become public charges.

1977	Raymond Motor Transportation, Inc. v. Rice, 434 U.S. 429 (1978)	POWELL, LEWIS F.	Transportation; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Wis. Stat. §§ 348.07(1) (1975): Wisconsin statutory and regulatory scheme generally prohibiting trucks longer than 55 feet to be operated on highways.

1977	Ballew v. Georgia, 435 U.S. 223 (1978)	BLACKMUN, HARRY A.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): 1890-1891 Ga. Laws, No. 278, pp. 937-38: Georgia statute providing that certain trials in criminal cases be conducted before five-person juries.

1977	McDaniel v. Paty, 435 U.S. 618 (1978)	BURGER, WARREN E.	Civil Rights; Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause; Due Process Clause

Description of Unconstitutional Provision(s): 1976 Tenn. Pub. Acts ch. 848, § 4 (incorporating Tenn. Const. Art. VIII, § 1: Tennessee statute barring ministers and priests from serving as delegates to state constitutional conventions (applying a state constitutional provision disqualifying ministers and priests from serving as members of the legislature).

1977	First National Bank of Boston v. Bellotti, 435 U.S. 765 (1978)	POWELL, LEWIS F.	Civil Rights; Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws Ann. ch. 55, § 8 (1977): Massachusetts criminal statute banning certain business corporations from making expenditures for the purpose of influencing referendum votes on any questions not affecting the property, business, or assets of the corporation.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1977	Landmark Communications, Inc. v. Virginia, 435 U.S. 829 (1978)	Burger, Warren E.	Advertising, Publishing, & Communications	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Virginia Code §§ 2.1–37.13 (1973): Virginia statute making it a misdemeanor to divulge information regarding proceedings before a state judicial review commission.

1977	Marshall v. Barlow's, Inc., 436 U.S. 307 (1978)	White, Byron R.	Labor & Employment; Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fourth Amendment

Constitutional Clause(s) Invoked: Search & Seizure Clause

Description of Unconstitutional Provision(s): 29 U.S.C. § 657(a): Provision of Occupational Safety and Health Act of 1970 authorizing warrantless inspections of workplaces.

1977	Crist v. Bretz, 437 U.S. 28 (1978)	Stewart, Potter	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Double Jeopardy Clause

Description of Unconstitutional Provision(s): Mont. Code Ann. § 95-1711(3)(d) (1947): Montana law providing that jeopardy does not attach until the swearing-in of the first witness.

1977	Hicklin v. Orbeck, 437 U.S. 518 (1978)	Brennan, William J.	Civil Rights; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): Alaska Hire Act, Alaska Stat. Ann. § 38.40.030(a) (1977): Alaska statute mandating that state residents be preferred to nonresidents in employment on oil and gas pipeline work.

1977	City of Philadelphia v. New Jersey, 437 U.S. 617 (1978)	Stewart, Potter	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.J. Stat. Ann. § 13:1I-10 (1978): New Jersey law prohibiting importation of most solid or liquid waste that was collected or originated out of state.

1977	Lockett v. Ohio, 438 U.S. 586 (1978)	Burger, Warren E.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause; Due Process Clause

Description of Unconstitutional Provision(s): Ohio Rev. Code Ann. § 2929.04(B) (1975): Ohio statute requiring imposition of death penalty upon conviction of first-degree murder unless one of three mitigating factors established.

1976	Craig v. Boren, 429 U.S. 190 (1976)	Brennan, William J.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Okla. Stat. Tit., 37, §§ 241, 245 (1958 and Supp. 1976): Oklahoma law prohibiting the sale of 3.2% alcoholic beer to males under 21 and to females under 18.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1976	Connally v. Georgia, 429 U.S. 245 (1977)	Per Curiam	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Search & Seizure Clause; Due Process Clause

Description of Unconstitutional Provision(s): Ga. Code Ann. § 24-1601 (1971): Georgia law providing that a justice of the peace receive a fee for issuance of a search warrant, but no fee for a denial, where the justice received no salary.

1976	Boston Stock Exchange v. State Tax Commission, 429 U.S. 318 (1977)	White, Byron R.	Securities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.Y. Tax Law § 270-a (McKinney 1976): New York law imposing a transfer tax on securities transactions structured so that transactions involving an out-of-state sale were taxed more heavily than most transactions involving a sale within the state.

1976	Califano v. Goldfarb, 430 U.S. 199 (1977)	Brennan, William J.	Pensions & Benefits	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 42 U.S.C. § 402(f)(1)(D): Provision of Social Security Act awarding survivor's benefits based on earnings of a deceased wife to widower only if he was receiving at least half of his support from her at the time of her death, but awarding benefits to widow regardless of dependency.

1976	Wooley v. Maynard, 430 U.S. 705 (1977)	Burger, Warren E.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): N.H. Rev. Stat. Ann. §§ 262:27-c, 263:1 (1975): New Hampshire law requiring that state license plates bear the motto "Live Free or Die" and making it a misdemeanor to obscure the motto.

1976	Trimble v. Gordon, 430 U.S. 762 (1977)	Powell, Lewis F.	Civil Rights; Real Property	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Illinois Probate Act, Ill. Rev. Stat. ch. 3, § 12 (1973): Illinois law requiring that illegitimate children could inherit by intestate succession only from their mothers while legitimate children could take from both parents.

1976	United States Trust Co. of New York v. New Jersey, 431 U.S. 1 (1977)	Blackmun, Harry A.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): N.J. Laws, ch. 25 (1974): New Jersey law (together with a parallel New York statute) repealing a statutory covenant made by those states concerning the Port Authority of New York and New Jersey.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1976	Abood v. Detroit Board of Education, 431 U.S. 209 (1977)	Stewart, Potter	Civil Rights; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Mich. Comp. Laws § 432.210(1)(c): Michigan public sector collective bargining statute permitting a union and local government employer to enter an arrangement where every employee must contribute to the union as a condition of employment and the union could spend those funds for political purposes.

1976	Moore v. City of East Cleveland, 431 U.S. 494 (1977)	Powell, Lewis F.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Takings Clause

Description of Unconstitutional Provision(s): East Cleveland, Ohio, Housing Code § 1341.08: East Cleveland zoning ordinance limiting housing occupancy to members of a single family and restrictively defining family to a few categories of individuals.

1976	Roberts v. Louisiana, 431 U.S. 633 (1977)	Per Curiam	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause; Due Process Clause

Description of Unconstitutional Provision(s): La. Rev. Stat. Ann. § 14:30(2) (1974): Louisiana statute imposing a mandatory death sentence for convictions of first-degree murder.

1976	Carey v. Population Services International, 431 U.S. 678 (1977)	Brennan, William J.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): N.Y. Educ. Law § 6811(8) (McKinney 1972): New York law making it a crime (1) for any person to sell or distribute contraceptives to minors under 16; (2) for anyone other than a licensed pharmacist to distribute contraceptives to persons 16 or over; and (3) for anyone to advertise or display contraceptives.

1976	Lefkowitz v. Cunningham, 431 U.S. 801 (1977)	Burger, Warren E.	Civil Rights; Elections	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Self-Incrimination Clause; Due Process Clause

Description of Unconstitutional Provision(s): N.Y. Elec. Law § 22 (McKinney 1964): New York statute automatically removing from office and disqualifying from any office for the next five years any political party officer who refuses to testify or to waive immunity against subsequent criminal prosecution when subpoenaed before an authorized tribunal.

1976	Linmark Associates, Inc. v. Township of Willingboro, 431 U.S. 85 (1977)	Marshall, Thurgood	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Willingboro, N.J., Ordinance 5-1974: Wilingboro, New Jersey ordinance prohibiting "For Sale" and "Sold" signs in order to prevent what the township perceived as flight of white homeowners.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1976	Nyquist v. Mauclet, 432 U.S. 1 (1977)	Blackmun, Harry A.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.Y. Educ. Law § 661(3) (McKinney 1976): New York statute barring resident aliens who have not either applied for citizenship or affirmed the intent to apply from access to state financial assistance for higher education.

1976	Hunt v. Washington State Apple Advertising Commission, 432 U.S. 333 (1977)	Burger, Warren E.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.C. Gen. Stat. § 106-189.1 (1973): North Carolina statute requiring that all apples sold or shipped into the state in closed containers be identified by no grade on containers other than an applicable federal grade or a designation that apples are ungraded.

1976	Shaffer v. Heitner, 433 U.S. 186 (1977)	Marshall, Thurgood	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Delaware statute authorizing a court of the state to take jurisdiction of a lawsuit by sequestering property of a defendant that happens to be located in state.

1976	Wolman v. Walter, 433 U.S. 229 (1977)	Blackmun, Harry A.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause; Due Process Clause

Description of Unconstitutional Provision(s): Ohio Rev. Code Ann. § 3317.06(B), (C), (L) (Supp. 1976): Ohio statute authorizing funding for the use of nonpublic schoolchildren for the purpose of (1) purchasing and loaning to pupils or their parents instructional material and equipment and (2) providing transportation and services for field trips.

1976	Coker v. Georgia, 433 U.S. 584 (1977)	White, Byron R.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause; Due Process Clause

Description of Unconstitutional Provision(s): Ga. Code Ann. § 26-2001 (1972): Georgia statute authorizing the death penalty as punishment for rape.

1975	Turner v. Department of Employment Security of Utah, 423 U.S. 44 (1975)	Per Curiam	Labor & Employment; Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Utah Code Ann. § 35-4-5(h) (1) (1974): Utah law making pregnant women ineligible for unemployment compensation from twelve weeks before the expected date of childbirth until six weeks after childbirth.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1975	Buckley v. Valeo, 424 U.S. 1 (1976)	Per Curiam	Elections	Federal

Constitutional Provision(s) Invoked: Article II, Section 2, Clause 2; First Amendment

Constitutional Clause(s) Invoked: Appointments Clause; Free Speech Clause

Description of Unconstitutional Provision(s): 18 U.S.C. §§ 608(a), (c), and (e)(1): Provision of election statute limiting financial contributions to political candidates. 2 U.S.C. § 437(c): Statutes creating Federal Election Commission, vesting in it enforcement powers, and allowing legislative branch alone to appoint six members of Commission.

1975	Great Atlantic & Pacific Tea Co. v. Cottrell, 424 U.S. 366 (1976)	Brennan, William J.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Mississippi regulation prohibiting the sale of milk and milk products from another state unless the other State accepts milk and milk products from Mississippi.

1975	Mckinney v. Alabama, 424 U.S. 669 (1976)	Rehnquist, William H.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Ala. Code, Tit. 14, § 374(4) (Supp. 1973); Ala. Code, Tit. 14, c. 64A: Alabama law authorizing officials to bring charges for selling material known to be obscene but precluding defendants from litigating the obscenity *vel non* of material found to be obscene in a separate equity proceeding.

1975	Hynes v. Mayor of Oradell, 425 U.S. 610 (1976)	Burger, Warren E.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Borough of Oradell, New Jersey Ordinance No. 598A: Ordinance requiring that advance written notice be given to local police by any person desiring to canvass, solicit, or call from house to house for a recognized charitable cause or political campaign or cause.

1975	Virginia State Board of Pharmacy v. Virginia Citizens Consumer Council, Inc., 425 U.S. 748 (1976)	Blackmun, Harry A.	Civil Rights; Healthcare	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Va. Code Ann. §§ 54-524.35: Virginia statute declaring it unprofessional conduct for a licensed pharmacist to advertise the price of prescription drugs.

1975	Examining Board of Engineers, Architects & Surveyors v. Flores De Otero, 426 U.S. 572 (1976)	Blackmun, Harry A.	Civil Rights; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): P. R. Laws Ann., Tit. 20, 681-710 (Supp. 1973): Puerto Rico statute barring non-United States citizens from practicing as civil engineers in a private capacity.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1975	National League of Cities v. Usery, 426 U.S. 833 (1976)	Rehnquist, William H.	Labor & Employment	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3 & Clause 18

Constitutional Clause(s) Invoked: Commerce Clause; Necessary & Proper Clause

Description of Unconstitutional Provision(s): 29 U.S.C. §§ 203(s)(5), (x) (1970 ed., Supp. IV): Statutory provisions extending minimum wage and maximum hour standards to employees of state and local governments.

1975	Hampton v. Mow Sun Wong, 426 U.S. 88 (1976)	Stevens, John Paul	Labor & Employment; Civil Rights	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 5 C.F.R. § 338.101(a) (1976): Regulation of U.S. Civil Service Commission excluding from federal employment all persons except American citizens and natives of American Samoa.

1975	Woodson v. North Carolina, 428 U.S. 280 (1976)	Stewart, Potter; Powell, Lewis F.; Stevens, John Paul	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): N.C. Gen. Stat. §§ 14-17 (Cum. Supp. 1975): North Carolina statute making the death penalty mandatory upon conviction of first-degree murder.

1975	Roberts v. Louisiana, 428 U.S. 325 (1976)	Stewart, Potter; Powell, Lewis F.; Stevens, John Paul	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): La. Rev. Stat. Ann. §§ 14:30, 14:42, 14:44, 14:113 (1974): Louisiana statute making the death penalty mandatory upon conviction of first-degree murder.

1975	Planned Parenthood of Central Missouri v. Danforth, 428 U.S. 52 (1976)	Blackmun, Harry A.	Civil Rights; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): House Committee Substitute for House Bill No. 1211: Missouri law requiring spousal and parental consent for minors in certain circumstances before an abortion could be performed; proscribing the saline amniocentesis abortion procedure after the first 12 weeks of pregnancy; and requiring physicians to exercise professional care to preserve a fetus' life and health subject to criminal and civil penalties.

1974	Taylor v. Louisiana, 419 U.S. 522 (1975)	White, Byron R.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): La. Const., Art. VII, § 41, and La. Code Crim. Proc., Art. 402: Constitutional and statutory provisions providing that a woman should not be selected for jury service unless she had previously filed a written declaration of her desire to be subject to jury service.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1974	Goss v. Lopez, 419 U.S. 565 (1975)	White, Byron R.	Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ohio Rev. Code Ann. § 3313.66 (1972): Ohio statute authorizing suspension without a hearing of public school students for up to 10 days for misconduct.

1974	North Georgia Finishing, Inc. v. Di-Chem, Inc., 419 U.S. 601 (1975)	White, Byron R.	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ga. Code Ann. §§ 46-101 through 46-104, 46-401: Georgia statutes permitting a writ of garnishment to be issued in pending suits on the conclusory affidavit of plaintiff, and prescribing the filing of a bond as the only method of dissolving the writ, which deprived defendant of the use of the property pending the litigation, and making no provision for an early hearing.

1974	Weinberger v. Wiesenfeld, 420 U.S. 636 (1975)	Brennan, William J.	Pensions & Benefits; Civil Rights	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 42 U.S.C. § 402(g): Provision of Social Security Act granting survivors' benefits based on the earnings of a deceased husband and father to his widow and to the couple's minor children in her care, but granting benefits based on the earnings of a deceased wife and mother only to the minor children and not to the widower.

1974	Austin v. New Hampshire, 420 U.S. 656 (1975)	Marshall, Thurgood	Transportation; Taxes	State & Local

Constitutional Provision(s) Invoked: Article IV

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): N.H. Rev. Stat. Ann. § 77-B:2 II (1971): The New Hampshire Commuters Income Tax, which imposed a tax on nonresidents' New Hampshire-derived income.

1974	Hill v. Stone, 421 U.S. 289 (1975)	Marshall, Thurgood	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Tex. Const. Art. 6, § 3; Tex. Elec. Code §§ 5.03, 5.04, 5.07 (1967 and Supp. 1974-1975); Charter of the City of Fort Worth, c. 25, § 19: Texas constitution and statutes and city charter limiting the right to vote in city bond issue elections to persons who have listed property for taxation in the election district in the year of the election.

1974	Meek v. Pittenger, 421 U.S. 349 (1975)	Stewart, Potter	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Pa. Stat. Ann., Tit. 24, § 9-972: Pennsylvania laws authorizing direct provision to nonpublic school children of "auxiliary services", i.e., counseling, testing, speech and hearing therapy, etc., and loans to the nonpublic schools for instructional material and equipment.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1974	United States v. Tax Commission of Mississippi, 421 U.S. 599 (1975)	Brennan, William J.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): Regulation 25 of the Mississippi State Tax Commission, requiring out-of-state liquor distillers and suppliers to collect from military installations within Mississippi, and remit to the Commission, a liquor tax.

1974	Stanton v. Stanton, 421 U.S. 7 (1975)	Blackmun, Harry A.	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Utah Code Ann. § 15-2-1 (1953): Utah's age of majority statute applied in the context of child support requirements obligating parental support of a son to age 21 but a daughter only to age 18.

1974	Erznoznik v. City of Jacksonville, 422 U.S. 205 (1975)	Powell, Lewis F.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Jacksonville, Fla., Ordinance 330.313 (1972): Jacksonville, Florida ordinance making it a public nuisance and a punishable offense for a drive-in movie theater to exhibit films containing nudity, when the screen is visible from a public street or place.

1974	Herring v. New York, 422 U.S. 853 (1975)	Stewart, Potter	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Right to Counsel

Description of Unconstitutional Provision(s): N.Y. Crim. Proc. Law § 320.20 (3)(c) (1971): New York statute granting the trial judge in a nonjury criminal case the power to deny counsel the opportunity to make a summation of the evidence before the rendition of judgment.

1973	Plummer v. City of Columbus, 414 U.S. 2 (1973)	Per Curiam	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Columbus City Code § 2327.03: City ordinance of Columbus, Ohio prohibiting a person from abusing through the use of "menacing, insulting, slanderous, or profane language."

1973	Communist Party of Indiana v. Whitcomb, 414 U.S. 441 (1974)	Brennan, William J.	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Free Press Clause

Description of Unconstitutional Provision(s): Ind. Ann. Stat. § 29-3812 (1969): Indiana statute prescribing a loyalty oath as a qualification for access to the ballot.

1973	Kusper v. Pontikes, 414 U.S. 51 (1973)	Stewart, Potter	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): § 7-43 (d) of the Illinois Election Code: Illinois statute prohibiting anyone who has voted in one party's primary election from voting in another party's primary election for at least 23 months.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1973	O'Brien v. Skinner, 414 U.S. 524 (1974)	Burger, Warren E.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.Y. Election Law § 117 (1)(b) (1964): New York election law that permits persons incarcerated outside their county of residence while awaiting trial to register and vote absentee, but denying absentee privilege to persons incarcerated in their county of residence.

1973	Cleveland Board of Education v. LaFleur, 414 U.S. 632 (1974)	Stewart, Potter	Civil Rights; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Rule of Board of Education of Cleveland, Ohio requiring "every pregnant school teacher to take maternity leave without pay, beginning five months before the expected birth of her child" and to not "return to work until the beginning of the next regular school semester which follows the date when her child attains the age of three months"; School Board of Chesterfield County, Virginia regulation requiring a "pregnant teacher leave work at least four months prior to the expected birth of her child."

1973	Lefkowitz v. Turley, 414 U.S. 70 (1973)	White, Byron R.	Criminal Law & Procedure; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Self-Incrimination Clause

Description of Unconstitutional Provision(s): New York General Municipal Law §§ 103-a and 103-b and New York Public Authorities Law §§ 2601 and 2602: New York statute providing for cancellation of public contracts and disqualification of contractors from doing business with the state for five years for refusal to waive immunity from prosecution and testify concerning state contracts.

1973	Lewis v. City of New Orleans, 415 U.S. 130 (1974)	Brennan, William J.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): New Orleans Ordinance 828 M. C. S. § 49-7: New Orleans ordinance interpreted by state courts to punish the use of opprobrious words to a police officer without limitation of offense to uttering of fighting words.

1973	Memorial Hospital v. Maricopa County, 415 U.S. 250 (1974)	Marshall, Thurgood	Civil Rights; Healthcare	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ariz. Rev. Stat. Ann. §§ 11-291, 11-297A (Supp. 1973-1974): Arizona statute imposing a one-year county residency requirement for indigents' eligibility for nonemergency medical care at state expense.

1973	Davis v. Alaska, 415 U.S. 308 (1974)	Burger, Warren E.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Confrontation Clause

Description of Unconstitutional Provision(s): Alaska Rule of Children's Procedure 23 and Alaska Stat. § 47.10.080 (g) (1971): Alaska statute protecting the anonymity of juvenile offenders, as applied to prohibit cross-examination of a prosecution witness for possible bias.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1973	Smith v. Goguen, 415 U.S. 566 (1974)	Powell, Lewis F.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws Ann., c. 264, § 5: Massachusetts statute punishing anyone who treats the flag "contemptuously" without anchoring the proscription to specified conduct and modes.

1973	Lubin v. Panish, 415 U.S. 709 (1974)	Burger, Warren E.	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Cal. Elections Code § 6551: California statute imposing a filing fee as the only means to get on the ballot.

1973	Procunier v. Martinez, 416 U.S. 396 (1974)	Powell, Lewis F.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Rule 2401 & 2402 of the California Department of Corrections; Administrative Rule MV-IV-02: Rules relating to the censorship of prisoner mail and a ban against attorney-client interviews conducted by law students or legal paraprofessionals.

1973	Jimenez v. Weinberger, 417 U.S. 628 (1974)	Burger, Warren E.	Pensions & Benefits	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 42 U.S.C. § 416(h)(3)(B): Provision of Social Security Act qualifying certain illegitimate children for disability insurance benefits by presuming dependence but disqualifying other illegitimate children, regardless of dependency, if the disabled wage earner parent did not contribute to the child's support before the onset of the disability or if the child did not live with the parent before the onset of disability.

1973	Miami Herald Publishing Co. v. Tornillo, 418 U.S. 241 (1974)	Burger, Warren E.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Press Clause

Description of Unconstitutional Provision(s): Fla. Stat. Ann. § 104.38 (1973): Florida statute compelling newspapers to publish free replies by political candidates criticized by newspapers.

1973	Wolff v. McDonnell, 418 U.S. 539 (1974)	White, Byron R.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Certain Nebraska prison disciplinary procedures.

1972	Ward v. Village of Monroeville, 409 U.S. 57 (1972)	Brennan, William J.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ohio Rev. Code Ann. §§ 1905.01 *et seq.* (1968): Ohio statute authorizing the mayor to sit as judge at trials for traffic offenses.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1972	Evco v. Jones, 409 U.S. 91 (1972)	Per Curiam	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.M. Stat. Ann. §§ 72-16A-1–72-16A-19 (1953 Compilation & Supp. 1971): New Mexico tax that a state appeals court characterized as an assessment on a business's proceeds from out-of-state sales of tangible personal property.

1972	Roe v. Wade, 410 U.S. 113 (1973)	Blackmun, Harry A.	Family Law; Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Vernon's Ann. Tex. P.C. arts. 1191–94, 1196: Texas statute making it a crime to procure or to attempt to procure an abortion except on medical advice to save the life of the mother.

1972	Doe v. Bolton, 410 U.S. 179 (1973)	Blackmun, Harry A.	Civil Rights; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Portions of Ga. Code §§ 26-1201–26-1203: Portions of Georgia statutes criminalizing abortions but permitting them under prescribed circumstances.

1972	Papish v. Board of Curators of the University of Missouri, 410 U.S. 667 (1973)	Per Curiam	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): A bylaw of a university board of curators that prohibited distribution of materials containing "indecent speech."

1972	New Jersey Welfare Rights Organization v. Cahill, 411 U.S. 619 (1973)	Per Curiam	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.J. Stat. Ann. §§ 44:13-1 *et seq.*: New Jersey statute denying assistance to families in which parents are not ceremonially married, among other qualifications.

1972	Frontiero v. Richardson, 411 U.S. 677 (1973)	Brennan, William J.	Civil Rights; Family Law	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 37 U.S.C. §§ 401, 403; 10 U.S.C. §§ 1072, 1076: Statutes providing that spouses of female members of the Armed Forces must be proved dependent to qualify for certain benefits, whereas spouses of male members are statutorily deemed dependent and automatically qualified for allowances.

1972	Vlandis v. Kline, 412 U.S. 441 (1973)	Stewart, Potter	Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Conn. Gen. Stat. Rev. s10—329(b) (Supp. 1969), as amended by Public Act No. 5, § 126 (June Sess. 1971): Connecticut statute creating an irrebuttable presumption that a student from out-of-state at the time he applied to a state college remained a nonresident for tuition purposes for his entire student career.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1972	Wardius v. Oregon, 412 U.S. 470 (1973)	MARSHALL, THURGOOD	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ore. Rev. Stat. § 135.875: Oregon statute requiring a defendant to give pretrial notice of alibi defense and names of supporting witnesses but denying the defendant any reciprocal right of discovery of rebuttal evidence.

1972	White v. Regester, 412 U.S. 755 (1973)	WHITE, BYRON R.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Provision of reapportionment plan for the Texas House of Representatives adopted in 1970 by the State Legislative Redistricting Board creating multimember districts in two Texas counties instead of single-member districts.

1972	White v. Weiser, 412 U.S. 783 (1973)	WHITE, BYRON R.	Elections	State & Local

Constitutional Provision(s) Invoked: Article I, Section 2

Constitutional Clause(s) Invoked: Composition & Election of Members

Description of Unconstitutional Provision(s): S.B. 1, Tex. Acts, 62d Leg., 1st Called Sess., c. 12, p. 38: Texas congressional districting law.

1972	Levitt v. Committee for Public Education & Religious Liberty, 413 U.S. 472 (1973)	BURGER, WARREN E.	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): New York Laws 1970, c. 138, § 2: New York statute to reimburse nonpublic schools for administrative expenses incurred in carrying out state-mandated examination and record-keeping requirements, but requiring no accounting and separating of religious and nonreligious uses.

1972	United States Department of Agriculture v. Murry, 413 U.S. 508 (1973)	DOUGLAS, WILLIAM O.	Pensions & Benefits	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 7 U.S.C. § 2014(b): Statute creating conclusive presumption of food stamp ineligibility for households containing persons 18 years or older who were claimed as "dependents" for income tax purposes by a taxpayer who was ineligible for food stamps.

1972	United States Department of Agriculture v. Moreno, 413 U.S. 528 (1973)	BRENNAN, WILLIAM J.	Pensions & Benefits	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 7 U.S.C. § 2012(e): Statute excluding household from receiving food stamps if household contains an individual unrelated by birth, marriage, or adoption to any other member of the household.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1972	Sugarman v. Dougall, 413 U.S. 634 (1973)	Blackmun, Harry A.	Civil Rights; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.Y. Civ. Serv. Law § 53 (Supp. 1972-1973): New York statute providing that only United States citizens may hold permanent positions in competitive civil service.

1972	In re Griffiths, 413 U.S. 717 (1973)	Powell, Lewis F.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Rule 8(1) of the Connecticut Practice Book (1963): Connecticut legal bar rule restricting bar admission to United States citizens. State Bar Requirements, see also 413 U.S. 717; 470 U.S. 274; 486 U.S. 466; 487 U.S. 59; 489 U.S. 546.

1972	Committee for Public Education & Religious Liberty v. Nyquist, 413 U.S. 756 (1973)	Powell, Lewis F.	Education; Taxes	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): N.Y. Laws 1972, c. 414, §§ 1–5: New York education and tax laws providing grants to nonpublic schools for maintenance and repairs of facilities and providing tuition reimbursements and income tax benefits to parents of children attending nonpublic schools.

1972	Sloan v. Lemon, 413 U.S. 825 (1973)	Powell, Lewis F.	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Pa. Laws 1971, Act 92, Pa. Stat. Ann., Tit. 24, §§ 5701–09 (Supp. 1973 & 1974): Pennsylvania statute providing for reimbursement of parents for portion of tuition expenses in sending children to nonpublic schools.

1971	Groppi v. Leslie, 404 U.S. 496 (1972)	Burger, Warren E.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Wis. Assembly Res. Of Oct. 1, 1969, Special Sess.: The Assembly of the Wisconsin Legislature passed a resolution citing petitioner for contempt and directing his confinement in the Dane County jail for a period of six months or for the duration of the 1969 Regular Session of the legislature, whichever was shorter.

1971	Reed v. Reed, 404 U.S. 71 (1971)	Burger, Warren E.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): I.C. § 15-314: Idaho statute giving preference to males over females for appointment as administrator of a decedent's estate.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1971	Bullock v. Carter, 405 U.S. 134 (1972)	BURGER, WARREN E.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Arts. 13.07a, 13.08, 13.08a, 13.15, and 13.16 of the Texas Election Code Ann., V.A.T.S. (Supp. 1970—71): Texas' filing fee system, which imposes on candidates the costs of the primary election operation and affords no alternative opportunity for candidates unable to pay the fees to obtain access to the ballot.

1971	Papachristou v. City of Jacksonville, 405 U.S. 156 (1972)	DOUGLAS, WILLIAM O.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Jacksonville Ordinance Code § 26-57: Jacksonville, Florida vagrancy ordinance covering various generalized offenses.

1971	Dunn v. Blumstein, 405 U.S. 330 (1972)	MARSHALL, THURGOOD	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Tenn. Const. art. IV, § 1; Tenn. Code Ann. § 2-201 (Supp. 1970): Tennessee's one-year residency requirement as a condition of registration to vote.

1971	Eisenstadt v. Baird, 405 U.S. 438 (1972)	BRENNAN, WILLIAM J.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws Ann., ch. 272, § 21: Massachusetts statute making it a crime to dispense any contraceptive article to an unmarried person, except to prevent disease.

1971	Gooding v. Wilson, 405 U.S. 518 (1972)	BRENNAN, WILLIAM J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ga. Code Ann. § 26-6303: Georgia statute making it a crime to use language "of or to another" tending to cause a breach of the peace, which was not limited to "fighting words."

1971	Lindsey v. Normet, 405 U.S. 56 (1972)	WHITE, BYRON R.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ore. Rev. Stat. § 105.160: Oregon statute requiring tenants who wish to appeal housing eviction order to file bond in twice the amount of rent expected to accrue during pendency of appeal.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1971	Stanley v. Illinois, 405 U.S. 645 (1972)	White, Byron R.	Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stat., c. 37 §§ 701-14 (definition), 702-1, 702-4, 702-5, 705-8: Illinois statute that presumes without a hearing the unfitness of the father of illegitimate children to have custody upon death or disqualification of the mother. The case turned on the interplay between the definition of "parent" and the relevant procedures.

1971	Weber v. AETNA Casualty & Surety Co., 406 U.S. 164 (1972)	Powell, Lewis F.	Workers' Compensation & Social Security; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Louisiana Civil Code Articles 203, 204, and 205: Louisiana workmen's compensation statute, which relegates unacknowledged illegitimate children to a status inferior to legitimate and acknowledged illegitimate children.

1971	Brooks v. Tennessee, 406 U.S. 605 (1972)	Brennan, William J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Self-Incrimination Clause

Description of Unconstitutional Provision(s): Tenn. Code Ann. § 40-2403 (1955): Tennessee statute that requires a criminal defendant who chooses to testify to do so before any other witness for him.

1971	Jackson v. Indiana, 406 U.S. 715 (1972)	Blackmun, Harry A.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ind. Ann. Stat. § 9-1706a (Supp. 1971) (recodified at Ind. Code 35-5-3-2 (1971): Indiana's pretrial commitment procedure for allegedly incompetent defendants, which provides more lenient standards for commitment than the procedure for those persons not charged with any offense, and more stringent standards for release.

1971	James v. Strange, 407 U.S. 128 (1972)	Powell, Lewis F.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Kan. Stat. Ann. § 22-4513: Kansas statute enabling the state to recover in subsequent civil proceedings legal defense fees for indigent defendants.

1971	United States v. Scotland Neck City Board of Education, 407 U.S. 484 (1972)	Stewart, Potter	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 1969 N.C. Sess. Laws ch. 31: North Carolina statute concerning the creation of a new school district that the district court had found would impede disestablishment of desegregation efforts.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1971	Fuentes v. Shevin, 407 U.S. 67 (1972)	Stewart, Potter	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): F.S.A. §§ 78.01, 78.07, 78.08, 78.10, 78.13; 12 P.S. Pa. § 1821; Pa. R.C.P. Nos. 1073(a, b), 1076, 1077,12 P.S. Appendix: Replevin statutes of Florida and Pennsylvania that permit installment sellers or other persons alleging entitlement to property to cause the seizure of the property without any notice or opportunity to be heard on the issues.

1971	Grayned v. City of Rockford, 408 U.S. 104 (1972)	Marshall, Thurgood	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Code of Ordinances, c. 28, s 18.1(i): Rockford ordinance referred to as an "antipicketing" ordinance.

1971	Furman v. Georgia, 408 U.S. 238 (1972)	Per Curiam	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Code Ga. §§ 26-1005, 26-1302; Vernon's Ann. Tex. P.C. art. 1189: Georgia and Texas statutes providing for the imposition of the death penalty.

1971	Moore v. Illinois, 408 U.S. 786 (1972)	Blackmun, Harry A.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Illinois statute providing for imposition of the death penalty.

1971	Police Department of Chicago v. Mosley, 408 U.S. 92 (1972)	Marshall, Thurgood	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Chicago Municipal Code, c. 193-1(i) (1971): Chicago ordinance prohibiting all picketing within a certain distance of any school except labor picketing while school was in session.

1970	Oregon v. Mitchell, 400 U.S. 112 (1970)	Blackmun, Harry A.	Elections	Federal

Constitutional Provision(s) Invoked: Article I, Section 4, Clause 1

Constitutional Clause(s) Invoked: Time, Places, & Manner of Elections Clause

Description of Unconstitutional Provision(s): Voting Rights Act Amendments of 1970, Pub. L. No. 91-285, 84 Stat. 314: Lowered the voting age to 18 for state and local elections.

1970	Blount v. Rizzi, 400 U.S. 410 (1971)	Brennan, William J.	Civil Rights	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 39 U.S.C. § 4006: Statute which allows the Postmaster General to designate certain packages unlawful, refuse to send obscene packages, and halt all mail coming from individual during this proceeding.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1970	Wisconsin v. Constantineau, 400 U.S. 433 (1971)	Douglas, William O.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Wis. Stat. § 176.26 (1967): Wisconsin statute provided that certain designated individuals could prevent the sale of alcohol to certain individual citizens without any notice or hearing process.

1970	Groppi v. Wisconsin, 400 U.S. 505 (1971)	Stewart, Potter	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Wis. Stat. § 971.22 (effective July 1, 1970): Wisconsin statute provided in essence that only those defendants charged with felonies could move to change venue on grounds of impartiality at trial.

1970	Baird v. State Bar of Arizona, 401 U.S. 1 (1971)	Black, Hugo L.	Legal Ethics	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): State Bar of Arizona conditioned admission on answering questions as to whether applicants had ever belonged to organizations advocating for an overthrow of the government.

1970	Application of Stolar, 401 U.S. 23 (1971)	Black, Hugo L.	Legal Ethics	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): New York State Bar Association conditioned admission on answering questions regarding participation in organizations advocating overthrow of the U.S. government by force.

1970	United States v. United States Coin & Currency, 401 U.S. 715 (1971)	Harlan, John M. II	Taxes	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Self-Incrimination Clause

Description of Unconstitutional Provision(s): 26 U.S.C. § 7302: Asset forfeiture statute.

1970	North Carolina State Board of Education v. Swann, 402 U.S. 43 (1971)	Burger, Warren E.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.C. Gen. Stat. § 115-176.1 (Supp. 1969): An anti-busing law prohibited assignment based on race of any kind, which hindered the mandate of the Fourteenth Amendment.

1970	Bell v. Burson, 402 U.S. 535 (1971)	Douglas, William O.	Transportation; Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Motor Vehicle Safety Responsibility Act, Ga. Code Ann. §§ 92A-601 *et seq.* (1958): Georgia statute requiring suspension of driver's license and vehicle registration of uninsured motorists involved in accidents unless he or she could post security to cover the damages.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1970	Coates v. City of Cincinnati, 402 U.S. 611 (1971)	Stewart, Potter	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Code of Ordinances of the City of Cincinnati § 901-L6 (1956): Ordinance preventing individuals from assembling as groups in a manner that annoyed others, which was unconstitutionally vague and violative of the First Amendment.

1970	Cohen v. California, 403 U.S. 15 (1971)	Harlan, John M. II	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Cal. Penal Code § 415: California statute prohibited offensive conduct intended to disturb the peace.

1970	Connell v. Higginbotham, 403 U.S. 207 (1971)	Per Curiam	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Fla. Stat. §§ 876.05–10 (1965): Statute contained an oath to which state employees were required to swear or affirm that such individual did not belong to any organization advocating the overflow of the U.S. or Florida governments.

1970	Graham v. Richardson, 403 U.S. 365 (1971)	Blackmun, Harry A.	Pensions & Benefits	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 4; Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ariz. Rev. Stat. Ann. § 46-233 (Supp. 1970–1971): An Arizona statute restricted federal assistance to U.S. citizens or aliens residing in the U.S. for a total of 15 years. Pa. Stat. Ann., Tit. 62, § 432(2) (1968) (public welfare code): A Pennsylvania code provision limiting commonwealth-funded assistance to U.S. citizens.

1970	Lemon v. Kurtzman, 403 U.S. 602 (1971)	Burger, Warren E.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause; Free Exercise Clause

Description of Unconstitutional Provision(s): R.I. Gen. Laws Ann. §§ 16-51-1 *et seq.* (Supp. 1970): Act authorizing state officials to supplement salaries of teachers of secular subjects at non-public schools resulted in excessive entanglement of government with religion. Pa. Stat. Ann., Tit. 24, §§ 5601–09 (Supp. 1971): Pennsylvania statute authorized purchase of secular educational services from nonpublic schools, resulting in a similar entanglement.

1970	Tilton v. Richardson, 403 U.S. 672 (1971)	Burger, Warren E.	Education; Civil Rights	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause; Free Exercise Clause

Description of Unconstitutional Provision(s): 20 U.S.C. § 754(b)(2) (1964): Enforcement section of the Higher Education Facilities Act suggested that at the end of 20 years, institutions of higher education could use federal funds for religious purposes.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1969	Turner v. Fouche, 396 U.S. 346 (1970)	STEWART, POTTER	Elections; Government Operations	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ga. Const., art. VIII, § V, para. I; Ga. Code Ann. § 2-6801 (1948): A Georgia statute that limited membership on the county board of education to freeholders, or persons that owned real estate.

1969	Goldberg v. Kelly, 397 U.S. 254 (1970)	BRENNAN, WILLIAM J.	Workers' Compensation & Social Security; Government Operations	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 18 CRR-NY 351.26(b): The New York City Department of Social Services promulgated Procedure No. 68-18, which halted aid immediately after the reviewing official affirmed the determination of ineligibility. The applicant was then notified of their ineligibility for welfare via a letter and not provided the opportunity to be heard prior to the termination of aid.

1969	In re Winship, 397 U.S. 358 (1970)	BRENNAN, WILLIAM J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): N.Y. Family Court Act § 744(b): A New York statute that provided for a finding of guilt by preponderance of the evidence for an act that, if done by an adult, would have constituted the crime of larceny.

1969	Hadley v. Junior College District, 397 U.S. 50 (1970)	BLACK, HUGO L.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Mo. Rev. Stat. § 178.20 (Cum. Supp. 1967): A Missouri statute setting out how trustees are to be apportioned among the separate school districts. Briefly, the statutes provides that: if no one or more of the component school districts has [33.33%] or more of the total enumeration of the junior college district, then all six trustees are elected at large. If, however, one or more districts has between [33.33%] and 50% of the total enumeration, each such district elects two trustees and the rest are elected at large from the remaining districts. Similarly, if one district has between 50% and [66.66%] of the enumeration it elects three trustees, and if one district has more than [66.66%] it elects four trustees." Therefore, the statute "necessarily results in a systematic discrimination against voters in more populous school districts because whenever a large district's percentage of the total enumeration falls within a certain percentage range it is always allocated the number of trustees corresponding to the bottom of that range." Moreover, "unless a particular large district has exactly [33.33%], 50%, or [66.66%] of the total enumeration it will always have proportionally fewer trustees than the small districts."

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1969	Schacht v. United States, 398 U.S. 58 (1970)	Black, Hugo L.	Military & Veterans	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 10 U.S.C. § 772(f): This provision of the U.S. Code states: "While portraying a member of the Army, Navy, Air Force, or Marine Corps, an actor in a theatrical or motion-picture production may wear the uniform of that armed force if the portrayal does not tend to discredit that armed force." The Court limited their holding to the emphasized portion, striking it as unconstitutional. The Court reasoned that, when this portion of § 772(f) is read together with 18 U.S.C. § 702, which made it a crime for any person without authority to wear any uniform of the United States military, the effect is a violation of an actor's constitutional right "to say things that tend to bring the military into discredit or disrepute."

1969	Phoenix v. Kolodziejski, 399 U.S. 204 (1970)	White, Byron R.	Elections; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ariz. Const., art. 7, § 13 & art. 9, § 8; Ariz. Rev. Stat. Ann. §§ 9-523, 35-452 (1956); § 35-455 (Supp. 1969): An Arizona constitutional and statutory provision that limits the right to vote on general obligation bonds to qualified voters who are also real property taxpayers.

1969	Williams v. Illinois, 399 U.S. 235 (1970)	Burger, Warren E.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stat. ch. 38, § 1-7(k): An Illinois statute that required a defendant, in default of the payment of the fine and court costs at the expiration of the one year sentence in connection with a petty theft conviction, to remain in jail to "work off" the monetary obligations at a rate of $5 per day.

1969	Baldwin v. New York, 399 U.S. 66 (1970)	White, Byron R.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): N.Y.C. Crim. Ct. Act § 40 (Supp. 1969): A New York statute declaring that all trial held in the New York City Criminal Court "shall be without a jury."

1968	WHYY, Inc. v. Borough of Glassboro, 393 U.S. 117 (1968)	Per Curiam	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protections Clause

Description of Unconstitutional Provision(s): New Jersey statute denying tax exemption to foreign nonprofit corporations owning property in state on sole ground that such corporations had not been incorporated in New Jersey.

1968	Williams v. Rhodes, 393 U.S. 23 (1968)	Black, Hugo L.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protections Clause

Description of Unconstitutional Provision(s): Ohio Rev. Code § 3517.01: Several provisions of the Ohio election laws that placed substantial burdens on any party that did not identify as Republican or Democrat to qualify for a place on the state ballot to choose electors pledged to particular candidates for President.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1968	Hunter v. Erickson, 393 U.S. 385 (1969)	White, Byron R.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protections Clause

Description of Unconstitutional Provision(s): Akron, Ohio, Ordinance No. 873 (1964), amended by Akron, Ohio, Ordinance No. 926 (1964): "Any ordinance enacted by the Council of The City of Akron which regulates [housing] . . . on the basis of race, color, religion, national origin or ancestry must first be approved by a majority of the electors . . . before said ordinance shall be effective." However, most other ordinances "remained subject to the general rule: the ordinance would become effective 30 days after passage by the City Council, or immediately if passed as an emergency measure, and would be subject to referendum only if 10% of the electors so requested by filing a proper and timely petition."

1968	Epperson v. Arkansas, 393 U.S. 97 (1968)	Fortas, Abe	Criminal Law & Procedure; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause, Freedom of Religion

Description of Unconstitutional Provision(s): Ark. Code Ann. §§ 80-1627, 80-1628 (Repl. Vol. 1960): Arkansas's "anti-evolution" statute prohibiting "teach[ing] the theory or doctrine that mankind ascended or descended from a lower order of animals," or using a textbook that propounds this theory, in any state-funded school or university.

1968	Shuttlesworth v. City of Birmingham, 394 U.S. 147 (1969)	Stewart, Potter	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause

Description of Unconstitutional Provision(s): General Code of Birmingham § 1159: An ordinance that required a permit be submitted to the commission to march in any parade or public demonstration. The commission could deny any permit if "in its judgment the public welfare, peace, safety, health, decency, good order, morals or convenience require that it be refused."

1968	Hadnott v. Amos, 394 U.S. 358 (1969)	Douglas, William O.	Elections	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fifteenth Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause, Right to Vote

Description of Unconstitutional Provision(s): Ala. Code, Tit. 17, § 274 (1958): Read to allow white candidates to file needed committees before election, but not POC candidates and disqualified them from the election.

1968	Kirkpatrick v. Preisler, 394 U.S. 526 (1969)	Brennan, William J.	Elections	State & Local

Constitutional Provision(s) Invoked: Article I, Section 2

Constitutional Clause(s) Invoked: Equal Representation

Description of Unconstitutional Provision(s): Mo. Rev. Stat., c. 128 (Cum. Supp. 1967): Missouri 1967 congressional redistricting statute that had extreme differences in population district to district

1968	Wells v. Rockefeller, 394 U.S. 542 (1969)	Brennan, William J.	Elections	State & Local

Constitutional Provision(s) Invoked: Article I, Section 2; Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Representation

Description of Unconstitutional Provision(s): N.Y. Laws 1968, c. 8: New York law that sectioned off voting districts in disproportionate regions.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1968	Stanley v. Georgia, 394 U.S. 557 (1969)	Marshall, Thurgood	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ga. Code Ann. § 26-301 (Supp. 1968): Barring private possession of obscene matter.

1968	Shapiro v. Thompson, 394 U.S. 618 (1969)	Brennan, William J.	Civil Rights; Pensions & Benefits	Federal; State & Local

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protections Clause, Due Process Clause

Description of Unconstitutional Provision(s): Conn. Gen. Stat. § 17-2d (Supp. 1965); D.C. Code § 3-203 (1967); 62 Pa. Const. Stat. § 432(6) (1968); 76 Stat. 914: Connecticut, Pennsylvania, and the District of Columbia statutory provisions that required, as a prerequisite for the receipt of social security benefits in their respective states, that applicants for aid through the Aid to Families with Dependent Children program have resided in their respective states for at least one year prior to date of filing their application for benefits.

1968	Moore v. Ogilvie, 394 U.S. 814 (1969)	Douglas, William O.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause, Equal Protections Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stat., c. 46, § 10-3: Illinois statute requiring at least 25,000 signatures (at least 200 signatures from each of the 50 counties) from qualified voters to get a candidate from a new political party on the ballot.

1968	Sniadach v. Family Finance Corp. of Bay View, 395 U.S. 337 (1969)	Douglas, William O.	Civil Procedure; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Wis. Stat. § 267.07(1): Wisconsin garnishment statute allowing the freezing of a defendant's wages until trial and final decision of suit on the merits.

1968	Jenkins v. McKeithen, 395 U.S. 411 (1969)	Marshall, Thurgood	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause, Equal Protections Clause

Description of Unconstitutional Provision(s): Act No. 2 (1967); La. Rev. Stat. 22:880.1–23:880.18 (Supp. 1969): A Louisiana statute that created the Louisiana Labor-Management Commission of Inquiry to "the investigation and findings of facts relating to violations or possible violations of criminal laws of the state of Louisiana or of the United States arising out of or in connection with matters in the field of labor-management relations" and make those findings a matter of public record.

1968	Brandenburg v. Ohio, 395 U.S. 444 (1969)	Per Curiam	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fifteenth Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause

Description of Unconstitutional Provision(s): Ohio Criminal Syndicalism Act (Ohio Rev. Code Ann. § 2923.13): Ohio law that made it unlawful to advocate for criminal activity or methods of terrorism or to voluntarily assemble with any group to teach or advocate doctrines of syndicalism.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1968	Leary v. United States, 395 U.S. 6 (1969)	Harlan, John M. II	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Marihuana Tax Act of 1937, ch. 553, 50 Stat. 551; 26 U.S.C. §§ 4741, 4744, 4751, 4753: Imposed a tax on the transfer of marijuana, rendered unlawful the possession of marijuana by a person who had failed to pay the tax imposed by § 4741, imposed a special occupational tax on persons engaging in transactions involving marijuana, and provided for the registration of persons subject to the special occupational tax imposed by § 475. Narcotic Control Act of 1956, ch. 629, § 106, 70 Stat. 567, 570, amending Narcotic Drugs Import and Export Act, ch. 100, § 2(h), 35 Stat. 614 (1909): Imposes a criminal punishment upon every person who "knowingly, with intent to defraud the United States, imports or brings into the United States marihuana contrary to law . . . , or receives, conceals, buys, sells, or in any manner facilitates the transportation, concealment, or sale of such marihuana after being imported or brought in, knowing the same to have been imported or brought into the United States contrary to law . . . ." Section 176a also creates a presumption that, "whenever on trial for a violation of this subsection, the defendant is shown to have or to have had the marihuana in his possession, such possession shall be deemed sufficient evidence to authorize conviction unless the defendant explains his possession to the satisfaction of the jury."

1968	Kramer v. Union Free School District No. 15, 395 U.S. 621 (1969)	Warren, Earl	Education; Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protections Clause

Description of Unconstitutional Provision(s): N.Y. Educ. Laws §§ 2553(2), (4) (1953), as amended (Supp. 1968): Requiring those who vote in board of education elections to own or lease taxable property within the school district, or be the parent and/or guardian of a student who attends the school district.

1968	Cipriano v. City of Houma, 395 U.S. 701 (1969)	Per Curiam	Elections; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protections Clause

Description of Unconstitutional Provision(s): La. Rev. Stat. § 39:501 (1950): A Louisiana statute that limited the municipalities' power to issue revenue bonds so that bonds could only be issued if they were approved by a "majority in number and amount of the [Louisiana] property taxpayers qualified to vote" and who vote at the bond election.

1967	United States v. Robel, 389 U.S. 258 (1967)	Warren, Earl	Civil Rights	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Subversive Activities Control Act of 1950, § 5(a)(1)(D), 64 Stat. 992: Statute prohibited anyone who was a member of a registered Communist-action organization from working in any defense facility.

1967	Whitehill v. Elkins, 389 U.S. 54 (1967)	Douglas, William O.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ober Act §§ 1, 13 (Art. 85A, Md. Ann. Code, 1957): Maryland law that requires teachers to take an oath certifying that he or she was not engaged in any attempt to overthrow, by force or violence, the U.S. or Maryland governments under penalty of perjury.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1967	Teitel Film Corp. v. Cusack, 390 U.S. 139 (1968)	Per Curiam	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Chicago Motion Picture Censorship Ordinance: Ordinance required that those seeking to show films submit them to a Superintendent for a permit before exhibiting any film, a review and appeal process that lasted 50 to 57 days.

1967	Lee v. Washington, 390 U.S. 333 (1968)	Per Curiam	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Code of Ala., Title 45, §§ 4, 52, 121, 122, 123, 172 & 183 (1958): Statutes provided for racial segregation in state prisons and jails.

1967	Avery v. Midland County, 390 U.S. 474 (1968)	White, Byron R.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Vernon's Ann. Tex. Civ. St. arts. 1269k, § 23a, 1677, 2351, 2766, 4492: Midland, County Texas districting statute apportioned general governmental powers over an entire geographic area among single-member districts of substantially unequal population.

1967	United States v. Jackson, 390 U.S. 570 (1968)	Stewart, Potter	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment; Sixth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Impartial Jury Clause

Description of Unconstitutional Provision(s): Portion of the Federal Kidnaping Act, 18 U.S.C. § 1201(a): Authorized the death penalty as a punishment "if the verdict of the jury shall so recommend," and not in the case of a plea bargain.

1967	Interstate Circuit v. City of Dallas, 390 U.S. 676 (1968)	Marshall, Thurgood	Advertising, Publishing, & Communications; Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Revised Code of Civil and Criminal Ordinances of the City of Dallas, Chapter 46A (1960): Required that motion picture exhibitors file with and seek approval from a Motion Picture Classification Board which then classifies the film as suitable or not for children. The ordinance required a specific license for films not suitable for children, and imposed misdemeanor penalties for non-compliance.

1967	Rabeck v. New York, 391 U.S. 462 (1968)	Per Curiam	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): New York Penal Law, Consol. Laws, c. 40, § 484-i: Repealed statute prohibiting the sale of magazines "which would appeal to the lust of persons under the age of eighteen . . . ."

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1967	Witherspoon v. Illinois, 391 U.S. 510 (1968)	Stewart, Potter	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Impartial Jury Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stat., c. 38, § 743 (1959): Statute providing that a juror's "conscientious scruples against capital punishment" in trials for murder constitutes a for cause challenge.

1967	Pope v. United States, 392 U.S. 651 (1968)	Per Curiam	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment; Sixth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Impartial Jury Clause

Description of Unconstitutional Provision(s): Federal Bank Robbery Act, 18 U.S.C. § 2113(e): Act imposed death penalty for bank robberies.

1966	Swann v. Adams, 385 U.S. 440 (1967)	White, Byron R.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Fla. Stat. Ann. §§ 1(1)–(2): Florida reapportinment plan where "senate districts ranged from 15.09% overrepresented to 10.56% underrepresented with the ratio between the largest and smallest district being 1.30 to 1 and by which the house districts ranged from 18.28% overrepresented to 15.27% underrepresented with a radio of 1.41:1 between the largest and smallest districts, without adequate explanation as to reasons for the large deviations"

1966	Keyishian v. Board of Regents of University of New York, 385 U.S. 589 (1967)	Brennan, William J.	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): N.Y. Educ. § 3021-02(2) & N.Y. Civ. Serv. §§ 105 (1)–(3): New York statutory scheme requiring the removal of professors at public universities for "treasonable or seditious udderances or acts."

1966	National Bellas Hess, Inc. v. Department of Revenue of Illinois, 386 U.S. 753 (1967)	Stewart, Potter	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stat. c. 120, §§ 439(2)–(3) (1965): Requires any business advertising in Illonois to pay taxes to Illonois, regardless of where they are incorporated or do business.

1966	Afroyim v. Rusk, 387 U.S. 253 (1967)	Black, Hugo L.	Civil Rights; Immigration	Federal

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Citizenship Clause; Due Process Clause

Description of Unconstitutional Provision(s): 8 U.S.C. § 1481: United States citizen shall lose their citizenship if they vote in a foreign political election

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1966	Reitman v. Mulkey, 387 U.S. 369 (1967)	White, Byron R.	Civil Rights; Real Property	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Cal. Const. art I, § 26: "Neither the State nor any subdivision or agency thereof shall deny, limit or abridge, directly or indirectly, the right of any person, who is willing or desires to sell, lease or rent any part or all of his real property, to decline to sell, lease or rent such property to such person or persons as he, in his absolute discretion, chooses." Real Property is limited to residential property not owned by the state. Allowed for termination of lease based on racial considerations.

1966	Camara v. Municipal Court of San Francisco, 387 U.S. 523 (1967)	White, Byron R.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment; Fourteenth Admenment

Constitutional Clause(s) Invoked: Due Process Clause; Warrant Clause

Description of Unconstitutional Provision(s): Ca. Housing Code § 503: Authorizes City employees to enter any building or structure provided they have the proper credentials and it is at a reasonable time.

1966	Loving v. Virginia, 388 U.S. 1 (1967)	Warren, Earl	Civil Rights; Family Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Va. Code Ann. §20-58, 20-59 (1960): Virginia statutory code prohibiting interracial marraiges.

1966	Washington v. Texas, 388 U.S. 14 (1967)	Warren, Earl	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Confrontation Clause; Due Process Clause

Description of Unconstitutional Provision(s): Vernon's Ann. Tex. Pen.Code, Art. 82: Prohibits principles, accessories, or accomplices from being introduced as witnesses for one another.

1966	Berger v. New York, 388 U.S. 41 (1967)	Clark, Tom C.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourth Amendment; Fourteenth Admenment

Constitutional Clause(s) Invoked: Due Process Clause; Right of Privacy

Description of Unconstitutional Provision(s): N.Y. Code Crim. Proc. § 813(a): Allows for "issuance of the order, or warrant for eavesdropping, upon the oath of the attorney general, the district attorney or any police officer above the rank of sergeant stating that 'there is reasonable ground to believe that evidence of crime may be thus obtained'." Berger v. New York, 388 U.S. 41, 54 (1967).

1965	United States v. Romano, 382 U.S. 136 (1965)	White, Byron R.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 26 U.S.C. § 5601(b)(1): Particular section of a federal statute governing spirits provided that "[w]henever on trial for violation of subsection (a)(1) the defendant is shown to have been at the site or place where, and at the time when, a still or distilling apparatus was set up without having been registered, such presence of the defendant shall be deemed sufficient evidence to authorize conviction, unless the defendant explains such presence to the satisfaction of the jury (or of the court when tried without jury)."

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1965	Giaccio v. Pennsylvania, 382 U.S. 399 (1966)	Black, Hugo L.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of March 31, 1860, Pub. L. No. 427, § 62; Pa. Stat. Ann., Tit. 19, § 1222: A Pennsylvania statute that allowed a jury to decide to impose the costs of the prosecution on the defendant and, upon that determination, permitted the court to sentence the defendant to that effect and order that the defendant be committed to jail until the costs are paid.

1965	Albertson v. Subversive Activities Control Board, 382 U.S. 70 (1965)	Brennan, William J.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Subversive Activities Control Act of 1950, § 13(a), 64 Stat. 993–94, 50 U.S.C. § 786(d)(4) (1964): A provision of the Subversive Activities Control Act that allowed the Attorney General, after determining that a person was a member of the Communist Party, to order that the person register as such.

1965	Harper v. Virginia State Board of Elections, 383 U.S. 663 (1965)	Douglas, William O.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Va. Const. §§ 18, 20, 21, 173: A Virginia poll tax scheme that imposed a tax upon on every resident of the State 21 years of age and over as a prerequisite for voting.

1965	Elfbrandt v. Russell, 384 U.S. 11 (1966)	Douglas, William O.	Government Operations	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Ariz. Rev. Stat. § 38-231 (1965 Supp.): An Arrizona statute that required state employees to take an oath and subjecting them to prosecution for perjury and discharge if they knowingly and willingly became a member of the communist party or of any other organizaiton where one of the organization's purposes was to promote the overthrow of the government of Arizona.

1965	Mills v. Alabama, 384 U.S. 214 (1966)	Black, Hugo L.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Alabama Corrupt Practices Act § 285; Ala. Code, 1940, Tit. 17, §§ 268–86: An Alabama law that makes it a crime "to do any electioneering or to solicit any votes . . . in support of or in opposition to any proposition that is being voted on on the day on which the election affecting such candidates or propositions is being held."

1965	Rinaldi v. Yeager, 384 U.S. 305 (1966)	Stewart, Potter	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): N.J. Stat. Ann. § 2A: 152-18 (1964 Cum. Supp.): A New Jersey statute that imposed a duty to repay the costs associated with filing unsuccesssful appeals on incarcerated appellants, but did not impose a similar requirement on appellants who were not incarcerated.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1964	McLaughlin v. Florida, 379 U.S. 184 (1964)	White, Byron R.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Fla. Stat. § 798.05: A Florida statute making it illegal for a black man and white woman or white man and black woman to "habitually live in and occupy in the nighttime the same room" if they are not married.

1964	Cox v. Louisiana, 379 U.S. 536 (1965)	Goldberg, Arthur J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Freedom of Association; Free Speech Clause

Description of Unconstitutional Provision(s): La. Stat. Ann. § 14:103.1: Louisiana disturbing the peace statute interpreted by the Louisiana Supreme Court in a way that criminalizes peacefully expressing unpopular views.

1964	Garrison v. Louisiana, 379 U.S. 64 (1964)	Brennan, William J.	Advertising, Publishing, & Communications; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): La. Stat. Ann. §§14:47-14:49: Louisiana statutes allowing criminal punishment for true statements made with ill-will and for false statements against public officials without regard to defendants knowledge of falsity or reckless disregard for falsity of statement.

1964	Louisiana v. United States, 380 U.S. 145 (1965)	Black, Hugo L.	Elections	State & Local

Constitutional Provision(s) Invoked: Fifteenth Amendment

Constitutional Clause(s) Invoked: Right to Vote Clause

Description of Unconstitutional Provision(s): La. Acts 1960, No. 613 (amending La. Const. Art. VIII, s 1(d) and previously implemented in La. Stat. Ann. § 18:36): Louisiana constitutional provision that required that applicant attempting to register to vote must be able to "give a reasonable interpretation" of any section of the State or Federal Constitution.

1964	Dombrowski v. Pfister, 380 U.S. 479 (1965)	Brennan, William J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): La. Stat. Ann. §§ 14:359(5), 14:364(7): Louisiana statute defining subversive organization and making it a criminal offense to fail to register as a member of a subversive organization.

1964	Freedman v. Maryland, 380 U.S. 51 (1965)	Brennan, William J.	Advertising, Publishing, & Communications	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Md. Ann. Code, 1957, art. 66A: Maryland statute requiring submission of film to Maryland State Board of Censors prior to exhibition.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1964	Harman v. Forssenius, 380 U.S. 528 (1965)	Warren, Earl	Elections	State & Local

Constitutional Provision(s) Invoked: Twenty-Fourth Amendment

Constitutional Clause(s) Invoked: Poll Tax Clause

Description of Unconstitutional Provision(s): Va. Code. Ann. § 24-17.2 (1964 Supp.): Virginia statute requiring that one must pay a poll tax or file a witnessed or notarized certificate of residence in order to vote in federal elections.

1964	Carrington v. Rash, 380 U.S. 89 (1965)	Stewart, Potter	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Tex. Const., art. IV, § 2: Texas constitutional provision prohibiting any member of the Armed Forces who moves to Texas during military duty from voting in any election in Texas while he or she is a member of the Armed Forces.

1964	Lamont v. Postmaster General of United States, 381 U.S. 301 (1965)	Douglas, William O.	Government Operations	Federal

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): 39 U.S.C. § 4008(a): Federal law requiring mail that is printed or prepared in a foreign country and determined to be "communist political propaganda" to be detained by the Postmaster General and delivered only after the addressee requests that it be delivered.

1964	United States v. Brown, 381 U.S. 437 (1965)	Warren, Earl	Labor & Employment	Federal

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 3

Constitutional Clause(s) Invoked: Bill of Attainder Clause

Description of Unconstitutional Provision(s): 29 U.S.C. § 504: Federal law making it illegal for a member of the Communist Party to serve as an officer or employee of a labor union.

1964	Griswold v. Connecticut, 381 U.S. 479 (1965)	Douglas, William O.	Criminal Law & Procedure; Healthcare	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Conn. Gen. Stat. §§ 53-32, 54-196: Connecticut statute prohibiting the use of contraceptives.

1963	Polar Ice Cream & Creamery Co. v. Andews, 375 U.S. 361 (1964)	White, Byron R.	Food & Drug	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Fla. Stat. § 501, Florida Milk Commission's Rule 220—1.05: Florida statute and related orders of the Milk Commission requiring that a substantial share of the local milk market be reserved for local producers.

1963	Anderson v. Martin, 375 U.S. 399 (1964)	Clark, Tom C.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): La. Rev. Stat. § 18:1174.1: Louisiana statute requiring that the nomination papers and ballots designate the race of candidates for elective office in all primary, general, and special elections.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1963	Wesberry v. Sanders, 376 U.S. 1 (1964)	Black, Hugo L.	Elections	State & Local

Constitutional Provision(s) Invoked: Article I, Section 2, Clause 1

Constitutional Clause(s) Invoked: House of Representatives Clause

Description of Unconstitutional Provision(s): Ga. Code § 34-2301 (1931): Georgia statute creating congressional districts where one district had twice the population of the average congressional district in the state.

1963	Schneider v. Rusk, 377 U.S. 163 (1964)	Douglas, William O.	Immigration	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Immigration and Nationality Act of 1952, § 352(a)(1), 66 Stat. 163, 269 (codified at 8 U.S.C. §§ 1101, 1484): Federal statute providing for denationalization of naturalized citizens who reside continuously in the country of their birth or former nationality for three years.

1963	Griffin v. County School Board of Prince Edward County, 377 U.S. 218 (1964)	Black, Hugo L.	Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Prince Edward County School Board decision to close public schools while contributing financial support to private segregated schools.

1963	Department of Revenue v. James B. Beam Distilling Co., 377 U.S. 341 (1964)	Stewart, Potter	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 2

Constitutional Clause(s) Invoked: Export Clause

Description of Unconstitutional Provision(s): Ky. Rev. Stat. Ann. § 243.680(2)(a): Kentucky statute that requires all persons who import whiskey to first obtain a permit and pay a tax on the amount of alcohol in each shipment.

1963	Baggett v. Bullitt, 377 U.S. 360 (1964)	White, Byron R.	Education; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Wash. Laws 1931, c. 103: Washington law requiring teachers to swear an oath to the federal and state constitution. Wash. Laws 1955, c. 377: Washington law requiring all state employees to take an oath declaring that they were not a "subversive person" as defined by the act.

1963	Chamberlin v. Dade County Board of Public Instruction, 377 U.S. 402 (1964)	Per Curiam	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Fla. Stat. (1961) § 231.09: Florida statute authorizing school prayer and devotional bible reading in Dade County Public School

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1963	Reynolds v. Sims, 377 U.S. 533 (1964)	WARREN, EARL	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Alabama Reapportionment Act of 1962, Alabama House Bill No. 59, Act No. 91, Acts of Alabama, Special Session, 1962, p. 121 and Proposed Constitutional Amendment No. 1 of 1962, Alabama Senate Bill No. 29, Act No. 93, Acts of Alabama, Special Session, 1962, p. 124: Alabama statutes that failed to apportion legislative seats based on population.

1963	WMCA, Inc. v. Lomenzo, 377 U.S. 633 (1964)	WARREN, EARL	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): McKinney's N.Y.Laws, 1952 (Supp.1963), State Law, §§ 120—124: New York statute that failed to apportion legislative districts sufficiently on a population basis.

1963	Maryland Committee for Fair Representation v. Tawes, 377 U.S. 656 (1964)	WARREN, EARL	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Md. Ann. Code (1962 Supp.), art. 40, § 42: Maryland statute that had "gross disparities from population-based representation in the apportionment of seats in the Maryland Senate."

1963	Davis v. Mann, 377 U.S. 678 (1964)	WARREN, EARL	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Va. Code § 24-14: Virginia statute apportioning districts for the Virginia Senate where 41.1% of the State's population lives in districts electing a majority of the Senators and Virginia House of Delegates where 40.5% of the State's population lives in districts electing a majority of the Delegates.

1963	Roman v. Sincock, 377 U.S. 695 (1964)	WARREN, EARL	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Del. Const. Art II, § 2 (1897), as amended in 1963: Delaware constitutional provisions that provided for two-thirds of the state Senate to be elected by 31% of the state's residents.

1963	Lucas v. Forty-Fourth General Assembly of Colorado, 377 U.S. 713 (1964)	WARREN, EARL	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Colo. Const., art. 5, §§ 45–48 (as adopted in 1962, amend. No. 7, Laws 1963, p. 1045), Colo. Rev. Stat. §§ 63–1–1 to 63–1–6 (1953): Colorado statutes apportioning the state Senate that had extreme departures from population-based representation.

1963	Aptheker v. Secretary of State, 378 U.S. 500 (1964)	GOLDBERG, ARTHUR J.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Subversive Activities Control Act of 1950, § 6, 64 Stat. 993 (codified at 50 U.S.C. § 785): Federal statute making it illegal for a member of a communist organization to apply for, renew, use, or attempt to use a passport.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1962	National Ass'n for Advancement of Colored People v. Button, 371 U.S. 415 (1963)	Brennan, William J.	Civil Rights; Legal Ethics	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Chapters 31, 32, 33, 35 and 36 of the Virginia Acts of Assembly, 1956 Extra Session; Chapter 33 prohibits "solicitation of legal business by a 'runner' or 'capper,'" which the chapter defines as "an agent for an individual or organization which retains a lawyer in connection with an action to which it is not a party and in which it has no pecuniary right to liability."

1962	Kennedy v. Mendoza-Martinez, 372 U.S. 144 (1963)	Goldberg, Arthur J.	Civil Rights; Immigration	Federal

Constitutional Provision(s) Invoked: Fifth Amendment; Sixth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Right to Trial by Jury

Description of Unconstitutional Provision(s): Immigration and Nationality Act of 1952, §§ 401(j), 349(a)(10): Imposed "automatic[]" forfeiture of citizenship without court or administrative proceedings on those citizens who left the country and remained overseas to evade the draft.

1962	Gideon v. Wainwright, 372 U.S. 335 (1963)	Black, Hugo L.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Sixth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Right to Counsel

Description of Unconstitutional Provision(s): Florida state law authorizing the court to appoint council to a defendant only when they are charged with a capital offense.

1962	Gray v. Sanders, 372 U.S. 368 (1963)	Douglas, William O.	Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment; Seventeenth Amendment; Nineteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Ga. Code Ann., § 34-3212, 34-3213 (1962): Voting scheme that gave every voter one vote, but counted the votes in a bracket system that weighted some rural votes more than some urban votes.

1962	Bantam Books, Inc. v. Sullivan, 372 U.S. 58 (1963)	Brennan, William J.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): Rhode Island Legislature's Resolution 73: Created a Rhode Island Commission to Encourage Morality in Youth, and charged it with "the duty" to educate the public regarding obscene books, and to "investigate and recommend the prosecution of all violators . . . ."

1962	Peterson v. Greenville, 373 U.S. 244 (1963)	Warren, Earl	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Greenville City Ordinance provided, "[it] shall be unlawful for any person owning, managing or controlling any hotel, restaurant, cafe, eating house, boarding house or similar establishment to furnish meals to white persons and colored persons in the sat room . . . ."

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1962	Good v. Board of Education of Knoxville, 373 U.S. 683 (1963)	Clark, Tom C.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Transfer clauses for school desegregation plans in two Tennessee localities allowed students to request transfer for good cause. Good cause for purposes of the plans considered only racial factors.

1962	Willner v. Committee on Character & Fitness, 373 U.S. 96 (1963)	Douglas, William O.	Labor & Employment; Legal Ethics	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): N.Y. Jud. § 90: Admission to practice statutes not providing for a hearing in cases where the applicant was rejected.

1962	School District of Abington Township v. Schempp, 374 U.S. 203 (1963)	Clark, Tom C.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): 24 Pa. Stat. § 15-1516, as amended, Pub. Law No. 1928 (Supp. 1960): Demanded that: "At least ten verses from the Holy Bible shall be read, without comment, at the opening of each public school on each school day. Any child shall be excused from such Bible reading, or attending such Bible reading, upon the written request of his parent or guardian." Board of School Commissioners of Baltimore City adopted a rule pursuant to Art. 77, § 202 of the Annotated Code of Maryland instituting "the holding of opening exercises in the schools of the city, consisting primarily of the 'reading, without comment, of a chapter in the Holy Bible and/or the use of the Lord's Prayer."

1961	Cramp v. Board of Public Instruction, 368 U.S. 278 (1961)	Stewart, Potter	Government Operations	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Fla. Stat. §§ 876.05, .06, .08: Provisions of a Florida statute requiring that all state government employees take an oath that they "have not and will not lend my aid, support, advice, counsel or influence to the Communist Party" by punishment of perjury and immediate discharge.

1961	Engel v. Vitale, 370 U.S. 421 (1962)	Black, Hugo L.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): 18 Misc. 2d, at 671-672, 191 N.Y.S. 2d, at 468-469: A New York law that required all public school students to recite a prayer in the presence of their teacher at the beginning of each school day.

1961	Robinson v. California, 370 U.S. 660 (1962)	Stewart, Potter	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Eighth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Cal. Health & Safety Code § 11721: A California statute that made it a criminal offense for someone to "be addicted to the use of narcotics."

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1960	Gomillion v. Lightfoot, 364 U.S. 339 (1960)	Frankfurter, Felix	Elections	State & Local

Constitutional Provision(s) Invoked: Fifteenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Local Act No. 140 (1957): An Alabama statute redefining the boundaries of the City of Tuskegee so that the shape of Tuskegee was altered from a square to an twenty-eight-sided figure.

1960	Shelton v. Tucker, 364 U.S. 479 (1960)	Stewart, Potter	Education; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Freedom of Association

Description of Unconstitutional Provision(s): Act 10 of the Second Extraordinary Session of the Arkansas General Assembly of 1958: An Arkansas statute that prohibited the employment as a superintendent, principal or teacher in any public school in Arkansas, or as an instructor, professor or teacher in any public institution of higher learning in Arkansas, unless the person has first submitted an affidavit listing all organizations to which he at the time belongs and to which he has belonged during the past five years to the appropriate hiring authority.

1960	Bush v. Orleans Parish School Board, 364 U.S. 500 (1960)	Per Curiam	Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act 2 of the First Extraordinary Session of 1960, LSA-R.S. 49:801 et seq.: A Louisiana so-called "interposition" statute by which Louisiana declares that it will not recognize the Supreme Court's decision in Brown v. Board of Education or the orders of this court issued pursuant to the mandate of that case. At issue in this case were 25 measures designed to halt, or at least forestall, the implementation of the Orleans Parish School Board's announced desegregation proposal.

1960	Ferguson v. Georgia, 365 U.S. 570 (1961)	Brennan, William J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ga. Code §§ 38-415, 38-416: Two Georgia statutes that retained the common law rule that persons "charged in any criminal proceeding" were incompetent to testify on their own behalf, but allowed the defendant to make an unsworn statement.

1960	Moses Lake Homes, Inc. v. Grant County, 365 U.S. 744 (1961)	Whittaker, Charles E.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): Wash. Rev. Code § 84.40.080: A Washington statute that provided for the taxation at the full value of all taxable leaseholds held by federal government but taxation of other property at 50 percent of fair market value.

1960	Torcaso v. Watkins, 367 U.S. 488 (1960)	Black, Hugo L.	Elections; Government Operations	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Establishment Clause

Description of Unconstitutional Provision(s): Article 37 of the Declaration of Rights of the Maryland Constitution: A Maryland statute that required a person seeking public office to declare their belief in the existence of God.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1959	Smith v. California, 361 U.S. 147 (1959)	Brennan, William J.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): L.A. Mun. Code § 41.01.1: A California ordinance that made it imposed strict criminal liability on any person who has "in his possession any obscene or indecent writing, [or] book . . . in any place of business where . . . books . . . are sold or kept for sale."

1959	Phillips Chemical Co. v. Dumas Independent School District, 361 U.S. 376 (1960)	Warren, Earl	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): Vernon's Tex. Rev. Civ. Stat., 1948 (Supp. 1950), art. 5248 as amended Tex. Laws, 1st C. S. 1950, c. 37: A Texas statute that provided for taxation of leaseholds located on federal lands that was distinctly higher than the taxation of similarly situated lessees on exempt property owned by the state or its subdivisions under Art. 7173.

1959	Talley v. California, 362 U.S. 60 (1960)	Black, Hugo L.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): L.A. Mun. Code § 28.06: A city ordinance that bars all handbills under all circumstances anywhere that do not have the names and addresses printed on them.

1958	Bibb v. Navajo Freight Lines, Inc., 359 U.S. 520 (1959)	Douglas, William O.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Ill. Rev. Stats.1957, c. 95 1/2, § 218b: Illinois statute requiring that vehicles be "equipped with rear fender splash guards" in compliance with the statute while the vehicles are in operation on the highways of Illinois.

1958	Kingsley International Pictures Corp. v. Regents of University of New York, 360 U.S. 684 (1959)	Stewart, Potter	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): McKinney's Consol. N.Y. Laws § 122-a (Cum. Supp. 1958): New York Law prohibiting showing of motion picture without a license and defining motion pictures that can be barred to include films that presents "acts of sexual immorality . . . as desirable, acceptable or proper patterns of behavior."

1957	Staub v. City of Baxley, 355 U.S. 313 (1958)	Whittaker, Charles E.	Advertising, Publishing, & Communications	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): City of Baxley Ordinance of September 17, 1949: Local ordinance making it an offense to "solicit" City of Baxley citizens to become members of any "organizaiton, union or society" that requires "fee [or] dues" without first receiving a "permit" from the Mayor and Council of the City.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1957	Trop v. Dulles, 356 U.S. 86 (1958)	WARREN, EARL	Military & Veterans	Federal

Constitutional Provision(s) Invoked: Eighth Amendment

Constitutional Clause(s) Invoked: Cruel & Unusual Punishment Clause

Description of Unconstitutional Provision(s): Section 401(g) of the Nationality Act of 1940, 8 U.S.C. § 1481(a)(8): A federal statute giving military authorities discretion to impose denationalization if convicted by court martial of wartime desertion.

1957	Speiser v. Randall, 357 U.S. 513 (1958)	BRENNAN, WILLIAM J.	Taxes	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): California Revenue and Taxation Code § 32: California law requiring claimants, as a prerequisite to qualification for any property-tax exemption, to sign a statement on their tax return declaring that they do not advocates the overthrow of the federal or California government "by force or violence or other unlawful means" or support a hostile government against the United States

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1957	First Unitarian Church of Los Angeles v. County of Los Angeles, 357 U.S. 545 (1958)	BRENNAN, WILLIAM J.	Taxes	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): California Revenue and Taxation Code § 32: California law requiring claimants, as a prerequisite to qualification for any property-tax exemption, to sign a statement on their tax return declaring that they do not advocates the overthrow of the federal or California government "by force or violence or other unlawful means" or support a hostile government against the United States

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1956	Butler v. Michigan, 352 U.S. 380 (1957)	FRANKFURTER, FELIX	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): § 343 of the Michigan Penal Code: A Michigan law that made it unlawful for a person to "import, print, publish, sell, possess with the intent to sell, design, prepare, loan, give away, distribute or offer for sale" any writing, picture, publication or other thing "containing obscene, immoral, lewd or lascivious language" or pictures "tending to incite minors to violent or depraved or immoral acts, manifestly tending to the corruption of the morals of youth."

1955	United States ex rel. Toth v. Quarles, 350 U.S. 11 (1955)	BLACK, HUGO L.	Military & Veterans	Federal

Constitutional Provision(s) Invoked: Article III

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Art. 3 (a), Uniform Code of Military Justice, 64 Stat. 109, 50 U.S.C. § 553: A federal law that subjected "any person" who violated a provision of the Uniform Code of Military Justice, while subject to the Code, to trial by court-martial where the violation was punishable by confinement of five years or more regardless of whether the person was still subject to the Code at the time of the trial.

1953	Brown v. Board of Education, 347 U.S. 483 (1954)	WARREN, EARL	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Kan. Gen. Stat. § 72-1724 (1949); S.C. Const., Art. XI, § 7; S.C. Code § 5377 (1942); Va. Const., § 140; Va. Code § 22-221 (1950); Del. Const., Art. X, § 2; Del. Rev. Code § 2631 (1935): Kansas, South Carolina, Virginia, and Delaware laws that authorized segregation of white and black students in public schools.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1953	Bolling v. Sharpe, 347 U.S. 497 (1954)	Warren, Earl	Civil Rights	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of May 20, 1862 (§ 35, 12 Stat. 394); Act of May 21, 1862 (12 Stat. 407); Act of June 25, 1864 (13 Stat. 187); Act of July 23, 1866 (14 Stat. 216); Revised Statutes Relating to the District of Columbia, Act of June 22, 1874, (§§ 281, 282, 294, 304, 18 Stat. pt. 2). Washington, D.C. laws that that authorized segregation of white and black students in public schools.

1952	Wieman v. Updegraff, 344 U.S. 183 (1952)	Clark, Tom C.	Government Operations; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Okla. Stat. Ann., 1950, Tit. 51, §§ 37.1-37.8 (1952 Supp.): An Oklahoma statute that required all state officers and employees to make a "loyalty oath" swearing that they were not directly or indirectly affiliated with any agency, party, organization, association, or group which appears on a "list or lists" issued by the United States Attorney General prior enactment of the Act.

1952	Kedroff v. St. Nicholas Cathedral of Russian Orthodox Church, 344 U.S. 94 (1952)	Reed, Stanley F.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment, Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause

Description of Unconstitutional Provision(s): Article 5-C of the Religious Corporations Law of New York, as amended in 1948: A state law that provided for both the incorporation and administration of Russian Orthodox churches; transferring the control of the New York churches of the Russian Orthodox religion from the central governing hierarchy of the Russian Orthodox Church, the Patriarch of Moscow and the Holy Synod, to the governing authorities of the Russian Church in America, a church organization limited to the diocese of North America and the Aleutian Islands.

1951	Standard Oil Co. v. Peck, 342 U.S. 382 (1952)	Douglas, William O.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): §§ 5325, 5328 of the Ohio General Code: levied an ad valorem personal property tax on all of the vessels registered in Cincinnati, Ohio, even when the vessels only stopped in Ohio for occasional fuel or repairs.

1951	Memphis Steam Laundry Cleaner, Inc. v. Stone, 342 U.S. 389 (1952)	Vinson, Frederick M.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): "Privilege tax" levied on the corporation under Mississippi Laws 1944, c. 138 § 3 and Mississippi Laws 1944, c. 138, § 45. The tax is based upon soliciting business for laundries not licensed in the state.

1951	First National Bank v. United Air Lines, 342 U.S. 396 (1952)	Black, Hugo L.	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 1

Constitutional Clause(s) Invoked: Full Faith & Credit Clause

Description of Unconstitutional Provision(s): Illinois Rev. Stat. Ch. 70, para. 2: This law provided that "no action shall be brought or prosecuted in this State to recover damages for a death occurring outside of this State where a right of action for such death exists occurs under the laws of place where such death occurred and services of process in such suit may be had upon the defendant in such place."

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1951	Mullaney v. Anderson, 342 U.S. 415 (1952)	Frankfurter, Felix	Taxes	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): Territorial Legislature of Alaska, Laws 1949, c. 66: This statute provides for the licensing of commercial fisherman in territorial waters, and imposing a $5 license fee on resident fishermen and a $50 fee on nonresidents.

1951	Burstyn v. Wilson, 343 U.S. 495 (1952)	Clark, Tom C.	Constitutional Law	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Free Press Clause; Due Process Clause

Description of Unconstitutional Provision(s): §122 of the New York Education Law: This law provided that it is unlawful "to exhibit, or to sell, lease or lend for exhibition of any motion picture film or reel unless there is a valid license or permit therefor of the education department." A permit or license shall be denied if any pat of the film is "obscene, indecent, immoral, inhuman, sacrilegious, or is of such a character that its exhibition would tend to corrupt morals or incite to crime."

1950	Kunz v. New York, 340 U.S. 290 (1951)	Clark, Tom C.	Constitutional Law	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause

Description of Unconstitutional Provision(s): New York, N.Y., Admin. Code. ch. 18, § 435-7.0: This law provides that it shall be unlawful for any person to disturb, molest or interrupt any clergyman, minister, missionary, lay-preacher or lay-reader, who sall be conducting religious services by authority of a permit, issued hereunder, or any minister or people who shall be performing the rite of baptism as permitted herein, nor shall any person commit any riot or disorder in any such assembly. Any person who violates this secion, shall be punished by a fine of not more than $25, or imprisonment for 30 days, or both.

1950	Dean Milk Co. v. Madison, 340 U.S. 349 (1951)	Clark, Tom C.	Constitutional Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Madision, Wis., Gen. Ordinaces §§ 7.11 and 7.21: This law forbids the sale of milk in the city as pasteurized unless it has been pasteurized and bottled at an approved pasteurization plant within five miles of the city.

1950	Hughes v. Fetter, 341 U.S. 609 (1951)	Black, Hugo L.	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 1

Constitutional Clause(s) Invoked: Full Faith & Credit Clause

Description of Unconstitutional Provision(s): Wis. Stat. § 331.03, Wisoconsin Wrongful Death Act: This law provides a right of action only for deaths caused in the state of Wisconsin, regardless of the the decedent's domicile.

1949	Treichler v. Wisconsin, 338 U.S. 251 (1949)	Clark, Tom C.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Wis. Stat. 1947, § 72.74 (2). Wisconsin emergency tax on inheritances, the calculation of which can include property within states other than Wisconsin.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1949	Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306 (1950)	Jackson, Robert H.	Banking; Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): New York Banking Law, s 100-c, c. 687, L.1937, as amended by c. 602, L.1943 and c. 158, L.1944. The only notice the law required for beneficiaries was a newspaper publication including the following information: (1) name and address of the trust company; (2) the name and the date of establishment of the common trust fund; (3) and a list of all participating estates, trusts or funds.

1949	Sweatt v. Painter, 339 U.S. 629 (1950)	Vinson, Frederick M.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Tex.Const. Art. VII, ss 7, 14; Tex.Rev.Civ.Stat. Arts. 2643b, 2719, 2900 (Vernon, 1925 and Supp.). *Id.* at 631 n.1. Restricted the University of Texas to white students.

1949	McLaurin v. Oklahoma State Regents for Higher Education, 339 U.S. 637 (1950)	Vinson, Frederick M.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 70 Okl.Stat. (1941) ss 455, 456, 457. Requiring schools to exclude Black candidates as it makes it a misdemeanor to maintain or operate, teach or attend a school at which both whites and Negroes are enrolled or taught. Later Amended in 1950, 70 Okla.Stat.Ann. (1950) ss 455, 456, 457, which revised the law to state: "'Provided, that the provisions of this Section shall not apply to programs of instruction leading to a particular degree given at State owned or operated colleges or institutions of higher education of this State established for and/or used by the white race, where such programs of instruction leading to a particular degree are not given at colleges or institutions of higher education of this State established for and/or used by the colored race; provided further, that said programs of instruction leading to a particular degree shall be given at such colleges or institutions of higher education upon a segregated basis." Section 455 defines segregated basis as, "classroom instruction given in separate classrooms, or at separate times."

1948	Terminiello v. City of Chicago, 337 U.S. 1 (1949)	Douglas, William O.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause

Description of Unconstitutional Provision(s): §1, ch. 193, Rev. Code 1939, City of Chicago: Ordinance makes it illegal for "All persons who shall make, aid, countenance, or assistant in making any improper noise, riot, disturbance, breach of the peace, or diversion tending to a breach of the peace, within the limits of the city . . . shall be deemed guilty of disorderly conduct, and upon conviction thereof, shall be severally fined not less than one dollar nor more than two hundred dollars for each offense."

1948	Wheeling Steel Corp. v. Glander, 337 U.S. 562 (1949)	Jackson, Robert H.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Gen. Code Ohio, §§5328-1 and 5328-2: Ohio tax placed on intangible property owned by foreign corporations operating in the state.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1945	Nippert v. City of Richmond, 327 U.S. 416 (1946)	Rutledge, Wiley B.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Chapter 10, § 23, Richmond City Code (1939). Richmond, Virginia, City Code imposed upon persons "engaged in business as solicitors an annual license tax of $50.00 plus one-half of one per centum of their gross receipts or commissions for the preceding license year in excess of $1,000.00."

1945	United States v. Lovett, 328 U.S. 303 (1946)	Black, Hugo L.	Civil Rights; Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 3

Constitutional Clause(s) Invoked: Bill of Attainder Clause; Ex Post Facto Clause

Description of Unconstitutional Provision(s): Urgent Deficiency Appropriation Act of 1943, 57 Stat. 431, 450. Section 304 of the Urgent Deficiency Appropriation Act of 1943 provided that no salary should be paid to certain named federal employees out of moneys appropriated.

1945	Morgan v. Virginia, 328 U.S. 373 (1946)	Reed, Stanley F.	Criminal Law & Procedure; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Virginia Code of 1942, §§ 4097z to 4097dd inclusive. The sections are derived from an act of General Assembly of Virginia of 1930. Acts of Assembly, Va. 1930, p. 343; Morgan v. Virginia, 328 U.S. 373, 374 (1946) ("[A]n act of Virginia, which requires all passenger motor vehicle carriers, both interstate and intrastate, to separate without discrimination the white and colored passengers in their motor buses so that contiguous seats will not be occupied by persons of different races at the same time. A violation of the requirement of separation by the carrier is a misdemeanor. The driver or other person in charge is directed and required to increase or decrease the space allotted to the respective races as may be necessary or proper and may require passengers to change their seats to comply with the allocation. The operator's failure to enforce the provisions is made a misdemeanor.").

1944	Southern Pacific Co. v. Arizona, 325 U.S. 761 (1945)	Stone, Harlan Fiske	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): The Arizona Train Limit Law of 1912, Ariz. Rev. Stat. § 69-119 (1939): An Arizona law that makes it unlawful to operate a train of more than fourteeen passengeer or seventy freight cars.

1943	Pollock v. Williams, 322 U.S. 4 (1944)	Jackson, Robert H.	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Thirteenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Florida Statute of 1941, §§ 817.09 and 817.10: The statute made it a misdemeanor to induce advances with intent to defraud by a promise to perform labor, and further made failure to perform labor for which money had been obtained prima facie evidence of intent to defraud.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1942	Murdock v. Pennsylvania, 319 U.S. 105 (1943)	Douglas, William O.	Advertising, Publishing, & Communications	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Exercise Clause; Free Press Clause; Free Speech Clause

Description of Unconstitutional Provision(s): A city ordinance of Jeannette, Pennsylvania, requiring all persons soliciting merchandise to first obtain a license and pay the applicable fees.

1942	Martin v. Struthers, 319 U.S. 141 (1943)	Black, Hugo L.	Advertising, Publishing, & Communications	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Press Clause; Free Speech Clause

Description of Unconstitutional Provision(s): A city ordinance of Struthers, Ohio, making it unlawful for any person to summon the occupant of a residence for the purpose of distributing an advertisement.

1942	Tot v. United States, 319 U.S. 463 (1943)	Roberts, Owen J.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Section 2(f) of the Federal Firearms Act, ch. 850, 52 Stat. 1250, 1251, 15 U.S.C. § 902(f): Made it unlawful for any fugitive or person convicted of a crime of violence to receive a firearm or ammunitition shipped in interstate or foreign commerce, and made possession of a firearm or ammunitition by any such person presumptive evidence that the firearm or ammunition was received in violation of this Act.

1942	West Virginia State Board of Education v. Barnette, 319 U.S. 624 (1943)	Jackson, Robert H.	Education	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Free Exercise Clause

Description of Unconstitutional Provision(s): A January 9, 1942, resolution of the West Virginia State Board of Education that requred public school pupils to salute the U.S. flag and recite the pledge of allegiance or face expulsion.

1941	Edwards v. California, 314 U.S. 160 (1941)	Byrnes, James F.	Transportation; Immigration	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): § 2615 of the Welfare and Institutions Code of California, which made it unlawful for any person, corporation, officer, or agent to bring or assist a non-resident indigent person into the State, if they were to do so knowingly.

1941	Taylor v. Georgia, 315 U.S. 25 (1942)	Byrnes, James F.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Thirteenth Amendment

Constitutional Clause(s) Invoked: Prohibition Clause

Description of Unconstitutional Provision(s): §§ 7408 and 7409, of Title 26 of the Georgia Code, which allowed for peonage, or forced labor, to occur in some instances.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1941	Skinner v. Oklahoma, 316 U.S. 535 (1942)	Douglas, William O.	Criminal Law & Procedure; Civil Rights	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Habitual Criminal Sterilization Act (act), Okla. Stat. Ann. tit. 57, § 171 et seq., which forced sterilization of criminal offenders "convicted two or more times for crimes 'amounting to felonies involving moral turpitude.'" Skinner v. Oklahoma, 316 U.S. at 536.

1940	Best & Co. v. Maxwell, 311 U.S. 454 (1940)	Reed, Stanley F.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1937 N.C. Sess. Laws 127, § 121(e), which required individuals or companies that were not regular retail merchants in the State of North Carolina and wished to display products in a hotel room or temporarily occupied dwelling for sale to procure a state license beforehand and pay an annual privilege tax of $250.00.

1940	Ex parte Hull, 312 U.S. 546 (1941)	Murphy, Frank	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 2

Constitutional Clause(s) Invoked: Habeas Corpus

Description of Unconstitutional Provision(s): November 1940 prison regulation published by the warden that required all "legal documents, briefs, petitions, motions, habeas corpus proceedings and appeals" to be approved by the institutional welfare office and then referred to parole board's legal investigator. "Documents submitted to [the investigator], if in his opinion are properly drawn, will be directed to the court designated or will be referred back to the inmate."

1940	Wood v. Lovett, 313 U.S. 362 (1941)	Roberts, Owen J.	Real Property Law; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Ark. Act of March 17, 1937 (Ark. Act 264 of 1937): Act 264 of 1937 repealed Ark. Act of March 20, 1935 (Ark. Act 142 of 1935), which prohibited courts in law or equity to set aside the properly conducted sale of any real or personal property for the non-payment of taxes, because of any irregularity, informality, or omission by any officer in the assessment of the property, levying of the taxes, or recordation or related administrative acts.

1939	Schneider v. New Jersey, 308 U.S. 147 (1939)	Roberts, Owen J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Free Press Clause

Description of Unconstitutional Provision(s): An ordinance of the Town of Irvington, New Jersey that prohibited persons from canvassing, soliciting, distributing circulars or other matter, and going door-to-door in the Town of Irvington without first having reported to and received a written permit from the "Chief of Police or the officer in charge of Police Headquarters." The law provided a number of detailed requirements for obtaining a permit and canvassing.

1939	Carlson v. California, 310 U.S. 106 (1940)	Murphy, Frank	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Free Press Clause

Description of Unconstitutional Provision(s): Section 2 of an ordinance of Shasta County, California that made it unlawful for any person to loiter or picket in front of a business in order to encourage others to boycott the business.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1939	Cantwell v. Connecticut, 310 U.S. 296 (1940)	Roberts, Owen J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Conn. Gen. Stat. § 6294 (amended by § 860d in 1937 Supp.), which prohibited solicitation of money or any other valuable thing "for any alleged religious, charitable or philanthropic cause, from other than a member of the organization for whose benefit such person is soliciting or within the county in which such person or organization is located unless such cause shall have been approved by the secretary of the public welfare council." The secretary had authority to determine "whether such cause is a religious one or is a bona fide object of charity or philanthropy and conforms to reasonable standards of efficiency and integrity."

1939	Thornhill v. Alabama, 310 U.S. 88 (1940)	Murphy, Frank	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Free Press Clause

Description of Unconstitutional Provision(s): Ala. Code § 3448 (1923), which forbid loitering or picketing "without a just cause or legal excuse" in front a business in order to encourage others to boycott the business.

1938	Missouri ex rel. Gaines v. Canada, 305 U.S. 337 (1938)	Hughes, Charles E.	Civil Rights; Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Mo. Rev. Stat. § 9622 (1929): A Missouri statute providing aid for African American residents to attend adjacent state institutions of higher education if Lincoln University, the Missouri state institution of higher education for African Americans, could not provide the same classes or other resources as the University of Missouri, which limited admission to white residents.

1938	Gwin, White & Prince, Inc. v. Henneford, 305 U.S. 434 (1939)	Stone, Harlan Fiske	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Wash. Laws 1935, ch. 180, p. 706: A Washington law imposing a tax on gross business income for any business activity conducted within the state.

1938	Hale v. Bimco Trading, Inc., 306 U.S. 375 (1939)	Frankfurter, Felix	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Foreign Commerce Clause

Description of Unconstitutional Provision(s): Florida statute of 1937, § 4151(512-19): A Florida law providing for inspection of all imported cement and which required payment of such inspection at fifteen cents per hundred pounds.

1938	Lanzetta v. New Jersey, 306 U.S. 451 (1939)	Butler, Pierce	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): New Jersey statute of 1934, ch. 155, § 4: A New Jersey statute making it a crime to be a gangster, defined as any person not engaged in any lawful occupation, known to be a member of a gang that consists of two or more persons, who has been convicted at least three times of being a disorderly person or who has been convicted of any crime in any state.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1938	Lane v. Wilson, 307 U.S. 268 (1939)	Frankfurter, Felix	Civil Rights; Elections	State & Local

Constitutional Provision(s) Invoked: Fifteenth Amendment, Section 1

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Okla. Stat. Ann. tit. 26, § 74: An Oklahoma law requiring qualified voters in 1916 to register between April 30 and May 11, with exceptions for those who voted in 1914, and permanently disenfranchising those who failed to register within that time frame.

1938	Hague v. Committee for Industrial Organization, 307 U.S. 496 (1939)	Per Curiam	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Association Clause; Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): A city ordinance of Jersey City, New Jersey requiring a permit from the Director of Public Safety in order to hold a public parade or public assembly on public roadways, in public parks, or in public buildings.

1937	Lovell v. City of Griffin, 303 U.S. 444 (1938)	Hughes, Charles E.	Advertising, Publishing, & Communications	State & Local

Constitutional Provision(s) Invoked: First Amendment

Constitutional Clause(s) Invoked: Free Press Clause

Description of Unconstitutional Provision(s): City of Griffin, Ga. Code §§ 72-401, 72-9901 (1933): A city ordinance prohibiting the distribution of circulars, handbooks, advertising, or literature of any kind within city limits without a permit granted by the city manager.

1937	Connecticut General Life Insurance Co. v. Johnson, 303 U.S. 77 (1938)	Stone, Harlan Fiske	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): California Statutes of 1921, Chapter 22, Sec. 2, Stat. 3664b: A California law permitting the state to levy an annual tax on gross insurance premiums received from business in California, including reinsurance premiums paid to the insurance company outside the state of California.

1937	United States v. Klein, 80 U.S. (13 Wall.) 128 (1872)	Stone, Harlan Fiske	Estates, Gifts, & Trusts	Federal

Constitutional Provision(s) Invoked: Article II, Section 2, Clause 1; Article III

Constitutional Clause(s) Invoked: Separation of Powers Doctrine

Description of Unconstitutional Provision(s): Act of July 12, 1870 (16 Stat. 235): Provision making Presidential pardons inadmissible in evidence in Court of Claims, prohibiting their use by that court in deciding claims or appeals, and requiring dismissal of appeals by the Supreme Court in cases where proof of loyalty had been made otherwise than as prescribed by law.

1936	Binney v. Long, 299 U.S. 280 (1936)	Roberts, Owen J.	Estates, Gifts, & Trusts; Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws c. 65 §2 (1907): Massachusetts law taxing interest in property at different rates when conveyed before or after September 1, 1907, the effective date of the act.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1936	Valentine v. Great Atlantic & Pacific Tea Co., 299 U.S. 32 (1936)	Per Curiam	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Iowa Code c. 329 G-1 (1935) ("Chain Store Tax Act of 1935"): Iowa law "imposing a tax based on gross receipts from sales according to an accumulative graduated scale."

1936	Ingels v. Morf, 300 U.S. 290 (1937)	Stone, Harlan Fiske	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1935 Cal. Stat. 402 ("Caravan" Act): California law requiring a $15 permit for each vehicle being brought into the state for the purposes of selling it, either inside or outside California.

1936	Herndon v. Lowry, 301 U.S. 242 (1937)	Roberts, Owen J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ga. Penal Code §56: Georgia law defining attempt to incite insurrection.

1936	Hartford Steam Boiler Inspection & Insurance Co. v. Harrison, 301 U.S. 459 (1936)	McReynolds, James C.	Insurance	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 1935 Ga. Laws 140: Georgia law requiring insurance policies to be issued through a "resident agent" licensed by the insurance commissioner. The definition of "resident agent" under the statute excluded salaried employees but "include[d] any agents of mutual insurance companies however compensated."

1935	United States v. Constantine, 296 U.S. 287 (1935)	Roberts, Owen J.	Taxes	Federal

Constitutional Provision(s) Invoked: Tenth Amendment; Eighteenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Revenue Act of 1924, 43 Stat. 328, amended by Revenue Act of 1926: levied a special excise tax of $1,000 on each person carrying on the business of a brewer, distiller, wholesale or retail liquor dealer, wholesale or retail dealer in malt liquor, or manufacturer of stills.

1935	Hopkins Federal Savings & Loan Ass'n v. Cleary, 296 U.S. 315 (1935)	Cardozo, Benjamin N.	Civil Procedure; Banking	Federal

Constitutional Provision(s) Invoked: Tenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Home Owners' Loan Act of 1933, § 5(i), 48 Stat. 132, amended by Act of Apr. 27, 1934, §6, 48 Stat. 646: permitted the conversion of state building and loan associations into federal associations.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1935	Colgate v. Harvey, 296 U.S. 404 (1935)	Sutherland, George A.	Business & Corporate Law; Tax Law	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2, Clause 1; Fourteenth Amendment

Constitutional Clause(s) Invoked: Privileges & Immunities

Description of Unconstitutional Provision(s): Vermont Income and Franchise Tax Act of 1931 (Vt. Pub. Laws 1933, § 872 et seq.): imposed a 4 percent tax on income derived from loans made outside the state but exempted income derived from loans made within the state below 5 percent interest per annum.

1935	United States v. Butler, 297 U.S. 1 (1936)	Roberts, Owen J.	Taxes; Transportation	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 1; Article I, Section 8, Clause 3; Tenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Agricultural Adjustment Act of 1933, 48 Stat. 31: provided for the regulation of agricultural production and imposed taxes on certain agricultural commodities.

1935	Rickert Rice Mills, Inc. v. Fontenot, 297 U.S. 110 (1936)	Roberts, Owen J.	Taxes	Federal

Constitutional Provision(s) Invoked: Article I, Section 8

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Agricultural Adjustment Act of 1933, 48 Stat. 31, amended by Act of Aug. 24, 1935, 49 Stat. 750: provided for the assessment and collection of rice processing taxes.

1935	Treigle v. Acme Homestead Ass'n, 297 U.S. 189 (1936)	Roberts, Owen J.	Banking	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10; Fourteenth Amendment

Constitutional Clause(s) Invoked: Contract Clause; Due Process Clause

Description of Unconstitutional Provision(s): 1932 La. Acts 140: abolished the required amount to be set aside by building and loan associations in reserve for withdrawing members and left the amount set aside to the sole discretion of the association's directors.

1935	Grosjean v. American Press Co., 297 U.S. 233 (1936)	Sutherland, George A.	Advertising, Publishing, & Communications; Business & Corporate Law; Criminal Law & Procedure; Taxes	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Press Clause; Due Process Clause

Description of Unconstitutional Provision(s): La. Act. No. 23 (1934): imposed a tax of 2 percent of the gross receipts of every person, firm, association, or corporation engaged in the business of selling advertising or for advertisements to be printed or published in any newspaper, magazine, periodical or publication having a circulation of more than 20,000 copies per week, or displayed and exhibited in the state of Louisiana.

1935	Mayflower Farms, Inc. v. Ten Eyck, 297 U.S. 266 (1936)	Roberts, Owen J.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Milk Control Act of Mar. 31, 1933, N.Y. Laws of 1933, c. 158, amended by N.Y. Laws of 1934, c. 126: granted the privilege of selling milk in New York City at a price one cent below the miniminim price to milk dealers without well-advertised trade names who were in the business before Apr. 10, 1933 and denied that privilege to milk dealers with well-advertised trade names.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1935	Bingaman v. Golden Eagle Western Lines, Inc., 297 U.S. 626 (1936)	Sutherland, George A.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.M. Sess. Laws of 1933, c. 176, §§ 2-3: imposed an excise tax of five cents per gallon upon the sale and use of all gasoline and motor fuel and prohibited any distributor from importing, receiving, using, selling, or distributing any motor fuel unless the distributor held a valid annual license issued by the state Comptroller.

1935	Fisher's Blend Station, Inc. v. State Tax Commission, 297 U.S. 650 (1936)	Stone, Harlan Fiske	Advertising, Publishing, & Communications; Business & Corporate Law; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1933 Wash. Laws, c. 191, § 2: imposed a state occupation tax measured by the gross receipts from radio broadcasting from stations within the state.

1935	International Steel & Iron Co. v. National Surety Co., 297 U.S. 657 (1936)	Roberts, Owen J.	Business & Corporate Law; Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): 1917 Tenn. Pub. Acts, c. 74, amended by 1929 Tenn. Pub. Acts, c. 80: 1929 amendment provided that the Commissioner of Highways might release retroactively the surety on a bond given by a contractor as required by the 1917 Act, without the contractor's consent.

1935	Carter v. Carter Coal Co., 298 U.S. 238 (1936)	Sutherland, George A.	Energy & Utilities; Labor & Employment; Taxes; Transportation	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fifth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): Bituminous Coal Conservation Act of 1935, 49 Stat. 991: imposed an excise tax on the sale or other disposal of all bituminous coal produced within the U.S. and authorized the setting of minimum coal prices.

1935	Ashton v. Cameron County Water Improvement District No. 1, 298 U.S. 513 (1936)	McReynolds, James C.	Bankruptcy	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 4

Constitutional Clause(s) Invoked: Bankruptcy Clause

Description of Unconstitutional Provision(s): Bankruptcy Act of July 1, 1898, c. 541, 30 Stat. 534, amended by Act of May 24, 1934, §§ 78, 79, and 80, 48 Stat. 798: provided provisions for readjustment of municipal indebtedness and granted original jurisdiction to bankruptcy courts in proceedings for the relief of municipal debtors.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1935	Morehead v. New York ex rel. Tipaldo, 298 U.S. 587 (1936)	Butler, Pierce	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): N.Y. Act, Laws of 1933, c. 584: declared it against public policy for any employer to employ any woman at an oppressive or unreasonable wage, defined as a wage that is both less than the fair and reasonable value of the services rendered and less than sufficient to meet the minimum cost of living necessary for health.

1934	Panama Refining Co. v. Ryan, 293 U.S. 388 (1935)	Hughes, Charles E.	Trade	Federal

Constitutional Provision(s) Invoked: Article I, Section 1, Clause 1

Constitutional Clause(s) Invoked: Vesting Clause

Description of Unconstitutional Provision(s): 15 U.S.C. § 709(c) (1933): A provision of the National Industrial Recovery Act authorizing the President to prohibit the transportation of petroleum in interstate and foreign commerce and to issue related regulations, proscribing criminal penalties for any violation.

1934	Perry v. United States, 294 U.S. 330 (1935)	Hughes, Charles E.	Government Operations	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 2; Article I, Section 8, Clause 5

Constitutional Clause(s) Invoked: Borrowing Clause; Coinage Clause

Description of Unconstitutional Provision(s): 31 U.S.C. §§ 462-63 (1933): A Joint Resolution declaring that provisions requiring payment in gold or any particular kind of coin or currency are invalid and providing that any past or future obligation shall be discharged upon payment, dollar for dollar, in any coin or currency which at the time of payment is legal tender for public and private debts.

1934	Cooney v. Mountain States Telephone & Telegraph Co., 294 U.S. 384 (1935)	Hughes, Charles E.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1933 Mont. Laws ch. 174 & 1933-34 Mont. Laws ch. 54: Two statutes levying an annual tax for each telephone instrument used in the conduct of the business of operating or maintaining telephone lines and furnishing telephone service in the state of Montana, as well as proscribing the amount to be paid, date of payment, and other particulars.

1934	Baldwin v. G.A.F. Seelig, Inc., 294 U.S. 511 (1935)	Cardozo, Benjamin N.	Food & Drug	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3;

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): N.Y. Agric. & Mkts. Law § 258-m(4) (McKinney 1933): A provision of the New York Milk Control Act which extended the state's minimum purchase price for milk to purchases from out-of-state dealers, whether or not the milk was repackaged for resale by the distributors, and prohibited the sale of any milk purchased at a price lower than that of New York state.

1934	Stewart Dry Goods Co. v. Lewis, 294 U.S. 550 (1935)	Roberts, Owen J.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 1930 Ky. Acts p. 475: A statute levying a graduated gross sales tax on retail merchants conducting business in the state.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1934	Panhandle Eastern Pipe Line Co. v. State Highway Commission, 294 U.S. 613 (1935)	McReynolds, James C.	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Kan. Stat. Ann. § 68-415 (1933): § 16 of the statute creating the Kansas Highway Commission, which authorized the Commission to require removal of abutments, wires, pipelines, and other fixtures upon state highways to other designated parts of the right of way.

1934	Broderick v. Rosner, 294 U.S. 629 (1935)	Brandeis, Louis D.	Banking; Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 1

Constitutional Clause(s) Invoked: Full Faith & Credit Clause

Description of Unconstitutional Provision(s): 1897 N.J. Laws p. 1656: § 94(b) of the Corporation Act of New Jersey which provided that no proceeding may be maintained in the courts of that State to enforce a stockholder's statutory personal liability arising under the laws of another State, with limited exceptions.

1934	Georgia Railway & Electric Co. v. Decatur, 295 U.S. 165 (1935)	Sutherland, George A.	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1919 Ga. Laws p. 934 & 1924 Ga. Laws p. 534: Two Georgia statutes conferring upon a city within the state power to improve its streets and make assessments for the cost of the improvements against adjacent real estate and against any street railway or other railroad company having tracks running along or across such streets.

1934	Railroad Retirement Board v. Alton Railroad, 295 U.S. 330 (1935)	Roberts, Owen J.	Pensions & Benefits	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fifth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): 45 U.S.C. §§ 201-214 (1934): The Railroad Retirement Act, which established a compulsory retirement and pension system for all carriers subject to the Interstate Commerce Act. The Act mandated contributions from employees and carriers, specified pension amounts based on length of service, and set a mandatory retirement age at 70.

1934	Senior v. Braden, 295 U.S. 422 (1935)	McReynolds, James C.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 1931 Ohio Laws p. 714: A statute to amend various provisions of the Ohio General Code to levy a tax on intangible property.

1934	A.L.A. Schechter Poultry Corp. v. United States, 295 U.S. 495 (1935)	Hughes, Charles E.	Trade	Federal

Constitutional Provision(s) Invoked: Article I, Section 1, Clause 1; Article I, Section 8, Clause 3; Tenth Amendment

Constitutional Clause(s) Invoked: Vesting Clause; Commerce Clause; Separation of Powers Doctrine

Description of Unconstitutional Provision(s): 15 U.S.C. § 703 (1933): A provision of the National Industrial Recovery Act authorizing the President to approve codes of fair competition submitted by trade or industrial associations or groups, the violation of which constituted an unfair method of competition subject to to a $500 fine.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1934	Louisville Joint Stock Land Bank v. Radford, 295 U.S. 555 (1935)	Brandeis, Louis D.	Bankruptcy	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Takings Clause

Description of Unconstitutional Provision(s): 11 U.S.C. § 203(s) (1934): The Frazier-Lemke Act, which allowed certain mortgage holders, including farmers, upon being ajudged bankrupt, to purchase the property at an appraised value with deferred payments or to stay all foreclosure proceedings for a period of five years while retaining possession of the property through deferred rental payments. The Act applied only to debts existing prior to its date of enactment.

1934	W.B. Worthen Co. v. Kavanaugh, 295 U.S. 56 (1935)	Cardozo, Benjamin N.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): 1933 Ark. Acts 868, 790, 375: Three statutes of the Arkansas General Assembly to amend the procedure for mortgage bond defaults including an extension for repayment, decreased penalties, lower interest rates, and heightened notice requirements.

1933	Southern Railway v. Commonwealth of Virginia ex rel. Shirley, 290 U.S. 190 (1933)	McReynolds, James C.	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1930 Va. Acts 74: Virginia law giving power to state highway commissioner to demand railroad companies build new crossings when he deemed it necessary for public safety, which provided no notice to a company or hearing and no means of review

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1933	United States v. Chambers, 291 U.S. 217 (1934)	Hughes, Charles E.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Twenty-First Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Provisions of the National Prohibition Act that prohibited the possession or transportation of intoxicating liquor and conspiracies to possess or transport liquor.

1933	Booth v. United States, 291 U.S. 339 (1934)	Roberts, Owen J.	Government Operations	Federal

Constitutional Provision(s) Invoked: Article III

Constitutional Clause(s) Invoked: Compensation Clause

Description of Unconstitutional Provision(s): Independent Offices Appropriation Act of June 16, 1933, Sec. 13. Federal act reducing a retired judge's salary by 15% for the fiscal year 1933.

1933	Morrison v. California, 291 U.S. 82 (1934)	Cardozo, Benjamin N.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Section 9a of the California Alien Land Law, as amended in 1927, and Section 1983 of the California Code of Civil Procedure, which placed the burden of disproving guilt on a defendant by requiring him to prove that he was a U.S. citizen.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1933	Hartford Accident & Indemnity Co. v. Delta & Pine Land Co., 292 U.S. 143 (1934)	Roberts, Owen J.	Insurance	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1930 Mississippi Code, Sec. 5131 and 2294 Mississippi state law declaring "[a]ll contracts of insurance on property, lives, or interests in this state shall be deemed to be made therein."

1933	Lynch v. United States, 292 U.S. 571 (1934)	Brandeis, Louis D.	Insurance	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Takings Clause

Description of Unconstitutional Provision(s): 1933 Economy Act, Sec. 17 Repealed "[a]ll laws granting or pertaining to yearly renewable term insurance."

1932	Anglo-Chilean Nitrate Corp. v. Alabama, 288 U.S. 218 (1933)	Butler, Pierce	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 2; Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Import Clause; Commerce Clause

Description of Unconstitutional Provision(s): 1927 Ala. Laws 176, § 54, which required certain out-of-state companies to pay an annual franchise tax based on the amount of capital employed in this State.

1932	Louis K. Liggett Co. v. Lee, 288 U.S. 517 (1933)	Roberts, Owen J.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 1931 Fla. Laws c. 15624, § 5, a state licensing statute that imposed an increased tax if the owner's stores were located in more than one county.

1931	First National Bank v. Maine, 284 U.S. 312 (1932)	Sutherland, George A.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Me. Rev. Stat. tit. 69, § 1, 25 (1916) & Me. Rev. Stat. tit. 51, § 37 (1916): A Maine tax levied on all property in Maine, and any interest therein, whether the owner of such property was domiciled in Maine or not, and whether the property was tangible or intangible. The statutes directed non-residents to pay the state's attorney general.

1931	State Tax Commission v. Interstate Natural Gas Co., 284 U.S. 41 (1931)	Holmes, Oliver Wendell	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1930 Miss. Gen. Laws, Ch. 88: A statute that assessed a state privilege tax.

1931	Smiley v. Holm, 285 U.S. 355 (1932)	Hughes, Charles E.	Elections; Government Operations	State & Local

Constitutional Provision(s) Invoked: Article I, Section 4, Clause 1

Constitutional Clause(s) Invoked: Time, Places, & Manner of Elections Clause

Description of Unconstitutional Provision(s): 1931 Minn. Laws p. 640: House File No. 1456, a bill to redraw the boundary lines of eight congressional districts following the 1930 Census.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1931	Coombes v. Getz, 285 U.S. 434 (1932)	Sutherland, George A.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1; Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Contract Clause; Due Process Clause

Description of Unconstitutional Provision(s): N/A?

1930	Furst & Thomas v. Brewster, 282 U.S. 493 (1931)	Hughes, Charles E.	Business & Corporate Law; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1907 Ark. Acts 744: provided that all foreign companies and corporations file incorporation documents, a statement of assets and liabilities, and the name of an agent upon whom process could be served with the Ark. Sec. of State. Companies that failed to comply were prohibited from making any enforceable contracts within the state of Arkansas.

1930	Coolidge v. Long, 282 U.S. 582 (1931)	Butler, Pierce	Estates, Gifts, & Trusts; Real Property; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1; Fourteenth Amendment

Constitutional Clause(s) Invoked: Contract Clause; Due Process Clause

Description of Unconstitutional Provision(s): 1921 Mass. Gen. Laws, c. 65, § 1: provided that all property within the jurisdiction of the State that passed by deed, grant, or gift, made or intended to take effect in possession or enjoyment after the death of the grantor, or transferred to any person absolutely or in trust, shall be subject to a succession tax.

1930	Interstate Transit Co. v. Lindsey, 283 U.S. 183 (1931)	Brandeis, Louis D.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Tenn. Act of 1927, c. 89, § 4: imposed a privilege tax on motor buses, graduated according to carrying capacity.

1930	Stromberg v. California, 283 U.S. 359 (1931)	Hughes, Charles E.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Cal. Penal Code § 403a: provided that anyone displaying a red flag in a public place or in a meeting place (a) as a sign, symbol or emblem of opposition to organized government or (b) as an invitation or stimulus to anarchistic action or (c) as an aid to propaganda that is of a seditious character is guilty of a felony.

1930	Smith v. Cahoon, 283 U.S. 553 (1931)	Hughes, Charles E.	Civil Procedure; Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 1929 Fla. Laws, c. 13700: required every auto transportation company to apply for a certificate of public convenience and necessity and pay a tax but exempted certain classes of private carriers while subjecting other private carriers to the same requirements as common carriers.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1930	Near v. Minnesota ex rel. Olson, 283 U.S. 697 (1931)	HUGHES, CHARLES E.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: First Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: Free Press Clause; Free Speech Clause; Due Process Clause

Description of Unconstitutional Provision(s): Minn. Stat. §§ 10123-1 to 10123-3: provided that one who engages in the business of regularly and customarily producing or publishing a malicious, scandalous, and defamatory newspaper, magazine, or other periodical is guillty of a nuisance and authorized suits in the name of the State to enjoin their publishers from future violations.

1928	Foster-Fountain Packing Co. v. Haydel, 278 U.S. 1 (1928)	BUTLER, PIERCE	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1926 La. Acts 103, which regulated taking of shrimp in Louisiana waters. It granted "the right to take, can, pack and dry shrimp to residents and also to corporations, domiciled or organized in the State, operating a canning or packing factory or drying platform therein." The Act made it unlawful, among other things, "to export from the State any shrimp from which the heads and hulls have not been removed" and "to ship unshelled shrimp to any point within the State."

1928	Louis K. Liggett Co. v. Baldridge, 278 U.S. 105 (1928)	SUTHERLAND, GEORGE A.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Pa. Cons. Stat. §§ 9377a-1, 9377a-2 (1927), which required new pharmacies and drug stores to be owned only by a licensed pharmacist, and, in the case of corporations, associations and copartnerships, required that all the partners or members thereof shall be licensed pharmacists.

1928	Washington ex rel. Seattle Title Trust Co. v. Roberge, 278 U.S. 116 (1928)	BUTLER, PIERCE	Real Property	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Section 3(c) of a City of Seattle Zoning Ordinance (No. 45382, 1923) was amended by an ordinance adopted in 1925 (No. 49179) to state: "A philanthropic home for children or for old people shall be permitted in First Residence District when the written consent shall have been obtained of the owners of two-thirds of the property within four hundred (400) feet of the proposed building."

1928	Johnson v. Haydel, 278 U.S. 16 (1928)	BUTLER, PIERCE	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1926 La. Acts 258. "An Act [t]o declare all oysters and parts thereof in the waters of the State to be the property of the State of Louisiana, and to provide the manner and extent of their reduction to private ownership; to encourage, protect, conserve, regulate and develop the Oyster industry of the State of Louisiana . . .."

1928	Williams v. Standard Oil Co., 278 U.S. 235 (1929)	SUTHERLAND, GEORGE A.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1927 Tenn. Pub. Acts 53, which fixed the prices at which gasoline could be sold within the state.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1928	Cudahy Packing Co. v. Hinkle, 278 U.S. 460 (1929)	McReynolds, James C.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): Wash. Rem. Comp. Stat. § 3836 (amended by ch. 149, Extraordinary Session, 1925). Mandates that every local and foreign corporation required by law to file its articles with the Secretary of State shall pay graduated filing fees, not above $ 3,000, reckoned upon its authorized capital stock. Wash. Rem. Comp. Stat. § 3841, (amended by ch. 149, Extraordinary Session, 1925). Requires foreign and domestic corporations to pay annual license fees, not above $ 3,000, reckoned upon authorized capital stock.

1928	Frost v. Corporation Commission, 278 U.S. 515 (1929)	Sutherland, George A.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Okla. Comp. Stat. § 3714 (1915) (amended by 1925 Sess. Laws ch. 109). No gin can be operated without a license from the commission, and in order to secure such license there must be a satisfactory showing of public necessity; "[p]rovided, that on the presentation of a petition for the establishment of a gin to be run co-operatively signed by one hundred (100) citizens and tax payers of the community where the gin is to be located, the Corporation Commission shall issue a license for said gin."

1928	Manley v. Georgia, 279 U.S. 1 (1929)	Butler, Pierce	Banking; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Banking Act of 1919, art. XX, § 28, which deemed every bank insolvency to be fraudulent and made the president directors guilty of a crime unless they could show that the affairs of the bank had been fairly and legally administered, and "generally, with the same care and diligence that agents receiving a commission for their services are required and bound by law to observe."

1928	Helson & Randolph v. Kentucky, 279 U.S. 245 (1929)	Sutherland, George A.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1924 Ky. Acts ch. 120, § 1, which imposed a state tax of three cents on the wholesale sale of gasoline in the commonwealth. The tax was amended by 1926 Ky. Acts. ch. 169 to raise the tax from three cents to five cents a gallon.

1928	Macallen Co. v. Massachusetts, 279 U.S. 620 (1929)	Sutherland, George A.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8; Article I, Section 10

Constitutional Clause(s) Invoked: Borrowing Clause; Contract Clause

Description of Unconstitutional Provision(s): Mass. Gen. Laws ch. 63, § 32 (amended by Stat. 1923, ch. 424, § 1), which effectively imposed a tax on income from federal bonds and securities in addition to income from county and municipal bonds that were exempt from tax under a state law

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1928	Western & Atlantic Railroad v. Henderson, 279 U.S. 639 (1929)	Butler, Pierce	Torts	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ga. Civ. Code § 2780. "A railroad company shall be liable for any damages done to persons, stock, or other property by the running of the locomotives, or cars, or other machinery of such company, or for damage done by any person in the employment and service of such company, unless the company shall make it appear that their agents have exercised all ordinary and reasonable care and diligence, the presumption in all cases being against the company."

1927	Wuchter v. Pizzutti, 276 U.S. 13 (1928)	Taft, William Howard	Civil Procedure; Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1924 N.J. Laws, c. 232: provided for service of process on non-residents of the state via the N.J Secretary of State in suits for injury by the negligent operation of automobiles on its highways.

1927	Delware, Lackawanna & Western Railroad v. Town of Morristown, 276 U.S. 182 (1928)	Butler, Pierce	Civil Procedure; Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Oct. 22, 1924 municipal ordinance of Morristown, NJ: declared the space set aside by a railroad for the exclusive use of a single taxicab company to be an "additional public hackstand" and prohibited the parking of vehicles in other parts of the railroad station driveway.

1927	Sprout v. City of South Bend, 277 U.S. 163 (1928)	Brandeis, Louis D.	Business & Corporate Law; Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 1921 South Bend, Indiana municipal ordinance: prohibited the operation on its streets of any motor bus not licensed by the city.

1927	Louisville Gas & Electric Co. v. Coleman, 277 U.S. 32 (1928)	Sutherland, George A.	Estates, Gifts, & Trusts; Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 1922 Ky. Stat. § 4019a-9: imposed a mortgage tax on deeds of trust except those instruments whose indebtedness matured within five years and all mortages executed to building and loan associations.

1926	Hanover Fire Insurance Co. v. Carr, 272 U.S. 494 (1926)	Taft, William Howard	Insurance; Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 1925 Ill. Laws, p. 1405, c. 73, s. 159: Illinois state law imposing a tax on the net receipts of foreign insurance companies.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1926	Myers v. United States, 272 U.S. 52 (1926)	Taft, William Howard	Government Operations	Federal

Constitutional Provision(s) Invoked: Article II, Section 1; Article II, Section 2

Constitutional Clause(s) Invoked: Vesting Clause; Appointments Clause

Description of Unconstitutional Provision(s): Tenure of Office Act of 1867, § 6: Federal act prohibiting a president from removing certain appointed officials without the advice and consent of the Senate.

1926	Ottinger v. Brooklyn Union Gas Co., 272 U.S. 579 (1926); Ottinger v. Consolidated Gas Co. of New York, 272 U.S. 576 (1926)	McReynolds, James C.	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Laws of New York 1923, Act of June 2, 1923, c. 899: New York state law limiting the rate gas companies can charge for gas.

1926	Farrington v. Tokushige, 273 U.S. 284 (1927)	McReynolds, James C.	Education	Federal; State & Local

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1920 Special Session, Legislature of Hawaii, Act 30: Law governing operation of foreign language schools in the Territory of Hawaii.

1926	Di Santo v. Commonwealth of Pennsylvania, 273 U.S. 34 (1927)	Butler, Pierce	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1919 Pa. Laws 1003, §1: Pennsylvania state law requiring anyone selling steam ship tickets to obtain a license for an annual fee.

1926	Tyson & Brother - United Theatre Ticket Offices, Inc. v. Banton, 273 U.S. 418 (1927)	Sutherland, George A.	Trade; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1922 N. Y. Laws, s. 168, c. 590: New York state law fixing the maximum amount that could be charged for reselling tickets to public performances.

1926	Tumey v. State of Ohio, 273 U.S. 510 (1927)	Taft, William Howard	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Village of North College Hill Ordinance No. 125: Local ordinance providing that the mayor and other local officials shall be paid a portion of fees collected from defendants convicted of violating the state's Prohibition Act.

1926	Nixon v. Herndon, 273 U.S. 536 (1927)	Holmes, Oliver Wendell	Civil Rights; Elections	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Texas, 1923, Art. 3093-a: Texas state law declaring that African-Americans were ineligible to participate in a Democratic party primary election held in the State of Texas.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1926	Uihlein v. Wisconsin, 273 U.S. 642 (1926)	Per Curiam	Estates, Gifts, & Trusts; Tax Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1919 Wis. Stat. §1087-1: Wisconsin state law treating any transfer of property within six years of a person's death as having been made in contemplation of death.

1926	Fairmont Creamery Co. v. State of Minnesota, 274 U.S. 1 (1927)	McReynolds, James C.	Food & Drug; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1921 Minn. Laws, c. 305, s. 1: Minnesota state law prohibiting the purchase of dairy products at different rates in different localities after adjusting for transportation costs.

1926	Cline v. Frink Dairy Co., 274 U.S. 445 (1927)	Taft, William Howard	Trade	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1913 Colorado Anti-Trust Act, c. 161: Colorado state law attempting to prevent monopolization of the dairy industry.

1926	Power Manufacturing Co. v. Saunders, 274 U.S. 490 (1927)	Van Devanter, Willis	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): 1921 Crawford & Moses' Digest, §§ 1152, 1171, 1176, 1829: Arkansas state law requiring actions against domestic corporations to be brought only in counties where they do business or where chief officers resides. Actions against foreign corporations can be brought in any county in the state regardless of where they do business or where their chief officers reside.

1926	Nichols v. Coolidge, 274 U.S. 531 (1927)	McReynolds, James C.	Taxes; Estates, Gifts, & Trusts	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of February 24, 1919 (40 Stat. 1097, § 402(c)): That part of the estate tax law providing that the "gross estate" of a decedent should include value of all property "to the extent of any interest therein of which the decedent has at any time made a transfer or with respect to which he had at any time created a trust, in contemplation of or intended to take effect in possession or enjoyment at or after his death (whether such transfer or trust is made or created before or after the passage of this act), except in case of a bona fide sale," as applied to a transfer of property made prior to the act and intended to take effect in possession or enjoyment at death of grantor, but not in fact testamentary or designed to evade taxation.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1925	Connally v. General Construction Co., 269 U.S. 385 (1926)	Sutherland, George A.	Workers' Compensation & Social Security	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Okla. Comp. Stat. § §7255 and § 7257 (1921): Section 7255 created "an eight-hour day for all persons employed by or on behalf of the state" and provided "that not less than the current rate of per diem wages in the locality where the work is performed shall be paid to laborers, workmen, mechanics, prison guards, janitors in public institutions, or other persons so employed by or on behalf of the State, . . . and laborers, workmen, mechanics, or other persons employed by contractors or subcontractors in the execution of any contract or contracts with the State, . . . shall be deemed to be employed by or on behalf of the State, . . ." Section 7257 imposed penalties for violations.

1925	Browning v. Hooper, 269 U.S. 396 (1926)	Butler, Pierce	Real Property; Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Complete Tex. St. 1920, or Vernon's Sayles' Ann. Civ. St. 1914, art. 627, which authorized any county, political subdivision or defined district of a county to issue bonds up to 25% of the total assessed value of real property in the district, for the "construction, maintenance and operation" of roads and to levy taxes to pay the bonds. The statute allowed a group of taxpayers to designate territory as a road district for purposes of the tax.

1925	Trusler v. Crooks, 269 U.S. 475 (1926)	McReynolds, James C.	Taxes	Federal

Constitutional Provision(s) Invoked: Article I, Section 8

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): § 3 of The Future Trading Act, 1921, c. 86, 42 Stat. 187: "purport[ed] to impose a tax of 20 cents per bushel upon all privileges or options for contracts of purchase or sale of grain, known to the trade as 'privileges,' 'bids,' 'offers,' 'puts and calls,' 'indemnities,' or 'ups and downs. . . .' " Id. at 475 (Lexis syllabus).

1925	Schlesinger v. Wisconsin, 270 U.S. 230 (1926)	McReynolds, James C.	Estates, Gifts, & Trusts; Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Wis. Stat. § 72.01, which established a conclusive statutory presumption that a decedent's gifts made within six years of death were made "in contemplation of death," subjecting such gifts to inheritance taxes.

1925	Weaver v. Palmer Bros. Co., 270 U.S. 402 (1926)	Butler, Pierce	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): An Act of the legislature of Pennsylvania, (Pa. Ls. 1923, c. 802), regulated the manufacture, sterilization and sale of bedding, and forbade the use of a material called "shoddy."

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1925	Fidelity & Deposit Co. v. Tafoya, 270 U.S. 426 (1926)	Holmes, Oliver Wendell	Insurance	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): N.M. Code of 1915 § 2820 (amended 1921), which prohibited "any insurance company authorized to do business in New Mexico" from paying "either directly or indirectly, any fee, brokerage or other emolument of any nature to any person, firm or corporation not a resident of the State of New Mexico, for the obtaining, placing or writing of any policy or policies of insurance covering risks in New Mexico."

1925	Yu Cong Eng v. Trinidad, 271 U.S. 500 (1926)	Taft, William Howard	Civil Rights	Federal

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Chinese Bookkeeping Act, Act No. 2972: this Act of the Philippine Legislature prohibited any Chinese merchant from keeping account books in any language other than English, Spanish, or a Philippine dialect.

1925	Frost & Frost Trucking Co. v. Railroad Commission of California, 271 U.S. 583 (1926)	Sutherland, George A.	Business & Corporate Law; Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Auto Stage and Truck Transportation Act of California, c. 213 (1917), which required private carriers by car for hire to become common carriers in order to operate on the state's highways.

1924	Air-Way Electric Appliance Corp. v. Day, 266 U.S. 71 (1924)	Butler, Pierce	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Commerce Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 1921 Ohio Laws p. 277: An Ohio statute that imposed a franchise tax on the stock of foreign corporations conducting business in the state.

1924	Buck v. Kuykendall, 267 U.S. 307 (1925)	Brandeis, Louis D.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Wash. Laws 1921, c. 111, § 4: A Washington statute that prohibited common carriers for hire from using state highways without having first obtained from the Director of Public Works a certificate declaring that public convenience and necessity require such operation.

1924	George W. Bush & Sons Co. v. Maloy, 267 U.S. 317 (1925)	Brandeis, Louis D.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1922 Md. Laws c. 401, § 4: A Maryland statute that prohibited the use of state highways by common carriers without a permit, charging the Public Service Commission with the authority to inspect permit applications for the welfare and convenience of the public.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1924	Charles Wolff Packing Co. v. Court of Industrial Relations, 267 U.S. 552 (1925)	Van Devanter, Willis	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1920 Kan. Sess. Laws c. 29: The Industrial Relations Act which prescribed minimum wages, maxmimum hours, overtime pay, as well as other working conditions and authorized the Court of Industrial Relations to settle labor disputes covered by the law.

1924	Shafer v. Farmers' Grain Co., 268 U.S. 189 (1925)	Van Devanter, Willis	Food & Drug; Government Operations	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1923 N.D. Laws p. 549: The North Dakota Grain Grading Act, a statute that established a uniform system of grades, weights, and measures for certain farm products, created a state official charged with the authority to oversee that system and enforce the provisions of the law, and forbid discriminatory and fradulent business practices.

1924	Real Silk Hosiery Mills v. Portland, 268 U.S. 325 (1925)	McReynolds, James C.	Business & Corporate Law; Government Operations	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A May 16, 1923 ordinance of Portland, Oregon which required every person who went from place to place taking orders for goods for future delivery and received payment or any deposit of money in advance to secure a license and file a bond.

1924	Frick v. Pennsylvania, 268 U.S. 473 (1925)	Van Devanter, Willis	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1919 Pa. Laws p. 521: Act No. 258, a Pennsylvania statute levying an estate tax on the transfer of all real and personal property in cases where the property is not located in or otherwise within the jurisdiction of the state.

1924	Miles v. Graham, 268 U.S. 501 (1925)	McReynolds, James C.	Taxes	Federal

Constitutional Provision(s) Invoked: Article III, Section 1

Constitutional Clause(s) Invoked: Compensation Clause

Description of Unconstitutional Provision(s): Act of February 24, 1919 (40 Stat. 1065, § 213, in part): Provision of the Revenue Act of 1918 which provided that "for the purposes of the title . . . the term 'gross income' . . . includes gains, profits, and income derived from salaries, wages, or compensation for personal service (including in the case of . . . judges of the Supreme and inferior courts of the United States . . . the compensation received as such)."

1924	Pierce v. Society of Sisters, 268 U.S. 510 (1925)	McReynolds, James C.	Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1923 Or. Laws p. 9: The Compulsory Education Act, an Oregon law that mandated public education for children between the ages of 8-16 with limited exceptions.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1923	Washington v. W. C. Dawson & Co., 264 U.S. 219 (1924)	McReynolds, James C.	Maritime Law; Workers' Compensation & Social Security	Federal

Constitutional Provision(s) Invoked: Article III, Section 2

Constitutional Clause(s) Invoked: Admiralty & Maritime Jurisdiction

Description of Unconstitutional Provision(s): Act of Congress June 10, 1922, ch. 216, 42 Stat. 634: The Act permitted state workers' compensation laws to apply to cases in maritime and admiralty jurisdiction.

1923	Jay Burns Baking Co. v. Bryan, 264 U.S. 504 (1924)	Butler, Pierce	Food & Drug	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1921 Neb. Laws, ch. 2, p. 56: Nebraska state law required bread to be sold only in certain weight increments and fixed the tolerance for underweight and overweight loaves.

1922	Chicago & Northwest Railway v. Nye Schneider Fowler Co., 260 U.S. 35 (1922)	Taft, William Howard	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Portions of 1919 Neb. Laws 134, amending Neb. Reb. Stat. § 6063 (1913), which imposed liability for attorney's fees, as determined by the court, on a common carrier railroad when the claimant prevailed against it.

1922	Pennsylvania Coal Co. v. Mahon, 260 U.S. 393 (1922)	Holmes, Oliver Wendell	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1921 Pa. Laws 1198 (Kohler Act), which prohibited mining of coal if it would cause subsidence of a residential property above the mine.

1922	Columbia Railway Gas & Electric Co. v. South Carolina, 261 U.S. 236 (1923)	Sutherland, George A.	Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): 1917 S.C. Acts, p. 348, which converted a covenant in a prior legislative contract requring the appellant to complete a canal to the Congaree river "as soon as is practicable" into a "condition subsequent and [imposed] as a penalty for its violation the forfeiture of an extensive and valuable property."

1922	Keller v. Potomac Electric Power Co., 261 U.S. 428 (1923)	Taft, William Howard	Civil Procedure	Federal

Constitutional Provision(s) Invoked: Article III, Section 2, Clause 1

Constitutional Clause(s) Invoked: Supreme Court Jurisdiction

Description of Unconstitutional Provision(s): Act of March 4, 1913 (37 Stat. 988, part of par. 64):Provision of the District of Columbia Public Utility Commission Act authorizing appeal to the United States Supreme Court from decrees of the District of Columbia Court Appeals modifying valuation decisions of the Utilities Commission would extend the appellate jurisdiction of the Supreme Court to cases not strictly judicial within the meaning of Article III, § 2.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1922	Phipps & Phipps v. Cleveland Referee Co., 261 U.S. 449 (1923)	McKenna, Joseph	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1915 Ohio Laws, vol. 105, p. 309, which required oil intended for sale in Ohio for illumination purposes to be inspected and imposed fees to pay for inspection.

1922	Adkins v. Children's Hospital, 261 U.S. 525 (1923)	Sutherland, George A.	Contracts; Labor & Employment	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of September 19, 1918 (40 Stat. 960): That part of the Minimum Wage Law of the District of Columbia which authorized the Wage Board "to ascertain and declare . . . (a) Standards of minimum wages for women in any occupation within the District of Columbia, and what wages are inadequate to supply the necessary cost of living to any such women workers to maintain them in good health and to protect their morals . . . " would interfere with the Fifth Amendment substantive due process interest in freedom of contract.

1922	Davis v. Farmers Cooperative Equity Co., 262 U.S. 312 (1923)	Brandeis, Louis D.	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1913 Minn. Laws, ch. 218, p. 274, which provided that "any foreign corporation having an agent in this state for the solicitation of freight and passenger traffic or either thereof over its lines outside of this state, may be served with summons by delivering a copy thereof to such agent."

1922	Meyer v. Nebraska, 262 U.S. 390 (1923)	McReynolds, James C.	Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1919 Neb. Laws, ch. 249, which prohibited anyone from teaching any subject in any school in any language other than English unless the student had successfully passed eighth grade.

1922	Bartels v. Iowa, 262 U.S. 404 (1923)	McReynolds, James C.	Education	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1919 Iowa Acts, ch. 198, which required all secular subjects in all schools to be taught in English except for foreign language instruction in courses above the eighth grade. 1919 Ohio Laws, 614, which required certain classes to be taught in English and prohibited teaching German to any student under the eighth grade. 1921 Neb. Laws, ch. 61, which declared English the official language of the state and required all official proceedings and classes in any school to be taught in English except for foreign language instruction in courses above the eighth grade.

1922	Charles Wolff Packing Co. v. Court of Industrial Relations, 262 U.S. 522 (1923)	Taft, William Howard	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): 1920 Kan. Spec. Sess. ch. 29 (Industrial Relations Act), which declared certain industries as clothed with public interest and created an industrial court to establish wages on its own initiative or after consideration of a conflict between employers and employees.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1922	Kentucky Finance Corp. v. Paramount Auto Exchange Corp., 262 U.S. 544 (1923)	Van Devanter, Willis	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): Wis. Stat., sec. 4096, subdiv. 7; sec. 4097, subdiv. 2 (1917), which provided that officers of a foreign corporation could be ordered for examination in any county while other subsections provided individuals could be examined only in the county where they resided or where they were served.

1922	Pennsylvania v. West Virginia, 262 U.S. 553 (1923)	Van Devanter, Willis	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): 1919 W. Va. Acts, ch. 71, which gave preferential treatment to natural gas customers inside the state and decreased the amount of gas available for sale to neighboring states.

1921	Truax v. Corrigan, 257 U.S. 312 (1921)	Taft, William Howard	Civil Rights; Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): Ariz. Rev. Stat. § 1464 (1913), which prohibited state courts from issuing injunctions in cases between employers and employees that involved a dispute concerning terms or conditions of employment, subject to certain exceptions.

1921	Terral v. Burke Construction Co., 257 U.S. 529 (1922)	Taft, William Howard	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article III, Section 2; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Ark. Act of May 13, 1907, § 1, which authorized the Secretary of State to revoke a corporation's license to do business in the state if the company removed a suit to federal court or brought a lawsuit in federal court against an Arkansas citizen.

1921	Newton v. Consolidated Gas Co., 258 U.S. 165 (1922)	McReynolds, James C.	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment; Fourteeenth Amendment

Constitutional Clause(s) Invoked: Takings Clause; Due Process Clause

Description of Unconstitutional Provision(s): 1906 N.Y. Laws, c. 125, which fixed the natural gas rate at eighty cents per thousand cubic feet.

1921	Forbes Pioneer Boat Line v. Board of Commissioners, 258 U.S. 338 (1922)	Holmes, Oliver Wendell	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10; Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Fl. Acts of 1919, c. 7865, which purported to validate retroactively the collection of tolls for passage through a canal lock.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1921	United States v. Moreland, 258 U.S. 433 (1922)	McKenna, Joseph	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Grand Jury Clause

Description of Unconstitutional Provision(s): Act of June 18, 1912 (37 Stat. 136, § 8): Part of § 8 giving Juvenile Court of the District of Columbia (proceeding upon information) concurrent jurisdiction of desertion cases (which were, by law, punishable by fine or imprisonment in the workhouse at hard labor for 1 year), held invalid under the Fifth Amendment, which gives right to presentment by a grand jury in case of infamous crimes.

1921	Lemke v. Farmers Grain Co., 258 U.S. 50 (1922)	Day, William R.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): North Dakota Grain Grading and Inspection Act, 1919 N.D. Laws ch. 138, which required purchasers of grain to obtain a license and pay a license fee and act under a defined system of grading, inspection, and weighing, and provided that grain could only be purchased subject to the power of the state grain inspector to determine the profit margin realized by the buyer.

1921	Lemke v. Homer Farmers Elevator Co., 258 U.S. 65 (1922)	Day, William R.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): North Dakota Grain Grading and Inspection Act, 1919 N.D. Laws ch. 138, which required purchasers of grain to obtain a license and pay a license fee and act under a defined system of grading, inspection, and weighing, and provided that gain could only be purchased subject to the power of the state grain inspector to determine the profit margin realized by the buyer.

1921	Bailey v. Drexel Furniture Co. (Child Labor Tax Case), 259 U.S. 20 (1922)	Taft, William Howard	Taxes	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 1; Tenth Amendment

Constitutional Clause(s) Invoked: Taxing Power; Federalism

Description of Unconstitutional Provision(s): Act of February 24, 1919, title XII (40 Stat. 1138, entire title): The Child Labor Tax Act, providing that "every person . . . operating . . . any . . . factory . . . in which children under the age of 14 years have been employed or permitted to work . . . shall pay . . . in addition to all other taxes imposed by law, an excise tax equivalent to 10 percent of the entire net profits received . . . for such year from the sale . . . of the product of such . . . factory . . . ," held beyond the taxing power under Article I, § 8, clause 1, and an infringement of state authority.

1921	Houston v. Southwestern Bell Telephone Co., 259 U.S. 318 (1922)	Clarke, John H.	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Takings Clause

Description of Unconstitutional Provision(s): 1909 Houston ordinance, which prescribed rates for telephone service.

1921	Hill v. Wallace, 259 U.S. 44 (1922)	Taft, William Howard	Taxes	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Tenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Future Trading Act § 4, c. 86, 42 Stat. 187 (Aug. 24, 1921), which imposed a tax of 20 cents a bushel on all contracts for the sale of grain for future delivery but excepted from its application sales on boards of trade designated as contract markets by the Secretary of Agriculture, on fulfillment by such boards of certain conditions and requirements.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1920	Weeds, Inc. v. United States, 255 U.S. 109 (1921)	White, Edward D.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of October 22, 1919 (41 Stat. 298, § 2), amending Act of August 10, 1917 (40 Stat. 277, § 4): Section 4 of the Lever Act, making it unlawful "to conspire, combine, agree, or arrange with any other person to . . . exact excessive prices for any necessaries" was vague.

1920	United States v. L. Cohen Grocery Co., 255 U.S. 81 (1921)	White, Edward D.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Fifth Amendment; Sixth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of October 22, 1919 (41 Stat. 298, § 2), amending Act of August 10, 1917 (40 Stat. 277, § 4): Section 4 of the Lever Act, making it "unlawful for any person willfully . . . to make any unjust or unreasonable rate or charge in handling or dealing in or with any necessaries" was vague.

1920	Bank of Minden v. Clement, 256 U.S. 126 (1921)	McReynolds, James C.	Insurance	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): La. Act No. 189 of 1914, which exempted life insurance proceeds from the debts of the insured when the policies were made payable to the decedent's estate

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1920	Newberry v. United States, 256 U.S. 232 (1921)	McReynolds, James C.	Elections	Federal

Constitutional Provision(s) Invoked: Article I, Section 4, Clause 1; Seventeenth Amendment

Constitutional Clause(s) Invoked: Elections Clause

Description of Unconstitutional Provision(s): Act of August 19, 1911 (37 Stat. 28): A provision in § 8 of the Federal Corrupt Practices Act fixing a maximum authorized expenditure by a candidate for Senator "in any campaign for his nomination and election" in a primary election, held not supported by Article I, § 4, giving Congress power to regulate the manner of holding elections for Senators and Representatives.

1920	Bethlehem Motors Corp. v. Flynt, 256 U.S. 421 (1921)	McKenna, Joseph	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): 1917 N.C. Sess. Laws § 72, ch. 231, which provided that every manufacturer of automobiles engaged in the business of selling the same in the state shall pay to the State Treasurer a tax of $500 and obtain a license for conducting such business. If the manufacturer did not pay the license tax before selling or offering for sale any automobile, any person or corporation engaged in selling automobiles in the state had to pay the tax. The section further provided that upon filing with the State Treasurer a sworn statement showing that at least three-fourths of the entire assets of the manufacturer were invested in bonds of the state or any of its municipalities or properties, the tax required under this section would be reduced to one-fifth, or $100.

1919	City of Los Angeles v. Los Angeles Gas Corp., 251 U.S. 32 (1919)	McKenna, Joseph	Business	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Los Angeles ordinance authorizing city to establish lighting system of its own could not effect removal of fixtures of a lighting company occupying streets pursuant to rights granted by a prior franchise without paying compensation required by Due Process Clause.

continues

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1919	Eisner v. Macomber, 252 U.S. 189 (1920)	Pitney, Mahlon R.	Federalism	Federal

Constitutional Provision(s) Invoked: Article I, Section 2, Clause 3; Article I, Section 9, Clause 4; Sixteenth Amendment

Constitutional Clause(s) Invoked: Enumeration Clause

Description of Unconstitutional Provision(s): Act of September 8, 1916 (39 Stat. 757, § 2(a), in part): Provision of the income tax law of 1916, that a "stock dividend shall be considered income, to the amount of its cash value," held invalid (in spite of the Sixteenth Amendment) as an attempt to tax something not actually income, without regard to apportionment under Article I, § 2, clause 3.

1919	Knickerbocker Ice Co. v. Stewart, 253 U.S. 149 (1920)	McReynolds, James C.	Maritime Law; Workers' Compensation & Social Security	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 10; Article III, Section 2

Constitutional Clause(s) Invoked: Admiralty & Maritime Jurisdiction; Necessary & Proper Clause

Description of Unconstitutional Provision(s): Act of October 6, 1917 (40 Stat. 395): The amendment of §§ 24 and 256 of the Judicial Code (which prescribe jurisdiction of district courts) "saving . . . to claimants the rights and remedies under the workmen's compensation law of any State," held an attempt to transfer federal legislative powers to the states—the Constitution, by Article III, § 2, and Article I, § 8, having adopted rules of general maritime law.

1919	Evans v. Gore, 253 U.S. 245 (1920)	Van Devanter, Willis	Taxes	Federal

Constitutional Provision(s) Invoked: Article III, Section 1

Constitutional Clause(s) Invoked: Compensation Clause

Description of Unconstitutional Provision(s): Act of February 24, 1919 (40 Stat. 1065, § 213, in part): Provision of the Revenue Act of 1919 which provided that "for the purposes of the title . . . the term 'gross income' . . . includes gains, profits, and income derived from salaries, wages, or compensation for personal service (including in the case of . . . judges of the Supreme and inferior courts of the United States . . . the compensation received as such)" as applied to a judge in office when the act was passed.

1918	Detroit United Railway v. City of Detroit, 248 U.S. 429 (1919)	Day, William R.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1; Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Contracts Clause; Due Process Clause

Description of Unconstitutional Provision(s): A Detroit ordinance that compelled street railway company to carry passengers on continuous trips over franchise lines to and over nonfranchise lines, and vice versa, for a fare no greater than its franchises entitled it to charge upon the former alone impaired the obligation of the franchise contracts; and insofar as its enforcement would result in a deficit, also deprived the company of its property without due process.

1918	Central of Georgia Railway v. Wright, 248 U.S. 525 (1919)	Holmes, Oliver Wendell	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Tax exemptions in charters granted to certain railroads inured to their lessee, and, accordingly, a Georgia tax authorized by a constitutional provision postdating such charters and imposed on railroad company impaired the obligation of contract

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1918	Union Pacific Railroad v. Public Service Commission, 248 U.S. 67 (1918)	Holmes, Oliver Wendell	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Missouri act, insofar as it authorized the Missouri Public Service Commission to exact a fee of $10,000 for a certificate of authority for issuance by an interstate railroad, doing no intrastate business in Missouri, of a $30,000,000 mortgage bond issue to meet expenditures incurred but in small part in that State, imposed an invalid burden on interstate commerce

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1918	Union Tank Line Co. v. Wright, 249 U.S. 275 (1919)	McReynolds, James C.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): Georgia tax under which a New Jersey company's tank cars operating in and out of that state were assessed upon a track-mileage basis, the ratio of the miles of railroad over which the cars were run in Georgia to the total miles over which they were run in all states, was invalid because the arbitrary rule bore no necessary relation to the real value in Georgia and hence conflicted with due process and unduly burdened interstate commerce

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1918	Standard Oil Co. v. Graves, 249 U.S. 389 (1919)	Day, William R.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Washington law under imposing inspection fees collected on oil products brought into the state for use or consumption was deemed to impose an excessive charge and accordingly an invalid burden on interstate commerce

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1918	Chalker v. Birmingham & Northwestern Railway, 249 U.S. 522 (1919)	McReynolds, James C.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2, Clause 1

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): Tennessee act that made the annual tax for the privilege of doing railway construction work in state vary based on whether the person taxed had his chief office in Tennessee

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1917	Hendrickson v. Apperson, 245 U.S. 105 (1917)	McReynolds, James C.	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Kentucky act of 1906, amending act of 1894 and construed in such manner as to enable a county to avoid collection of taxes to repay judgment on unpaid bonds impaired the obligation of contract.

1917	Looney v. Crane Co., 245 U.S. 178 (1917)	White, Edward D.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): A Texas law that, under the guise of taxing the privilege of doing an intrastate business, imposed on an Illinois corporation a license tax based on its authorized capital stock, was void not only as imposing a burden on interstate commerce, but also as contravening the Due Process Clause by affecting property outside the jurisdiction of Texas.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1917	Crew Levick Co. v. Pennsylvania, 245 U.S. 292 (1917)	Pitney, Mahlon R.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article I, Section 10, Clause 2

Constitutional Clause(s) Invoked: Commerce Clause; Export Clause

Description of Unconstitutional Provision(s): Pennsylvania gross receipts tax on wholesalers, as applied to a merchant who sold part of his merchandise to customers in foreign countries either as the result of orders received directly from them or as the result of orders solicited by agents abroad was void as a regulation of foreign commerce and as a duty on exports

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1917	Northern Ohio Traction & Light Co. v. Ohio ex rel. Pontius, 245 U.S. 574 (1918)	McReynolds, James C.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): Resolution of Stark County commissioners in 1912 purporting to revoke an electric railway franchise previously granted in perpetuity by appropriate county authorities in 1892 amounted to state action impairing the obligation of contract.

1917	Buchanan v. Warley, 245 U.S. 60 (1917)	Day, William R.	Discrimination	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Louisville, Kentucky, ordinance which forbade "colored" persons to occupy houses in blocks where the majority of the houses were occupied by whites was deemed to prevent sales of lots in such blocks to African Americans and to deprive the latter of property without due process of law.

1917	International Paper Co. v. Massachusetts, 246 U.S. 135 (1918)	Van Devanter, Willis	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): License fee or excise of a given per cent of the par value of the entire authorized capital stock of a foreign corporation doing both a local and interstate business and owning property in several States was a tax on the entire business and property of the corporation and was void both as an illegal burden on interstate commerce and as a violation of due process by reason of affecting property beyond the borders of the taxing State

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1917	Cheney Brothers Co. v. Massachusetts, 246 U.S. 147 (1918)	Van Devanter, Willis	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): When a Connecticut corporation maintains and employs a Massachusetts office with a stock of samples and an office force and traveling salesmen merely to obtain local orders subject to confirmation at the Connecticut office and with deliveries to be made directly from the latter, its business was interstate commerce and a Massachusetts annual excise could not be validly applied thereto

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1917	City of Denver v. Denver Union Water Co., 246 U.S. 178 (1918)	Pitney, Mahlon R.	Business	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Rates fixed by a Denver ordinance pertaining to the charges to be collected for services by a water company deprived the latter of its property without due process of law by reason of yielding a return of 4.3% compared with prevailing rates in the city of 6% and higher obtained on secured and unsecured loans.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1917	New York Life Insurance Co. v. Dodge, 246 U.S. 357 (1918)	McReynolds, James C.	Contracts	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Liberty of contract, as protected by the due process clause of the Fourteenth Amendment, precluded enforcement of the Missouri nonforfeiture statute, prescribing how net value of a life insurance policy is to be applied to avert a forfeiture in the event the annual premium is not paid, so as to prevent a Missouri resident from executing in the New York office of the insurer a different agreement sanctioned by New York law whereby the policy was pledged as security for a loan and later canceled in satisfaction of the indebtedness

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1917	City of Covington v. South Covington Street Railway, 246 U.S. 413 (1918)	Holmes, Oliver Wendell	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): A Kentucky city ordinance of 1913 purporting to grant a 25-year franchise for a street railway over certain streets to the best bidder impaired the obligation of contract of an older street railway accorded a perpetual franchise over the same street.

1917	Hammer v. Dagenhart, 247 U.S. 251 (1918)	Day, William R.	Labor & Employment;	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3 Tenth Amendment

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Act of September 1, 1916 (39 Stat. 675): The original Child Labor Law, providing "that no producer . . . shall ship . . . in interstate commerce . . . any article or commodity the product of any mill . . . in which within 30 days prior to the removal of such product therefrom children under the age of 14 years have been employed or permitted to work more than 8 hours in any day or more than 6 days in any week."

1916	Detroit United Railway v. Michigan, 242 U.S. 238 (1916)	Pitney, Mahlon R.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Construction of acts of 1905 and 1907 as compelling a Detroit City Railway to extend its lines to suburban areas annexed by Detroit only on the same terms as were contained in its initial franchise as authorized by the Detroit ordinance of 1889, wherein its fare was fixed, operated to impair the obligation of contract.

1916	Rowland v. Boyle, 244 U.S. 106 (1917)	Holmes, Oliver Wendell	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): The two-cent passenger rate fixed by act of the Arkansas legislature was confiscatory and accordingly deprived the railroad of its property without due process.

1916	Seaboard Air Line Railway v. Blackwell, 244 U.S. 310 (1917)	McKenna, Joseph	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Georgia "Blow-Post" law imposed an unconstitutional burden on interstate commerce insofar as compliance with it would have required an interstate train to come practically to a stop at each of 124 ordinary grade crossings within a distance of 123 miles in Georgia and would have added more than six hours to the running time of the train.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1916	Western Oil Referee Co. v. Lipscomb, 244 U.S. 346 (1917)	Van Devanter, Willis	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Tennessee privilege tax could not validly be imposed on interstate sales consummated at either destination in Tennessee by an Indiana corporation that, for the purpose of filling orders taken by its salesmen in Tennessee, shipped thereto a tank car of oil and a carload of barrels and filled the orders through an agent who drew the oil from the tank car into the barrels, or into barrels furnished by customers, and then made delivery and collected the agreed price, and thereafter moved the two cars to another point in Tennessee for effecting like deliveries.

1916	Adams v. Tanner, 244 U.S. 590 (1917)	McReynolds, James C.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Washington law that proscribed private employment agencies by prohibiting them from collecting fees for their services deprived individuals of the liberty to pursue a lawful calling contrary to due process of law.

1915	United States v. Hvoslef, 237 U.S. 1 (1915)	Hughes, Charles E.	Taxes	Federal

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 5

Constitutional Clause(s) Invoked: Export Clause

Description of Unconstitutional Provision(s): Act of June 13, 1898 (30 Stat. 448, 460): Tax on charter parties, as applied to shipments exclusively from ports in United States to foreign ports.

1915	Truax v. Raich, 239 U.S. 33 (1915)	Hughes, Charles E.	Labor	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): An Arizona statute that compelled establishments hiring five or more workers to reserve 80 percent of the employment opportunities to U.S. citizens denied aliens equal protection of the laws.

1915	Indian Oil Co. v. Oklahoma, 240 U.S. 522 (1916)	McKenna, Joseph	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): Oklahoma tax on lessee's interest in Indian lands, acquired pursuant to federal statutory authorization, was void as a tax on a federal instrumentality.

1915	Gast Realty Co. v. Schneider Granite Co., 240 U.S. 55 (1916)	Holmes, Oliver Wendell	Taxing	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): St. Louis ordinance which levied one-fourth of the cost of pavingon property fronting on the street and the remaining three-fourths uponall property in the taxing district according to area and without equalityas to depth denied equal protection of the laws.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1915	Wisconsin v. Philadelphia & Reading Coal Co., 241 U.S. 329 (1916)	McReynolds, James C.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article III

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): A Wisconsin law that revoked the license of any foreign corporation that removed to a federal court a suit instituted against it by a Wisconsin citizen imposed an unconstitutional condition.

1915	Rosenberger v. Pacific Express Co., 241 U.S. 48 (1916)	White, Edward D.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Texas statute imposing special licenses on express companies maintaining offices for C.O.D. delivery of interstate shipments of alcoholic beverages imposed an invalid burden on interstate commerce under the terms of the Wilson Act of 1890 (26 Stat. 313).

1915	McFarland v. American Sugar Co., 241 U.S. 79 (1916)	Holmes, Oliver Wendell	Trade; Antitrust	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): A Louisiana law that established a rebuttable presumption that any person systematically purchasing sugar in Louisiana at a price below that which he paid in any other state was a party to a monopoly or conspiracy in restraint of trade violated both the Due Process and Equal Protection Clauses of the Fourteenth Amendment because it declared an individual presumptively guilty of a crime and exempted countless others paying the same price.

1914	Russell v. Sebastian, 233 U.S. 195 (1914)	Hughes, Charles E.	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Amendment in 1911 of California constitution of 1879 granting certain companies the privilege of using public streets to lay gas pipes, and municipal ordinances of Los Angeles adopted in pursuance of the amendment.

1914	Sioux Remedy Co. v. Cope, 235 U.S. 197 (1914)	Van Devanter, Willis	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A South Dakota law that required a foreign corporation to appoint a local agent to accept service of process as a condition precedent to suing in state courts to collect a claim arising out of interstate commerce imposed an invalid burden on said commerce.

1914	Choctaw & Gulf Railroad v. Harrison, 235 U.S. 292 (1914)	McReynolds, James C.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article IV, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): The Oklahoma Separate Coach Law permitting carriers to provide sleeping, dining, and chair cars for White passengers but not Black passengers.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1914	South Covington Railway v. City of Covington, 235 U.S. 537 (1915)	Day, William R.	Business	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): Kentucky municipal ordinance, insofar as it sought to regulate the number of street cars to be run, and the number of passengers allowed in each car, between interstate points imposed an unreasonable burden on interstate commerce. Also, the requirement that temperature in the cars never be permitted to be below 50° was unreasonable and violated due process.

1914	Coppage v. Kansas, 236 U.S. 1 (1915)	Pitney, Mahlon R.	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Kansas law proscribing "yellow dog" contracts whereby the employer exacted of employees an agreement not to join or remain a member of a union as a condition of acquiring and retaining employment deprived employees of liberty of contract contrary to due process.

1914	Heyman v. Hays, 236 U.S. 178 (1915)	White, Edward D.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Tennessee county privilege tax law, insofar as it was enforced as to a liquor dealer doing a strictly mail-order business confined to shipments to out-of-state destinations was void as a burden on interstate commerce.

1914	Northern Pacific Railway v. North Dakota ex rel. McCue, 236 U.S. 585 (1915)	Hughes, Charles E.	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): North Dakota law compelling carriers to haul certain commodities at less than compensatory rates deprived them of property without due process.

1914	Norfolk & Western Railway v. Conley, 236 U.S. 605 (1915)	Hughes, Charles E.	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A West Virginia law that compelled carriers to haul passengers at noncompensatory rates deprived them of property without due process.

1914	American Seeding Machine Co. v. Kentucky, 236 U.S. 660 (1915)	McKenna, Joseph	Trade	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Kentucky laws prohibiting combinations to establish prices greater or lower than an article's "real value."

1914	Wright v. Central of Georgia Railway, 236 U.S. 674 (1915)	Holmes, Oliver Wendell	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Since the lessee of two railroads, built under special charters containing irreparable contracts exempting the railway property from taxation in excess of a given rate was to be viewed as in the same position as the owners, Georgia's levy of an ad valorem tax on the lessee in excess of the charter rate impaired the obligation of contract (Art. I, § 10).

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1914	Davis v. Virginia, 236 U.S. 697 (1915)	Holmes, Oliver Wendell	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Solicitation by a peddler in Virginia of orders for portraits made in another State, with an option to the purchaser to select frames upon delivery of the portrait by the peddler, amounted to a single transaction in interstate commerce, and Virginia therefore could not validly impose a peddler's license tax on the solicitor of such orders.

1914	Thames & Mersey Marine Insurance Co. v. United States, 237 U.S. 19 (1915)	Hughes, Charles E.	Taxes	Federal

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 5

Constitutional Clause(s) Invoked: Export Clause

Description of Unconstitutional Provision(s): Act of June 13, 1898 (30 Stat. 448, 461): Stamp tax on policies of marine insurance on exports.

1914	Chicago, Burlington, & Quincy Railway v. Wisconsin Railroad Commission, 237 U.S. 220 (1915)	McKenna, Joseph	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Wisconsin statute requiring interstate trains to stop at villages of a specified number of inhabitants, without regard to the volume of business done there, was void as imposing an unreasonable burden on interstate commerce.

1914	Guinn v. United States, 238 U.S. 347 (1915)	White, Edward D.	Voting	State & Local

Constitutional Provision(s) Invoked: Fifteenth Amendment

Constitutional Clause(s) Invoked: Right to Vote Clause

Description of Unconstitutional Provision(s): An Oklahoma grandfather clause, in its 1910 constitution, exempting from a literacy requirement and automatically enfranchising all entitled to vote as of January 1, 1866, or who were descendants of those entitled to vote on the latter date, violated the Fifteenth Amendment's protection of Negroes from discriminatory denial of the right to vote based on race.

1914	Myers v. Anderson, 238 U.S. 368 (1915)	White, Edward D.	Voting	State & Local

Constitutional Provision(s) Invoked: Fifteenth Amendment

Constitutional Clause(s) Invoked: Right to Vote Clause

Description of Unconstitutional Provision(s): Maryland grandfather clause providing voting rights based on persons or their ancestors having such rights before the Fifteenth Amendment's adoption violated the Fifteenth Amendment.

1914	Chicago, Milwaukee, & St. Paul Railroad v. Wisconsin, 238 U.S. 491 (1915)	Lamar, Joseph R.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Wisconsin statute that compelled sleeping car companies, if an upper berth was not sold, to accord use of the space to the purchaser of a lower berth, took salable property from the owner without compensation and therefore deprived the owner of property without due process of law.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1914	Atchison, Topeka, & Santa Fe Railway v. Vosburg, 238 U.S. 56 (1915)	Pitney, Mahlon R.	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): The Kansas Reciprocal Demurrage Law of 1905, which allowed recovery of an attorney's fee by the shipper in case of delinquency by the carrier, but accorded the carrier no like privilege in case of delinquency on the part of the shipper, denied the carrier equal protection of the law.

1913	Chicago, Milwaukee, & St. Paul Railway v. Polt, 232 U.S. 165 (1914)	Holmes, Oliver Wendell	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A South Dakota law that made railroads liable for double damages in case of failure to pay a claim, within 60 days after notice, or to offer to pay a sum equal to what a jury found the claimant entitled.

1913	Harrison v. St. Louis & San Francisco Railroad, 232 U.S. 318 (1914)	White, Edward D.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article III

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): An Oklahoma law that prohibited foreign corporations, upon penalty of forfeiting their license to do business in that state, from invoking the diversity of citizenship jurisdiction of federal courts.

1913	Foote v. Maryland, 232 U.S. 494 (1914)	Lamar, Lucius Q.C.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article I, Section 10, Clause 2

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): The Maryland oyster inspection tax of 1910, levied on oysters coming from other states, the proceeds from which were used partly for inspection and partly for other purposes, such as the policing of state waters.

1913	Farmers Bank v. Minnesota, 232 U.S. 516 (1914)	Pitney, Mahlon R.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): Minnesota tax on bonds issued by a municipality of the Territory of Oklahoma and held by Minnesota corporations.

1913	Stewart v. Michigan, 232 U.S. 665 (1914)	White, Edward D.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Michigan statute requiring traveling salesmen to obtain licenses, applied to shipments of out-of-state goods.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1913	Carondelet Canal Co. v. Louisiana, 233 U.S. 362 (1914)	McKenna, Joseph	Government Contracts; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Louisiana act of 1906 repealing prior act of 1858 and sequestering with compensation certain property acquired by a canal company under the repealed enactment impaired an obligation of contact.

1913	Smith v. Texas, 233 U.S. 630 (1914)	Lamar, Joseph R.	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Texas act of 1914 stipulating that only those who have previously served two years as freight train conductors or brakemen shall be eligible to serve as railroad train conductors was arbitrary and effected a denial of the equal protection of the laws.

1913	International Harvester Co. v. Kentucky, 234 U.S. 216 (1914)	Holmes, Oliver Wendell	Trade	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Kentucky criminal and antitrust provisions, both constitutional and statutory, were void for vagueness and hence violated due process because a prohibition of combinations that establish prices that are greater or lower than the "real market value" of an article as established by "fair competition" and "under normal market conditions" afforded no standard that was possible to know in advance and to obey.

1913	Missouri Pacific Railway v. Larabee, 234 U.S. 459 (1914)	White, Edward D.	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article VI, Section 1, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): A Kansas statute empowering a Kansas court to award attorney's fees attributable to the presentation before the United States Supreme Court of an appeal in a mandamus proceeding.

1913	Western Union Telephone Co. v. Brown, 234 U.S. 542 (1914)	Holmes, Oliver Wendell	Torts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A South Carolina law making mental anguish resulting from negligent non-delivery of a telegram a cause of action, including telegrams sent to other jurisdictions.

1913	Collins v. Kentucky, 234 U.S. 634 (1914)	Hughes, Charles E.	Trade	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Kentucky laws prohibiting combinations to establish prices greater or lower than an article's "real value."

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1912	Eubank v. City of Richmond, 226 U.S. 137 (1912)	Holmes, Oliver Wendell	Zoning	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Municipal ordinance requiring authorities to establish building lines on separate blocks back of the public streets and across private property upon the request of less than all the owners of the property affected invalidly authorized the taking of property, not for public welfare but for the convenience of other property owners; and therefore violated due process.

1912	Bucks Stove Co. v. Vickers, 226 U.S. 205 (1912)	Van Devanter, Willis	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Kansas law that imposed certain requirements, such as obtaining permission of the State Charter Board, paying filing and license fees, and submitting annual statements listing all stockholders, as a condition prerequisite to doing business in Kansas and suing in its courts.

1912	Williams v. City of Talladega, 226 U.S. 404 (1912)	Day, William R.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): A $100 license fee imposed by ordinance of an Alabama city on a foreign telegraph company, part of whose business income was derived from the transmission of messages for the Federal Government was void as a tax on a federal instrumentality (Art. VI).

1912	Crenshaw v. Arkansas, 227 U.S. 389 (1913)	Day, William R.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Arkansas statute, exacting a license and fee from peddlers of lightning rods and other articles, as applied to representatives of a Missouri corporation soliciting orders for the sale and subsequent delivery of stoves.

1912	Grand Trunk Western Railway v. City of South Bend, 227 U.S. 544 (1913)	Lamar, Joseph R.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): South Bend, Indiana, ordinance of 1901 repealing portion of anordinance of 1866 authorizing a railroad to lay double tracks on oneof its streets impaired the obligation of contract contrary to Art. I, § 10.

1912	Ettor v. City of Tacoma, 228 U.S. 148 (1913)	Lurton, Horace H.	Real Property	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Washington statute of 1907 repealing a prior act of 1893, with the result that rights to consequential damages for a change of street grade that had already accrued under the earlier act were destroyed.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1912	Old Colony Trust Co. v. City of Omaha, 230 U.S. 100 (1913)	Van Devanter, Willis	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An ordinance of a Nebraska municipality adopted in 1908 requiring, without any showing of the necessity therefore, a utility to remove its poles and wires from the city streets invalidly impaired an obligation of contract arising from an ordinance of 1884 granting in perpetuity the privilege of erecting and maintaining poles and wires for the transmission of power.

1912	Missouri Pacific Railway v. Tucker, 230 U.S. 340 (1913)	Van Devanter, Willis	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Kansas statute that did not permit a carrier to have the sufficiency of rates established under it determined by judicial review and that exposed the carrier, when sued for charging rates in excess thereof, to a liability for liquidated damages in the sum of $500, which was unrelated to actual damages.

1912	City of Owensboro v. Cumberland Telephone Co., 230 U.S. 58 (1913)	Lurton, Horace H.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An ordinance of a Kentucky municipality which required a telephone company to remove from the streets poles and wires installed under a prior ordinance granting permission to do so, without restrictionas to the duration of such privilege, or, in the alternative, pay a rental not prescribed in the original ordinance impaired an obligation of contract contrary to Art. I, § 10.

1912	Boise Water Co. v. Boise City, 230 U.S. 84 (1913)	Lurton, Horace H.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An ordinance of an Idaho municipality, adopted in 1906, that subjected a water company to monthly rental fees for the use of its streets invalidly impaired the obligation of contract arising under an ordinance of 1889 which granted a predecessor company the privilege of laying water pipes under the city streets without payment of any charge for the exercise of such right.

1911	Berryman v. Whitman College, 222 U.S. 334 (1912)	White, Edward D.	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Washington statute of 1905, as interpreted to authorize taxation of Whitman College, which was exempt from taxation under its charter.

1911	Atchison, Topeka, & Santa Fe Railway v. O'Connor, 223 U.S. 280 (1912)	Holmes, Oliver Wendell	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Colorado law levying tax of 2 cents on each $1,000 of a corporation's capital stock, applied to a Kansas corporation engaged in interstate commerce.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1911	Oklahoma v. Wells, Fargo & Co., 223 U.S. 298 (1912)	Holmes, Oliver Wendell	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Oklahoma law levying a three-percent gross receipts tax on corporations, and computed, in the case of express companies doing an interstate business, as a percentage of gross receipts from all sources, interstate as well as intrastate, which is equal to the proportion that its business in Oklahoma bears to its total business.

1911	Louisville & Nashville Railroad v. F.W. Cook Brewing Co., 223 U.S. 70 (1912)	Lurton, Horace H.	Transportation; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Kentucky statute prohibiting common carriers from transporting intoxicating liquors to "dry" points in Kentucky.

1911	Haskell v. Kansas Natural Gas Co., 224 U.S. 217 (1912)	Day, William R.	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Oklahoma conservation law, insofar as it withheld from foreign corporations the right to lay pipe lines across highways for purposes of transporting natural gas in interstate commerce.

1911	St. Louis, Iron Mountain, & Southern Railway v. Wynne, 224 U.S. 354 (1912)	Van Devanter, Willis	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): An Arkansas law compelling railroads to pay claimants within 30 days after notice of injury to livestock caused by their trains, and, upon default thereof, authorizing claimants to recover double the damages awarded by a jury plus an attorney's fee.

1911	Choate v. Trapp, 224 U.S. 665 (1912)	Lamar, Joseph R.	Federal Indian Law; Taxes	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of May 27, 1908 (35 Stat. 313, § 4): Provision making land owned by the Choctaw and Chickasaw Tribes "from which restrictions have been or shall be removed" locally taxable.

1910	Bailey v. Alabama, 219 U.S. 219 (1911)	Hughes, Charles E.	Labor & Employment; Contract	State & Local

Constitutional Provision(s) Invoked: Thirteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Prohibition Clause

Description of Unconstitutional Provision(s): An Alabama law that made a refusal to perform labor contracted for, without return of money or property advanced under the contract, prima facie evidence of fraud and that was enforced under local rules of evidence that precluded one accused of such fraud from testifying as to uncommunicated motives.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1910	Muskrat v. United States, 219 U.S. 346 (1911)	Day, William R.	Federal Indian Law	Federal

Constitutional Provision(s) Invoked: Article III, Section 2

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Act of March 1, 1907 (34 Stat. 1028): Provisions authorizing certain Native Americans "to institute their suits in the Court of Claims to determine the validity of any acts of Congress passed since . . . 1902, insofar as said acts . . . attempt to increase or extend the restrictions upon alienation . . . of allotments of lands of Cherokee citizens," and giving a right of appeal to the Supreme Court.

1910	Oklahoma v. Kansas Natural Gas Co., 221 U.S. 229 (1911)	McKenna, Joseph	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): An Oklahoma law that withheld from foreign corporations engaged in interstate commerce a privilege afforded domestic corporations engaged in local commerce, namely, of building pipe lines across its highways and transporting to points outside its boundaries natural gas extracted and reduced to possession therein.

1910	Coyle v. Smith, 221 U.S. 559 (1911)	Lurton, Horace H.	Government Operations; Federalism	Federal

Constitutional Provision(s) Invoked: Article IV, Section 3, Clause 1

Constitutional Clause(s) Invoked: New States Clause

Description of Unconstitutional Provision(s): Act of June 16, 1906 (34 Stat. 269, § 2): Provision of Oklahoma Enabling Act restricting relocation of the state capital prior to 1913.

1909	Louisiana ex rel. Hubert v. Mayor of New Orleans, 215 U.S. 170 (1909)	Day, William R.	Taxes; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Louisiana act of 1870 providing for registration and collection of judgments against New Orleans, so far as it delayed payment, or collection of taxes for payment, of contract claims existing before its passage.

1909	City of Minneapolis v. Street Railway, 215 U.S. 417 (1910)	Day, William R.	Contract	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Minneapolis ordinance of 1907, directing the sale of six train tickets for 25¢, was void as impairing the contract which arose from passage of the ordinance of 1875 granting to a railway a franchise expiring in 1923 and establishing a fare of not less than 5¢.

1909	North Dakota ex rel. Flaherty v. Hanson, 215 U.S. 515 (1910)	White, Edward D.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 1

Constitutional Clause(s) Invoked: Taxing Power

Description of Unconstitutional Provision(s): A North Dakota statute that required the recipient of a federal retail liquor license solely because of payment therefor to publish official notices of the terms of such license and of the place where it is posted, to display on his premises an affidavit confirming such publication, and to file an authenticated copy of such federal license together with a $10 fee.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1909	Western Union Telephone Co. v. Kansas, 216 U.S. 1 (1910)	Harlan, John M.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): A Kansas statute imposing a charter fee, computed as a percentage of authorized capital stock, on corporations for the privilege of doing business in Kansas.

1909	Ludwig v. Western Union Telephone Co., 216 U.S. 146 (1910)	Harlan, John M.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): An Arkansas law that required a foreign corporation engaged in interstate commerce to pay, as a license fee for doing an intrastate business, a given amount of its entire capital stock, whether employed in Arkansas or elsewhere.

1909	Southern Railway v. Greene, 216 U.S. 400 (1910)	Day, William R.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): An Alabama law that imposed on foreign corporations already admitted to do business an additional franchise or privilege tax not levied on domestic corporations.

1909	St. Louis Southwestern Railway v. Arkansas, 217 U.S. 136 (1910)	White, Edward D.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Arkansas law and administrative order that required an interstate carrier, upon application of a local shipper, to deliver promptly the number of freight cars requested for loading purposes and that, without regard to the effect of such demand on its interstate traffic, exposed it to severe penalties for noncompliance.

1909	Missouri Pacific Railway v. Nebraska, 217 U.S. 196 (1910)	Holmes, Oliver Wendell	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Nebraska law compelling railroad, at its own expense and upon request of grain elevator operators, to install switches connecting such elevators with its right of way.

1909	International Textbook Co. v. Pigg, 217 U.S. 91 (1910)	Harlan, John M.	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Kansas law that imposed upon foreign corporations engaged in interstate commerce, as a condition for admission and retention of the right to do business in that state, procurement of a license and submission of an annual financial statement, and that prohibited such foreign corporations from filing actions in Kansas courts unless such conditions were met.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1909	Dozier v. Alabama, 218 U.S. 124 (1910)	Holmes, Oliver Wendell	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Alabama law that imposed a license tax on agents not having a permanent place of business in that state and soliciting orders for the purchase and delivery of pictures and frames manufactured in, and delivered from, another state.

1909	Herndon v. Chicago, Rock Island, & Pacific Railway, 218 U.S. 135 (1910)	Day, William R.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Missouri law requiring railroads to stop trains at junction points and forfeiting the right of an admitted foreign carrier to do a local business upon its instituting a right of action in a federal court.

1908	Louisville & Nashville Railroad v. Stock Yards Co., 212 U.S. 132 (1909)	Holmes, Oliver Wendell	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Kentucky constitutional provision that required a carrier to deliver its cars to connecting carriers without providing adequate protection for their return or compensation for their use.

1908	Willcox v. Consolidated Gas Co., 212 U.S. 19 (1909)	Peckham, Rufus W.	Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A New York law that required a public utility to perform its service in such a manner that its entire plant would have to be rebuilt at a cost on which no return could be obtained under the rates fixed.

1908	Keller v. United States, 213 U.S. 138 (1909)	Brewer, David J.	Immigration; Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article I, Section 8, Clause 4; Tenth Amendment

Constitutional Clause(s) Invoked: Foreign Commerce Clause; Naturalization Clause

Description of Unconstitutional Provision(s): Act of February 20, 1907 (34 Stat. 889, § 3): Provision in the Immigration Act of 1907 penalizing "whoever . . . shall keep, maintain, control, support, or harbor in any house or other place, for the purpose of prostitution . . . any alien woman or girl, within 3 years after she shall have entered the United States."

1908	United States v. Evans, 213 U.S. 297 (1909)	Fuller, Melville W.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Article III, Section 2

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Act of March 3, 1901 (31 Stat. 1341, § 935): Section of the District of Columbia Code granting the same right of appeal, in criminal cases, to the United States or the District of Columbia as to the defendant, but providing that a verdict was not to be set aside for error found in rulings during trial.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1908	Adams Express Co. v. Kentucky, 214 U.S. 218 (1909)	Brewer, David J.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Kentucky law proscribing the sale of liquor to an inebriate, as applied to a carrier delivering liquor to such person from another state.

1907	Central of Georgia Railway v. Wright, 207 U.S. 127 (1907)	Day, William R.	Taxes; Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Georgia statutory assessment procedure that afforded taxpayer no opportunity to be heard as to valuation of property not returned by him under honest belief that it was not taxable, and that permitted him to challenge the assessment only for fraud and corruption.

1907	The Employers' Liability Cases, 207 U.S. 463 (1908)	White, Edward D.	Labor & Employment; Torts; Transportation	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Act of June 11, 1906 (34 Stat. 232): Act providing that "every common carrier engaged in trade or commerce in the District of Columbia . . . or between the several States . . . shall be liable to any of its employees . . . for all damages which may result from the negligence of any of its officers . . . or by reason of any defect . . . due to its negligence in its cars, engines . . . roadbed," etc..

1907	Darnell & Son Co. v. City of Memphis, 208 U.S. 113 (1908)	White, Edward D.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Tennessee tax law that exempted domestic crops and manufactured products, but applied the levy to like products of out-of-state origin.

1907	Adair v. United States, 208 U.S. 161 (1908)	Harlan, John M.	Labor & Employment	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Fifth Amendment

Constitutional Clause(s) Invoked: Commerce Clause; Due Process Clause

Description of Unconstitutional Provision(s): Act of June 1, 1898, § 10 (30 Stat. 428): Provision penalizing "any employer subject to the provisions of this act," generally referring to common carriers, who should "threaten any employee with loss of employment . . . because of his membership in . . . a labor corporation, association, or organization."

1907	Ex parte Young, 209 U.S. 123 (1908)	Peckham, Rufus W.	Federalism; Trasnportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): A Minnesota railroad rate statute that imposed such excessive penalties that parties affected were deterred from testing its validity in the courts.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1907	Galveston, Harrisburg, & San Antonio Railway v. Texas, 210 U.S. 217 (1908)	Holmes, Oliver Wendell	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Texas gross receipts tax insofar as it was levied on railroad receipts that included income derived from interstate commerce.

1907	Londoner v. City of Denver, 210 U.S. 373 (1908)	Moody, William H.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): The due process requirements of notice and hearing in connection with the assessment of taxes were violated by a municipal assessment ordinance which afforded the taxpayer the privilege of filing objections but no opportunity to support his objections by argument and proof in open hearing.

1906	American Smelting Co. v. Colorado, 204 U.S. 103 (1907)	Peckham, Rufus W.	Taxes; Business & Corporate Law; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Colorado statute imposing higher annual license fees on foreign corporations admitted under the terms of a prior statute than were levied on domestic corporations.

1906	Adams Express Co. v. Kentucky, 206 U.S. 129 (1907)	Brewer, David J.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Kentucky law proscribing C.O.D. shipments of liquor, providing that the place where the money is paid or the goods delivered shall be deemed to be the place of sale, and making the carrier jointly liable with the vendor, as applied to interstate shipments.

1906	Mayor of Vicksburg v. Vicksburg Waterworks Co., 206 U.S. 496 (1907)	Day, William R.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): Municipal contract with utility fixing the maximum rate to be charged for supplying water to inhabitants was invalidly impaired by subsequent ordinances altering said rates.

1905	Union Transit Co. v. Kentucky, 199 U.S. 194 (1905)	Brown, Henry B.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Kentucky tax on railway cars located in Indiana.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1905	Houston & Texas Central Railroad v. Mayes, 201 U.S. 321 (1906)	Brown, Henry B.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Texas statute exacting of an interstate railroad an absolute requirement that it furnish a certain number of cars on a given day to transport merchandise to another state.

1905	City of Cleveland v. Cleveland Electric Railway, 201 U.S. 529 (1906)	McKenna, Joseph	Business	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): Ordinance according to a consolidated municipal railway an extension of the duration date of franchises issued to its predecessors, in consideration of which substantial sums were expended on improvements, gave rise to a new contract, which was impaired by later attempton the part of the city to reduce the rate stipulated in the franchises thus extended.

1905	Powers v. Detroit & Grand Haven Railway, 201 U.S. 543 (1906)	Brewer, David J.	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Michigan law altering the rate of a tax originally imposed on a railroad in connection with a reorganization under a special act.

1905	Mayor of Vicksburg v. Vicksburg Waterworks Co., 202 U.S. 453 (1906)	Day, William R.	Government Contracts; Energy & Utilities	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Mississippi statute authorizing a city to erect its own water system, when water company owned an exclusive franchise to supply a city with water.

1905	Hodges v. United States, 203 U.S. 1 (1906)	Brewer, David J.	Contracts	Federal

Constitutional Provision(s) Invoked: Thirteenth Amendment, Section 2

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Act of May 31, 1870, § 16 (16 Stat. 144): Provision that "all persons within the jurisdiction of the United States shall have the same right in every State and Territory to make and enforce contracts . . . as is enjoyed by white citizens."

1904	Postal Telegraph-Cable Co. v. Borough of Taylor, 192 U.S. 64 (1904)	Peckham, Rufus W.	Business	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Ordinance of Taylor, Pennsylvania authorizing an inspection fee on telegraph companies doing an interstate business held to be an unreasonable and invalid regulation of commerce.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1904	Central of Georgia Railway v. Murphey, 196 U.S. 194 (1905)	Peckham, Rufus W.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Georgia statutes that imposed the duty on common carriers of reporting on the shipment of freight to the shipper, applied to interstate shipments.

1904	Matter of Heff, 197 U.S. 488 (1905)	Brewer, David J.	Federal Indian Law; Trade	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Indian Commerce Clause

Description of Unconstitutional Provision(s): Act of January 30, 1897 (29 Stat. 506): Prohibition on sale of liquor "to any Indian to whom allotment of land has been made while the title to the same shall be held in trust by the Government . . . ," held a police regulation infringing state powers, and not warranted by the Commerce Clause, Article I, § 8, clause 3.

1904	Rassmussen v. United States, 197 U.S. 516 (1905)	White, Edward D.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): Act of June 6, 1900 (31 Stat. 359, § 171): Section of the Alaska Code providing for a six-person jury in trials for misdemeanors.

1904	Lochner v. New York, 198 U.S. 45 (1905)	Peckham, Rufus W.	Labor & Employment	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A New York statute establishing a 10-hour day in bakeries.

1903	The Robert W. Parsons, 191 U.S. 17 (1903)	Brown, Henry B.	Admiralty & Maritime Law	State & Local

Constitutional Provision(s) Invoked: Article III, Section 2, Clause 1:

Constitutional Clause(s) Invoked: Admiralty & Maritime Jurisdiction

Description of Unconstitutional Provision(s): New York statutes giving a lien for repairs upon vessels, and providing for the enforcement of such liens by proceedings in rem.

1903	Allen v. Pullman Company, 191 U.S. 171 (1903)	Day, William R.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Tennessee tax of $500 per year per Pullman car, applied to cars moving in interstate as well as intrastate commerce.

1903	City of Cleveland v. Cleveland City Railway, 194 U.S. 517 (1904)	White, Edward D.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): Ordinance reducing the rate of fares to be charged by railway companies lower than cited in previous ordinances held to impair the obligation of contract.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1903	Bradley v. Lightcap, 195 U.S. 1 (1904)	Fuller, Melville W.	Real Property; Banking; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Illinois law, passed after a mortgage was executed, that provided that, if a mortgagee did not obtain a deed within five years after the period of redemption had lapsed, he lost the estate.

1902	Louisville & J. Ferry Co. v. Kentucky, 188 U.S. 385 (1903)	Harlan, John M.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Kentruck law authorizing a levy on an Indiana franchise granted to a Kentucky corporation for operating a ferry from the Indiana to the Kentucky shore.

1902	The Roanoke, 189 U.S. 185 (1903)	Brown, Henry B.	Admiralty & Maritime Law	State & Local

Constitutional Provision(s) Invoked: Article III, Section 2, Clause 1:

Constitutional Clause(s) Invoked: Admiralty & Maritime Jurisdiction

Description of Unconstitutional Provision(s): A Washington law that accorded a contractor or subcontractor a lien on a foreign vessel for work done and that made no provision for protection of owner in event contractor was fully paid before notice of subcontractor's lien was received.

1902	James v. Bowman, 190 U.S. 127 (1903)	Brewer, David J.	Elections	Federal

Constitutional Provision(s) Invoked: Article I, Section 4, Clause 1; Fifteenth Amendment, Section 2

Constitutional Clause(s) Invoked: Elections Clause

Description of Unconstitutional Provision(s): Act of May 31, 1870, § 5 (16 Stat. 141): Provision penalizing "[e]very person who prevents, hinders, controls, or intimidates another from exercising, or in exercising the right of suffrage, to whom that right is guaranteed by the Fifteenth Amendment to the Constitution of the United States, by means of bribery or threats."

1901	Cotting v. Kansas City Stock Yards Co., 183 U.S. 79 (1901)	Brewer, David J.	Agriculture	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): A Kansas statute that regulated public stock yards, but applied to only one stockyard company in the state.

1901	Louisville & Nashville Railroad v. Eubank, 184 U.S. 27 (1902)	Peckham, Rufus W.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Kentucky constitutional provision on long and short haul railroad rates.

1901	City of Detroit v. Detroit Citizens' Street Railway, 184 U.S. 368 (1902)	Peckham, Rufus W.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): City ordinances that adjusted the rate of fare stipulated in agreements made with a street railway company held to impair the obligation of contract.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1901	Connolly v. Union Sewer Pipe Co., 184 U.S. 540 (1902)	HARLAN, JOHN M.	Antitrust; Agriculture	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): An Illinois statute that regulated monopolies, but exempted agricultural products and livestock in the hands of the producer from the operation of the law.

1901	Stockard v. Morgan, 185 U.S. 27 (1902)	PECKHAM, RUFUS W.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Tennessee license tax on agents soliciting and selling by sample for a company in another state.

1900	Stearns v. Minnesota, 179 U.S. 223 (1900)	BREWER, DAVID J.	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Minnesota statute repealing all former tax exemption laws and providing for the taxation of lands granted to railroads.

1900	Fairbank v. United States, 181 U.S. 283 (1901)	BREWER, DAVID J.	Taxes; Trade	Federal

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 5

Constitutional Clause(s) Invoked: Export Clause

Description of Unconstitutional Provision(s): Act of June 13, 1898 (30 Stat. 448, 459): Stamp tax on foreign bills of lading.

1899	Jones v. Meehan, 175 U.S. 1 (1899)	GRAY, HORACE	Federal Indian Law	Federal

Constitutional Provision(s) Invoked: Article III

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Joint Resolution of August 4, 1894 (28 Stat. 1018, No. 41): Provision authorizing the Secretary of the Interior to approve a second lease of certain land by an Indian chief in Minnesota (granted to lessor's ancestor by art. 9 of a treaty with the Chippewa Indians).

1899	Cleveland, Cincinnati, Chicago, & St. Louis Railway v. Illinois ex rel. Jett, 177 U.S. 514 (1900)	BROWN, HENRY B.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Illinois law that required all regular passenger trains to stop at county seats for receipt and discharge of passengers, applied to an express train serving only through passengers between New York and St. Louis.

1899	City of Los Angeles v. Los Angeles City Water Co., 177 U.S. 558 (1900)	MCKENNA, JOSEPH	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): Ordinance expanding city limits beyond those to be served by autility leasing a municipality's water works and effecting diminution of the rates stipulated in the original agreement without any equivalent compensation impaired the obligation of contract between the utility and the city.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1899	Houston & Texas Central Railroad v. Texas, 177 U.S. 66 (1900)	Peckham, Rufus W.	Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Repeal of a Texas statute that permitted treasury warrants to be given to the state for payment of interest on bonds issued by a railroad and held by the state, with accompanying endeavor to hold the railroad liable for back interest paid on the warrants.

1898	Brimmer v. Rebman, 138 U.S. 78 (1891)	Harlan, John M.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Virginia statute prohibiting sale of meat killed 100 miles or more from place of sale, unless it was first inspected in Virginia, held void as interference with interstate commerce and imposing a discriminatory tax.

1898	City of Walla Walla v. Walla Walla Water Co., 172 U.S. 1 (1898)	Brown, Henry B.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): A Washington city ordinance that authorized construction of a municipal water works impaired the obligation of a contract previously negotiated with a private utility providing the same service.

1898	Blake v. McClung, 172 U.S. 239 (1898)	Harlan, John M.	Bankruptcy	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 2, Clause 1

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): Tennessee acts that granted Tennessee creditors priority over nonresident creditors having claims against foreign corporations admitted to do local business.

1898	Norwood v. Baker, 172 U.S. 269 (1898)	Harlan, John M.	Taxes; Real Property	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): The exaction, as authorized by Ohio law, from the owner of property, via special assessment, of the cost of a public improvement in substantial excess of the benefits accruing to him.

1898	Dewey v. City of Des Moines, 173 U.S. 193 (1899)	Peckham, Rufus W.	Taxes; Real Property	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): An Iowa statute subjecting a nonresident owner of property in Iowa to personal liability to pay a special assessment.

1898	Lake Shore & Michigan Southern Railway v. Smith, 173 U.S. 684 (1899)	Peckham, Rufus W.	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): A Michigan act that required railroads to sell 1,000-mile tickets at a fixed price in favor of the purchaser, his wife, and children, with provisions for forfeiture if presented by any other person in payment of fare, and for expiration within two years, subject to redemption of unused portion and collection of 3 cents per mile already traveled.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1898	Kirby v. United States, 174 U.S. 47 (1899)	Harlan, John M.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Sixth Amendment

Constitutional Clause(s) Invoked: Confrontation Clause

Description of Unconstitutional Provision(s): Act of March 3, 1875 (18 Stat. 479, § 2): Provision that "if the party [i.e., a person stealing property from the United States] has been convicted, then the judgment against him shall be conclusive evidence in the prosecution against [the] receiver that the property of the United States therein described has been embezzled, stolen, or purloined."

1897	Smyth v. Ames, 169 U.S. 466 (1898)	Harlan, John M.	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Nebraska statute setting intrastate freight rates.

1897	Houston & Texas Central Railway v. Texas, 170 U.S. 243 (1898)	Fuller, Melville W.	Real Property; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Texas constitutional provision, as enforced to recover certain sections of land held by a railroad company under a previous legislative grant.

1897	Thompson v. Utah, 170 U.S. 343 (1898)	Harlan, John M.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 3

Constitutional Clause(s) Invoked: Ex Post Facto Clause

Description of Unconstitutional Provision(s): A provision in Utah's constitution, providing for the trial of noncapital criminal cases in courts of general jurisdiction by a jury of eight persons.

1897	Schollenberger v. Pennsylvania, 171 U.S. 1 (1898)	Peckham, Rufus W.	Food & Drug; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Pennsylvania law that prohibited interstate importation and resale of oleomargarine in original packages.

1897	Collins v. New Hampshire, 171 U.S. 30 (1898)	Peckham, Rufus W.	Food & Drug; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A New Hampshire law that prohibited the sale of oleomargarine unless it was pink in color.

1896	Missouri Pacific Railway v. Nebraska, 164 U.S. 403 (1896)	Gray, Horace	Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Nebraska statute that compelled a railroad to permit a third party to erect a grain elevator on its right of way.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1896	Gulf, Colorado, & Santa Fe Railway v. Ellis, 165 U.S. 150 (1897)	Brewer, David J.	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): A Texas law that required railroads to pay court costs and attorneys' fees to litigants successfully prosecuting claims against them.

1896	Allgeyer v. Louisiana, 165 U.S. 578 (1897)	Peckham, Rufus W.	Insurance; Advertising; Publishing; & Communications	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Louisiana law imposing a penalty for soliciting contracts of insurance on behalf of insurers who had not complied with Louisiana law, applied to an insurance contract negotiated in New York with a New York company and with premiums and losses to be paid in New York.

1896	Scott v. Donald, 165 U.S. 58 (1897)	Shiras, George	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A South Carolina act regulating the sale of alcoholic beverages exclusively at state dispensaries, when enforced against a resident importing out-of-state liquor.

1895	Bank of Commerce v. Tennessee, 161 U.S. 134 (1896)	Peckham, Rufus W.	Taxes; Banking; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Tennessee revenue laws that imposed a tax on stock beyond that stipulated under the provision of a state charter.

1895	Barnitz v. Beverly, 163 U.S. 118 (1896)	Shiras, George	Real Property; Banking	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Kansas law granting to mortgagor a right to redeem foreclosed property, which right did not exist when the mortgage was negotiated.

1895	Illinois Central Railroad v. Illinois, 163 U.S. 142 (1896)	Gray, Horace	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Illinois statute that required a railroad to run its New Orleans train into Cairo and back to mail line.

1895	Wong Wing v. United States, 163 U.S. 228 (1896)	Shiras, George	Immigration	Federal

Constitutional Provision(s) Invoked: Fifth Amendment; Sixth Amendment

Constitutional Clause(s) Invoked: Separation of Powers Doctrine

Description of Unconstitutional Provision(s): Act of May 5, 1892 (27 Stat. 25, § 4): Provision of a Chinese exclusion act, that Chinese persons "convicted and adjudged to be not lawfully entitled to be or remain in the United States shall be imprisoned at hard labor for a period not exceeding 1 year and thereafter removed from the United States."

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1894	Pollock v. Farmers' Loan & Trust Co., 157 U.S. 429 (1895)	Fuller, Melville W.	Taxes	Federal

Constitutional Provision(s) Invoked: Article I, Section 2, Clause 3

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Provisions imposing a federal tax on a person's entire income, including income derived from real estate and income derived from municipal bonds.

1894	Pollock v. Farmers' Loan & Trust Co., 158 U.S. 601 (1895)	Fuller, Melville W.	Taxes	Federal

Constitutional Provision(s) Invoked: Article I, Section 2, Clause 3

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): A provision imposing a federal tax on income derived from real estate.

1893	Mobile & Ohio Railroad v. Tennessee, 153 U.S. 486 (1894)	Jackson, Howell E.	Taxes; Transportation; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Tennessee statutes that levied taxes on a railroad company enjoying tax exemption under an earlier charter impaired the obligation of contract.

1893	New York, Lake Erie & Western Railroad v. Pennsylvania, 153 U.S. 628 (1894)	Harlan, John M.	Securities; Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1; Fourteenth Amendment

Constitutional Clause(s) Invoked: Contract Clause; Due Process Clause

Description of Unconstitutional Provision(s): A Pennsylvania act of 1885 that required a New York corporation, when paying interest in New York City on its outstanding securities, to withhold a Pennsylvania tax levied on resident owners of such securities, violated due process because of its application to property beyond the jurisdiction of Pennsylvania. The act also impaired the obligation of contracts by increasing the conditions originally exacted of the railroad in return for permission to construct and operate over trackage in Pennsylvania.

1893	Covington & Cincinnati Bridge Co. v. Kentucky, 154 U.S. 204 (1894)	Brown, Henry B.	Taxes; Transportation; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article I, Section 8, Clause 1

Constitutional Clause(s) Invoked: Commerce Clause; Contract Clause

Description of Unconstitutional Provision(s): A Kentucky act regulating toll rates on bridge across the Ohio River was an unconstitutional regulation of interstate commerce.

1892	Monongahela Navigation Co. v. United States, 148 U.S. 312 (1893)	Brewer, David J.	Real Property	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): Act of August 11, 1888 (25 Stat. 411): Directive, in a provision for the purchase or condemnation of a certain lock and dam in the Monongahela River, that ". . . in estimating the sum to be paid by the United States, the franchise of said corporation to collect tolls shall not be considered or estimated."

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1890	McGahey v. Virginia, 135 U.S. 662 (1890)	Bradley, Joseph P.	Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Virginia acts that stipulated that, if the genuineness of coupons tendered in payment of taxes was in issue, the bond from which the coupon was cut must be produced, that precluded use of expert testimony to establish the genuineness of the coupons, and that, in suits for payment of taxes, imposed on the defendant tendering coupons as payment the burden of establishing the validity of said coupons, were deemed to abridge the remedies available to the bondholders so materially as to impair the obligation of contract.

1890	Pennoyer v. McConnaughy, 140 U.S. 1 (1891)	Lamar, Lucius Q.C.	Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Oregon act of 1887 that voided all certificates for the sale of public land unless 20% of the purchase price had been paid prior to 1879, altered the terms of purchase provided under preexisting law and therefore impaired the obligations of the contract.

1890	Crutcher v. Kentucky, 141 U.S. 47 (1891)	Bradley, Joseph P.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Kentucky law that required a license from foreign express corporation agents before doing business in the state was held invalid under the Commerce Clause.

1890	Voight v. Wright, 141 U.S. 62 (1891)	Bradley, Joseph P.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Virginia statute that required state inspection of all but domestic flour held invalid under Commerce Clause.

1889	Western Union Telephone Co. v. Alabama, 132 U.S. 472 (1889)	Miller, Samuel F.	Advertising, Publishing, & Communications; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Alabama tax law, as applied to revenue of telegraph company made by sending messages outside the state, was held to be an invalid regulation of commerce.

1889	Medley, Petitioner, 134 U.S. 160 (1890)	Miller, Samuel F.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Ex Post Facto Clause

Description of Unconstitutional Provision(s): A Colorado law, when applied to a person convicted of a murder committed prior to the enactment and that increased the penalty to be imposed, was void as an ex post facto law.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1889	Chicago, Milwaukee, & St. Paul Railway v. Minnesota, 134 U.S. 418 (1890)	Blatchford, Samuel M.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause; Equal Protection Clause

Description of Unconstitutional Provision(s): A state rate-regulatory law that empowered a commission to establish rate schedules that were final and not subject to judicial review as to their reasonableness violated the Due Process and Equal Protection Clauses of the Fourteenth Amendment.

1889	Leisy v. Hardin, 135 U.S. 100 (1890)	Fuller, Melville W.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Iowa Prohibition law, enforced as to an interstate shipment of liquor in the original packages or kegs.

1889	Lyng v. Michigan, 135 U.S. 161 (1890)	Fuller, Melville W.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Michigan statute that taxed the sale of imported liquor in original package was held an invalid regulation of interstate commerce.

1889	Norfolk & Western Railroad v. Pennsylvania, 136 U.S. 114 (1890)	Lamar, Lucius Q.C.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Pennsylvania act that imposed a license tax on foreign corporation common carriers doing business in the state was held to be invalid as a tax on interstate commerce.

1889	Minnesota v. Barber, 136 U.S. 313 (1890)	Harlan, John M.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Minnesota statute that made it illegal to offer for sale any meat other than that taken from animals passed by state inspectors was held to discriminate against meat producers from other states and to place an undue burden upon interstate commerce.

1888	California v. Pacific Railroad, 127 U.S. 1 (1888)	Bradley, Joseph P.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article VI, Clause 2

Constitutional Clause(s) Invoked: Commerce Clause; Supremacy Clause

Description of Unconstitutional Provision(s): A California tax levied on the franchise of interstate railway corporations chartered by Congress pursuant to its commerce power is void, Congress not having consented to it.

1888	Asher v. Texas, 128 U.S. 129 (1888)	Bradley, Joseph P.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Texas law that imposed a license tax on drummers violates the Commerce Clause as enforced against one who solicited orders for the purchase of merchandise from out-of-state sellers.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1888	Stoutenburgh v. Hennick, 129 U.S. 141 (1889)	Fuller, Melville W.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A clause of a District of Columbia act that required commercial agents selling by sample to pay a license tax was held a regulation of interstate commerce when applied to agents soliciting purchases on behalf of principals outside the District of Columbia.

1887	Bowman v. Chicago & Northwestern Railway, 125 U.S. 465 (1888)	Matthews, T. Stanley	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Iowa liquor statute that required interstate carriers to procure a certificate from the auditor of the county of destination before bringing liquor into the state violated of the Commerce Clause.

1887	Ratterman v. Western Union Telephone Co., 127 U.S. 411 (1888)	Miller, Samuel F.	Advertising, Publishing, & Communications; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Ohio law that levied a tax on the receipts of a telegraph company was invalid to the extent that part of such receipts levied on were derived from interstate commerce.

1887	Callan v. Wilson, 127 U.S. 540 (1888)	Harlan, John M.	Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Article III, Section 2, Clause 3; Sixth Amendment

Constitutional Clause(s) Invoked: Right to Trial by Jury

Description of Unconstitutional Provision(s): Revised Statutes of the District of Columbia, § 1064 (Act of June 17, 1870, 16 Stat. 154,§ 3): Provision that "prosecutions in the police court [of the District of Columbia] shall be by information under oath, without indictment by grand jury or trial by petit jury," as applied to punishment for conspiracy.

1887	Leloup v. Port of Mobile, 127 U.S. 640 (1888)	Bradley, Joseph P.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Mobile, Alabama, ordinance that levied an occupational license tax on a telegraph company doing an interstate business was void.

1886	City of Mobile v. Watson, 116 U.S. 289 (1886)	Woods, William B.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Alabama law that deprived Mobile and its successor of the power to levy taxes sufficient to amortize previously issued bonds.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1886	Walling v. Michigan, 116 U.S. 446 (1886)	Bradley, Joseph P.	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Michigan law taxing nonresidents soliciting sale of foreign liquors to be shipped into the state.

1886	Royall v. Virginia, 116 U.S. 572 (1886)	Harlan, John M.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Virginia laws requiring attorneys to obtain licenses in order to practice and requiring payment of the license fee in legal tender, although Virginia law had previously allowed state fees to be paid by coupons on state bonds.

1886	Wabash, St. Louis, & Pacific Railway v. Illinois, 118 U.S. 557 (1886)	Miller, Samuel F.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Illinois law that prohibited long-short haul rate discrimination, when applied to interstate transportation, encroached upon the federal commerce power.

1886	Robbins v. Shelby County Taxing District, 120 U.S. 489 (1887)	Bradley, Joseph P.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Tennessee law taxing drummers not operating from a domestic licensed place of business, insofar as it applied to drummers soliciting sales of goods on behalf of out-of-state business firms, was an invalid regulation of interstate commerce.

1886	Corson v. Maryland, 120 U.S. 502 (1887)	Bradley, Joseph P.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Maryland law licensing salesmen, insofar as it was applied to a New York resident soliciting orders on behalf of a New York firm, was an invalid regulation of interstate commerce.

1886	Barron v. Burnside, 121 U.S. 186 (1887)	Blatchford, Samuel M.	Business & Corporate Law; Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article III, Section 2

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): An Iowa law that conditioned admission of a foreign corporation to do local business on the surrender of its right to invoke the diversity of citizenship jurisdiction of federal courts exacted an invalid forfeiture of a constitutional right.

continues

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1886	Fargo v. Michigan, 121 U.S. 230 (1887)	Miller, Samuel F.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Michigan act, insofar as it taxed the gross receipts of companies and corporations engaged in interstate commerce, was held to be in conflict with the commerce powers of Congress.

1886	Seibert v. Lewis, 122 U.S. 284 (1887)	Matthews, T. Stanley	Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Missouri law requiring certain petitions, not exacted when county bonds were issued, before taxes could be levied to amortize said bonds, impaired the obligation of contracts.

1886	Philadelphia Steamship Co. v. Pennsylvania, 122 U.S. 326 (1887)	Bradley, Joseph P.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause; Foreign Commerce Clause; Interstate Commerce Clause

Description of Unconstitutional Provision(s): A Pennsylvania gross receipts tax on public utilities, insofar as it was applied to the gross receipts of a domestic corporation derived from transportation of persons and property on the high seas, was in conflict with the exclusive federal power to regulate foreign and interstate commerce.

1886	Western Union Telephone Co. v. Pendleton, 122 U.S. 347 (1887)	Field, Stephen J.	Advertising, Publishing, & Communications	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): An Indiana statute concerning the delivery of telegrams, insofar as it applied to deliveries sent from Indiana to other states, was an invalid regulation of commerce.

1885	Effinger v. Kenney, 115 U.S. 566 (1885)	Field, Stephen J.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Virginia Act of 1867, which provided that in suits to enforce contracts for the sale of property negotiated during the Civil War and payable in Confederate notes, the measure of recovery was to be the value of the land at the time of sale rather than the value of such notes at that time.

1885	New Orleans Gas Co. v. Louisiana Light Co., 115 U.S. 650 (1885)	Harlan, John M.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): A municipal ordinance granting to a public utility an exclusive right to supply the city with gas, and state constitutional provision abolishing outstanding monopolistic grants, impaired the obligation of contract when enforced against a previously chartered utility which, through consolidation, had inherited the monopolistic, exclusive privileges of two utility corporations chartered prior to the constitutional proviso and ordinance.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1885	New Orleans Water-Works Co. v. Rivers, 115 U.S. 674 (1885)	HARLAN, JOHN M.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): When a utility is chartered with an exclusive privilege of supplying a city with water, a subsequently enacted ordinance authorizing an individual to supply water to a hotel impaired the obligation of contract.

1885	Louisville Gas Co. v. Citizens' Gas Co., 115 U.S. 683 (1885)	HARLAN, JOHN M.	Energy & Utilities; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Kentucky act of 1872 that chartered a corporation and authorized it to supply gas in Louisville, Kentucky.

1885	Van Brocklin v. Tennessee, 117 U.S. 151 (1886)	GRAY, HORACE	Taxes	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 3, Clause 2; Article VI, Clause 2

Constitutional Clause(s) Invoked: Property Clause; Supremacy Clause

Description of Unconstitutional Provision(s): A state cannot validly sell for taxes lands that the United States owned at the time the taxes were levied, but in which it ceased to have an interest at the time of sale.

1885	Pickard v. Pullman Southern Car Co., 117 U.S. 34 (1886)	BLATCHFORD, SAMUEL M.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Tennessee privilege tax on railway sleeping cars was void insofar as it applied to cars moving in interstate commerce.

1884	Moran v. City of New Orleans, 112 U.S. 69 (1884)	MATTHEWS, T. STANLEY	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A New Orleans ordinance, so far as it imposed license tax upon persons owning and running towboats to and from the Gulf of Mexico, was an invalid regulation of commerce.

1884	Gloucester Ferry Co. v. Pennsylvania, 114 U.S. 196 (1885)	FIELD, STEPHEN J.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Pennsylvania taxing laws, when applied to the capital stock of a New Jersey ferry corporation carrying on no business in the state except the landing and receiving of passengers and freight.

continues

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1884	Virginia Coupon Cases (Poindexter v. Greenhow), 114 U.S. 270 (1885)	MATTHEWS, T. STANLEY	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Virginia act that terminated a privilege accorded bondholders under prior law of tendering coupons from said bonds in payment of taxes.

1883	Civil Rights Cases, 109 U.S. 3 (1883)	BRADLEY, JOSEPH P.	Civil Rights	Federal

Constitutional Provision(s) Invoked: Thirteenth Amendment; Fourteenth Amendment

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Act of March 1, 1875 (18 Stat. 336, §§ 1, 2): Provision "[t]hat all persons within the jurisdiction of the United States shall be entitled to the full and equal enjoyment of the accommodations . . . of inns, public conveyances on land or water, theaters, and other places of public amusement; subject only to the conditions and limitations established by law, and applicable alike to citizens of every race and color, regardless of any previous condition of servitude."

1883	Louisiana ex rel. Nelson v. Police Jury, 111 U.S. 716 (1884)	FIELD, STEPHEN J.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Louisiana act that repealed the taxing authority of a municipality to pay judgments previously rendered against it.

1882	United States v. Harris, 106 U.S. 629 (1883)	WOODS, WILLIAM B.	Civil Rights	Federal

Constitutional Provision(s) Invoked: Article IV, Section 2; Thirteenth Amendment; Fourteenth Amendment; Fifteenth Amendment

Constitutional Clause(s) Invoked: Privileges & Immunities Clause

Description of Unconstitutional Provision(s): Act of April 20, 1871 (17 Stat. 13, § 2): Section providing punishment when "two or more persons in any State . . . conspire . . . for the purpose of depriving . . . any person . . . of the equal protection of the laws . . . or for the purpose of preventing or hindering the constituted authorities of any State . . . from giving or securing to all persons within such State . . . the equal protection of the laws."

1882	Kring v. Missouri, 107 U.S. 221 (1883)	MILLER, SAMUEL F.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article 1, Section 9, Clause 3

Constitutional Clause(s) Invoked: Ex Post Facto Clause

Description of Unconstitutional Provision(s): A Missouri law that abolished a rule existing at the time the crime was committed, under which subsequent prosecution for first degree murder was precluded after a conviction for second degree murder has been set aside on appeal.

1882	New York v. Compagnie General Transatlantique, 107 U.S. 59 (1883)	MILLER, SAMUEL F.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article 1, Section 8, Clause 3; Article 1, Section 9, Clause 1; Article 1, Section 10, Clause 2

Constitutional Clause(s) Invoked: Commerce Claused; Import-Export Clause

Description of Unconstitutional Provision(s): A New York law imposing a tax on every alien arriving from a foreign country, and holding the vessel liable for payment of the tax.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1881	Louisiana v. Pilsbury, 105 U.S. 278 (1882)	Field, Stephen J.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Louisiana act preventing New Orleans from levying taxes for the payment of bonds previously issued.

1881	Asylum v. City of New Orleans, 105 U.S. 362 (1881)	Bradley, Joseph P.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): The general taxing laws for New Orleans, when applied to the property of an asylum whose charter exempted it from taxation.

1881	Telephone Co. v. Texas, 105 U.S. 460 (1882)	Waite, Morrison R.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Texas tax collected on private telegraph messages sent out of the state, and on official messages sent by federal officers.

1881	Ralls County Court v. United States, 105 U.S. 733 (1881)	Waite, Morrison R.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 6

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): State laws that deprived local government of power to levy tax necessary to pay bond obligations

1880	Tiernan v. Rinker, 102 U.S. 123 (1880)	Field, Stephen J.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Texas statute, insofar as it levied an occupational tax only upon the sale of out-of-state beer and wine.

1880	Hartman v. Greenhow, 102 U.S. 672 (1880)	Field, Stephen J.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Virginia act, adopted subsequently to a law providing for the issuance of bonds and the acceptance of interest coupons thereon in full payment of taxes, that levied a new property tax collectible by way of deduction from such interest coupons.

1880	Webber v. Virginia, 103 U.S. 344 (1881)	Field, Stephen J.	Labor & Employment; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Virginia acts requiring a license for sale of goods made outside the state but not within the state.

continues

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1880	United States ex rel. Wolff v. City of New Orleans, 103 U.S. 358 (1881)	Field, Stephen J.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Louisiana act withdrawing from New Orleans the power to levy taxes adequate to amortize previously issued bonds.

1879	Strauder v. West Virginia, 100 U.S. 303 (1880)	Strong, William	Civil Rights; Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment, Section 1

Constitutional Clause(s) Invoked: Equal Protection Clause

Description of Unconstitutional Provision(s): A West Virginia law allowing only White males to serve as jurors.

1879	Guy v. City of Baltimore, 100 U.S. 434 (1879)	Harlan, John M.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Maryland statute and a Baltimore ordinance, levying tax solely on products of other states.

1879	Trade-Mark Cases, 100 U.S. 82 (1879)	Miller, Samuel F.	Intellectual Property	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article I, Section 8, Clause 8

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Act of July 8, 1870 (16 Stat. 210), and Act of August 14, 1876 (19 Stat. 141): Original trademark law, applying to marks "for exclusive use within the United States," and a penal act designed solely for the protection of rights defined in the earlier measure.

1878	Keith v. Clark, 97 U.S. 454 (1878)	Miller, Samuel F.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A provision of the Tennessee Constitution of 1865 that forbade the receipt for taxes of the bills of the Bank of Tennessee and declared the issues of the bank during the insurrectionary period void.

1878	Cook v. Pennsylvania, 97 U.S. 566 (1878)	Miller, Samuel F.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article 1, Section 8, Clause 3; Article 1, Section 10, Clause 2

Constitutional Clause(s) Invoked: Commerce Claused; Import-Export Clause

Description of Unconstitutional Provision(s): A Pennsylvania act taxing auction sales, when applied to sales of imported goods in the original packages.

1878	University v. People, 99 U.S. 309 (1879)	Miller, Samuel F.	Government Contracts; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A revenue law of Illinois, insofar as it modified tax exemptions granted to Northwestern University by an earlier statute.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1877	Morrill v. Wisconsin, 154 U.S. 626 (1877)	Waite, Morrison R.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Wisconsin statute requiring the licensing of hawkers and peddlers, with an exemption for in-state manufacturers selling work manufactured in the state.

1877	New Jersey v. Yard, 95 U.S. 104 (1877)	Miller, Samuel F.	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A statute increasing a tax above the rate stipulated in the state's contract with railroad corporations impaired the obligation of contract.

1877	Railroad v. Husen, 95 U.S. 465 (1878)	Strong, William	Trade; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Missouri act prohibiting the bringing of cattle into the state between March and November.

1877	Hall v. DeCuir, 95 U.S. 485 (1878)	Waite, Morrison R.	Civil Rights; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Louisiana Reconstruction Act that prohibited interstate common carriers of passengers from discriminating on the basis of race or color.

1877	United States v. Fox, 95 U.S. 670 (1878)	Field, Stephen J.	Bankruptcy; Criminal Law & Procedure	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 4

Constitutional Clause(s) Invoked: Bankruptcy Clause

Description of Unconstitutional Provision(s): Act of March 2, 1867 (14 Stat. 539): Provision penalizing "any person respecting whom bankruptcy proceedings are commenced . . . who, within 3 months before the commencement of proceedings in bankruptcy, under the false color and pretense of carrying on business and dealing in the ordinary course of trade, obtains on credit from any person any goods or chattels with intent to defraud."

1877	Farrington v. Tennessee, 95 U.S. 679 (1878)	Swayne, Noah H.	Civil Rights; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Tennessee law increasing the tax on a bank above the rate specified in its charter.

1877	Murray v. City of Charleston, 96 U.S. 432 (1878)	Strong, William	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contracts Clause

Description of Unconstitutional Provision(s): A Charleston, South Carolina, tax ordinance which withheld from interest payments on municipal bonds a tax levied after issuance of such bonds at a fixed rate of interest impaired the obligation of contract (Art. I, § 10).

continues

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1877	Edwards v. Kearzey, 96 U.S. 595 (1878)	Swayne, Noah H.	Contracts; Real Property	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A North Carolina constitutional provision increasing amount of debtor's property exempt from sale under execution of a judgment.

1876	Inman Steamship Co. v. Tinker, 94 U.S. 238 (1877)	Swayne, Noah H.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 3

Constitutional Clause(s) Invoked: Tonnage Clause

Description of Unconstitutional Provision(s): A New York act of 1865, that provided for collection from docking vessels of a fee measured by tonnage, imposed a tonnage duty in violation of Art. I, § 10.

1876	Foster v. Masters of New Orleans, 94 U.S. 246 (1877)	Swayne, Noah H.	Trade; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause; Foreign Commerce Clause

Description of Unconstitutional Provision(s): A Louisiana statute, that required a survey of hatches of every sea-going vessel arriving at New Orleans, contravened the federal power to regulate foreign and interstate commerce.

1875	Welton v. Missouri, 91 U.S. 275 (1875)	Field, Stephen J.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Missouri act that required payment of a license fee by peddlers of merchandise produced outside the state, but exempted peddlers of merchandise produced in the state, imposed an unconstitutional burden on interstate commerce.

1875	Wilmington & Weldon Railroad v. King, 91 U.S. 3 (1875)	Field, Stephen J.	Civil Procedure; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A North Carolina statute, insofar as it authorized a jury, in suits on contracts negotiated during the Civil War, to place their own estimates upon the value of such contracts instead of taking the value stipulated by the parties, impaired the obligation of such contracts.

1875	United States v. Reese, 92 U.S. 214 (1876)	Waite, Morrison R.	Elections	Federal

Constitutional Provision(s) Invoked: Fifteenth Amendment, Section 2

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Act of May 31, 1870 (16 Stat. 140, §§ 3, 4): Provisions penalizing (1) refusal of local election official to permit voting by persons offering to qualify under State laws, applicable to any citizens; and (2) hindering of any person from qualifying or voting.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1875	Henderson v. Mayor of New York, 92 U.S. 259 (1876)	Miller, Samuel F.	Taxes; Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause; Foreign Commerce Clause

Description of Unconstitutional Provision(s): A New York act of 1849 that required the owner of an ocean-going passenger vessel to post a bond of $300 for each passenger as surety against their becoming public charges, or, in lieu thereof, to pay a tax of $1.50 for each, contravened Congress's exclusive power to regulate foreign commerce.

1875	Chy Lung v. Freeman, 92 U.S. 275 (1876)	Miller, Samuel F.	Taxes; Transportation; Immigration	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause; Foreign Commerce Clause

Description of Unconstitutional Provision(s): A California law that required the master of a vessel to post a $500 bond for each alien "lewd and debauched female" passenger arriving from a foreign country contravened the federal power to regulate foreign commerce.

1874	Insurance Co. v. Morse, 87 U.S. (20 Wall.) 445 (1874)	Hunt, Ward	Business & Corporate Law; Civil Procedure; Contracts	State & Local

Constitutional Provision(s) Invoked: Article III

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): A Wisconsin act admitting foreign insurance companies to transact business within the state, upon their agreement not to remove suits to federal courts, exacted an unconstitutional condition.

1874	Cannon v. City of New Orleans, 87 U.S. (20 Wall.) 577 (1874)	Miller, Samuel F.	Business	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 3

Constitutional Clause(s) Invoked: Duties of Tonnage Clause

Description of Unconstitutional Provision(s): A New Orleans ordinance of 1852, imposing a charge for use of piers measured by tonnage of vessel, levied an invalid tonnage duty.

1874	Loan Ass'n v. Topeka, 87 U.S. (20 Wall.) 655 (1875)	Miller, Samuel F.	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): A Kansas act of 1872, authorizing municipalities to issue bonds repayable out of tax revenues in support of private enterprise, amounted to collection of money in aid of a private, rather than public purpose, and violated due process.

1873	Barings v. Dabney, 86 U.S. (19 Wall.) 1 (1873)	Bradley, Joseph P.	Banking; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A South Carolina act appropriating for payment of state debts the assets of an insolvent bank, in which the state owned all the stock, disadvantaged private creditors of the bank and thereby impaired the obligation of contract.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1873	Peete v. Morgan, 86 U.S. (19 Wall.) 581 (1874)	Davis, David	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article I, Section 10, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause; Tonnage Clause

Description of Unconstitutional Provision(s): A Texas act of 1870 imposing a tonnage tax on foreign vessels to defray quarantine expenses held to violate of Art I, § 10, prohibiting levy without consent of Congress.

1873	Pacific Railroad v. Maguire, 87 U.S. (20 Wall.) 36 (1874)	Hunt, Ward	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Missouri law that levied a tax on a railroad prior to expiration of a grant of exemption impaired the obligation of contract.

1872	Case of the State Freight Tax, 82 U.S. (15 Wall.) 232 (1873)	Strong, William	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Pennsylvania law that imposed a tax on freight transported interstate, into and out of Pennsylvania, was an invalid regulation of interstate commerce.

1872	State Tax on Foreign-Held Bonds, 82 U.S. (15 Wall.) 300 (1873)	Field, Stephen J.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1; Fourteenth Amendment

Constitutional Clause(s) Invoked: Contract Clause; Due Process Clause

Description of Unconstitutional Provision(s): A Pennsylvania law, insofar as it directed domestic corporations to withhold on behalf of the state a portion of interest due on bonds owned by nonresidents.

1872	Gunn v. Barry, 82 U.S. (15 Wall.) 610 (1873)	Swayne, Noah H.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Georgia constitutional provision that increased the amount of a homestead exemption impaired the obligation of contract, insofar as it applied to a judgment obtained under a less liberal exemption provision.

1872	Pierce v. Carskadon, 83 U.S. (16 Wall.) 234 (1873)	Field, Stephen J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Bill of Attainder Clause; Ex Post Facto Clause

Description of Unconstitutional Provision(s): A West Virginia Act of 1865, depriving defendants of right to rehearing on a judgment obtained under an earlier law unless they made oath that they had not committed certain offenses, constituted an invalid bill of attainder and ex post facto law.

1872	Humphrey v. Pegues, 83 U.S. (16 Wall.) 244 (1873)	Hunt, Ward	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): South Carolina taxing laws, as applied to a railroad whose charter exempted it from taxation, impaired the obligation of contract.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1872	Walker v. Whitehead, 83 U.S. (16 Wall.) 314 (1873)	Swayne, Noah H.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Georgia law restricting remedies for obtaining a judgment, so far as it affected prior contracts, impaired the obligation of contract.

1871	Wilmington Railroad v. Reid, 80 U.S. (13 Wall.) 264 (1872)	Davis, David	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A North Carolina statute that levied a tax on the franchise and property of a railroad that had been accorded a tax exemption by the terms of its charter impaired the obligation of contract.

1871	White v. Hart, 80 U.S. (13 Wall.) 646 (1872)	Swayne, Noah H.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Georgia constitutional provision of 1868, prohibiting enforcement of any contract, the consideration for which was a slave, applied to defeat enforcement of a note based on such consideration and negotiated prior to adoption of said provision.

1871	Osborne v. Nicholson, 80 U.S. (13 Wall.) 654 (1872)	Swayne, Noah H.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Arkansas constitutional provision of 1868, prohibiting enforcement of any contract, the consideration for which was a slave.

1871	Gibson v. Chouteau, 80 U.S. (13 Wall.) 92 (1872)	Field, Stephen J.	Civil Procedure; Real Property	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 3, Clause 2; Article VI, Clause 2

Constitutional Clause(s) Invoked: Property Clause; Supremacy Clause

Description of Unconstitutional Provision(s): State legislation cannot interfere with the disposition of the public domain by Congress, and therefore a Missouri statute of limitations, which was inapplicable to the United States, could not be applied so as to accord title to an adverse possessor as against a grantee from the United States, notwithstanding that the adverse possession preceded the federal conveyance.

1871	Delmas v. Insurance Company, 81 U.S. (14 Wall.) 661 (1872)	Miller, Samuel F.	Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Louisiana constitutional provision rendering unenforceable contracts, the consideration for which was Confederate money, was, because of the Contracts Clause (Art. I, § 10), inapplicable to contracts consummated before adoption of the former provision.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1870	State Tonnage Tax Cases, 79 U.S. (12 Wall.) 204 (1871)	Clifford, Nathan	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 3

Constitutional Clause(s) Invoked: Tonnage Clause

Description of Unconstitutional Provision(s): Alabama taxes levied on vessels owned by its citizens and employed in intrastate commerce "at so much per ton of the registered tonnage" violated the constitutional prohibition against the levy of tonnage duties by states.

1870	Ward v. Maryland, 79 U.S. (12 Wall.) 418 (1871)	Clifford, Nathan	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Artivle IV, Section 2, Clause 1

Constitutional Clause(s) Invoked: Commerce Clause; Privileges & Immunities Clause

Description of Unconstitutional Provision(s): A Maryland law that exacted a traders' license from nonresidents at a higher rate than was collected from residents violated the Privileges and Immunities Clause of Art. IV, § 2.

1869	Home of the Friendless v. Rouse, 75 U.S. (8 Wall.) 430 (1869)	Davis, David	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Missouri statute taxing corporations afforded tax exemption by their charter impaired the obligation of contract.

1869	The Washington University v. Rouse, 75 U.S. (8 Wall.) 439 (1869)	Davis, David	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Missouri statute taxing a university afforded a tax exemption by its charter impaired the obligation of contract.

1869	Hepburn v. Griswold, 75 U.S. (8 Wall.) 603 (1870)	Chase, Salmon P.	Contracts; Government Operations	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 18; Fifth Amendment

Constitutional Clause(s) Invoked: Necessary & Proper Clause; Due Process Clause

Description of Unconstitutional Provision(s): Act of February 25, 1862 (12 Stat. 345, § 1); July 11, 1862 (12 Stat. 532, § 1); March 3, 1863 (12 Stat. 711, § 3), each in part only: "Legal tender clauses," making noninterest-bearing United States notes legal tender in payment of "all debts, public and private," so far as applied to debts contracted before passage of the act.

1869	The Justices v. Murray, 76 U.S. (9 Wall.) 274 (1870)	Nelson, Samuel	Civil Procedure	Federal

Constitutional Provision(s) Invoked: Seventh Amendment

Constitutional Clause(s) Invoked: Separation of Powers Doctrine

Description of Unconstitutional Provision(s): Act of March 3, 1863 (12 Stat. 756, § 5): Provision providing for the removal of a judgment in a State court, and in which the cause was tried by a jury to the circuit court of the United States for a retrial on the facts and law.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1869	United States v. Dewitt, 76 U.S. (9 Wall.) 41 (1870)	Chase, Salmon P.	Energy & Utilities; Trade	Federal

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 1; Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): Act of March 2, 1867 (14 Stat. 484, § 29): General prohibition on sale of naphtha, etc., for illuminating purposes, if inflammable at less temperature than 110° F.

1868	Northern Central Railway v. Jackson, 74 U.S. (7 Wall.) 262 (1869)	Nelson, Samuel	Taxes	State & Local

Constitutional Provision(s) Invoked: Fourteenth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Pennsylvania was without jurisdiction to enforce its law taxing interest on railway bonds secured by a mortgage applicable to railway property part of which was located in another state.

1868	The Alicia, 74 U.S. (7 Wall.) 571 (1869)	Chase, Salmon P.	Civil Procedure	Federal

Constitutional Provision(s) Invoked: Article III, Section 2, Clause 2

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Act of June 30, 1864 (13 Stat. 311, § 13): Provision that "any prize cause now pending in any circuit court shall, on the application of all parties in interest . . . be transferred by that court to the Supreme Court . . . ," as applied in a case where no action had been taken in the Circuit Court on the appeal from the district court.

1868	Furman v. Nichol, 75 U.S. (8 Wall.) 44 (1869)	Davis, David	Taxes; Banking; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Tennessee statute repealing prior law making notes of the Banks of Tennessee receivable in payment of taxes impaired the obligation of contract as to the notes already in circulation (Art. I, § 10).

1867	Crandall v. Nevada, 73 U.S. (6 Wall.) 35 (1868)	Miller, Samuel F.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Nevada tax collected from every person leaving the state by rail or stage coach abridged the privileges of United States citizens to move freely across state lines in fulfillment of their relations with the National Government.

1867	Reichart v. Felps, 73 U.S. (6 Wall.) 160 (1868)	Grier, Robert C.	Real Property	Federal

Constitutional Provision(s) Invoked: Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of February 20, 1812 (2 Stat. 677): Provisions establishing board of revision to annul titles conferred many years previously by governors of the Northwest Territory.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1867	Steamship Co. v. Portwardens, 73 U.S. (6 Wall.) 31 (1867)	Chase, Salmon P.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article I, Section 10, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause; Tonnage Clause

Description of Unconstitutional Provision(s): A Louisiana statute that provided that port wardens might collect a tax of five dollars from every ship entering the port of New Orleans, whether any service was performed or not.

1867	Crandall v. Nevada, 73 U.S. (6 Wall.) 35 (1868)	Miller, Samuel F.	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): A Nevada tax collected from every person leaving the state by rail or stage coach.

1866	McGee v. Mathis, 71 U.S. (4 Wall.) 143 (1867)	Chase, Salmon P.	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An 1855 Arkansas statute that repealed an 1851 grant of a tax exemption applicable to swamp lands, paid for either before or after repeal with scrip issued before the repeal.

1866	Cummings v. Missouri, 71 U.S. (4 Wall.) 277 (1867)	Field, Stephen J.	Criminal Law & Procedure	State & Local

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 3

Constitutional Clause(s) Invoked: Bill of Attainder Clause; Ex Post Facto Clause

Description of Unconstitutional Provision(s): Missouri constitutional provisions that required clergymen, as a prerequisite to the practice of their profession, to take an oath that they had never been guilty of hostility to the United States or of certain other acts that were lawful when committed.

1866	Ex parte Garland, 71 U.S. (4 Wall.) 333 (1867)	Field, Stephen J.	Government Operations; Legal Ethics	Federal

Constitutional Provision(s) Invoked: Article I, Section 9, Clause 3; Article II, Section 2, Clause 1

Constitutional Clause(s) Invoked: Ex Post Facto Clause

Description of Unconstitutional Provision(s): Act of January 24, 1865 (13 Stat. 424): Requirement of a test oath disavowing past actions in hostility to the United States before admission to appear as attorney in a federal court by virtue of any previous admission.

1866	Von Hoffman v. Quincy, 71 U.S. (4 Wall.) 535 (1867)	Swayne, Noah H.	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Illinois law limiting taxing powers granted to a municipality under a prior law authorizing it to issue bonds and amortize the same by levy of taxes.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1866	Christmas v. Russell, 72 U.S. (5 Wall.) 290 (1866)	Clifford, Nathan	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article IV, Section 1

Constitutional Clause(s) Invoked: Full Faith & Credit Clause

Description of Unconstitutional Provision(s): A Mississippi statute that prohibited enforcement of a judgment of a sister state against a resident of Mississippi whenever barred by the Mississippi statute of limitations.

1865	The Binghamton Bridge, 70 U.S. (3 Wall.) 51 (1866)	Davis, David	Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): The New York legislature, after having issued a charter to a bridge company containing assurances that erection of other bridges within two miles of said bridge would not be authorized, subsequently chartered a second company to construct a bridge within a few rods of the first.

1864	Gordon v. United States, 117 U.S. 697 (1864)	Taney, Roger B.	Civil Procedure	Federal

Constitutional Provision(s) Invoked: Article III, Section 1

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Act of March 3, 1863 (12 Stat. 766, § 5): Provision for an appeal from the Court of Claims to the Supreme Court, given a further provision (§ 14) requiring an estimate by the Secretary of the Treasury before payment of final judgment.

1864	Hawthorne v. Calef, 69 U.S. (2 Wall.) 10 (1865)	Nelson, Samuel	Business & Corporate Law; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Maine statute terminating the liability of corporate stock for the debts of the corporation, applicable to claims of creditors outstanding at the time of such termination.

1864	Bank Tax Case, 69 U.S. (2 Wall.) 200 (1865)	Nelson, Samuel	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 2

Constitutional Clause(s) Invoked: Borrowing Power

Description of Unconstitutional Provision(s): An 1863 New York law that effectively imposed a tax on the securities of the United States.

1862	Bank of Commerce v. New York City, 67 U.S. (2 Black) 620 (1863)	Nelson, Samuel	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 2

Constitutional Clause(s) Invoked: Borrowing Power

Description of Unconstitutional Provision(s): Inclusion of the value of United States secuties in the capital of a bank subjected to taxation by the terms of a New York law.

1860	Almy v. California, 65 U.S. (24 How.) 169 (1861)	Taney, Roger B.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 2

Constitutional Clause(s) Invoked: Import-Export Clause

Description of Unconstitutional Provision(s): A California stamp tax imposed on bills of lading for gold or silver transported from California to any place outside the state.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1860	Howard v. Bugbee, 65 U.S. (24 How.) 461 (1861)	Nelson, Samuel	Real Property; Banking; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Alabama statute authorizing redemption of mortgaged property in two years after sale under a foreclosure decree, by bona fide creditors of the mortgagor, applied to sales under mortgages executed prior to the enactment.

1856	Scott v. Sandford, 60 U.S. (19 How.) 393 (1857)	Taney, Roger B.	Civil Rights	Federal

Constitutional Provision(s) Invoked: Article IV, Section 3, Clause 2; Fifth Amendment

Constitutional Clause(s) Invoked: Due Process Clause

Description of Unconstitutional Provision(s): Act of March 6, 1820 (3 Stat. 548, § 8, proviso): The Missouri Compromise, prohibiting slavery within the Louisiana Territory north of 36°30' except Missouri.

1855	Boyd v. United States, 116 U.S. 616 (1886)	Bradley, Joseph P.	Criminal Law & Procedure; Trade	Federal

Constitutional Provision(s) Invoked: Fourth Amendment; Fifth Amendment

Constitutional Clause(s) Invoked: Unreasonable Searches & Seizure Clause; Self-Incrimination Clause

Description of Unconstitutional Provision(s): Act of June 22, 1874 (18 Stat. 1878, § 4): Provision authorizing federal courts, in suits for forfeitures under revenue and custom laws, to require production of documents, with allegations expected to be proved therein to be taken as proved on failure to produce such documents.

1855	Dodge v. Woolsey, 59 U.S. (18 How.) 331 (1856)	Wayne, James M.	Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A levy under an 1851 Ohio law of a bank tax at a higher rate than that specified in the bank's charter in 1845.

1854	Hays v. The Pacific Mail Steamship Co., 58 U.S. (17 How.) 596 (1855)	Nelson, Samuel	Taxes; Transportation	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause

Description of Unconstitutional Provision(s): California imposition of property taxes on vessels that were owned by a New York company and registered in New York.

1853	Curran v. Arkansas, 56 U.S. (15 How.) 304 (1854)	Curtis, Benjamin R.	Banking; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Retroactive Arkansas laws that vested all property of the state bank in Arkansas and thereby prevented the bank from honoring its outstanding bills payable on demand to the holders.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1853	State Bank of Ohio v. Knoop, 57 U.S. (16 How.) 369 (1854)	McLean, John	Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Ohio law exposing state banks to higher taxes than a prior direction to pay six percent of annual dividends to the states in lieu of all taxes.

1852	Trustees for Vincennes University v. Indiana, 55 U.S. (14 How.) 268 (1853)	McLean, John	Education	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Indiana statute ordering the sale of lands previously reserved for educational purposes, and use of the sale proceeds for other purposes.

1851	Achison v. Huddleson, 53 U.S. (12 How.) 293 (1852)	Curtis, Benjamin R.	Transportation	State & Local

Constitutional Provision(s) Invoked: Article VI, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): Maryland law imposing tolls on passengers in coaches carrying mails over the Cumberland Road.

1850	Woodruff v. Trapnall, 51 U.S. (10 How.) 190 (1851)	McLean, John	Banking; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Arkansas repeal of the section of a bank's charter providing that banknotes in circulation should be received in discharge of public debts.

1849	Smith v. Turner (Passenger Cases), 48 U.S. (7 How.) 283 (1849)	McLean, John	Transportation; Taxes	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3

Constitutional Clause(s) Invoked: Commerce Clause; Foreign Commerce Clause

Description of Unconstitutional Provision(s): Collection by New York and Massachusetts of per capita taxes on alien and domestic passengers arriving in the ports of these states.

1848	Planters' Bank v. Sharp, 47 U.S. (6 How.) 301 (1848)	Woodbury, Levi	Banking; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Mississippi statute that nullified the power of a bank under a previously issued charter to discount bills of exchange and promissory notes and to institute actions for collection of the same.

1845	Gordon v. Appeal Tax Court, 44 U.S. (3 How.) 133 (1845)	Wayne, James M.	Banking; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Maryland statute of 1841 taxing stockholders of Maryland state banks afforded an exemption under prior act of 1821.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1844	McCracken v. Hayward, 43 U.S. (2 How.) 608 (1844)	Baldwin, Henry	Real Property; Banking; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Illinois mortgage moratorium statute that, when applied to a mortgage executed prior to its passage, diminished remedies of the mortgage lender by prohibiting consummation of a foreclosure unless the foreclosure price equaled two-thirds of the value of the mortgaged property.

1843	Bronson v. Kinzie, 42 U.S. (1 How.) 311 (1843)	Taney, Roger B.	Real Property; Banking; Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): An Illinois mortgage moratorium statute that, when applied to a mortgage negotiated prior to its passage, reduced the remedies of the mortgage lender by conferring a new right of redemption upon a defaulting borrower.

1842	Dobbins v. Commissioners of Erie County, 41 U.S. (16 Pet.) 435 (1842)	Wayne, James M.	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): A Pennsylvania law that diminished the compensation of a federal officer by subjecting him to county taxes.

1842	Prigg v. Pennsylvania, 41 U.S. (16 Pet.) 539 (1842)	Taney, Roger B.	Civil Rights	State & Local

Constitutional Provision(s) Invoked: Article VI, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): A Pennsylvania statute (1826) that penalized an owner's recovery of a runaway slave.

1832	Boyle v. Zacharie, 31 U.S. (6 Pet.) 635 (1832)	Story, Joseph	Bankruptcy	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Maryland insolvency law effecting discharge of an obligation contracted in Louisiana subsequently to its passage.

1830	Craig v. Missouri, 29 U.S. (4 Pet.) 410 (1830)	Marshall, John	Banking	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Bills of Credit Clause

Description of Unconstitutional Provision(s): A Missouri act authorizing the issuance of certificates in denominations of 50 cents to $10, payable in discharge of taxes or debts owned to the state and of salaries due public officers.

1829	Weston v. City Council of Charleston, 27 U.S. (2 Pet.) 449 (1829)	Marshall, John	Taxes	State & Local

Constitutional Provision(s) Invoked: Article VI, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): A city ordinance that levied a tax on stock issued by the United States impaired the federal borrowing power and was void (Art. VI).

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1827	Ogden v. Saunders, 25 U.S. (12 Wheat.) 213 (1827)	JOHNSON, WILLIAM	Bankruptcy	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A New York insolvency law with extraterritorial enforcement to discharge a claim sought to be collected by a citizen of another state either in a federal court or in the courts of other states.

1827	Brown v. Maryland, 25 U.S. (12 Wheat.) 419 (1827)	MARSHALL, JOHN	Trade	State & Local

Constitutional Provision(s) Invoked: Article I, Section 8, Clause 3; Article I, Section 10, Clause 2

Constitutional Clause(s) Invoked: Foreign Commerce Clause; Import-Export Clause

Description of Unconstitutional Provision(s): A Maryland statute that required an importer to obtain a license before reselling in the original package articles imported from abroad.

1824	Osborn v. Bank of the United States, 22 U.S. (9 Wheat.) 738 (1824)	MARSHALL, JOHN	Taxes; Banking	State & Local

Constitutional Provision(s) Invoked: Article VI, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): An Ohio statute levying a tax on the Bank of the United States, a federal instrumentality.

1823	Green v. Biddle, 21 U.S. (8 Wheat.) 1 (1823)	STORY, JOSEPH	Real Property	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Kentucky law that diminished the rights of a lawful owner by reducing the scope of his remedies against an adverse possessor.

1821	Farmers' & Mechanics' Bank v. Smith, 19 U.S. (6 Wheat.) 131 (1821)	MARSHALL, JOHN	Bankruptcy	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Pennsylvania insolvency law, insofar as it purported to discharge a debtor from obligations contracted prior to its passage.

1819	Sturges v. Crowninshield, 17 U.S. (4 Wheat.) 122 (1819)	MARSHALL, JOHN	Bankruptcy; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Retroactive operation of a New York insolvency law to discharge the obligation of a debtor on a promissory note negotiated prior to its adoption.

1819	McMillan v. McNeil, 17 U.S. (4 Wheat.) 209 (1819)	MARSHALL, JOHN	Bankruptcy; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Louisiana insolvency law invoked to relieve a debtor of an obligation contracted by him while a resident of South Carolina.

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Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1819	McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316 (1819)	MARSHALL, JOHN	Government Operations; Taxes	State & Local

Constitutional Provision(s) Invoked: Article IV, Clause 2

Constitutional Clause(s) Invoked: Supremacy Clause

Description of Unconstitutional Provision(s): A Maryland law imposing a tax on notes issued by a branch of the Bank of United States.

1819	Dartmouth College v. Woodward, 17 U.S. (4 Wheat.) 518 (1819)	MARSHALL, JOHN	Business & Corporate Law	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A New Hampshire law that altered a charter granted to a private eleemosynary corporation by the British Crown prior to the Revolution.

1815	Terrett v. Taylor, 13 U.S. (9 Cr.) 43 (1815)	STORY, JOSEPH	Real Property; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): Two Virginia acts that purported to divest the Episcopal Church of title to property "acquired under the faith of previous laws."

1813	New Jersey v. Wilson, 11 U.S. (7 Cr.) 164 (1812)	MARSHALL, JOHN	Real Property; Taxes; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A New Jersey law purporting to repeal an exemption from taxation contained in a prior enactment conveying certain lands.

1810	Fletcher v. Peck, 10 U.S. (6 Cr.) 87 (1810)	MARSHALL, JOHN	Real Property; Government Contracts	State & Local

Constitutional Provision(s) Invoked: Article I, Section 10, Clause 1

Constitutional Clause(s) Invoked: Contract Clause

Description of Unconstitutional Provision(s): A Georgia statute annulling conveyance of public lands authorized by a prior enactment.

1809	United States v. Peters, 9 U.S. (5 Cr.) 115 (1809)	MARSHALL, JOHN	Civil Procedure	State & Local

Constitutional Provision(s) Invoked: Article III, Section 1; Article IV, Clause 2

Constitutional Clause(s) Invoked: Vesting Clause; Supremacy Clause

Description of Unconstitutional Provision(s): A Pennsylvania statute prohibiting the execution of any process issued to enforce a certain sentence of a federal court, on the ground that the federal court lacked jurisdiction in the cause.

Supreme Court October Term	Case	Author(s) of Main Opinion	Subject Matter(s)	Federal or State Provision(s)
1803	Marbury v. Madison, 5 U.S. (1 Cr.) 137 (1803)	MARSHALL, JOHN	Civil Procedure; Government Operations	Federal

Constitutional Provision(s) Invoked: Article III, Section 2, Clause 2

Constitutional Clause(s) Invoked: --

Description of Unconstitutional Provision(s): Act of September 24, 1789 (1 Stat. 81, § 13, in part): Provision that "[the Supreme Court] shall have power to issue . . . writs of mandamus, in cases warranted by the principles and usages of law, to any . . . persons holding office, under authority of the United States" as applied to the issue of mandamus to the Secretary of State requiring him to deliver to plaintiff a commission (duly signed by the President) as justice of the peace in the District of Columbia.

TABLE OF SUPREME COURT JUSTICES

Justice Name	Term Start	Term End	Appointing President
Jackson, Ketanji Brown (Associate Justice)	June 30, 2022	--	Biden, Joseph R.
Notable Opinion(s): Chinn v. Shoop, No. 22-508 (U.S. Nov. 7, 2022) (dissenting)			
Coney Barrett, Amy (Associate Justice)	Oct. 27, 2020	--	Trump, Donald J.
Notable Opinion(s): Fulton v. City of Philadelphia, No. 19-123 (U.S. June 17, 2021) (concurring); Nance v. Ward, No. 21-439 (U.S. June 23, 2022) (dissenting)			
Kavanaugh, Brett M. (Associate Justice)	Oct. 6, 2017	--	Trump, Donald J.
Notable Opinion(s): Barr v. American Association of Political Consultants, No. 19-631 (U.S. July 6, 2020); Jones v. Mississippi, No. 18-1259 (U.S. Apr. 22, 2021); Edwards v. Vannoy, No. 19-5807 (U.S. May 17, 2021); TransUnion LLC v. Ramirez, No. 20-297 (U.S. June 25, 2021); Dobbs v. Jackson Women's Health Organization, No. 199-1392 (U.S. June 24, 2022) (concurring); Oklahoma v. Castro-Huerta, No. 21-429 (U.S. June 29, 2022)			
Gorsuch, Neil M. (Associate Justice)	Apr. 10, 2017	--	Trump, Donald J.
Notable Opinion(s): Oil States Energy Services, LLC v. Greene's Energy Group, LLC, No. 16-712 (U.S. Apr. 24, 2018) (dissenting); Ramos v. Louisiana, No. 18-5924 (U.S. Apr. 20, 2020); McGirt v. Oklahoma, No. 18-9526 (U.S. July 9, 2020); Texas v. New Mexico, No. 65, Orig. (U.S. Dec. 14, 2020); Kennedy v. Bremerton School District, No. 21-418 (U.S. June 27, 2022); Oklahoma v. Castro-Huerta, No. 21-429 (U.S. June 29, 2022) (dissenting); West Virginia v. EPA, No. 20-1530 (U.S. June 30, 2022) (concurring)			
Kagan, Elena (Associate Justice)	Aug. 7, 2010	--	Obama, Barack H.
Notable Opinion(s): Miller v. Alabama, 567 U.S. 460 (2012); Lucia v. SEC, No. 17-130 (U.S. June 21, 2018); Gundy v. United States, No. 17-6086 (U.S. June 20, 2019); Seila Law LLC v. CFBP, No. 19-7 (U.S. June 29, 2020) (concurring and dissenting in part); Chiafalo v. Washington, No. 19-465 (U.S. July 6, 2020); Dobbs v. Jackson Women's Health Organization, No. 199-1392 (U.S. June 24, 2022) (dissenting); West Virginia v. EPA, No. 20-1530 (U.S. June 30, 2022) (dissenting)			
Sotomayor, Sonia (Associate Justice)	Aug. 8, 2009	--	Obama, Barack H.
Notable Opinion(s): Jesner v. Arab Bank PLC, No. 16-499 (U.S. Apr. 24, 2018) (dissenting); Collins v. Virginia, No. 16-1027 (U.S. May 29, 2018); Herrera v. Wyoming, No. 17-532 (U.S. May 20, 2019); Nestlé USA v. Doe, Nos. 19-416, 19-453 (U.S. June 17, 2021) (concurring in part and concurring in the judgment); Whole Women's Health v. Jackson, No. 21A24 (U.S. Sept. 1, 2021) (dissenting); Hemphill v. New York, No. 20-637 (U.S. Jan. 20, 2022); Dobbs v. Jackson Women's Health Organization, No. 199-1392 (U.S. June 24, 2022) (dissenting); Kennedy v. Bremerton School District, No. 21-418 (U.S. June 27, 2022) (dissenting)			
Alito, Samuel A. (Associate Justice)	Jan. 31, 2006	--	Bush, George W.
Notable Opinion(s): McDonald v. City of Chicago, 561 U.S. 742 (2010); Spokeo, Incorporated v. Robins, 578 U.S. 330 (2016); Murphy v. NCAA, No. 16-476 (U.S. May 14, 2018); Janus v. American Federation of State, County, and Municipal Employees, No. 16-1466 (U.S. June 27, 2018); American Legion v. American Humanist Association, No. 17-1717 (U.S. June 20, 2019); Fulton v. City of Philadelphia, No. 19-123 (U.S. June 17, 2021) (concurring); Collins v. Yellen, Nos. 19-422, 19-563 (U.S. June 23, 2021); Dobbs v. Jackson Women's Health Organization, No. 199-1392 (U.S. June 24, 2022)			

continues

Justice Name	Term Start	Term End	Appointing President
Roberts, John G. (Chief Justice)	Sept. 29, 2005	--	Bush, George W.

Notable Opinion(s): Parents Involved in Community Schools v. Seattle School District No. 1, 551 U.S. 701 (2007); National Federation of Independent Business v. Sebelius, 567 U.S. 519 (2012); Bond v. United States, 572 U.S. 844 (2014); Trinity Lutheran Church of Columbia, Incorporated v. Comer, No. 15-577 (U.S. June 26, 2017); Jesner v. Arab Bank PLC, No. 16-499 (U.S. Apr. 24, 2018); United States v. Arthrex, Incorporated, No. 19-1434 (U.S. June 21, 2021); Cedar Point Nursery v. Hassid, No. 20-107 (U.S. June 23, 2021); Americans for Prosperity Foundation v. Bonta, No. 19-251 (U.S. July 1, 2021); Carson v. Makin, No. 20-1088 (U.S. June 21, 2022); West Virginia v. EPA, No. 20-1530 (U.S. June 30, 2022)

Thomas, Clarence (Associate Justice)	Oct. 23, 1991	--	Bush, George H. W.

Notable Opinion(s): Northeastern Florida Chapter of Associated General Contractors of America v. City of Jacksonville, 508 U.S. 656 (1993); United States v. Lopez, 514 U.S. 549 (1995) (concurring); U.S. Term Limits, Incorporated v. Thornton, 514 U.S. 779 (1995) (dissenting); Missouri v. Jenkins, 515 U.S. 70 (1995) (concurring); Kansas v. Hendricks, 521 U.S. 346 (1997); Hunt v. Cromartie, 526 U.S. 541 (1999); Good News Club v. Milford Central School, 533 U.S. 98 (2001); McDonald v. City of Chicago, 561 U.S. 742 (2010) (concurring); Reed v. Town of Gilbert, 576 U.S. 155 (2015); Oil States Energy Services, LLC v. Greene's Energy Group, LLC, No. 16-712 (U.S. Apr. 24, 2018); National Institute of Family and Life Advocates v. Becerra, No. 16-1140 (U.S. June 26, 2018); Chiafalo v. Washington, No. 19-465 (U.S. July 6, 2020) (concurring); Uzuegbunam v. Preczewski, No. 19-968 (U.S. Mar. 8, 2021); Caniglia v. Strom, No. 20-157 (U.S. May 17, 2021); New York State Rifle & Pistol Ass'n v. Bruen, No. 20-843 (U.S. June 23, 2022); Dobbs v. Jackson Women's Health Organization, No. 199-1392 (U.S. June 24, 2022) (concurring)

Breyer, Stephen G. (Associate Justice)	Aug. 3, 1994	June 30, 2022	Clinton, William J.

Notable Opinion(s): Stenberg v. Carhart, 530 U.S. 914 (2000); Easley v. Cromartie, 532 U.S. 234 (2001); Zadvydas v. Davis, 533 U.S. 678 (2001); McConnell v. FEC, 540 U.S. 93 (2003); Sell v. United States, 539 U.S. 166 (2003); Stogner v. California, 539 U.S. 607 (2003); United States v. Booker, 543 U.S. 220 (2005); Shurtleff v. Boston, No. 20-1800 (U.S. May 2, 2022); Dobbs v. Jackson Women's Health Organization, No. 199-1392 (U.S. June 24, 2022) (dissenting)

Ginsburg, Ruth Bader (Associate Justice)	Aug. 10, 1993	Sept. 18, 2020	Clinton, William J.

Notable Opinion(s): United States v. Virginia, 518 U.S. 515 (1996); M.L.B. v. S.L.J., 519 U.S. 102 (1996); Babbitt v. Youpee, 519 U.S. 234 (1997); Buckley v. American Constitutional Law Foundation, Incorporated, 525 U.S. 182 (1999); Ring v. Arizona, 536 U.S. 584 (2002); Eldred v. Ashcroft, 537 U.S. 186 (2003); Christian Legal Society Chapter of University of California, Hastings College of the Law v. Martinez, 561 U.S. 661 (2010); Moore v. Texas, No. 15-797 (U.S. Mar. 28, 2017)

Souter, David H. (Associate Justice)	Oct. 9, 1990	June 29, 2009	Bush, George H. W.

Notable Opinion(s): Farmer v. Brennan, 511 U.S. 825 (1994); Foster v. Love, 522 U.S. 67 (1997); Hurley v. Irish-American Gay, Lesbian and Bisexual Group of Boston, 515 U.S. 557 (1995); County of Sacramento v. Lewis, 523 U.S. 833 (1998); Nixon v. Shrink Missouri Government PAC, 528 U.S. 377 (2000); McCreary City. v. American Civil Liberties Union of Kentucky, 545 U.S. 844 (2005)

Kennedy, Anthony M. (Associate Justice)	Feb. 18, 1988	July 31, 2018	Reagan, Ronald W.

Notable Opinion(s): Ward v. Rock Against Racism, 491 U.S. 781 (1989); Lee v. Weisman, 505 U.S. 577 (1992); Romer v. Evans, 517 U.S. 620 (1996); City of Boerne v. Flores, 521 U.S. 507 (1997); Legal Services Corporation v. Velazquez, 531 U.S. 533 (2001); Tuan Anh Nguyen v. INS, 533 U.S. 53 (2001); Lawrence v. Texas, 539 U.S. 558 (2003); Garcetti v. Ceballos, 547 U.S. 410 (2006); Gonzales v. Carhart, 550 U.S. 124 (2007); Boumediene v. Bush, 553 U.S. 723 (2008); Citizens United v. FEC, 558 U.S. 310 (2010)

Scalia, Antonin (Associate Justice)	Sept. 26, 1986	Feb. 13, 2016	Reagan, Ronald W.

Notable Opinion(s): Employment Division v. Smith, 494 U.S. 872 (1990); Lujan v. National Wildlife Federation, 497 U.S. 871 (1990); Wilson v. Seiter, 501 U.S. 294 (1991); R.A.V. v. City of St. Paul, 505 U.S. 377 (1992); Bray v. Alexandria Women's Health Clinic, 506 U.S. 263 (1993); Printz v. United States, 521 U.S. 898 (1997); Republican Party of Minnesota v. White, 536 U.S. 765 (2002); Crawford v. Washington, 541 U.S. 36 (2004); Blakely v. Washington, 542 U.S. 296 (2004); District of Columbia v. Heller, 554 U.S. 570 (2008)

Justice Name	Term Start	Term End	Appointing President
Rehnquist, William H. (Chief Justice)	Sept. 26, 1986	Sept. 3, 2005	Reagan, Ronald W.

Notable Opinion(s): Dames and Moore v. Regan, 453 U.S. 654 (1981); South Dakota v. Dole, 483 U.S. 203 (1987); Hustler Magazine, Incorporated v. Falwell, 485 U.S 46 (1988); Cruzan by Cruzan v. Director, Moissouri Department of Health, 497 U.S. 261 (1990); Rust v. Sullivan, 500 U.S. 173 (1991)

O'Connor, Sandra Day (Associate Justice)	Sept. 25, 1981	Jan. 31, 2006	Reagan, Ronald W.

Notable Opinion(s): Mississippi University for Women v. Hogan, 458 U.S. 718 (1982); Turner v. Safley, 482 U.S. 78 (1987); Frisby v. Schultz, 487 U.S. 474 (1988); New York v. United States, 505 U.S. 144 (1992); Planned Parenthood of Southeastern Pennsylvania v. Casey, 505 U.S. 833 (1992) (joint opinion); Shaw v. Reno, 509 U.S. 630 (1993); Adarand Constructors, Incorporated v. Pena, 515 U.S. 200 (1995); Virginia v. Black, 538 U.S. 343 (2003); Grutter v. Bollinger, 539 U.S. 306 (2003); Hamdi v. Rumsfeld, 542 U.S. 507 (2004)

Stevens, John Paul (Associate Justice)	Dec. 19, 1975	June 29, 2010	Ford, Gerald R.

Notable Opinion(s): Branti v. Finkel, 445 U.S. 507 (1980); Chevron, U.S.A., Incorporated v. Natural Resources Defense Council, Incorporated, 467 U.S. 837 (1984); Wallace v. Jaffree, 472 U.S. 38 (1985); Cotton Petroleum Corporation v. New Mexico, 490 U.S. 163 (1989); U.S. Term Limits, Incorporated v. Thornton, 514 U.S. 779 (1995); Clinton v. Jones, 520 U.S. 681 (1997); Clinton v. City of New York, 524 U.S. 417 (1998); Saenz v. Roe, 526 U.S. 489 (1999); Rasul v. Bush, 542 U.S. 466 (2004); Massachusetts v. EPA, 549 U.S. 497 (2007);

Powell, Lewis F. (Associate Justice)	Jan. 7, 1972	June 26, 1987	Nixon, Richard M.

Notable Opinion(s): Branzburg v. Hayes, 408 U.S. 665 (1972) (concurring); San Antonio Independent School District v. Rodriguez, 411 U.S. 1 (1973); Gagnon v. Scarpelli, 411 U.S. 778 (1973); Mathews v. Eldridge, 424 U.S. 319 (1976); Village of Arlington Heights v. Metropolitan Housing Development Corporation, 429 U.S. 252 (1977); First National Bank of Boston v. Bellotti, 435 U.S. 765 (1978); Regents of University. of California v. Bakke, 438 U.S. 265 (1978) (separate opinion); Central Hudson Gas and Electric Corporation v. Public Services Commission, 447 U.S. 557 (1980); Rhodes v. Chapman, 452 U.S. 337 (1981); Youngberg v. Romeo, 457 U.S. 307 (1982); Batson v. Kentucky, 476 U.S. 79 (1986)

Rehnquist, William H. (Associate Justice)	Jan. 7, 1972	Sept. 26, 1986	Nixon, Richard M.

Notable Opinion(s): Mount Healthy City School District Board of Education v. Doyle, 429 U.S. 274 (1977); Oliphant v. Suquamish Indian Tribe, 435 U.S. 191 (1978); Bell v. Wolfish, 441 U.S. 520 (1979)

Blackmun, Harry A. (Associate Justice)	June 9, 1970	Aug. 3, 1994	Nixon, Richard M.

Notable Opinion(s): Wyman v. James, 400 U.S. 309 (1971); Roe v. Wade, 410 U.S. 113 (1973); Sugarman v. Dougall, 413 U.S. 634 (1973); Virginia State Board of Pharmacy v. Virginia Citizens Consumer Council, Incorporated, 425 U.S. 748 (1976); Bellotti v. Baird, 428 U.S. 132 (1976); Bates v. State Bar, 433 U.S. 350 (1977); Colautti v. Franklin, 439 U.S. 379 (1979); Ohio v. Roberts, 448 U.S. 56 (1980); Garcia v. San Antonio Metropolitan Transit Authority, 469 U.S. 528 (1985); Mistretta v. United States, 488 U.S. 361 (1989);

Burger, Warren E. (Chief Justice)	June 23, 1969	Sept. 26, 1986	Nixon, Richard M.

Notable Opinion(s): Griggs v. Duke Power Co., 401 U.S. 424 (1971); Swann v. Charlotte-Mecklenburg Board of Education, 402 U.S. 1 (1971); Lemon v. Kurtzman, 403 U.S. 602 (1971); Reed v. Reed, 404 U.S. 71 (1971); Wisconsin v. Yoder, 406 U.S. 205 (1972); Miller v. California, 413 U.S. 15 (1973); United States v. Nixon, 418 U.S. 683 (1974); Milliken v. Bradley, 433 U.S. 267 (1977); Parham v. J. R., 442 U.S. 584 (1979); I.N.S. v. Chadha, 462 U.S. 919 (1983); Bowsher v. Synar, 478 U.S. 714 (1986)

Marshall, Thurgood (Associate Justice)	Oct. 2, 1967	Oct. 1, 1991	Johnson, Lyndon B.

Notable Opinion(s): Pickering v. Board of Education, 391 U.S. 563 (1968); Stanley v. Georgia, 394 U.S. 557 (1969); Furman v. Georgia, 408 U.S. 238 (1972) (separate opinion); San Antonio Independent School District v. Rodriguez, 411 U.S. 1(1973) (dissenting); Hill v. Stone, 421 U.S. 289 (1975); Estelle v. Gamble, 429 U.S. 97 (1976); Bounds v. Smith, 430 U.S. 817 (1977); Shaffer v. Heitner, 433 U.S. 186 (1977); Zablocki v. Redhail, 434 U.S. 374 (1978); Santa Clara Pueblo v. Martinez, 436 U.S. 49 (1978); Kulko v. Superior Court of California In and For City and City of San Francisco, 436 U.S. 84 (1978)

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Justice Name	Term Start	Term End	Appointing President
Fortas, Abraham (Associate Justice)	Oct. 4, 1965	May 14, 1969	Johnson, Lyndon B.

Notable Opinion(s): In re Gault, 387 U.S. 1 (1967); Epperson v. Arkansas, 393 U.S. 97 (1968); Johnson v. Avery, 393 U.S. 483 (1969); Tinker v. Des Moines Independent Community School District, 393 U.S. 503 (1969)

Goldberg, Arthur J. (Associate Justice)	Oct. 1, 1962	July 26, 1965	Kennedy, John F.

Notable Opinion(s): Gibson v. Florida Legislative Investigation Commission, 372 U.S. 539 (1963); Escobedo v. Illinois, 378 U.S. 478 (1964); Griswold v. Connecticut, 381 U.S. 479 (1965) (concurring)

White, Byron R. (Associate Justice)	Apr. 16, 1962	June 28, 1993	Kennedy, John F.

Notable Opinion(s): Duncan v. Louisiana, 391 U.S. 145 (1968); Stanley v. Illinois, 405 U.S. 645 (1972); Broadrick v. Oklahoma, 413 U.S. 601 (1973); Goss v. Lopez, 419 U.S. 565 (1975); Washington v. Davis, 426 U.S. 229 (1976); World-Wide Volkswagen Corporation v. Woodson, 444 U.S. 286 (1980); Connick v. Myers, 461 U.S. 138 (1983); City of Cleburne v. Cleburne Living Trust, 473 U.S. 432 (1985); Bowers v. Hardwick, 478 U.S. 186 (1986); Bowsher v. Synar, 478 U.S. 714 (1986) (dissenting)

Stewart, Potter (Associate Justice)	Oct. 14, 1958	July 3, 1981	Eisenhower, Dwight D.

Notable Opinion(s): Bates v. City of Little Rock, 361 U.S. 516 (1960); Chimel v. California, 395 U.S. 752 (1969); Fuentes v. Shevin, 407 U.S. 67 (1972); Sierra Club v. Morton, 405 U.S. 727 (1972); Board of Regents of State Colleges v. Roth, 408 U.S. 564 (1972); Faretta v. California, 422 U.S. 806 (1975); Gregg v. Georgia, 428 U.S. 153 (1976); Abood v. Detroit Board of Education, 431 U.S. 209 (1977)

Whittaker, Charles E. (Associate Justice)	Mar. 25, 1957	Mar. 31, 1962	Eisenhower, Dwight D.

Notable Opinion(s): Staub v. City of Baxley, 355 U.S. 313 (1958); Draper v. United States, 358 U.S. 307 (1959)

Brennan, William J. (Associate Justice)	Oct. 16, 1956	July 20, 1990	Eisenhower, Dwight D.

Notable Opinion(s): Baker v. Carr, 369 U.S. 186 (1962); NAACP v. Button, 371 U.S. 415 (1963); New York Times Co. v. Sullivan, 376 U.S. 254 (1964); Shapiro v. Thompson, 394 U.S. 618 (1969); Goldberg v. Kelly, 397 U.S. 254 (1970); Eisenstadt v. Baird, 405 U.S. 438 (1972); Craig v. Boren, 429 U.S. 190 (1976); Monell v. Department of Social Services, 436 U.S. 658 (1978); Penn Central Transporation Co. v. City of New York, 438 U.S. 104 (1978); Plyler v. Doe, 457 U.S. 202 (1982); Texas v. Johnson, 491 U.S. 397 (1989)

Harlan, John M. II (Associate Justice)	Mar. 28, 1955	Sept. 23, 1971	Eisenhower, Dwight D.

Notable Opinion(s): Yates v. United States, 354 U.S. 298 (1957); Barenblatt v. United States, 360 U.S. 109 (1959); Flemming v. Nestor, 363 U.S. 603 (1960); Konigsberg v. State Bar, 366 U.S. 36 (1961); Scales v. United States, 367 U.S. 203 (1961); Noto v. United States, 367 U.S. 290 (1961); Maryland v. Wirtz, 392 U.S. 183 (1968); Rosado v. Wyman, 397 U.S. 397 (1970); Boddie v. Connecticut, 401 U.S. 371 (1971); Cohen v. California, 403 U.S. 15 (1971)

Warren, Earl (Chief Justice)	Oct. 5, 1953	June 23, 1969	Eisenhower, Dwight D.

Notable Opinion(s): Bolling v. Sharpe, 347 U.S. 497 (1954); Brown v. Board of Education of Topeka, 347 U.S. 483 (1954); Gregory v. City of Chicago, 394 U.S. 111 (1969); Hernandez v. Texas, 347 U.S. 475 (1954); Loving v. Virginia, 388 U.S. 1 (1967); Miranda v. Arizona, 384 U.S. 436 (1966); Reynolds v. Sims, 377 U.S. 533 (1964); Terry v. Ohio, 392 U.S. 1 (1968); United States v. O'Brien, 391 U.S. 367 (1968); Zemel v. Rusk, 381 U.S. 1 (1965)

Minton, Sherman (Associate Justice)	Oct. 12, 1949	Oct. 15, 1956	Truman, Harry S.

Notable Opinion(s): Adler v. Board of Education, 342 U.S. 485 (1952); Dennis v. United States, 339 U.S. 162 (1950); United States ex rel. Knauff v. Shaughnessy, 338 U.S. 537 (1950)

Clark, Tom C. (Associate Justice)	Aug. 24, 1949	June 12, 1967	Truman, Harry S.

Notable Opinion(s): Dean Milk Co. v. City of Madison, 340 U.S. 349 (1951); Reid v. Covert, 351 U.S. 487 (1956), on reh'g, 354 U.S. 1 (1957); Uphaus v. Wyman, 360 U.S. 72 (1959); Burton v. Wilmington Parking Authority, 365 U.S. 715 (1961); Mapp v. Ohio, 367 U.S. 643 (1961); Goss v. Board of Education, 373 U.S. 683 (1963); School District v. Schempp, 374 U.S. 203 (1963); Katzenbach v. McClung, 379 U.S. 294 (1964); United States v. Seeger, 380 U.S. 163 (1965)

Justice Name	Term Start	Term End	Appointing President
Vinson, Fred M. (Chief Justice)	June 24, 1946	Sept. 8, 1953	Truman, Harry S.

Notable Opinion(s): Shelley v. Kraemer, 334 U.S. 1 (1948); Hurd v. Hodge, 334 U.S. 24 (1948); American Communications Association. v. Douds, 339 U.S. 382 (1950); McLaurin v. Oklahoma State Regents for Higher Education, 339 U.S. 637 (1950); Feiner v. New York, 340 U.S. 315 (1951)

Burton, Harold H. (Associate Justice)	Oct. 1, 1945	Oct. 13, 1958	Truman, Harry S.

Notable Opinion(s): Duncan v. Kahanamoku, 327 U.S. 304 (1946) (dissenting); State of Louisiana ex rel. Francis v. Resweber, 329 U.S. 459 (1947); Perkins v. Benguet Consolidated Mining Co., 342 U.S. 437 (1952); Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579 (1952) (concurring); Roviaro v. United States, 353 U.S. 53 (1957)

Rutledge, Wiley B. (Associate Justice)	Feb. 15, 1943	Sept. 10, 1949	Roosevelt, Franklin Delano

Notable Opinion(s): Prince v. Massachusetts, 321 U.S. 158 (1944); Thomas v. Collins, 323 U.S. 516 (1945); Prudential Institute Co. v. Benjamin, 328 U.S. 408 (1946); Frazier v. United States, 335 U.S. 497 (1948)

Jackson, Robert H. (Associate Justice)	July 11, 1941	Oct. 9, 1954	Roosevelt, Franklin Delano

Notable Opinion(s): Wickard v. Filburn, 317 U.S. 111 (1942); West Virginia State Board of Education v. Barnette, 319 U.S. 624 (1943); Mullane v. Central Hanover Bank and Trust Co., 339 U.S. 306 (1950); Johnson v. Eisentrager, 339 U.S. 763 (1950); Doremus v. Board of Education, 342 U.S. 429 (1952); Harisiades v. Shaughnessy, 342 U.S. 580 (1952); Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579, 634 (1952) (concurring)

Byrnes, James F. (Associate Justice)	July 8, 1941	Oct. 3, 1942	Roosevelt, Franklin Delano

Notable Opinion(s): Edwards v. California, 314 U.S. 160 (1941); Taylor v. Georgia, 315 U.S. 25 (1942); Sioux Tribe of Indians v. United States, 316 U.S. 317 (1942); Ward v. Texas, 316 U.S. 547 (1942)

Stone, Harlan Fiske (Chief Justice)	July 3, 1941	Apr. 22, 1946	Roosevelt, Franklin Delano

Notable Opinion(s): Ex parte Quirin, 317 U.S. 1 (1942); Hirabayashi v. United States, 320 U.S. 81 (1943); South Pacific Co. v. Arizona, 325 U.S. 761 (1945); International Shoe Co. v. Washington, 326 U.S. 310 (1945)

Murphy, Frank (Associate Justice)	Feb. 5, 1940	July 19, 1949	Roosevelt, Franklin Delano

Notable Opinion(s): Thornhill v. Alabama, 310 U.S. 88 (1940); Glasser v. United States, 315 U.S. 60 (1942); Chaplinsky v. New Hampshire, 315 U.S. 568 (1942); United States v. White, 322 U.S. 694 (1944); Korematsu v. United States, 323 U.S. 214 (1944) (dissenting)

Douglas, William O. (Associate Justice)	Apr. 17, 1939	Nov. 12, 1975	Roosevelt, Franklin Delano

Notable Opinion(s): Skinner v. Oklahoma ex rel. Williamson, 316 U.S. 535 (1942); Railway Express Agency v. People of State of New York, 336 U.S. 106 (1949); Berman v. Parker, 348 U.S. 26 (1954); Bibb v. Navajo Freight Lines, Incorporated, 359 U.S. 520 (1959); Douglas v. California, 372 U.S. 353 (1963); Griswold v. Connecticut, 381 U.S. 479 (1965); Harper v. Virginia State Board of Elections, 383 U.S. 663 (1966); Menominee Tribe of Indians v. United States, 391 U.S. 404 (1968); Sniadach v. Family Financial Corporation of Bay View, 395 U.S. 337 (1969); Argersinger v. Hamlin, 407 U.S. 25 (1972); Village of Belle Terre v. Boraas, 416 U.S. 1 (1974)

Frankfurter, Felix (Associate Justice)	Jan. 30, 1939	Aug. 28, 1962	Roosevelt, Franklin Delano

Notable Opinion(s): Minersville School District v. Gobitis, 310 U.S. 586 (1940); Wolf v. Colorado, 338 U.S. 25 (1949); Dennis v. United States, 339 U.S. 162 (1950) (dissenting); Rochin v. California, 342 U.S. 165 (1952); Adler v. Board of Education, 342 U.S. 485 (1952) (dissenting); Beauharnais v. Illinois, 343 U.S. 250 (1952); Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579 (1952) (concurring); Kingsley Books, Incorporated v. Brown, 354 U.S. 436 (1957); Gomillion v. Lightfoot, 364 U.S. 339 (1960)

Reed, Stanley F. (Associate Justice)	Jan. 31, 1938	Feb. 25, 1957	Roosevelt, Franklin Delano

Notable Opinion(s): United States v. Rock Royal Co-operative, Incorporated, 307 U.S. 533 (1939); H.P. Hood and Sons v. United States, 307 U.S. 588 (1939); Louisiana ex rel. Francis v. Resweber, 329 U.S. 459 (1947); Illinois ex rel. McCollum v. Board of Education, 333 U.S. 203 (1948) (dissenting); Winters v. New York, 333 U.S. 507 (1948); Kovacs v. Cooper, 336 U.S. 77 (1949); Poulos v. New Hampshire, 345 U.S. 395 (1953)

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Justice Name	Term Start	Term End	Appointing President
Black, Hugo L. (Associate Justice)	Aug. 19, 1937	Sept. 17, 1971	Roosevelt, Franklin Delano

Notable Opinion(s): Hines v. Davidowitz, 312 U.S. 52 (1941); Bridges v. California, 314 U.S. 252 (1941); Korematsu v. United States, 323 U.S. 214 (1944); Everson v. Board of Education of the Township of Ewing, 330 U.S. 1 (1947); Dennis v. United States, 341 U.S. 494 (1951) (dissenting); Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579 (1952); Engel v. Vitale, 370 U.S. 421 (1962); Gideon v. Wainwright, 372 U.S. 335 (1963); Griffin v. County School Board, 377 U.S. 218 (1964); Pointer v. Texas, 380 U.S. 400 (1965); Griswold v. Connecticut, 381 U.S. 479 (1965) (dissenting)

Cardozo, Benjamin N. (Associate Justice)	Mar. 14, 1932	July 9, 1938	Hoover, Herbert C.

Notable Opinion(s): Carter v. Carter Coal Co., 298 U.S. 238, 324 (1936) (dissenting); Henneford v. Silas Mason Co., 300 U.S. 577 (1937); Charles C. Steward Mach. Co. v. Davis, 301 U.S. 548 (1937); Helvering v. Davis, 301 U.S. 619, 301 U.S. 672 (1937); Palko v. Connecticut, 302 U.S. 319 (1937)

Roberts, Owen J. (Associate Justice)	June 2, 1930	July 31, 1945	Hoover, Herbert C.

Notable Opinion(s): Nebbia v. New York, 291 U.S. 502 (1934); Herndon v. Lowry, 301 U.S. 242 (1937); Hague v. Committee for Industrial Organization, 307 U.S. 496 (1939); Cantwell v. Connecticut, 310 U.S. 296 (1940); Betts v. Brady, 316 U.S. 455 (1942); Korematsu v. United States, 323 U.S. 214 (1944) (dissenting)

Hughes, Charles E. (Chief Justice)	Feb. 24, 1930	June 30, 1941	Hoover, Herbert C.

Notable Opinion(s): Near v. Minnesota ex rel. Olson, 283 U.S. 697 (1931); Home Building and Loan Association v. Blaisdell, 290 U.S. 398 (1934); Ashwander v. Tennessee Valley Authority, 297 U.S. 288 (1936); West Coast Hotel Co. v. Parrish, 300 U.S. 379 (1937); NLRB v. Jones and Laughlin Steel Corporation, 301 U.S. 1 (1937); Missouri ex rel. Gaines v. Canada, 305 U.S. 337 (1938)

Stone, Harlan Fiske (Associate Justice)	Mar. 2, 1925	July 2, 1941	Coolidge, Calvin

Notable Opinion(s): Olmstead v. United States, 277 U.S. 438 (1928) (dissenting); South Carolina State Highway Department v. Barnwell Bros., 303 U.S. 177 (1938); United States v. Carolene Products Co., 304 U.S. 144 (1938); Minersville School District v. Gobitis, 310 U.S. 586 (1940) (dissenting); Hansberry v. Lee, 311 U.S. 32 (1940); United States v. Darby, 312 U.S. 100 (1941); United States v. Classic, 313 U.S. 299 (1941)

Sanford, Edward T. (Associate Justice)	Feb. 19, 1923	Mar. 8, 1930	Harding, Warren G.

Notable Opinion(s): Gitlow v. New York, 268 U.S. 652 (1925); Wong Tai v. United States, 273 U.S. 77 (1927); Whitney v. California, 274 U.S. 357 (1927); Fiske v. Kansas, 274 U.S. 380 (1927); Pocket Veto Case, 279 U.S. 655 (1929)

Butler, Pierce (Associate Justice)	Jan. 2, 1923	Nov. 16, 1939	Harding, Warren G.

Notable Opinion(s): International Shoe Co. v. Pinkus, 278 U.S. 261 (1929); United States v. Schwimmer, 279 U.S. 644 (1929); Near v. Minnesota, 283 U.S. 697 (1931) (dissenting); Morehead v. New York ex rel. Tipaldo, 298 U.S. 587 (1936); Breedlove v. Suttles, 302 U.S. 277 (1937)

Sutherland, George A. (Associate Justice)	Oct. 2, 1922	Jan. 17, 1938	Harding, Warren G.

Notable Opinion(s): Adkins v. Children's Hospital of District of Columbia, 261 U.S. 525 (1923); Massachusetts v. Mellon, 262 U.S. 447 (1923); Radice v. New York, 264 U.S. 292 (1924); Village of Euclid v. Ambler Realty Co., 272 U.S. 365 (1926); Nectow v. City of Cambridge, 277 U.S. 183 (1928); Blockburger v. United States, 284 U.S. 299 (1932); Humphrey's Executor v. United States, 295 U.S. 602 (1935); United States v. Curtiss-Wright Export Corporation, 299 U.S. 304 (1936); West Coast Hotel Co. v. Parrish, 300 U.S. 379 (1937) (dissenting)

Taft, William Howard (Chief Justice)	July 11, 1921	Feb. 3, 1930	Harding, Warren G.

Notable Opinion(s): Bailey v. Drexel Furniture Co. (Child Labor Tax Case), 259 U.S. 20 (1922); Adkins v. Children's Hospital of District of Columbia, 261 U.S. 525 (1923) (dissenting); Myers v. United States, 272 U.S. 52 (1926); Olmstead v. United States, 277 U.S. 438 (1928)

Clarke, John H. (Associate Justice)	Oct. 9, 1916	Sept. 18, 1922	Wilson, Woodrow

Notable Opinion(s): Abrams v. United States, 250 U.S. 616 (1919); Kwock Jan Fat v. White, 253 U.S. 454 (1920); Amos v. United States, 255 U.S. 313 (1921)

Justice Name	Term Start	Term End	Appointing President
Brandeis, Louis D. (Associate Justice)	June 5, 1916	Feb. 13, 1939	Wilson, Woodrow
Notable Opinion(s): Schaefer v. United States, 251 U.S. 466 (1920); Whitney v. California, 274 U.S. 357, 372 (1927) (concurring); Olmstead v. United States, 277 U.S. 438 (1928) (dissenting); Ashwander v. Tennessee Valley Authority, 297 U.S. 288 (1936) (concurring); Erie Railroad v. Tompkins, 304 U.S. 64 (1938)			
McReynolds, James C. (Associate Justice)	Oct. 12, 1914	Jan. 31, 1941	Wilson, Woodrow
Notable Opinion(s): Meyer v. Nebraska, 262 U.S. 390 (1923); Myers v. United States, 264 U.S. 95 (1924); Pierce v. Society of the Sisters of the Holy Names of Jesus and Mary, 268 U.S. 510 (1925); NLRB v. Friedman-Harry Marks Clothing, 301 U.S. 58 (1937) (dissenting); Missouri ex rel. Gaines v. Canada, 305 U.S. 337 (1938) (dissenting)			
Pitney, Mahlon R. (Associate Justice)	Mar. 18, 1912	Dec. 31, 1922	Taft, William Howard
Notable Opinion(s): Coppage v. Kansas, 236 U.S. 1 (1915); F.S. Royster Guano Co. v. Virginia, 253 U.S. 412 (1920)			
Van Devanter, Willis (Associate Justice)	Jan. 3, 1911	June 2, 1937	Taft, William Howard
Notable Opinion(s): Lindsley v. Natural Carbonic Gas Co., 220 U.S. 61 (1911); Southern Railway v. United States, 222 U.S. 20 (1911); Grand Trunk Western Railway v. Railroad Commission of Indiana, 221 U.S. 400 (1911)			
Lamar, Joseph R. (Associate Justice)	Jan. 3, 1911	Jan. 2, 1916	Taft, William Howard
Notable Opinion(s): Gompers v. Bucks Stove and Range Co., 221 U.S. 418 (1911); Wadley Southern Railway v. Georgia, 235 U.S. 651 (1915)			
White, Edward D. (Chief Justice)	Dec. 19, 1910	May 19, 1921	Taft, William Howard
Notable Opinion(s): Standard Oil Co. of New Jersey v. United States, 221 U.S. 1 (1911)			
Hughes, Charles E. (Associate Justice)	Oct. 10, 1910	June 10, 1916	Taft, William Howard
Notable Opinion(s): Truax v. Raich, 239 U.S. 33 (1915)			
Lurton, Horace H. (Associate Justice)	Jan. 3, 1910	July 12, 1914	Taft, William Howard
Notable Opinion(s): Coyle v. Smith, 221 U.S. 559 (1911)			
Moody, William H. (Associate Justice)	Dec. 17, 1906	Nov. 19, 1910	Roosevelt, Theodore
Notable Opinion(s): Twining v. New Jersey, 211 U.S. 78 (1908)			
Day, William R. (Associate Justice)	Mar. 2, 1903	Nov. 13, 1922	Roosevelt, Theodore
Notable Opinion(s): Muskrat v. United States, 219 U.S. 346 (1911); Caminetti v. United States, 242 U.S. 470 (1917); Hammer v. Dagenhart, 247 U.S. 251 (1918)			
Holmes, Oliver Wendell (Associate Justice)	Dec. 8, 1902	Jan. 12, 1932	Roosevelt, Theodore
Notable Opinion(s): Lochner v. New York, 198 U.S. 45 (1905); Schenck v. United States, 249 U.S. 47 (1919); Abrams v. United States, 250 U.S. 616 (1919) (dissenting); Pennsylvania Coal Co. v. Mahon, 260 U.S. 393 (1922); Adkins v. Children's Hospital of District of Columbia, 261 U.S. 525 (1923) (dissenting); Gitlow v. New York, 268 U.S. 652 (1925); Buck v. Bell, 274 U.S. 200 (1927); Olmstead v. United States, 277 U.S. 438 (1928)			
McKenna, Joseph (Associate Justice)	Jan. 26, 1898	Jan. 5, 1925	McKinley, William
Notable Opinion(s): Hipolite Egg Co. v. United States, 220 U.S. 45 (1911)			
Peckham, Rufus W. (Associate Justice)	Jan. 6, 1896	Oct. 24, 1909	Cleveland, Grover
Notable Opinion(s): Allgeyer v. Louisiana, 165 U.S. 578 (1897); Lochner v. New York, 198 U.S. 45 (1905); Ex parte young, 209 U.S. 123 (1908)			

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Justice Name	Term Start	Term End	Appointing President
White, Edward D. (Associate Justice)	Mar. 12, 1894	Dec. 18, 1910	Cleveland, Grover
Notable Opinion(s): Lone Wolf v. Hitchcock, 187 U.S. 553 (1903)			
Jackson, Howell E. (Associate Justice)	Mar. 4, 1893	Aug. 8, 1895	Harrison, Benjamin
Notable Opinion(s): Pollock v. Farmers' Loan and Trust Co., 157 U.S. 429 (1895) (dissenting)			
Shiras, George (Associate Justice)	Oct. 10, 1892	Feb. 23, 1903	Harrison, Benjamin
Notable Opinion(s): Brass v. North Dakota ex rel. Stoeser, 153 U.S. 391 (1894); Wong Wing v. United States, 163 U.S. 228 (1896); Knoxville Iron Co. v. Harbison, 183 U.S. 13 (1901)			
Brown, Henry B. (Associate Justice)	Jan. 5, 1891	May 28, 1906	Harrison, Benjamin
Notable Opinion(s): Plessy v. Ferguson, 163 U.S. 537 (1896)			
Brewer, David J. (Associate Justice)	Jan. 6, 1890	Mar. 28, 1910	Harrison, Benjamin
Notable Opinion(s): In re Debs, 158 U.S. 564 (1895); Berea College v. Kentucky, 211 U.S. 45 (1908)			
Fuller, Melville W. (Chief Justice)	Oct. 8, 1888	July 4, 1910	Cleveland, Grover
Notable Opinion(s): Leisy v. Hardin, 135 U.S. 100 (1890); United States v. E. C. Knight Co., 156 U.S. 1 (1895); Pollock v. Farmers' Loan and Trust Co., 158 U.S. 601 (1895)			
Lamar, Lucius Q.C. (Associate Justice)	Jan. 18, 1888	Jan. 23, 1893	Cleveland, Grover
Notable Opinion(s): In re Neagle, 135 U.S. 1 (1890) (dissenting)			
Blatchford, Samuel M. (Associate Justice)	Mar. 3, 1882	July 7, 1893	Arthur, Chester A.
Notable Opinion(s): Chicago, Milwaukee and St. Paul Railway v. Minnesota, 134 U.S. 418 (1890); Counselman v. Hitchcock, 142 U.S. 547 (1892); Budd v. New York, 143 U.S. 517 (1892)			
Gray, Horace (Associate Justice)	Jan. 9, 1882	Sept. 15, 1902	Arthur, Chester A.
Notable Opinion(s): Juilliard v. Greenman, 110 U.S. 421 (1884); Pullman's Palace Car Co. v. Pennsylvania, 141 U.S. 18 (1891); Logan v. United States, 144 U.S. 263 (1892); Fong Yue Ting v. United States, 149 U.S. 698 (1893); United States v. Wong Kim Ark, 169 U.S. 649 (1898)			
Matthews, T. Stanley (Associate Justice)	May 17, 1881	Mar. 22, 1889	Garfield, James A.
Notable Opinion(s): Yick Wo v. Hopkins, 118 U.S. 356 (1886)			
Woods, William B. (Associate Justice)	Jan. 5, 1881	May 14, 1887	Hayes, Rutherford B.
Notable Opinion(s): Presser v. Illinois, 116 U.S. 252 (1886)			
Harlan, John M. (Associate Justice)	Dec. 10, 1877	Oct. 14, 1911	Hayes, Rutherford B.
Notable Opinion(s): Mugler v. Kansas, 123 U.S. 623 (1887); Hans v. Louisiana, 134 U.S. 1 (1890) (concurrence); United States v. E. C. Knight Co., 156 U.S. 1 (1895) (dissenting); Plessy v. Ferguson, 163 U.S. 537 (1896) (dissenting); Champion v. Ames, 188 U.S. 321 (1903); Jacobson v. Massachusetts, 197 U.S. 11 (1905); Lochner v. New York, 198 U.S. 45 (1905) (dissenting); Adair v. United States, 208 U.S. 161 (1908)			
Waite, Morrison R. (Chief Justice)	Mar. 4, 1874	Mar. 23, 1888	Grant, Ulysses S.
Notable Opinion(s): Minor v. Happersett, 88 U.S. 162 (1874); United States v. Cruikshank, 92 U.S. 542 (1875); Ames v. Kansas, 111 U.S. 449 (1884)			
Hunt, Ward (Associate Justice)	Jan. 9, 1873	Jan. 27, 1882	Grant, Ulysses S.
Notable Opinion(s): United States v. Railroad, 84 U.S. 322 (1873); United States v. Reese, 92 U.S. 214 (1875) (dissenting)			

Justice Name	Term Start	Term End	Appointing President
Bradley, Joseph P. (Associate Justice)	Mar. 23, 1870	Jan. 22, 1892	Grant, Ulysses S.
Notable Opinion(s): Slaughter-House Cases, 83 U.S. (16 Wall.) 36 (1872) (dissenting)			
Strong, William (Associate Justice)	Mar. 14, 1870	Dec. 14, 1880	Grant, Ulysses S.
Notable Opinion(s): Strauder v. West Virginia, 100 U.S. 303 (1880)			
Chase, Salmon P. (Chief Justice)	Dec. 15, 1864	May 7, 1873	Lincoln, Abraham
Notable Opinion(s): Ex parte McCardle, 74 U.S. (7 Wall.) 506 (1869)			
Field, Stephen J. (Associate Justice)	May 20, 1863	Dec. 1, 1897	Lincoln, Abraham
Notable Opinion(s): Paul v. Virginia, 75 U.S. (8 Wall.) 168 (1869); The Daniel Ball, 77 U.S. (10 Wall.) 557 (1871); Slaughter-House Cases, 83 U.S. (16 Wall.) 36 (1872) (dissenting); Totten v. United States, 92 U.S. 105 (1876); Pennoyer v. Neff, 95 U.S. 714 (1878); Strauder v. West Virginia, 100 U.S. 303 (1879) (separate opinion); Mugler v. Kansas, 123 U.S. 623 (1887) (separate opinion); The Chinese Exclusion Case, 130 U.S. 581 (1889)			
Davis, David (Associate Justice)	Dec. 10, 1862	Mar. 4, 1877	Lincoln, Abraham
Notable Opinion(s): Ex parte Milligan, 71 U.S. (4 Wall.) 2 (1866)			
Miller, Samuel F. (Associate Justice)	July 21, 1862	Oct. 13, 1890	Lincoln, Abraham
Notable Opinion(s): Crandall v. Nevada, 73 U.S. (6 Wall.) 35 (1868); Slaughter-House Cases, 83 U.S. (16 Wall.) 36 (1872); Bradwell v. Illinois, 83 U.S. (16 Wall.) 130 (1873); Loan Association v. Topeka, 87 U.S. (20 Wall.) 655 (1875)			
Swayne, Noah H. (Associate Justice)	Jan. 27, 1862	Jan. 24, 1881	Lincoln, Abraham
Notable Opinion(s): Slaughter-House Cases, 83 U.S. (16 Wall.) 36 (1872) (dissenting)			
Clifford, Nathan (Associate Justice)	Jan. 21, 1858	July 25, 1881	Buchanan, James
Notable Opinion(s): Ward v. Maryland, 79 U.S. (12 Wall.) 418 (1870); United States v. Cruikshank, 92 U.S. 542 (1875) (dissenting)			
Campbell, John A. (Associate Justice)	Apr. 11, 1853	Apr. 30, 1861	Pierce, Franklin
Notable Opinion(s): Scott v. Sandford, 60 U.S. (19 How.) 393 (1857) (separate opinion)			
Curtis, Benjamin R. (Associate Justice)	Oct. 10, 1851	Sept. 30, 1857	Fillmore, Millard
Notable Opinion(s): Cooley v. Board of Wardens, 53 U.S. (12 How.) 299 (1851); Scott v. Sandford, 60 U.S. (19 How.) 393 (1857) (dissenting)			
Grier, Robert C. (Associate Justice)	Aug. 10, 1846	Jan. 31, 1870	Polk, James K.
Notable Opinion(s): Scott v. Sandford, 60 U.S. (19 How.) 393 (1857) (separate opinion); The Amy Warwick, 67 U.S. 635 (1862)			
Woodbury, Levi (Associate Justice)	Sept. 23, 1845	Sept. 4, 1851	Polk, James K.
Notable Opinion(s): Jones v. Van Zandt, 46 U.S. 215 (1847); Cook v. Moffat and Curtis, 46 U.S. 295 (1847); Waring v. Clarke, 46 U.S. 441 (1847) (dissenting); Smith v. Turner (Passenger Cases), 48 U.S. (7 How.) 283 (1849) (dissenting)			
Nelson, Samuel (Associate Justice)	Feb. 27, 1845	Nov. 28, 1872	Tyler, John
Notable Opinion(s): Scott v. Sandford, 60 U.S. (19 How.) 393 (1857) (separate opinion); Prize Cases, 67 U.S. 635 (1862) (dissenting)			
Daniel, Peter V. (Associate Justice)	Jan. 10, 1842	May 31, 1860	Van Buren, Martin
Notable Opinion(s): Scott v. Sandford, 60 U.S. (19 How.) 393 (1857) (separate opinion)			

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Justice Name	Term Start	Term End	Appointing President
McKinley, John (Associate Justice)	Jan. 9, 1838	July 19, 1852	Van Buren, Martin
Notable Opinion(s): United States v. Fitzgerald, 40 U.S. 407 (1841); Pollard's Lessee v. Hagan, 44 U.S. 212 (1845)			
Catron, John (Associate Justice)	May 1, 1837	May 30, 1865	Jackson, Andrew
Notable Opinion(s): Scott v. Sandford, 60 U.S. (19 How.) 393 (1857) (separate opinion)			
Barbour, Philip P. (Associate Justice)	May 12, 1836	Feb. 25, 1841	Jackson, Andrew
Notable Opinion(s): New York v. Miln, 36 U.S. (11 Pet.) 102 (1837); Kendall v. United States ex rel. Stokes, 37 U.S. (12 Pet.) 524 (1838) (concurring in part and dissenting in part); Holmes v. Jennison, 39 U.S. (14 Pet.) 540 (1840) (concurring)			
Taney, Roger B. (Chief Justice)	Mar. 28, 1836	Oct. 12, 1864	Jackson, Andrew
Notable Opinion(s): Prigg v. Pennsylvania, 41 U.S. (16 Pet.) 539 (1842) (separate opinion); Luther v. Borden, 48 U.S. (7 How.) 1 (1849); Scott v. Sandford, 60 U.S. (19 How.) 393 (1857)			
Wayne, James M. (Associate Justice)	Jan. 14, 1835	July 5, 1867	Jackson, Andrew
Notable Opinion(s): Scott v. Sandford, 60 U.S. (19 How.) 393 (1857) (separate opinion)			
Baldwin, Henry (Associate Justice)	Jan. 18, 1830	Apr. 21, 1844	Jackson, Andrew
Notable Opinion(s): Cherokee Nation v. Georgia, 30 U.S. (5 Pet.) 1 (1831) (concurring); Ex Parte Crane, 30 U.S. (5 Pet.) 190 (1831) (dissenting); Rhode Island v. Massachusetts, 37 U.S. (12 Pet.) 657 (1838); Groves v. Slaughter, 40 U.S. (15 Pet.) 449 (1841) (dissenting)			
McLean, John (Associate Justice)	Mar. 12, 1829	Apr. 4, 1861	Jackson, Andrew
Notable Opinion(s): Briscoe v. Bank of Commonwealth of Kentucky, 36 U.S. 257 (1837); Pennsylvania v. Wheeling and Belmont Bridge Co., 59 U.S. (18 How.) 421 (1856) (dissenting); Scott v. Sandford, 60 U.S. (19 How.) 393 (1857) (dissenting)			
Trimble, Robert (Associate Justice)	June 16, 1826	Aug. 25, 1828	Adams, John Quincy
Notable Opinion(s): Ogden v. Saunders, 25 U.S. (12 Wheat.) 213 (1827) (concurring)			
Thompson, Smith (Associate Justice)	Sept. 1, 1823	Dec. 18, 1843	Monroe, James
Notable Opinion(s): Cherokee Nation v. Georgia, 30 U.S. (5 Pet.) 1 (1831) (dissenting)			
Story, Joseph (Associate Justice)	Feb. 3, 1812	Sept. 10, 1845	Madison, James
Notable Opinion(s): Martin v. Hunter's Lessee, 14 U.S. (1 Wheat.) 304 (1816); Trustees of Dartmouth College v. Woodward, 17 U.S. 518 (1819); Martin v. Mott, 25 U.S. (12 Wheat.) 19 (1827); The Amistad, 40 U.S. 518 (1841); Swift v. Tyson, 41 U.S. (16 Pet.) 1 (1842)			
Duvall, Gabriel (Associate Justice)	Nov. 23, 1811	Jan. 12, 1835	Madison, James
Notable Opinion(s): --			
Todd, Thomas (Associate Justice)	May 4, 1807	Feb. 7, 1826	Jefferson, Thomas
Notable Opinion(s): --			
Livingston, Henry Brockholst (Associate Justice)	Jan. 20, 1807	Mar. 18, 1823	Jefferson, Thomas
Notable Opinion(s): --			
Johnson, William (Associate Justice)	May 7, 1804	Aug. 4, 1834	Jefferson, Thomas
Notable Opinion(s): Gibbons v. Ogden, 22 U.S. (9 Wheat.) 1 (1824); Cherokee Nation v. Georgia, 30 U.S. (5 Pet.) 1 (1831)			

Justice Name	Term Start	Term End	Appointing President
Marshall, John (Chief Justice)	Feb. 4, 1801	July 6, 1835	Adams, John
Notable Opinion(s): Marbury v. Madison, 5 U.S. (1 Cr.) 137 (1803); Fletcher v. Peck, 10 U.S. (6 Cr.) 87 (1810); Sturges v. Crowninshield, 17 U.S. (4 Wheat.) 122 (1819); M'Culloch v. Maryland, 17 U.S. 316 (1819); Trustees of Dartmouth College v. Woodward, 17 U.S. 518 (1819); Cohens v. Virginia, 19 U.S. (6 Wheat.) 264 (1821); Willson v. Black-Bird Creek Marsh Co., 27 U.S. 245 (1829); Cherokee Nation v. Georgia, 30 U.S. (5 Pet.) 1 (1831); Worcester v. Georgia, 31 U.S. (6 Pet.) 515 (1832) Barron v. Baltimore, 32 U.S. (7 Pet.) 243 (1833)			
Moore, Alfred (Associate Justice)	Apr. 21, 1800	Jan. 26, 1804	Adams, John
Notable Opinion(s): --			
Washington, Bushrod (Associate Justice)	Nov. 9, 1798	Nov. 26, 1829	Adams, John
Notable Opinion(s): Ogden v. Saunders, 25 U.S. (12 Wheat.) 213 (1827)			
Ellsworth, Oliver (Chief Justice)	Mar. 8, 1796	Dec. 15, 1800	Washington, George
Notable Opinion(s): --			
Chase, Samuel (Associate Justice)	Feb. 4, 1796	June 19, 1811	Washington, George
Notable Opinion(s): Ware v. Hylton, 3 U.S. 199 (1796); Calder v. Bull, 3 U.S. (3 Dall.) 386 (1798)			
Rutledge, John (Interim Chief Justice)	Aug. 12, 1795	Dec. 15, 1795	Washington, George
Notable Opinion(s): --			
Paterson, William (Associate Justice)	Mar. 11, 1793	Sept. 9, 1806	Washington, George
Notable Opinion(s): Ware v. Hylton, 3 U.S. 199 (1796); Calder v. Bull, 3 U.S. (3 Dall.) 386 (1798)			
Johnson, Thomas (Associate Justice)	Sept. 19, 1791	Jan. 16, 1793	Washington, George
Notable Opinion(s): --			
Iredell, James (Associate Justice)	May 12, 1790	Oct. 20, 1799	Washington, George
Notable Opinion(s): Chisholm v. Georgia, 2 U.S. (2 Dall.) 419 (1793); Calder v. Bull, 3 U.S. (3 Dall.) 386 (1798)			
Rutledge, John (Associate Justice)	Feb. 15, 1790	Mar. 5, 1791	Washington, George
Notable Opinion(s): --			
Cushing, William (Associate Justice)	Feb. 2, 1790	Sept. 13, 1810	Washington, George
Notable Opinion(s): Chisholm v. Georgia, 2 U.S. (2 Dall.) 419 (1793); Calder v. Bull, 3 U.S. (3 Dall.) 386 (1798)			
Blair, John (Associate Justice)	Feb. 2, 1790	Oct. 25, 1795	Washington, George
Notable Opinion(s): Chisholm v. Georgia, 2 U.S. (2 Dall.) 419 (1793)			
Jay, John (Chief Justice)	Oct. 19, 1789	June 29, 1795	Washington, George
Notable Opinion(s): Chisholm v. Georgia, 2 U.S. (2 Dall.) 419 (1793)			
Wilson, James (Associate Justice)	Oct. 5, 1789	Aug. 21, 1798	Washington, George
Notable Opinion(s): Chisholm v. Georgia, 2 U.S. (2 Dall.) 419 (1793)			

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